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The Canons and Decrees of the Council of Trent

The Council of Trent (1545–1563)

TRADITION
Catholic — conciliar document

DATES
Council held 1545–1563 · Waterworth translation, 1848

LENGTH
25 sessions · Formal conciliar prose with canons and anathemas; the prorogation sessions are a page each, the doctrinal sessions much longer

WHY READ IT
The actual decrees of the Council of Trent, in the standard old English translation — shelved here plainly as the historical document it is, so that any reader can see what Trent really said rather than what others say it said. Session by session: the canon of Scripture, original sin, the great decree on justification with its canons, the sacraments, the Mass, purgatory, the invocation of saints, images, and indulgences — the defining acts of the Roman Catholic Church's answer to the Reformation, and the settlement it confessed for the next four centuries.

BEST PLACE TO START
The sessions are the council's own order. Session IV (the canon of Scripture) and Session VI (justification) are the most argued over; Session XXV closes the council with purgatory, saints, images, and indulgences. Waterworth's long introductory essays on the council's history, printed before the decrees in his edition, are not included.

SOURCE

The Canons and Decrees of the Sacred and Ecumenical Council of Trent, Celebrated under the Sovereign Pontiffs Paul III, Julius III and Pius IV, translated by the Rev. J. Waterworth (London: C. Dolman, 1848). Text fetched from a scan of that edition at the Internet Archive (archive.org). Waterworth's prefatory essays on the history of the council are not included. Because the text comes from a scanned old book, the scanning sometimes garbles a word.

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SESSION I

The Opening of the Council

OF THB

(ECUMENICAL AND GENERAL

COUNCIL OF TRENT,

Celebrated under the sovereign Pontiff\ Paul III ., on the thirteenth day of the month of December, in the year of the Lord , mdxlv.

DECREE TOUCHING THE OPENING OF THE COUNCIL.

Doth it please you,—unto the praise and glory of the holy and undivided Trinity, Father, and Son, and Holy Ghost; for the increase and exaltation of the Christian faith and religion; for the extirpation of heresies; for the peace and union of the Church; for the reformation of the Clergy and Christian people; for the depression and extinction of the enemies of the Chris¬ tian name,—to decree and declare that the sacred and general council of Trent do begin, and hath begun ?

They answered: It pleaseth us.

(r) May 22d.

ON THE MANNER OF LIVING, &C.

INDICTIGN OF THE NEXT SESSION.

And whereas the solemnity of the Nativity of our Lord Jesus Christ is near, and other festivals of the closing and opening year follow thereupon, doth it please you, that the first ensuing session be held on the Thursday after the Epiphany, which will be the seventh of the month of January, in the year of the Lord hdxlvi ?

They answered: It pleaseth us.

SESSION II

The Manner of Life to Be Observed in the Council

Celebrated on the seventh day of the month of January, mdxlvi.

DECBEE TOUCHING THE MANNER OF LIVING, AND OTHER MATTERS TO BE OBSERVED, DURING THE COUNCIL.

The sacred and holy Synod of Trent—lawfully assembled in the Holy Ghost, the same three legates of the Apostolic See presiding therein—recognising, with the blessed apostle James, that Every best gift and every perfect gift is from above , coming down from the father of lights,if) who, to those who ask of him wisdom , giveth to all abundantly , and upbraideth them not ;{*) and knowing withal that The fear of the Lord is the beginning of wisdom.,(*) hath ordained and decreed, that all and each of the faithful of Christ, assembled in the city of Trent, be ex¬ horted, as they are hereby exhorted, to amend themselves of their evils and sins heretofore committed, and to walk henceforth in the fear of the Lord; not to fulfil the lusts of the flesh ;(w) to be instant in prayer; to confess more frequently; to receive the sacrament of the Eucharist; to visit churches; to fulfil, in fine, as far as each one shall be able, the commandments of the Lord; and, furthermore, to pray daily in private for peace be¬ tween Christian princes, and for the unity of the Church: and as regards the bishops, and all others soever constituted in the priestly order, who are celebrating together an oecumenical council in this city, that they give heed to apply themselves as¬ siduously to the praises of God; to offer up victims, praises.

(*) i. 17. (t) i. 5. (*) Ps. cx. 10. V w) Gal. v. 16.

SESSJON IT.

and prayers; to celebrate the sacrifice of the mass on each Sunday at least, the day whereon God made the light, rose again from the dead, and poured forth the Holy Ghost upon the disciples; making , as the same Holy Ghost enjoins by the apostle, supplications, prayer*) intercessions 9 thanksgivings ,(*) for our most holy lord the Pope, for the emperor, for kings 9 and others who are placed in high stations 9 and for all men, that we may lead a quiet and peaceable life 9 {l) may enjoy peaces and see an increase of faith. Furthermore, it exhorts that they fast at least on eveiy Friday, in memory of the passion of the Lord, and give alms to the poor: further, on every Thursday there shall be celebrated, in the cathedral church, the mass of the Holy Ghost, with the litanies and other prayers appointed for this end; and on the same day there shall be said, in the other churches, at least the litanies and prayers; and during the time that the sacred services are being performed, let there be' no talking or conversing together, but with mouth and mind association with the celebrant And forasmuch as It behoveth bishops to be blameless 9 sober 9 chaste 9 ruling well their own household (z), (the Council) exhorts also that, above all, each* observe sobriety at table, and moderation in diet; further, that, whereas idle conversations are often wont to arise there, the reading of the divine Scriptures be introduced, even at the tables of bishops; and let eaoh teach and charge his servants not to be quarrelsome, given to wine, immodest, covetous, proud, blasphemous, and lovers of

pleasures; in fine, let them shun vice and follow after virtue, and in dress, demeanour, and in all their actions show forth modesty, as becomes the servants of the servants of God.

Moreover, whereas it is the chief care, solicitude, and inten¬ tion of this sacred and holy council, that, the darkness of heresies, which during so many years has covered the earth, being dis¬ pelled, the light, brightness, and purity of Catholic truth may, by the assistance of Jesus Christ, who is the true light 9 {*) shine forth; and that those things which need reformation may be re¬ formed ; the said Synod exhorts all Catholics here assembled,

(*) 1 Tim. ii. I. (J) lb. y. 2. (*) l Tim. ii. 2, 4. (a) John i. 5.

THE SYMBOL OF FAITH.

and to be assembled, and especially those skilled in sacred let¬ ters, that by sedulous meditation they ponder diligently within themselves, by what ways and means the intention of the Synod may be best carried out and obtain the desired effect; that, in the most prompt and prudent manner, the things to be condemned, may be condemned; and those to be approved of be approved ; that so, throughout the whole world, all may, with one mouth, and with the same confession of faith, glorify God, and the Father of our Lord Jesus Christ.

And in delivering their sentiments, when the priests of the . Lord are sitting together in the place of benediction, no one— agreeably to the statute of the council of Toledo (b)—ought either to be boisterous by immoderate outcries, or to, cause dis¬ turbance by tumult; none to be contentious with false, vain, or obstinate disputation ; but let whatsoever is said be so tempered by the mildest utterance of the words spoken, that neither the hearers may be offended, nor the rectitude of a correct judgment be warped by the mind being troubled.

Furthermore, this sacred Synod has ordained and decreed, that if it should chance to happen that any do not sit in their due plaoes, and (thus) deliver their sentiments, even under the word Placet , (It pleaseth us,) are present at the Congregations, and take part in any other act whatsoever during the council, none shall thereby be prejudiced, none acquire a new right

INDICTION OF THE NEXT SESSION.

After this, the next Session was indicted for Thursday, the fourth of the ensuing February.

SESSION III

On the Symbol of Faith

Celebrated on the fourth day of the month of February , in the year mdxlvi.

DECREE TOUCHING THE 8TMBOL OF FAITH.

In the Name of the Holy and Undivided Trinity, Father , and Son , and Holy Ghost.

This sacred and holy, oecumenical, and general Synod of

• (b) Cone. Tolet. ii. cap. 1.

SESSION HI.

Trent,—lawfully assembled in the Holy Ghost, the same three legates of the Apostolic See presiding therein,—considering the magnitude of the matters to be treated of, especially of those comprised under the two heads, of the extirpating of heresies, and the reforming of manners, for the sake of which chiefly It is assembled, and recognising with the apostles, that Its wrestling is not against flesh and bloody but against the spirits of wickedness in the high placesyif) exhorts, with the same apostle, all and each, above all things, to be strengthened in the Lord 9 and in the might of his power , in all things taking the shield of faith y wherewith they may be able to extinguish all the fiery darts of the most wicked one y and to take the helmet of salvation , with the sword of the spirit , which is the word of God. (d) Wherefore, that this its pious solicitude may begin and proceed by the grace of God, It or¬ dains and decrees that, before all other things, a confession of faith is to be set forth; following herein the examples of the Fathers, who have been wont, in the most sacred councils, (e) at the beginning of the Actions thereof to oppose this shield against heresies; and with this alone, at times, have they drawn the unbelieving to the faith, overthrown heretics, and confirmed the faithful. For which cause, this council has thought good, that the Symbol of faith which the holy Roman Church makes use of,—as being that principle wherein all who profess the faith of Christ necessarily agree, and that firm and alone foundation against which the gates of hell shall never prevail,^) —be ex¬ pressed in the very same words in which it is read in all the churches. Which Symbol is as follows: I believe in one God, the Father Almighty, maker of heaven and earth, of all things visible and invisible; and in one Lord Jesus Christ, the onlybegotten Son of God, and bom of the Father before all ages; God of God, light of light, true God of true God; begotten, not made, consubstantial with the Father, by whom all things were made: who for us men, and for our salvation, came down from the heavens, and was incarnate by the Holy Ghost of* the

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(C) Ephcs. vi. 12. (d) lb. v. 10, 16, 17.

(e) Condi. Nicaen. Rom. I. sub. Julio I. Condi. Hippon. inprinc; Condi. Constant. VI. act. 17. (Q Matt. xvi. 18.

ON THE CANONICAL SCRIPTURES.

Virgin Mary, and was made man: crucified also for us under Pontius Pilate, he suffered and was buried; and he rose again on the third day, according to the Scriptures; and he ascended into heaven, sitteth at the right hand of the Father; and again he will come with glory to judge the living and the dead; of whose kingdom there shall be no end: and in the Holy Ghost the Lord, and the giver of life, who proceedeth from the Father and the Son; w ho with the Father and the Son together is adored and glorified; who spoke by the prophets: and one holy Catho¬ lic and Apostolic Church. I confess one baptism for the remis¬ sion of sins ; and I look for the resurrection of the dead, and the life of the world to come. Amen.

INDICTION OF THE NEXT SESSION.

The same sacred and holy, oecumenical, and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same three legates of the Apostolic See presiding therein,—understanding that many prelates in divers places are girt for their journey, and that some also are on their way hither; and considering that all that may be decreed by the said sacred Synod may seem to be in so much the greater estimation and honour with all men, as it shall have been sanctioned and confirmed by a more numerous and fuller council and attendance of Fathers, has resolved and decreed, that the next Session after the present be celebrated on the Thursday after Ixetare Sunday next; but that, in the interim, the discussion and examination of those things which it shall seem fit to the said Synod to discuss and examine be not deferred.

SESSION IV

On the Canonical Scriptures

Celebrated on the eighth day of the month of April, in the

year mdxlvi.

DECREE CONCERNING THE CANONICAL SCRIPTURES.

The sacred and holy, (Ecumenical, and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same three legates of the Apostolic See presiding therein,—keeping this

- Digitized by v^.ooQle

always in view, that, errors being removed, the purity itself of the Gospel be preserved in the Church; which (Gospel), before promised through the prophets in the holy Scriptures, our Lord Jesus Christ, the Son of God, first promulgated with HisPown mouth, and then commanded to be preached by His Apostles to every creature, as the fountain of all, both saving truth, and moral discipline ;(*) and seeing clearly that this truth and dis¬ cipline are contained in the written books, and the unwritten traditions which, received by the Apostles from the mouth of Christ himself, or from the Apostles themselves, the Holy Ghost dictating, have come down even unto us, transmitted as it were from hand to hand; (the Synod) following the examples of the orthodox Fathers, receives and venerates with an equal affection of piety, and reverence,(h) all the books both of the Old and of the New Testament—seeing that one God is the author of both —as also the said traditions, as well those appertaining to faith as to morals, as having been dictated, either by Christ's own word of mouth, or by the Holy Ghost, and preserved in the Catholic Church by a continuous succession. And it has thought it meet that a list of the sacred books be inserted in this decree, lest a doubt may arise in any one's mind, which are the books that are received by this Synod. They are as set down here below: of the Old Testament: the five books of Moses, to wit, Genesis, Exodus, Leviticus, Numbers, Deu¬ teronomy; Josue, Judges, Ruth, four books of Kings, two of Paralipomenon, the first book of Esdras, and the second which is entitled Nehemias; Tobias, Judith, Esther, Job, the Davidical Psalter,0) consisting of a hundred and fifty psalms; the Pro¬ verbs, Ecclesiastes, the Canticle of Canticles, Wisdom, Ecclesiasticus, Isaias, Jeremias, with Baruch; Ezechiel, Daniel; the twelve minor prophets, to wit, Osee, Joel, Amos, Abdias, Jonas, Micheas, Nahum, Habacuc, Sophonias, Aggaeus, Zacharias, Malachias; two books of the Machabecs, the first and die second. Of the New Testament: the four Gospels, according

(?) Tamquara fontem omnia, et salutaiis veritatis, et mo rum discipline. (*») Pari pietatis affectu (sentiment), ac reverentia.

(1) Psalterium Davidicum, the Psalter called David's,

to Matthew, Mark, Luke, and John; the Acts of the Apostles, written by Luke the Evangelist; fourteen epistles of Paul the apostle, (one) to the Romans, two to the

Corinthians, (one) to the Galatians, to the Ephesians, to the Philippians, to the Colossians, two to the Thessalonians, two to Timothy, (one) to Titus, to Philemon, to the Hebrews; two of Peter the apostle, three of John the apostle, one of the apostle James, one of Jude the apostle, and the Apocalypse of John the apostle. But if any one receive not, as sacred and canonical, the said books entire with all their parts, as they have been used to be read in the Catholic Church, and as they are contained in the old Latin vulgate edition; and knowingly and deliberately contemn the traditions aforesaid; let him be anathema. Let all, therefore, understand, in what order, and in what manner, the said Synod, after having laid the foundation of the Confession of faith, will proceed, and what testimonies and authorities(k) it will mainly use in confirming dogmas, and in restoring morals in the Church.

DECREE CONCERNING THE EDITION, AND THE USE, OF THE SACRED BOOKS.

Moreover, the same sacred and holy Synod,—considering that no small utility may accrue to the Church of God, if it be made known which out of all the Latin editions, now in circu¬ lation, of the sacred books, is to be held as authentic,—ordains and declares, that the said old and vulgate edition, which, by the lengthened usage of so many ages, has been approved of in the Church, be, in public lectures, disputations, sermons and ex¬ positions, held as authentic; and that no one is to dare, or pre¬ sume to reject it under any pretext whatever.

Furthermore, in order to restrain petulant spirits, It decrees, that no one, relying on his own skill, shall,—in matters of faith, and of morals pertaining to the edification of Christian doctrine, —wresting the sacred Scripture to his own senses, presume to interpret the said sacred Scripture contrary to that sense which holy mother Church,—whose it is to judge of the true sense and interpretation of the holy Scriptures,—hath held and doth hold ;

(t) Priesidiis.

2 ii

or even contrary to the unanimous consent of the Fathers; even though such interpretations were never (intended) to be at any time published. Contraveners shall be made known by their Ordinaries, and be punished with the penalties by law established.

And wishing, as is just, to impose a restraint, in this matter, also on printers, who now without restraint,—thinking, that is, that whatsoever they please is allowed them,—print, without the license of ecclesiastical superiors, the said books of sacred Scripture, and the notes and comments upon them of all persons indifferently, with the press ofttimes unnamed, often even fictitious, and what is more grievous still, without the author’s name; and also keep for indiscriminate sale books of this kind printed elsewhere; (this Synod) ordains and decrees, that, henceforth, the sacred Scripture, and especially the said old/and vulgate edition, be printed in the most correct manner possible; and that it shall not be lawful for any one to print, or cause to be printed, any books whatever, on sacred matters, without the name of the author; nor to sell them in future, or even to keep them,

unless they shall have been first examined, and approved of, by the Ordinary; under pain of the anathema and fine im¬ posed in a canon of the last Council of Lateran : and, if they be Regulars, besides this examination and approval, they shall be bound to obtain a license also from their own superiors, who shall have examined the books according to the form of their own statutes. As to those who lend, or circulate them in manu¬ script, without their having been first examined, and approved of, they shall be subjected to the same penalties as printers: and they who shall have them in their possession, or shall read them, shall, unless they discover the authors, be themselves regarded as the authors. And the said approbation of books of this kind shall be given in writing; and for this end it shall appear authentically at the beginning of the book, whether the book be written, or printed; and all this, that is, both the approbation and the examination, shall be done gratis, that so what ought to be approved, may be approved, and what ought to be con¬ demned, may be condemned.

Besides the above, wishing to repress that temerity, by which the words and sentences of sacred Scripture are turned and

ON ORIGINAL BIN.

twisted to all sorts of profane uses, to wit, to things scurrilous, fabulous, Tain, to flattened, detractions, superstitions, impious and diabolical incantations, sorceries, and defamatory libels; (the Synod) commands and enjoins, for the doing away with this kind of irreverence and contempt, and that no one may henceforth dare in any way to apply the words of sacred Scripture to these and such like purposes; that all men of this description, profaners and violators of the word of God, be by the bishops restrained by the penalties of law, and others of their own appointment.

INDICTION OF THE NEXT SESSION.

Likewise, this sacred and holy Synod resolves and decrees, that the next ensuing 3ession be held and- celebrated on the Thursday after the next most sacred festival of Pentecost.

SESSION V

On Original Sin

Celebrated on the seventeenth day qf the month of June , in the

year mdxlvi.

DECREE CONCERNING ORIGINAL SIN.

That our Catholic faith , without which it is impossible to please God,{ *) may, errors being purged away, continue in its own perfect and spotless integrity, and that the Christian people may not be carried about with every wind of doctrine ;(“) whereas that old serpent, the perpetual enemy of mankind, amongst the very many evils with which the Church of God is in these our times troubled, has also stirred up not only new, but even old, dissensions touching original sin, and the remedy thereof; the sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the three same legates of the Apostolic See presiding therein,—wishing now to come to the reclaiming of the erring, and the confirming of the wavering,—following the testimonies of the sacred

(!) Hebr. xi. 6. (m) Ephes. iv. 14.

Scriptures, of the holy Fathers, of the mo3t approved councils, and the judgment and consent of the Church itself, ordains, confesses, and declares these things touching the said original sin:

1. If any one does not confess that the first man, Adam, when he had transgressed the commandment of God in Paradise, immediately lost the hohness and justice wherein he had been constituted; and that he incurred, through the offence of that prevarication, the wrath and indignation of God, and conse¬ quently death, with which God had previously threatened him, and, together with death, captivity under his power who thence¬ forth had the empire of death, that is to say, the devil,(n) and that the entire Adam, through that offence of prevarication, was changed, in body and soul, for the worse ; let him be anathema.

2. If any one asserts, that the prevarication of Adam injured himself alone, and not his posterity; and that the holiness and justice, received of God, which he lost, he lost for himself alone, and not for us also; or that he, being defiled by the sin of dis¬ obedience, has only transfused death, and pains of the body, into the whole human race, but not sin also, which is the death of the soul; let him be anathema:—whereas he contradicts the apostle who says; By one man sin entered into the world, and by sin death , and so death passed upon all men, in whom all have sinned.(°)

8. If any.one asserts, that this sin of Adam,—which in its origin is one, and being transfused into all by propagation, not by imitation, is in each one as his own,(p)—is taken away either by the powers of human nature, or by any other remedy than the merit of the one mediator, our Lord Jesus Christ,{*) who hath reconciled us to God in his own blood, made unto us jus tice, sanctification, and redemption ;(r) or if he denies that the

said m°rit of Jesus Christ is applied, both to adults and to infants, by the sacrament of baptism rightly administered in the form of the Church; let him be anathema: For there is no other name tinder heaven given to men , whereby we must be

(n) Hebr. ii. 14. (<0 Rom. v. 12.

(n) l Tim. ii. 5.

(P) Inest unicuique proprium. (r) i Cor. i. 30.

saved. (') Whence that voice; Behold the lamb of God, behold him who taketh away the sins of the world ;{ x) and that other; As many as have been baptized , have put on Christ.(')

4. If any one denies, that infants, newly bom from their mothers' wombs, even though they be sprung from baptized parents, are to be baptized; or says that they are baptized indeed for the remission of sins,(*) but that they derive nothing of original sin from Adam, which has need of being expiated by the laver of regeneration for the obtaining life everlasting,—whence it follows as a consequence, that in them the form of baptism, for the remission of sins , is understood to be not true, but false, —let him be anathema. For that which the apostle has said, By one man sin entered into the world , and by sin death , and so death passed upon all men in whom all have sinned,(x) is not to be understood otherwise than as the Catholic Church spread everywhere hath always understood it. For, by reason of this rule of faith, from a tradition of the apostles, even infants, who could not as yet commit any sin of themselves, are for this cause truly baptized for the remission of sins , that in them that may be cleansed away by regeneration, which they have con¬ tracted by generation. For , unless a man be born again of water and the Holy Ghost , he cannot enter into the kingdom of God.(y)

5. If any one*denies, that, by the grace of our Lord Jesus Christ, which is conferred in baptism, the guilt of original sin is remitted; or even asserts that the whole of that which has the true and proper nature of sin is not taken away ; but says that it is only rased,(z) or not imputed; let him be anathema. For, in those who are born again , there is nothing that God hates; because, There is no condemnation to those who are truly buried together with Christ by baptism into death ;(*) who walk not according to the fleshy but, putting off the old man , and putting on the new who is created according to God,(h) are made inno-

(») Acts iv. 2. ' (t) John i. 29. (v) Gal. iii. 27.

(w) Acts ii. 38. (*) Rom. v. 12.

(y) John iii. 5. (*) Radi, cancelled. (a) Rom. viii. 1; vi. 4.

(b) Ephes. iv. 22. 24.

cent, immaculate, pure, harmless, and beloved of God, heirs indeed of God, but joint heirs with Christ ;(c) so that there is nothing whatever to retard their entrance into heaven. But this holy synod confesses and is sensible, that in the baptized there remains

concupiscence, or an incentive (to sin) ;(d) which, whereas it is left for our exercise,(*) cannot injure those who consent not, but resist manfully by the grace of Jesus Christ; yea, he who shall have striven lawfully shall be crowned .^) This concupiscence, which the apostle sometimes calls sin, (g) the holy Synod declares that the Catholic Church has never understood it to be called sin, as being truly and properly sin in those born again , but because it is of sin, and inclines to sin. And if any one is of a contrary sentiment, let him be anathema.

This same holy Synod doth nevertheless declare, that it is not its intention to include in this decree, where original sin is treated of, the blessed and immaculate Virgin Mary, the mother of God; but that the constitutions of Pope Sixtus IV.,(h) of happy memory, are to be observed, under the pains contained in the said constitutions, which it renews.

DECREE ON REFORMATION.

CHAPTER I.

On the Institution of a Lectureship of Sacred Scripture , and of the liberal arts .

The same sacred and holy Synod, adhering to the pious con¬ stitutions of the Sovereign Pontiffs, and of approved councils, (*) and embracing and adding to them; that the heavenly treasure of the sacred books, which the Holy Ghost has with the greatest liberality delivered unto men, may not lie neglected, hath or-

(c) Rom. viii. 17. (<*) Fomitem.

(e) Ad agonem, to be wrestled with. (0 2 Tim. ii. 5. (?) Rom. vi.—viii.

(h) Extravag. Cum pncexcelsa, ct Grave nimis 1 et 2 de Reliq. et venerat. sanct. iut. comm.

(») Concil. Later, sub Innoc. iii. cap. ii; Cabilon. ii. cap. 3. Dist. 37. c. Do quibusdam.

ON REFORMATION.

dained and decreed, that,—in those churches where there is found to be a prebend, prestimony, or other stipend under whatsoever name, destined for lecturers in sacred theology,—the bishops, archbishops, primates, and other Ordinaries of those places shall force and compel, even by the substraction of the fruits, those who hold such prebend, prestimony, or stipend, to ex¬ pound and interpret the said sacred Scripture, either personally^ if they be competent, or otherwise by a competent substitute, to be chosen by the said bishops, archbishops, primates, and other Ordinaries of those places. But, for the future, let not such prebend, prestimony, or stipend be bestowed save on com¬ petent persons, and those who can themselves discharge that office; and otherwise let the provision made be null and void.

But in metropolitan, or cathedral churches, if the city be dis¬ tinguished and populous,—and also in collegiate churches which are in any large town, even though they may not belong to any diocese, provided the clergy be numerous there,—wherein there is no such prebend, prestimony, or stipend set aside for this purpose, let the first prebend

that shall become vacant in any way soever, except by resignation, and to which some other incompatible duty is not attached, be understood to be ipso facto set apart and devoted to that purpose for ever. And in case that in the said churches there should not be any, or not any sufficient, prebend, let the metropolitan, or the bishop himself, by assigning thereunto the fruits of some simple bene¬ fice,—the obligations thereto belonging being nevertheless discharged,—or by the contributions of the beneficiaries of his city and diocese, or otherwise, as may be most convenient, pro¬ vide in such wise, with the advice of his chapter, as that the said lecture of sacred Scripture be ^iad; yet so that whatsoever other lectures there may be, whether established by custom, or in any other way, be not by any means therefore omitted.

As to churches, whose annual revenues are slight, and where the number of the clergy and laity is so small, that a lectureship of Theology cannot be conveniently had therein, let them at least have a master—to be chosen by the bishop, with the advice of the chapter—-to teach grammar gratuitously to clerics, and other poor scholars, that so they may afterwards, with God’s blessing,

SESSION v;

pass on to the said study of sacred Scripture. And for this end, either let the fruits of some simple benefice be assigned to that master of grammar,—which fruits he shall receive so long as he continues teaching, provided however, that the said bene¬ fice be not deprived of the duty due to it,—or let some suitable remuneration be paid him out of the episcopal or capitular revenue ;(k) or in fine let the bishop himself devise some other method suited to his church and diocese; that so this pious* useful, and profitable provision may not be, under any colour¬ able pretext whatever, neglected.

In the monasteries also of monks, let there be in like manner a lecture on sacred Scripture, where this can be conveniently done : wherein if the abbots be negligent, let the bishops of the places, as the delegates herein of the Apostolic See, compel them thereto by suitable remedies. And in the convents of other Regulars, in which studies can conveniently flourish, let there be in like manner a lectureship of sacred Scripture; which lectureship shall be assigned, by the general or provincial chap¬ ters, to the more able masters.

In the public colleges also, wherein a lectureship so honour¬ able, and the most necessary of all, has not hitherto been in¬ stituted, let it be established by the piety and charity of the most religious princes and governments, for the defence and increase of the Catholic faith, and the preservation and propa¬ gation of sound doctrine; and where such lectureship, after being once instituted, has been neglected, let it be restored. And that impiety may not be disseminated under the semblance of piety, the same holy Synod ordains, that no one be admitted to this office of lecturing, whether in public or in private, with¬ out having been previously examined and approved of by the bishop of the place, as to his life, conversation, and knowledge: which however is not to be understood of lecturers in convents of monks. Furthermore, those who are teaching the said sacred Scripture, as long as they teach publicly in the schools, as also the scholars who are

studying in those schools, shall fully enjoy

(k) Ex capitulari, vel opiscopali mensa.

ON REFORMATION.

and possess, though absent, all the privileges accorded by common law, as regards the reception of the fruits of their pre¬ bends and benefices.

CHAPTER II.

On Preachers of the word of God 7 and on Questors of alms .

But seeing that the preaching of the Gospel is no less neces¬ sary to the Christian commonwealth than the reading thereof; and whereas this is the principal duty of bishops; the same holy Synod hath resolved and decreed, that all bishops, arch¬ bishops, primates, and all other prelates of the churches be bound personally—if they be not lawfully hindered—to preach the holy Gospel of Jesus Christ. But if it should happen that bishops, and the others aforesaid, be hindered by any lawful impediment, they shall be bound, in accordance with the form prescribed by the general Council (of Lateran), to appoint fit persons to discharge wholesomely this office of preaching. But if any one through contempt do not execute this,( ]) let him be subjected to rigorous punishment.

Archpriests, curates, and all those who in any manner soever hold any parochial, or other, churches, which have the cure of souls, shall, at least on the Lord's days, and solemn feasts, either personally, or if they be lawfully hindered, by others who are competent, feed the people committed to them, with whole¬ some words, according to their own capacity, and that of their people; by teaching them the things which it is necessary for all to knew unto salvation, and by announcing to them with briefness and plainness of discourse, the vices which they must avoid, and the virtues which they must follow after, that they may escape everlasting punishment, and obtain the glory of heaven. And if any one of the above neglect to discharge this duty,—even though he may plead, on whatsoever ground, that he

C 1) Hoc adimplere contempserit.

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is exempt from the jurisdiction of the bishop, and even though the churches may be, in whatsoever way, said to be exempted, or haply annexed or united to a monastery that is even out of the diocese,—let not the watchful pastoral solicitude of the bishops be wanting, provided those churches be really within their diocese; lest that word be fulfilled; The little ones have asked for bread , and there was none to break it unto them.(m) Wherefore, if, after having been admonished by the bishop, they shall neglect this their duty for the space of three months, let them be compelled by ecclesiastical censures, or otherwise, at the discretion of the said bishop; in such wise that even—if this seem to him expedient—a fair remuneration be paid, out of the fruits of the benefices, to some other person to. discharge that office, until the principal himself repenting shall fulfil his own duty.

But should there be found to be any parochial churches, sub¬ ject to monasteries which are not in any diocese, if the abbots and Regular prelates be negligent in the matters aforesaid, let them be compelled thereto by the metropolitans, in whose pro¬ vinces the said dioceses are situated, as the delegates for that end of the Apostolic See ; nor let custom, or exemption, or appeal, or reclamation, or action of recovery(“) be of effect to impede the execution of this decree; until by a competent judge,—who shall proceed summarily, and examine only into the truth of the (matter of) fact,—the case shall have beeu taken cognizance of, and decided.

Regulars, of whatsoever order they may be, may not preach even in the churches of their own orders, unless they have been examined and approved of as regards their life, manners, and knowledge, by their own superiors, and with his license; with which license they shall be bound to present themselves per¬ sonally before the bishops, and beg a blessing from them, before they begin to preach. But, (to preach) in churches which are not those of their own orders, besides the license of their own superiors, they shall be obliged to have also the license of the bishop, without which they may not on any account preach in

(m) Lament, i?. 4. («) Recursus.

ON REFORMATION.

the said churches which belong not to their own orders: but bishops shall grant the said license gratuitously.

But if, which God forbid, a preacher should spread errors, or scandals, amongst the people, let the bishop interdict his preach¬ ing, even though he preach in a monastery of his own, or of another, order: whereas, if he preach heresies, let him proceed against him according to the appointment of the law, or the custom of the place, even though the said preacher should plead that he is exempted by a general, or special, privilege: in which case the bishop shall proceed by apostolic authority, and as the delegate of the Apostolic See. But let bishops be careful, that a preacher be not annoyed, either by false accusa¬ tions, or in any other way calumniously; or have any just cause of complaint against them.

Furthermore, let bishops be on their guard not to permit any one,—whether of those, who, being Regulars in name, live nevertheless out of their monasteries, and the obedience of their religious institute, or secular priests, unless they be known to them, and are of approved morals and doctrine,—to preach in their own city, and diocese, even under the pretext of any privi¬ lege whatsoever; until the holy Apostolic See has been con¬ sulted by the said bishops thereon; from which See it is not likely that unworthy persons can extort any such privileges, except by suppressing the truth, or by uttering what is false.

Those who quest for alms—who are also commonly called Questors—of whatsoever condition they may be, shall not in any way presume, either personally, or by another, to preach; and Contraveners shall, any privileges notwithstanding, be wholly restrained by suitable remedies, by the bishops and Or¬ dinaries of the places.

INDICTION OF THE NEXT SESSION.

The sacred and holy Synod also ordains and decrees, that •the first ensuing Session be held and celebrated on the Thursday after the feast of the blessed apostle James.

77te Session was afterwards 'prorogued to the thirteenth of January , mdxlvii.

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SESSION VT.

SESSION VI

On Justification

Celebrated on the thirteenth day of the month of January ,

MDXLVII.

DECREE ON JUSTIFICATION.

Proem .

Whereas there is, at this time, not without the shipwreck of many souls, and grievous detriment to the unity of the Church, a certain erroneous doctrine disseminated touching Justification; the sacred and holy, oecumenical and general Synod of Trent, lawfully assembled in the Holy Ghost,—the most reverend lords, Giammaria del Monte, bishop of Palaestrina, and Marcellus of the title of the Holy Cross in Jerusalem, priest, car¬ dinals of the holy Roman Church, and legates apostolic a latere , presiding therein, in the name of our most holy father and lord in Christ, Paul III., by the providence of God, Pope,—pur¬ poses, unto the praise and glory of Almighty God, the tranquillising of the Church, and the salvation of souls, to expound to all the faithful of Christ the true and sound doctrine touching the said Justification; which (doctrine) the sun of justice, Christ Jesus, the author and finisher of our faith(°) taught, which the apostles transmitted, and which the Catholic Church, the Holy Ghost reminding her thereof, (p) has always retained; most strictly forbidding that any henceforth presume to believe, preach, or teach, otherwise than as by this present decree is defined and declared.

CHAPTER I.

On the Inability of Nature and of the Law to justify man .

The holy Synod declares first, that, for the correct and sound understanding of the doctrine of Justification, it is necessary

(") Itebr. xii. 2.

(p) John xiv. 26.

that each one recognise and confess, that, whereas all men had lost their innocence in the prevarication of Adam—having be¬ come unclean, (*») and, as the apostle says, by nature children of ttrathy(r) as (this Synod) has set forth in the decree on original sin,—they were so far the servants of sin>(') and under the power of the devil and of death, that not the Gentiles only by the force of nature, but not even the Jews by the very letter itself of the law of Moses, were able to be liberated, or to arise, therefrom; although free will, attenuated as it was in its powers, and bent down, was by no means extinguished in them.

CHAPTER II.

On the dispensation and mystery of Christs advent .

Whence it came to pass, that the heavenly Father, the father of mercies and the God of all comfort ,(*) when that blessed fulness of the tithe was come y (r) sent unto men, Jesus Christ, His own Son —who had been, both before the Law, and during the time of the Law, to many of the holy fathers announced and promised— that He might both redeem the Jews who were tinder the Law y (w) and that the Geniiles y who followed not after justice, might attain to justice, (*) and that all men might receive the adoption of sons. Him God hath proposed as a propitiator, through faith in his blood 9 (J) for our sins , and not for our sins only, but also for those of the whole world. (*)

CHAPTER III.

Who are justified through Christ.

But, though He died for all,(*) yet do not all receive the benefit of His death, but those only unto whom the merit of His

(q) Is. lxiv. 6. (r) Gphes. ii. 3. (*) Rom. vi. 17.

(t) 2 Cor. i. 3. (▼) Gal. iv. 4.

(w) lb. v. 4. (*) Rom. ix. 30. (y) Rom. iii. 25.

(*) 1 John ii. 2. (a) 2 Cor. ▼. 15.

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passion is communicated. For as in truth men, if they were not born propagated of the seed of Adam, would not be born unjust,—seeing that, by that propagation, they contract through him, when they are conceived, injustice as their own,—so, if they were not born again in Christ, they never would be justi¬ fied; seeing that, in that new birth, there is bestowed upon them, through the merit of His passion, the grace whereby they are made just. For this benefit the apostle exhorts us, ever¬ more to give thanks to the Father, who hath made us worthy to be partakers of the lot of the saints in light, and hath delivered us from the power of darkness, and hath translated us into the Kingdom of the Son of his love, in whom we have redemption , and remission of sins . (b)

CHAPTER IV.

A description is introduced of the Justification of the impious , and of the manner thereof under the law of grace .

By which words, a description of the Justification of the impious is indicated,—as being a translation, from that state wherein man is bora a child of the first Adam, to the state of grace, and of the adoption of the sons of God, (c) through the second Adam, Jesus Christ, our Saviour. And this translation, since the promulgation of the Gospel, cannot be effected, with¬ out the laver of regeneration, or the desire thereof, as it is written; unless a man be born again of water and the Holy Ghost , he cannot enter into the Kingdom of God. (d)

CHAPTER V.

On the necessity , in adults, of preparation for Justification, and whence it proceeds.

The Synod furthermore declares, that, in adults, the beginning of the said Justification is to be derived from the prevenient

(h) Colosd. i. 12 —14. (r) Rom. v. 23. (<*) John iii. f>.

grace of God, through Jesus Christ, that is to say, from His vocation, whereby, without any merits existing on their parts, they are called; that so they, who by sins were alienated from God, may be disposed through His quickening and assisting grace, to convert themselves to their own justification, by freely assenting to and co-operating with that said grace: in such sort that, while God touches the heart of man by the illumination of the Holy Ghost, neither is man himself utterly without doing anything while he receives that inspiration, forasmuch as he is also able to reject it; yet is he not able, by his own free will, without the grace of God, to move himself unto justice in His sight. Whence, when it is said in the sacred writings: Turn ye tome , and I will turn to you, (e) we are admonished of our liberty; and when we answer; Convert us, O Lord, to thee , and tee shall be converted,(*) we confess that we are prevented (*) by the grace of God.

CHAPTER VI.

The manner of Preparation.

Now they (adults) are disposed unto the said justice, when, excited and assisted by divine grace, conceiving faith by hear iny,(h) they are freely moved towards God, believing those things to be true which God has revealed and promised,—and this especially, that God justifies the impious by His grace, through the redemption that is in Christ Jesus;(') and when, understanding themselves to be sinners, they, by turning them¬ selves, from the fear of divine justice whereby they are pro¬ fitably agitated, to consider the mercy of God, are raised unto hope, confiding that God will be propitious to them for Christ’s sake; and they begin to love Him as the fountain of all justice ; and are therefore moved against sins by a certain hatred and detestation, to wit, by that penitence which must be performed before baptism : lastly, when they purpose to receive baptism,

(e) Zach. i. 3. (*) Lam. v. 21. (?) Praeveniri.

(h) Rom, x. 17. (*) Rom. iii. 24.

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to begin a new life, and to keep the commandments of God. Concerning this disposition it is written; He that cometh to God, must believe that he is, and is a rewarder to them that seek him; (k) and, Be of good faith, son, thy sins are forgiven thee; ( ]) and, The fear of the Lord driveth out sin ;(■) and, Do penance, and be baptized every one of you in the name of Jesus Christ, for the remission of your sins, and you shall receive the gift of the Holy Ghost ;(“) and. Going, therefore, teach ye all nations, baptizing them in the name of the Father, and of the Son, and of the Holy Ghost; (°) finally, Prepare your hearts unto the

Lord, (p)

CHAPTER VII.

What the Justification of the impious is, and what are the causes thereof

This disposition, or preparation, is followed by Justification itself, which is not remission of sins merely, but also the sancti¬ fication and renewal of the inward man, through the voluntary reception of the grace, and of the gifts, whereby man of unjust becomes just, and of an enemy a Mend, that so he may be an heir according to hope of life everlasting .(q)

Of this Justification the causes are these: the final cause indeed is the glory of God and of Jesus Christ, and life ever¬ lasting ; while the efficient cause is a merciful God who washes and sanctifies { T) gratuitously, signing, and anointing with the holy Spirit of promise, who is the pledge of our inheritance ;(•) but the meritorious cause is His most beloved only-begotten, our Lord Jesus Christ, who, when we were enemies, for the exceeding charity wherewith he loved us ,(‘) merited Justifica¬ tion for us by His most holy Passion on the wood of the cross, and made satisfaction for us unto God the Father; the instru¬

ct Hebr. xi. 6. [}) Matth. ii. 5. (m) Eccli. i. 27.

(n) Acts ii. 38. (°) Matth. xxviii. 19.

(P) l Kings rii. 3. (q) Titus iii. 7. (r) 1 Cor. vi. 11.

(*) Ephes. i. 13, U. (t)Ephes. ii. 4.

mental cause is the sacrament of baptism, which is the sacra¬ ment of faith, without which (faith) no man was ever justified ;(*) lastly, the alone formal cause is the justice of God, not that whereby He Himself is just, but that whereby He malceth us just, that, to wit, with which we being endowed by Him, are renewed in the spirit of our mind,(") and we are not only reputed, but are truly called, and are, just, receiving justice within us, each one according to his own measure, which the Holy Ghost distributes to every one as He wills,(x) and according to each one’s proper(y) disposition and co-operation. For, although no one can be just, but he to whom the merits of the Passion of our Lord Jesus Christ are communicated, yet is this done in the said justification of the impious, when by the merit of that same most holy Passion, the charity of God is poured forth , by the Holy Spirit, in the hearts (*) of those that are justified, and is inherent therein: whence, man, through Jesus Christ, in whom he is ingrafted, receives, in the said justification, together with the remission of sins, all these (gifts) infused at once, faith, hope, and charity. For faith, unless hope and charity be added thereto, neither unites man perfectly with Christ, nor makes him a living member of His body. For which reason it is most truly said, that Faith without works is dead and profitless ;(*) and, In Christ Jesus neither circumcision, availeth anything , nor uncircumcision, but faith which worketh by charity. (b) This faith, Catechumens beg of the Church—agreeably to a tradition of the apostles—previously to

the sacrament of Baptism; when they beg for the faith which bestows life everlasting, which, without hope and charity, faith cannot bestow: whence also do they immediately hear that word of Christ; If thou wilt enter into life, keep the commandments. (c) Wherefore, when receiving true and Christian justice, they are bidden, immediately on being bom again, to preserve it pure and spotless, as the first robe(d) given them through Jesus Christ in lieu of that which

(v) Hebr. xi. (w) Ephes. iv. 23.

(y) Propriam, own, peculiar. (*)

(») Otiosa, idle, James ii. 20. (b) Ephes. v. 6.

(d) Luke xv. 22.

(x) 1 Cor. xii. 2. Rom. v. 5.

(c) Matth. xix. 17.

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Adam, by his disobedience, lost for himself and for us, that so they may bear it before the judgment-seat of our Lord Jesus Christ, and may have life everlasting.

CHAPTER VIII.

In what manner it is to be understood , that the impious is justified by faith , and gratuitously.

And whereas the Apostle saith, that man is justified by faith and freely ,(e) those words are to be understood in that sense which the perpetual consent of the Catholic Church hath held and ex¬ pressed; to wit, that we. are therefore said to he justified by faith , because faith is the beginning of human salvation, the foundation, and the root of all Justification; without which it is impossible to please God if) and to come unto the fellowship of His sons: but we are therefore said to be justified freely, because that none of those things which precede justification— whether faith or works—merit the grace itself of justification. For, if it be a grace , it is not now by works, otherwise, as the same Apostle says, grace is no more grace.(f)

CHAPTER IX.

Against the vain confidence of Heretics.

But, although it is necessary to believe that sins neither are remitted, nor ever were remitted save gratuitously by the mercy of God for Christ’s sake ; yet is it not to be said£ that sins are forgiven, or have been forgiven, to any one who boasts of his confidence and certainty of the remission of his sins, and rests on that alon$; seeing that it may exist, yea does in our day exist, amongst heretics and schismatics; and with great vehe¬ mence is this vain confidence, and one alien from all godliness, preached up in opposition to the Catholic Church. But neither

(*) Rom. iii. 4. (0 Hebr. xi.6. (sr) Rom. xi. 6.

is this to be asserted,—that they who are truly justified must needs, without any doubting whatever, settle within themselves that they are justified, and that no one is absolved from sins and justified, but he that believes for certain that he is absolved and justified; and that absolution and justification are effected by this faith alone: as though whoso has not this belief, doubts of the promises of God, and of the efficacy of the death and resurrection of Christ. For even as no pious person ought to doubt of the mercy of God, of the merit of Christ, and of the virtue and efficacy of the sacraments, even so each one, when he regards himself, and his own weakness and indisposition, may have fear and apprehension touching his own grace ; seeing that no one can know with a certainty of faith, which can¬ not be subject to error,(h) that he has obtained the grace of God.

CHAPTER X.

On the increase of Justification received .

Haring, therefore, been thus justified, and made the friends and domestics of Godf') advancin %from virtue to virtue ,(k) they are renewed , as the Apostle says, day by day ;Q) that is, by mortifying the members of their own flesh,(“) and by'presenting them as instruments of justice unto sanctification ,(") they, through the observance of the commandments of God and of the Church, faith co-operating with good works, increase in that justice which they have received through the grace of Christ, and are still further justified, as it is written; He that is just, let him be justified still ;(°) and again, Be not afraid to be justified even to death ;(p) and also, Do you see that by works a man is justified, and not by faith only .(q) And this increase of justification holy Church begs, when sue prays, “ Give unto us, O Lord, increase of faith, hope, and charity.” (r)

(h) Cui non potest subesse falsum. (>) Ephes. ii. 19. (k) Ps. lxxxiii. 8.

(!) 2 Cor. iv. 16. (m) Coloss. iii. 5. (n) Rom. vi. 13, 19.

(°) Apoc.xxii.il. (P) Eccli. xviii. 22. (q) James ii. 24.

(r) Dom. 13. post Pentecost.

CHAPTER XI.

On keeping the Commandments, and on the necessity and possibility thereof.

But no one, how much soever justified, ought to think him¬ self exempt from the observance of the commandments; no one ought to make use of that rash saying, one prohibited by the Fathers under an anathema,—that tike observance of the com¬ mandments of God is impossible for one that is justified. For God commands not impossibilities, but, by commanding, both admonishes thee to do what thou art able, and to pray for what thou art not able (to do),(#) and aids thee that thou mayest be able; whose commandments are not heavy ;(*) whose yoke is sweet and whose burthen light. (T) For, whoso are the sons of God, love Christ; but they who love him, keep his command¬ ments r,(w) as Himself testifies; which, assuredly, with the divine help, they can do. For,

although, during this mortal life, men, how holy and just soever, at times fall into at least light and daily sins, which are also called venial, not therefore do they cease to be just. For that cry of the just. Forgive us our tres¬ passes, is both humble and true. And for this cause, the just themselves ought to feel themselves the more obliged to walk in the way of justice, in that, being already freed from sins , but made servants of God,(x) they are able, living soberly, justly, and godly,(*) to proceed onwards through Jesus Christ, by whom they have had access unto this grace.(z) For God for¬ sakes not those who have been once justified by His grace, unless he be first forsaken by them. Wherefore, no one ought to flatter himself up with faith alone, (a) fancying that by faith alone he is made an heir, and will obtain the inheritance, even though he suffer not with Christ, that so he may be also glori-

(s) St. Aug. De Nat. et gr. c. 43. (*) 1 John y. 3.

(v) Matth. xi. 30. (w) Sermoncs, words, John xiv. 15.

(x) Rom. vi. 18. (y) Titus ii. 12. (*) Rom. y. 2.

(a) Nemo sibi in sola fide blandiri debet, no one ought to rely on faith alone.

fed with hitn.(h) For even Christ Himself, as the Apostle saith, Whereas he was the son of God , learned obedience by the things which he suffered , and being consummated , he be¬ came , to all who obey him , the cause of eternal salvation .(*) For which cause the same Apostle admonishes the justified, saying; Know you not that they that run in the race 9 all run indeed , but one receiveth the prize ? So run that you may obtain . I therefore so run , not as at an uncertainty: I so fight , not as one beating the air 9 but I chastise my body 9 and bring it into subjection ; lest perhaps 9 when I have preached to others 9 1 myself should become a cast-away. (d) So also the prince of the apostles, Peter; Labour the more that by good works you may make sure your calling and election. For doing those things, you shall not sin at any time .{•) From which it is plain, that those are opposed to the orthodox doctrine of religion, who assert that the just man sins, venially at least, in every'good work; or, which is yet more insupportable, that he merits eternal punishments; as also those who state, that the just sin in all their works, if, in those works, they, together with this aim principally that God may be gloried, have in view also the eternal reward, in order to excite their sloth, and to en¬ courage themselves to run in the course: whereas it is written, I have inclined my heart to do all thy justifications for the reward :{*) and, concerning Moses, the Apostle saith, that he looked unto the reward .(*)

CHAPTER XII.

That a rash presumptuousness in the matter of Predestination

is to be avoided.

No one, moreover, so long as he is in this mortal life, ought so far to presume as regards the secret mystery of divine pre¬ destination, as to determine for certain that he is assuredly in

(b) Rom. viii. 17. (c) Hebr. ▼. 8, 9. (d) 1 Cor. ix. 24, 26, 27.

(e) 2 Peter i. 10. (f) Ps. cxviii. 112. (?) Hebr. xi. 26.

the number of the predestinate; as if it were true, that he that is justified, either cannot sin any more, or, if he do sin, that he ought to promise himself an assured repentance; for except by special revelation, it cannot be known whom God hath chosen unto Himself.

CHAPTER XIII.

On the gift of Perseverance.

So also as regards the gift of perseverance, of which it is written. He that shall persevere to the end, he shall be saved: (h)— which gift cannot be derived from any other but Him, who is able to establish him who standeth(i) that he stand perseveringly, and to restore him who falleth:—let no one herein promise himself any thing as certain with an absolute certainty; though all ought to place and repose a most firm hope in God’s help. For God, unless men be themselves wanting to His grace, as he has begun the good work , so will he perfect it , working (in them) to will and to accomplish .(k) Nevertheless, let those who think themselves to stand , take heed lest they fall ,(*) and, with fear and trembling work out their salvation,if) in labours, in watchings, in almsdeeds, in prayers and oblations, in fastings and chastity: for, knowing that they are born again unto a hope of glory, (“) but not as yet unto glory, they ought to fear for the combat which yet remains with the flesh, with the world, with the devil, wherein they cannot be victorious, unless they be with God’s grace, obedient to the Apostle, who says; We are debtors, not to the flesh, to live according to the flesh; for if yon live according to the fleshy you shall die ; but if by the spirit you mortify the deeds of the flesh, you shall live.(°)

(h) Mattk. xxiv. 13. (0 Rom. xiv. 4.

(k) Philipp, i. 6; ii. 13. 0) 1 Cor. x. 12, (m) Philipp, ii. 12.

(n) 1 Peter i. 3. (°) Rom. viii. 12, 13.

ON JUSTIFICATION.

CHAPTER XIV.

On the fallen, and their restoration.

As regards those who, by sin, have fallen from the received grace of Justification, they may be again justified, when, God exciting them, through the sacrament of Penance they shall have attained to the recovery, by the merit of Christ, of the grace lost: for this manner of Justification is of the fallen the reparation: which the holy Fathers have aptly called a second plank after the shipwreck of grace lost.(p) For, on behalf of those who fall into sins after baptism, Christ Jesus instituted the sacrament of Penance, when He said, Receive ye the Holy Ghost, whose sins you shall forgive, they are forgiven them, and whose sins you shall retain, they are retained .(q) Whence it is to be taught, that the penitence of a Christian, after his fall, is very different from that at (his) baptism; and that therein are included not only a cessation from sins, and a detestation thereof, or, a contrite and

humble heart, (r) but also the sacra¬ mental confession of the said sins,—at least in desire, and to be made in its season,—and sacerdotal absolution; and like¬ wise satisfaction by fasts, alms, prayers, and the other pious exercises of a spiritual life; not indeed for the eternal punish¬ ment,—which is, together with the guilt, remitted, either by the sacrament, or by the desire of the sacrament,—but for the temporal punishment, which, as the sacred writings teach, is not always wholly remitted,'*as is done in baptism, to those who, ungrateful to the grace of God which they have received, have grieved the Holy Spirit, (•) and have not feared to violate the temple of God. (f) Concerning which penitence it is written; Be mindful whence thou art fallen ; do penance, and do the first works.(y) And again; The sorrow that is according to

(p) Hieron. Ep. ad Demetr. (q) John xx. 22, 23.

(r) Ps. 1. 19. (8) Ephes. iv. 30. (l) 1 Cor. iii. 17.

(v) Apoc. ii. 5.

God worketh penance steadfast unto salvation.^) And again; Do penance, and bring forth fruits worthy of penance.if)

CHAPTER XV.

That, by every mortal sin, grace is lost, but not faith.

In opposition also to the subtle wits of certain men, who, by pleading speeches and good words, seduce the hearts of the innocent, (?) it is to be maintained, that the received grace of Jus¬ tification is lost, not only by infidelity whereby even faith itself is lost, but also by any other mortal sin whatever, though faith be not lost; thus defending the doctrine of the divine law, which excludes from the kingdom of God not only the unbelieving, but the faithful also (who are) fornicators, adulterers, effemi¬ nate, tiers with mankind, thieves, covetous, drunkards , railers, extortioners, (*) and all others who commit deadly sins; from which, with the help of divine grace, they can refrain, and on account of which they are separated from the grace of Christ

CHAPTER XVI.

On the fruit of Justification, that is, on the merit of good works, and on the nature of that merit .

Before men, therefore, who have been justified in this man¬ ner,—whether they have preserved uninterruptedly the grace received, or whether they have recovered it when lost,—are to be set the words of the Apostle: Abound in every good work , knowing that your labour is not in vain in the Lord /(*) for God is not unjust, that he should forget your work, and the love which you have shown in his name;(h) and, do not lose your confidence, which hath a great reward.^) And, for this cause, life eternal is to be proposed to those working well unto

(w) 2 Cor. vii. 10. (*) Matth. iii. 2. (y) Rom. xvi. 18.

(*) 1 Cor. vi. 9, 10. (») 1 Cor. xv. 58.

(b) Hebr. vi. 10. (e) lb. x. 35.

the endjf) and hoping in God, both as a grace mercifully pro¬ mised to the sons of God through Jesus Christ, and as a reward which is according to the promise of God Himself, to be faithfully rendered to their good works and merits. For this is that crown of justice which the Apostle declared was, after his fight and course , laid up for him , to be rendered to him by the just judge , and not only to him , but also to all that love his coming.{*) For, whereas Jesus Christ Himself continually infuses his virtue (0 into the said justified,—as the head into the members, and the vine into the branches,—and this virtue always precedes and accompanies and follows their good works, which without it could not in any wise be pleasing and meritorious before God,—we must believe that nothing further is wanting to the justified, to prevent their being accounted to have, by those very works which have been done in God, fully satisfied the divine law according to r the state of this life, and to have truly merited eternal life, to be obtained also in its (due) time, if so be, however, that they depart in grace : seeing that Christ, our Saviour, saith: If any one shall drink of the water that I will give him y he shall not thirst for ever; but it shall become in him a fountain of water springing up unto life everlasting.if) Thus, neither is our own justice established as our own as from ourselves ;(h) nor is the justice of God ignored or repudiated: for that justice which is called ours, because that we are justified from its being inherent in us, that same is (the justice) of God, because that it is infused into us of God, through the merit of Christ. Neither is this to be omitted,—'that although, in the sacred writings, so much is attributed to good works, that Christ promises, that even he that shall give a drink of cold water to one of his least ones 9 shall not lose his reward ;if) and the Apostle testifies that, That which is at present momentary and light of our tribulation , worketh for us above measure exceedingly an eternal weight of glory; (k) nevertheless God forbid that a Christian should either trust or glory in himself, and nothin the Lord, whose bounty towards all

(d) Matth. x. 22. (e) 2 Tim. iv. 8.

(f) Jugiter virtutem influat. (?) John iv, 13, 14. (h) Rom. x. 3.

(i) Matt. x. 42. (k) 2 Cor. iv. 17.

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men is so great, that He will have the things which are His own gifts be their merits.^) And forasmuch as in many things we all offend ,(“) each one ought to have before his eyes, as well the severity and judgment, as the mercy and goodness (of God); neither ought any one to judge himself, even though he be not conscious to himself of anything; (n) because the whole life of man is to be examined and judged, not by the judgment of man, but of God, who will bring to light the hidden things of darkness,* and will make manifest the counsels of the hearts, and then shall every man have upraise from God,{°) who, as it is written, will render to every man according to his works.(?) After this Catholic doctrine on Justification, which whoso receiveth not faithfully and firmly cannot be justified, it hath

seemed good to the holy Synod to subjoin these canons, that all may know not only what they ought to hold and follow, but also what to avoid and shun.

ON JUSTIFICATION.

Canon i. —If any one saith, that man may be justified before God by his own works, whether done through the teaching of human nature, or that of the law, without the grace of God through Jesus Christ; let him be anathema.

Canon ii. —If any one saith, that the grace of God, through Jesus Christ, is given only for this, that man may be able more easily to live justly, and to merit eternal life, as if, by free will without grace, he were able to do both, though hardly indeed and with difficulty; let him be anathema.

Canon hi. —If any one saith, that without the prevenient in¬ spiration of the Holy Ghost, and without his help, man can believe, hope, love, or be penitent as he ought, so as that the grace of Justification may be bestowed upon him; let him be anathema.

(1) Epis. Coclest. I. c. 12. Labb. T. II. p. 1617. De qua vid. Coustant. in Ep. 21. Ccelest. (m) James iii. 2. (n) l Cor. iv. 3. 4.

(°) l Cor. iv. 5. (P) Mattli. xvi. 27.

ON JUSTIFICATION.

Canon iv.—I f any one Baith, that man's free will moved and excited by God, by assenting to God exciting and calling, no¬ wise co-operates towards disposing and preparing itself for obtaining the grace of Justification; that it cannot refuse its consent, if it would, but that, as something inanimate, it does nothing whatever and is merely passive; let him be anathema.

Canon v.—I f any one saith, that, since Adam’s sin, the free will of man is lost and extinguished; or, that it is a thing with only a name,(’) yea a name without a reality, a figment, in fine, introduced into the Church by Satan; let him be anathema.

Canon vi.— If any one saith, that it is not in man’s power to make his ways evil, but that the works that are evil God worketh as well as those that are good, not permissively only, but pro¬ perly, and of Himself, in such wise that the treason of Judas is no less His own proper work than the vocation of Paul; let him be anathema.

Canon vii.—I f any one saith, that all works done before Justification, in whatsoever way they be done, are truly sins, or merit the hatred of God; or that the more earnestly one strives to dispose himself for grace, the more grievously he sins: let liim be anathema.

Canon viii.— If any one saith, that the fear of hell,—whereby, b y grieving for our sins, we flee unto the mercy of God, or refrain from sinning,—is a sin, or makes sinners worse; let him be- anathema.

Canon ix.—I f any one saith, that by faith alone the impious is justified; in such wise as to mean, that nothing else is re¬ quired to co-operate in order to the obtaining the grace of Jus¬ tification, and that it is not in any way necessary, that he be prep&red and disposed

by the movement of his own will; let him be anathema.

Canon x.—I f any one saith, that men are just without the justice , of Christ, whereby He merited for us to be justified; or that it is by that justice itself that they are formally just; let him be anathema.

(<0 Item esse de solo titulo, a thing in name only, nn £tre de raison.

SESSION YI.

Canon xi. —If any one saith, that men are justified, either by the sole imputation of the justice of Christ, or by the sole remission of sins, to the exclusion of the grace and the charity which is poured forth in their hearts by the Holy Ghost,(r) and is inherent in them; or even that the grace, whereby We are justified, is only the favour of God; let him be anathema.

Canon xii. —If any one saith, that justifying faith is nothing else but confidence in the divine mercy which remits sins for Christ’s sake; or, that this confidence alone is that whereby we are justified; let him be anathema.

Canon xin.—If any one saith, that it is necessary for every one, for the obtaining the remission of sins, that he believe for certain, and without any wavering arising from his own infirmity and indisposition, that his sins are forgiven him; let him anathema.

Canon xrv.—If any one saith, that man is truly absolved from his sins and justified, because that he assuredly believed himself absolved and justified; or, that no one is truly justified but he who believes himself justified; and that, by this faith alone, absolution and justification are effected; let him be; anathema. j

Canon xv. —If any one saith, that a man, who is bom agai h and justified, is bound of faith to believe that he is assuredly i n the number of the predestinate; let him be anathema.

Canon xvi. —If any one saith, that he will for certain, of an absolute and infallible certainty, have that great gift of perse¬ verance unto the end,—unless he have learned this by spe cial »revelation; let him be anathema.

Canon xvii. —If any one saith, that the grace of Justification is only attained to by those who are predestined unto life ; but that all others who are called, are called indeed, but receive not grace, as being, by the divine power, predestined unto evil; let him be anathema.

Canon xviii. —If any one saith, that the commandments of God are, even for one that is justified and constituted in grace, impossible to keep ; let* him be anathema.

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(r) Rom. v. 5.

ON JUSTIFICATION.

Canon xix. —If any one saith, that nothing besides faith is commanded in the Gospel; that other things are indifferent, neither commanded nor prohibited, but free; or, that the ten

commandments nowise appertain to Christians; let him be anathema.

Canon xx. —If any one saith, that the man who is justified and how perfect soever, is not bound to observe the command¬ ments of God and of the Church, but only to believe; as if indeed the Gospel were a bare and absolute promise of eternal life, without the condition of observing the commandments; let him be anathema.

Canon xxi. —If any one saith, that Christ Jesus was given of God to men, as a redeemer in whom to trust, and not also as a legislator whom to obey; let him be anathema.

Canon xxii. —If any one saith, that the justified, either is able to persevere, without the special help of God, in the justice re¬ ceived; or that, with that help, he is not able; let him be anathema.

Canon xxm.—If any one saith, that a man once justified can sin no more, nor lose grace, and that therefore he that falls and sins was never truly justified ; or^ on the other hand, that he is able, during his whole life, to avoid all sins, even those that are venial,—except by a special privilege from God, as the Church holds in regard of the Blessed Virgin ; let him be anathema.

Canon xxiy. —If any one saith, that the justice received is not preserved and also increased before God through good works; but that the said works are merely the fruits and signs of Justification obtained, but not a cause of the increase thereof; let him be anathema.

Canon xxv. —If any one saith, that, in every good work, the just sins venially at least, or—which is more intolerable still— mortally, and consequently deserves eternal punishments; and that for this cause only he is not damned, that God does not impute those works unto damnation ; let him be anathema.

Canon xxvi. —If any one saith, that the just ought not, for their good works done in God, to expect and hope for an eternal recompense from God, through His mercy and the merit of Jesus Christ, if so be that they persevere to the end in well

doing and in keeping the divine commandments; let him be anathema.

Canon xxvii. —If any one saith, that there is no mortal sin but that of infidelity ;(*) or, that grace once received is not lost by any other sin, however grievous and enormous, save by that of infidelity; let him be anathema.

Canon xxviii. —If any one saith, that, grace being lost through sin, faith also is always lost with it; or, that the faith which remains, though it be not a lively faith, is not a true faith; or, that he, who has faith without charity, is not a Christian; let him be anathema.

Canon xxix. —If any one saith, that he, who has fallen after baptism, is not able by the grace of God to rise again; or, that he is able indeed to recover the justice which he has lost, but by faith alone without the sacrament of Penance, contrary to what the holy Roman and universal Church—instructed by Christ and his Apostles—has hitherto professed, observed, and taught; let him be anathema.

Canon xxx. —If any one saith, that, after the grace of Justi¬ fication has been received, to every penitent sinner the guilt(l) is remitted, and the debt of eternal punishment(T) is blotted out in such wise, that there remains not any debt of temporal punishment(w) to be discharged either in this world, or in the next in Purgatory, before the entrance to the kingdom of heaven can be opened (to him); let him be anathema.

Canon xxxi. —If any one saith, that the justified sins when he performs good works with a view to an eternal recompense ; let him be anathema.

Canon xxxii —If any one saith, that the good works of one that is justified are in such manner the gifts of God, as that they are not also the good merits of him that is justified; or, that the said justified, by the good works which he performs through the grace of God and the merit of Jesus Christ, whose

(*) Infidelitatis, unbelief. (*) Culpa.

(▼) Reatus astern® poen®, condemnation to eternal punishment.

(w) Reatus poen® temporalis, condemnation to a temporal punishment.

living member he is, does not truly merit increase of grace, eternal life, and the attainment of that eternal life,—if so be, however, that he depart in grace,—and also an increase of glory; let him be anathema.

Canon xxxiii. —If any one saith, that, by the Catholic doctrine touching Justification, by this holy Synod set forth in this pre¬ sent decree, the glory of God, or the merits of our Lord Jesus Christ are in any way derogated from, and not rather that the truth of our faith, and the glory in fine of God and of Jesus Christ are rendered (more) illustrious ; let him be anathema.

DECREE ON REFORMATION.

CHAPTER I.

It is meet that prelates reside in their own churches; if they act otherwise , the penalties of the ancient law are renewed against them y and fresh penalties decreed .

The same 6acred and holy Synod,—the same legates of the Apostolic See presiding,—wishing to apply(x) itself to restore ecclesiastical discipline, which is exceedingly relaxed, and to amend the depraved maimers of the clergy and Christian people, has thought it fit to begin with those who preside over the greater churches; for the integrity of those who govern, is the safety (y) of the governed. Trusting, therefore, that by the mercy of our Lord and God, and the provident vigilance of His own vicar on earth, it will surely for the future happen, that those who are most worthy,—and whose previous life, in every stage thereof, from their infancy to their riper years, having been laudably passed in the exercises of ecclesiastical discipline, bears testimony in their favour,—will be assumed unto the government of churches, in accordance with the venerable ordi¬ nances of the Fathers, for that it is a burthen whose weight would be

formidable even unto angels: (the Synod) admonishes all those who, under whatsoever name and title, are set over any

(x) Lit. to gird.

(>) Salus.

patriarchal, primatial, metropolitan, and cathedral churches, and hereby accounts all such admonished, that, taking heed to themselves , and to the whole Jlock , wherein the Holy Ghost hath placed them to rule the Church of God which he hath purchased with his own blood, (z) they be vigilant , as the Apostle enjoins, that they labour in all things , and fulfil their minis try: (a) but let them know, .that fulfil it they cannot, if like hirelings they abandon the flocks committed to them, and apply not themselves to the keeping of their own sheep, whose blood will be required at their hands 9 (h) by the Supreme Judge; seeing that it is most certain that, if the wolf have devoured the sheep, the shepherd's excuse will not be admitted, that he knew not thereof.

And yet, for as much as some are to be found at this time, who—as is grievously to be lamented—forgetful even of thenown salvation, and preferring earthly things to heavenly, and things human before divine, wander about in various courts, or, their fold forsaken, and the care of the sheep committed to them neglected, keep themselves occupied with the solicitudes of temporal affairs; it hath seemed good to the sacred and holy Synod to renew, as by virtue of the present decree It doth renew, the ancient canons promulgated against non-residents, which (canons) have, through the disorders of the times and of men, well nigh fallen into desuetude; and furthermore, in order to the more fixed residence of the same, and for the reforming of manners in the church, it hath seemed good to appoint and ordain in the manner following:—If any one, by whatsoever dignity, degree, and pre-eminence* distinguished, shall, by re¬ maining six months together out of his own diocese, all lawful impediment, or just and reasonable causes ceasing, be absent from a patriarchal, primatial, metropolitan, or cathedral chinch, under what title soever, cause, name, or right committed to him, he shall ipso jure(c) incur the penalty of the forfeiture of a fourth part of one year's fruits, to be applied, by an ecclesiastical

(*) Acts xx. 28. (») 2 Tim. iv. 5. (b) Ezech. xxxiii. 6.

(c) A phrase equivalent' to ipso facto, and is so rendered throughout by Palla- ▼iciui. See vol. I. p. 737. Istor. del Concil. di Trento, Roma, 1666.

superior, to the fabric of the church and to the poor of the place. And if he continue absent in this way during six other months, he shall thereupon forfeit another fourth part of the fruits to be applied in like manner. But if the contumacy proceed yet further, the metropolitan shall, for the subjecting him to a severer censure of the sacred canons, be obliged to denounce his absent suffragan bishops, and the oldest resident suffragan bishop to denounce his absent metropolitan, to the Roman pontiff, either by letter or by messenger, within the space of three months, under the penalty, to be ipso facto in¬ curred, of being interdicted from entering into the church ; that he, by the authority of his

own supreme See, may proceed against the said non-resident prelates, according as the greater or less contumacy of each may require, and provide the said churches with more useful pastors, as he shall know in the Lord to be salutary and expedient.

CHAPTER II.

It is not lawful for any one who holds a benefice requiring personal residence to absent himself save for a just cause to be approved of by the bishop , who even then shall, for the cure of souls, substitute a vicar in his stead, withdrawing a portion of the fruits.

Those inferior to bishops, who hold by title, or in commen dam, any ecclesiastical benefices requiring personal residence whether by law or custom, shall be compelled, by their Ordina¬ ries, to reside, by suitable legal remedies; as to them shall seem expedient for the good government of the churches and the advancement of the service of God, taking into account the character of the places and persons; and to no one shall any perpetual privileges, or indults, in favour of non-residence, or of receiving the fruits during absence, be of avail: temporary indulgences and dispensations, however, granted solely for true and reasonable causes, and which are to be legitimately proved before the Ordinary, shall remain in force: in which cases,

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nevertheless, it shall be the office of bishops, as delegated in this matter by the Apostolic See, to provide that, by deputing com¬ petent vicars, and by assigning them a suitable portion of the fruits, the cure of souls be nowise neglected; no privilege or exemption whatever being of avail to any in this regard.

CHAPTER III.

The excesses of Secular clerics and of Regulars who live out of their monasteries , shall be corrected by the Ordinary of the place.

The prelates of the churches shall apply themselves prudently and diligently to correct the excesses of their subjects; and no Secular cleric, under pretext of a personal privilege, or any Regular, living out of his monastery, shall, under pretext of a privilege of his order, be accounted, if he transgress, exempt from being visited, punished, and corrected, in accordance with the ordinances of the canons, by the Ordinary of the place, as being delegated hereunto by the Apostolic See.

CHAPTER IV.

Bishops and other greater prelates shall visit any churches whatsoever , as often as there shall be need; everything which might hinder this decree being abrogated.

The Chapters of cathedral, and of other greater, churches, and the members thereof, shall not be able,—by any exemptions, customs, judgments, oaths, concordates, which only bind the authors thereof and not also their successors,—to screen them¬ selves from being

capable of being, in accordance with the ordinances of the canons, visited, corrected, and amended, as often as shall be needful, even with apostolical authority, by their own bishops, and other greater prelates, by themselves alone, or with those whom they shall see fit to have accompany them.

ON THE SACRAMENTS IN GENERAL.

CHAPTER V.

Bishops shall neither exercise any pontifical function, nor ordain, in another diocese .

It shall not be lawful for any bishop, under the plea of any privi¬ lege soever, to exercise pontifical functions (d) in the diocese of another, save by the express permission of the Ordinary of the place, and in regard of those persons only who are subject to that same Ordinary : if the contrary shall have been done, the bishop shall be ipso jure suspended from the exercise of epis¬ copal functions, and those so ordained (be similarly suspended) from the exercise of their orders.

INDICTION OF THE NEXT SESSION.

Doth it please you, that the next ensuing Session be celebrated on Thursday, the fifth day after the first Sunday of the approach¬ ing Lent, which (Thursday) will be the third day of the month of March ? They answered: It pleaseth us.

SESSION VII

On the Sacraments in General, and on Baptism and Confirmation

Celebrated on the third day of the month of March, mdxlvii.

DECREE ON THE SACRAMENTS.

Proem .

For the completion of the salutary doctrine on Justification, which was promulgated with the unanimous consent of the Fathers in the last preceding Session, it hath seemed suitable to treat of the most holy Sacraments of the Church, through which all true justice either begins, or being begun is increased, or being lost is repaired. With this view, in order to destroy the errors and to extirpate the heresies, which have appeared

(d) Pontificalia.

in these our days on the subject of the said most holy sacra¬ ments,—as well those which have been revived from the heresies condemned of old by our Fathers, as also those newly invented, and which are exceedingly prejudicial to the purity of the Catholic Church, and to the salvation of souls,—the sacred and holy, oecumenical and general Synod of Trent, lawfully assem¬ bled in the Holy Ghost, the same legates of the Apostolic See presiding therein, adhering to the doctrine of the holy Scrip¬ tures, to the apostolic traditions, and to the consent of other councils and of the Fathers, has thought fit that these present canons be established and decreed ; intending, the divine Spirit aiding, to publish later the remaining canons which are wanting for the completion of the work which It has begun.

ON THE SACRAMENTS IN GENERAL.

Canon i.—I f any one saith, that the sacraments of the New Law were not all instituted by Jesus Christ, our Lord; or, that they are more, or less, than seven, to wit, Baptism, Confirmation, the Eucharist, Penance, Extreme Unction, Order, and Matri¬ mony ; or even that any one of these seven is not truly and properly a sacrament; let him be anathema.

Canon ii.—I f any one saith, that these said sacraments of the New Law do not differ from the sacraments of the Old Law, save that the ceremonies are different, and different the outward rites; let him be anathema.

Canon iii.—I f any one saith, that these seven sacraments are in such wise equal to each other, as that one is not in any way more worthy than another; let him be anathema.

Canon iv. —If any one saith, that the sacraments of the New Law are not necessary unto salvation, but superfluous; and that, without them, or without the desire thereof, men obtain of God, through faith alone, the grace of justification;—though all (the sacraments) are not indeed necessary for every individual; let him be anathema.

Canon v. —If any one saith, that these sacraments were in¬ stituted for the sake of

nourishing faith alone; let him be anathema.

ON THE SACRAMENTS IN GENERAL

Canon vi.—I f any one saith, that the sacraments of the New Law do not contain the grace which they signify ; or, that they do not confer that grace on those who do not place an obstacle thereunto; as though they were merely outward signs of grace or justice received through faith, and certain marks of the Christian profession, whereby believers are distinguished amongst men from unbelievers ; let him be anathema.

Canon vii.—I f any one saith, that grace, as far as God’s part is concerned, is not given through the said sacraments, always, and to all men, even though they receive them rightly, but (only) sometimes, and to some persons; let him be ana¬ thema.

Canon viii.— If any one saith, that by the said sacraments of the New Law grace is not conferred through the act per¬ formed,^) out that faith alone in the divine promise suffices for the obtaining of grace ; let him be anathema.

Canon ix.—I f any one saith, that, in the three sacraments, Baptism, to writ, Confirmation, and Order, there is not imprinted in the soul a character, that is, a certain spiritual and indelible sign, on account of which they cannot be repeated; let him be anathema.

Canon x.—I f any one saith, that all Christians have power to administer the word, and all the sacraments; let him be anathema.

Canon xi.—I f any one saith, that, in ministers, when they effect,(f) and confer the sacraments, there is not required the intention at least of doing what the Church does; let him be anathema.

Canon xii.—I f any one saith, that a minister, being in mortal sin,—if so be that he observe all the essentials which belong to the effecting, (g) or conferring of, the sacrament,—neither effects, nor confers the sacrament; let him be anathema.

Canon xiii.—I f any one saith, that the received and approved rites of the Catholic Church, wont to be used in the solemn

(e) Ex opere aperato. (f) Conficiunt, make. (?) Conficiendutn.

administration of the sacraments, may be contemned, or without sin be omitted at pleasure by the ministers, or be changed, by every pastor of the churches, into other new ones; let him be anathema.

ON BAPTISM.

Canon i.—I f any one saith, that the baptism of John had the same force as the baptism of Christ; let him be anathema.

Canon ii.—I f any one saith, that true and natural water is not of necessity for baptism, and, on that account, wrests, to some sort of metaphor, those words of our Lord Jesus Christ; Unless a man be born again of water and the Holy Ghost; (h) let him be anathema.

Canon hi.—I f any one saith, that in the Roman church, which is the mother and mistress of all churches, there is not the true doctrine concerning the sacrament of baptism; let him be anathema.

Canon iv.—I f any one saith, that the baptism which is even given by heretics in the name of the Father, and of the Son, and of the Holy Ghost, with the intention of doing what the Church doth, is not true baptism ; let him be anathema.

Canon v.—I f any one saith, that baptism is free,^) that is, not necessary unto salvation; let him be anathema.

Canon vi.—I f any one saith, that one who has been baptized cannot, even if he would, lose grace, let him sin ever so much, unless he will not believe; let him be anathema.

Canon vii.—I f any one saith, that the baptized are, by bap¬ tism itself, made debtors but " to faith alone, and not to the observance of the whole law(k) of Christ; let him be anathema.

Canon viii.—I f any one saith, that the baptized are freed from all the precepts, whether written or transmitted, of holy Church, in such wise that they are not bound to observe them, unless they have chosen of their own accord to submit them¬ selves thereunto; let him be anathema.

(h) John iii. 5. 0) Liberum, optional. * (•<) Gal. v. 3.

ON BAPTISM.

Canon ix. —If any one saith, that the remembrance of the baptism which they have received is so to be recalled unto men, as that they are to understand, that all vows made after baptism are void, in virtue of the promise already made in that baptism; as if, by those vows, they both derogated from that faith which they have professed, and from that baptism itself; let him be anathema.

Canon x. —If any saith, that by the sole remembrance and the faith of the baptism which has been received, all sins com¬ mitted after baptism are either remitted, or made venial; let him be anathema.

Canon xi. —If any one saith, that baptism, which was true and rightly conferred, is to be repeated, for him who has denied the faith of Christ amongst Infidels, when he is converted unto penitence; let him be anathema.

Canon xii. —If any one saith, that no one is to be baptized save at that age at which Christ was baptized, or in the very article of death; let him be anathema.

Canon xiii. —If any one saith, that little children, for that they have not actual faith,are not, after having received bap¬ tism, to be reckoned amongst the faithful; and that, for this cause, they are to be rebaptized when they have attained to years of discretion; or, that it is better that the baptism of such be omitted, than that, while not believing by their own act, they should be baptized in the faith alone of the Church; let him be anathema.

Canon xiv. —If any one saith, that those who have been thus baptized when children, are,

when they have grown up, to be asked whether they will ratify what their sponsors promised in their names when they were baptized; and that, in case they answer that they will not, they are to be left to their own will; and are not to be compelled meanwhile to a Christian life by any other penalty, save that they be excluded from the partici¬ pation of the Eucharist, and of the other sacraments, until they repent; let him be anathema.

0) Actum credendi.

SESSION VII*

ON CONFIRMATION.

Canon i. —If any one saith, that the confirmation of those who have been baptized is an idle ceremony, and not rather a true and proper sacrament; or that of old it was nothing more than a kind of catechism, whereby they who were near adoles¬ cence gave an account of their faith in the face of the Church; let him be anathema.

Canon ii. —If any one saith, that they who ascribe any virtue to the sacred chrism of confirmation, offer an outrage to the Holy Ghost; let him be anathema.

Canon hi. —If any one saith, that the ordinary minister of holy confirmation is not the bishop alone, but any simple priest soever; let him be anathema.

DECREE ON REFORMATION.

The same sacred and holy Synod, the same legates also pre¬ siding, purposing to prosecute, unto the praise of God, and the increase of the Christian religion, the work which It hath begun touching residence and reformation, has thought good to ordain as follows,—saving always, in all things, the authority of the Apostolic See.

CHAPTER I.

Who is capable of governing Cathedral churches .

No one shall be assumed unto the government of Cathedral churches, but one that is bom of a lawful wedlock, is of mature age, and endowed with gravity of manners, and skill in letters, agreeably to the constitution of Alexander III., which begins, Cum in cunctis 9 promulgated in the Council of Lateran.

ON REFORMATION.

CHAPTER II.

The holders of several Cathedral churches are commanded to resign all but one , in a given manner and time .

No one, by whatsoever dignity, grade, or pre-eminence dis¬ tinguished, shall presume, in contravention of the institutes of the sacred canons, to accept and to hold at the same time several Metropolitan, or Cathedral, churches, whether by title, or in commendam , or under any other name whatsoever; seeing that he is to be accounted exceedingly fortunate whose lot it is to rule one church well and fruitfully, and unto the salvation of the souls committed to him. But as to those who now hold several churches contrary to the tenor of

the present decree, they shall be bound, retaining the one which they may prefer, to cesign the rest, within six months if they are at the free disposal of the Apostolic See, in other cases within the year; otherwise those churches, the one last obtained only excepted, shall be from that moment deemed vacant.

CHAPTER III.

Benefices shall be conferred solely on capable individuals .

Inferior Ecclesiastical Benefices, especially such as have the cure of souls, shall be conferred on persons worthy and capable, and who can reside on the spot and exercise personally the said cure; in accordance with the Constitution of Alexander III., in the Council of Lateran, which begins, Quia nonnulli; and that other of Gregory X., published in the General Council of Lyons, which begins, Licet Canon . A collation, or provision, made otherwise, shall be wholly annulled: and let the ordinary collator know, that he will himself incur the penalties set down in the Constitution of the General Council (of Lateran), which begins, Grave nimis .

CHAPTER IV.

The retainer of several Benefices contrary to the Canons> shall be deprived thereof.

Whosoever shall for the future presume to accept, or to retain at the same time several cures, or otherwise incompatible Eccle¬ siastical Benefices, whether by way of union for life, or in per¬ petual commendam , or under any other name or title whatsoever, in contravention of the appointment of the sacred Canons, and especially of the Constitution of Innocent III., beginning, De multa , shall be ipso jure deprived of the said benefices, accord¬ ing to the disposition of the said constitution, and also by virtue of the present Canon.

CHAPTER V.

The holders of several Benefices with cure of souls shall exhibit their dispensations to the Ordinary , who shall provide the churches with a Vicar , assigning a suitable portion of the fruits .

The Ordinaries of the places shall strictly compel all those who hold several cures, or otherwise incompatible, Ecclesias¬ tical Benefices to exhibit their dispensations; and they shall otherwise proceed according to the Constitution of Gregory X., published in the General Council of Lyons, beginning Ordinarii> which (Constitution) this holy Synod thinks ought to be renewed, and doth renew; adding further/ that the said Ordinaries are by all means to provide, even by deputing fit vicars and by assign¬ ing a suitable portion of the fruits, that the cure of souls be not in an/ way neglected, and that the said benefices be nowise defrauded of the services due to them: no appeals, privileges, or exemptions whatsoever, even with a commission of special judges, and inhibitions from the same, being of avail to any one in the matters aforenamed.

ON REFORMATION.

CHAPTER VI.

What unions of Benefices shall be accounted valid .

Unions in perpetuity, made within forty years, may be ex¬ amined into by the Ordinaries, as delegated by the Apostolic See, and such as shall have been obtained by surreption or obreption shall be declared null. Now those are to be pre¬ sumed to have be$n surreptitiously obtained, which, having been granted within the aforenamed period, have not as yet been carried into effect wholly, or in part, as also those which shall hence¬ forth be made at the instance of any person soever, unless it shall be certain that they have been made for lawful, or other¬ wise reasonable causes, which are to be verified before the Ordinary of the place, those persons being summoned whose interests are concerned: and therefore (such unions) shall be altogether of no force, unless the Apostolic See shall have declared otherwise.

CHAPTER VII.

United Ecclesiastical Benefices shall be visited: the cure thereof shall be exercised even by perpetual vicars; who shall be deputed thereunto with a portion , to be assigned even upon a specific property.

Ecclesiastical Benefices with cures, which are found to have been always united and annexed to Cathedral, Collegiate, or other churches, or to monasteries,benefices, colleges, or other pious places of \ehat sort soever, shall be visited every year by the Ordinaries of those places; who shall apply themselves sedu¬ lously to provide that the cure of souls be laudably exercised by competent vicars, and those even perpetual, unless the said Ordinaries shall deem it expedient for the good of the churches that it be otherwise,—which (vicars) shall be deputed thereunto by those Ordinaries, with a provision consisting of a third part of the fruits, or of a greater or less proportion, at the discretion

of the said Ordinaries, which (portion) is to be assigned even upon a specific property; no appeals, privileges, exemptions, even with a commission of judges, and inhibitions from the same, being of any avail in the matters abovenamed.

CHAPTER VIII.

Churches shall be repaired: - the cure of souls sedulously dis¬ charged.

The Ordinaries of the places shall be bound to visit every year, with apostolic authority, all churches whatsoever, in whatsoever manner exempted ; and to provide by suitable legal remedies that whatever needs repairs, be repaired; and that those churches be not in any way defrauded of the cure of souls, if such be annexed thereunto, or of other services due to them;—all appeals, privileges, customs, even those that have a prescription from time immemorial, commission of judges, and inhibitions from the same, being utterly set aside.

CHAPTER IX.

The duty of consecration not to be delayed .

Those who have been promoted to the greater churches shall receive the rite of consecration within the time prescribed by law, and any delays granted, extending beyond the period of six months, shall be of no avail to any one.

CHAPTER X.

When a See is vacant , Chapters shall not grant ‘reverends' to any unless straitened because of a Benefice obtained , or about to be obtained: various penalties on contraveners .

It shall not be lawful for Chapters of churches, when a see is vacant, to grant,—whether by ordinance of common law, or by virtue of any privilege or custom whatsoever,—a license for

ON REFORMATION,

ordination^" 1) or letters dimissory, or “ reverend,” as some call them, within a year from the day of that vacancy, to any one who is not straitened (for time),(") by occasion of some ecclesi¬ astical benefice received, or about to be received. Otherwise, the contravening Chapter shall be subjected to an ecclesiastical interdict; and the persons so ordained, if they have been con¬ stituted in minor orders, shall not enjoy any clerical privilege, especially in criminal causes; whilst those constituted in the greater orders shall be, ipso jure y suspended from the exercise thereof, during the pleasure of the next appointed prelate.

CHAPTER XL

Faculties foi promotion shall not avail any one without a

just cause .

Faculties, for being promoted (to orders) by any prelate whatsoever, shall be of no avail but to those who have a lawful cause—which is to be expressed in their letters—why they can¬ not be ordained by their own bishops ; and even then they shall not be ordained but by a bishop who is resident in his own diocese, or by him who exercises the pontifical functions for him, and after having undergone a previous careful examination.

CHAPTER XII.

Faculties for not being promoted shall not exceed a year .

Faculties granted for not being promoted (to orders) shall avail for a year only, except in the cases by law provided.

(w) Ordinandi licenti&m.

(n) Arctatus. Pallav. Necessitate di prender gli ordini.

Digiti . y v^.ooQle

CHAPTER XIII.

Individuals by whomsoever presented shall not be instituted without being previously

examined and approved of by the Ordinary; with certain exceptions.

Persons presented, or elected, or nominated by any ecclesi¬ astics soever, even by Nuncios of the Apostolic See, shall not be instituted, or confirmed in, or admitted to any ecclesiastical benefices whatsoever, even under the plea of any privilege soever, or custom, which may even have a prescription from time immemorial, unless they shall have been first examined, and found fit, by the Ordinaries of the places. And no one shall be able to screen himself, by means of an appeal, from being bound to undergo that examination. Those, however, are to be ex¬ cepted, who are presented, elected, or nominated by universities, or by colleges for general studies.

CHAPTER XIV.

The civil causes of exempted persons which may be taken cognizance of by bishops.

In the causes of exempted persons, the Constitution of Inno¬ cent IV., beginning Volentes , set forth in the general Council of Lyons, shall be observed,—which Constitution this sacred and holy Synod hath thought ought to be renewed, and doth hereby renew it; adding further, that, in civil causes relative to wages, and to persons in distress,(°) clerics, whether Seculars, or Regu¬ lars who live out of their monasteries,—howsoever exempted, and even though they may have upon the spot a special judge deputed by the Apostolic See ; and in other causes, if they have no such judge,—may be brought before the Ordinaries of the places, and be constrained and compelled by course of law to

(°) In ciyilibus causis mercedum, et miser&bilium person&rum.

FACULTY TO TRANSFER THE COUNCIL.

pay what they owe; no privileges, exemptions, commissions of conservators, and inhibitions therefrom, being of any fofee what¬ ever in opposition to the (regulations) aforesaid.

CHAPTER XV.

Ordinaries shall take care that all manner of hospitals, even those exempted , be faithfully governed by their adminis¬ trators.

The Ordinaries shall take care that all hospitals whatsoever be faithfully and diligently governed by their own administrators, by what names soever called, and in what way soever exempted: observing herein the form of the Constitution of the Council of Vienne, which begins, Quia contingit , which this holy Synod hath thought fit to renew, and doth hereby renew, together with the derogations therein contained.

INDICTION OF THE NEXT SESSION.

This sacred and holy Synod hath also resolved and decreed that the next ensuing Session be held and celebrated on Thursday, the fifth day after the coming Sunday in Albis (Low Sunday), which will be the twenty-first of the month of April of the present year, mdxlvii.

BULL WITH FACULTY TO TRANSFER THE COUNCIL.

Paul, bishop, servant of the servants of God, to our venerable brother Giammaria, bishop of Palsestrina, and to our beloved sons, Marcellus of the tide of the Holy Cross in Jerusalem, priest, and Reginald Of Saint Mary in Cosinedin, deacon, car¬ dinals, our Legates a latere , and those of the Apostolic See, health and apostolical benediction.

We , by the providence of God, presiding over the government of the universal Church, though with merits unequal thereunto, account it a part of our office that, if anything of more than common moment have to be settled touching the Christian

commonweal, it be done not only at a suitable season, but also in a convenient and fit place. Wherefore, whereas We lately, with the advice and consent of our venerable brethren the car¬ dinals of the holy Roman Church,—upon hearing that peace had been made between our. most dear sons in Christ, Charles the Emperor of the Romans, ever august, and Francis the most Christian King of the French,—took off and removed the sus¬ pension of the celebration of the sacred oecumenical and universal Council, which we had on another occasion, for reasons then stated, indicted with the advice and consent aforesaid, for the city of Trent, and which was, for certain other reasons at that time also named, suspended, upon the like advice and consent, unto another more opportune and suitable time to be declared by us : being ourselves unable, from being at that time lawfully hindered, to repair to the above-named city in person, and to be present at that Council, We, by the same advice, appointed and deputed you as Legates a latere on our behalf and that of the Apostolic See, in that Council; and we sent you unto that same city as angels of peace, as in divers onr letters thereupon is more fully set forth: wishing to provide seasonably that so holy a work as the celebration of such a Council may not be hindered through the incommodiousness of the place, or otherwise in any other manner, We, of our proper motion, and certain knowledge, and the plenitude of apostolic authority, and with the advice and consent aforesaid, by the tenor of these presents do, with apostolic authority, concede to you all together, or to two of you, upon the other being detained by a lawful impediment, or maybe absent therefrom, full and unrestrained power and faculty, to transfer and change, when¬ soever you shall see cause, the aforesaid Council from the city of Treat to any other more convenient, suitable, or safe city, as to you shall seem fit, and to suppress and dissolve that which is held in the said city of Trent; as also to prohibit, even under ecclesiastical pains and censures, the prelates and other members of the said Council, from proceeding to any further treasure* therein in the said city of Trent; and also to continue, hold, attd celebrate the same Council in the other city as afore¬ said unto which it shall have been transferred and changed, and

ON THE TRANSLATION OF THE COUNCIL.

to summon thereunto the prelates and other members of the said Council of Trent, even under the pain of peijuiy and of the other penalties named in the letters of Indiction of that Council; to preside and proceed, in the Council thus translated and changed, in the name and by the authority aforesaid, and to perform, regulate, ordain, and execute the other things men¬ tioned above, and the things thereunto necessary and suitable, in accordance with the contents and tenor of the previous letters which have been on other occasion

addressed unto you: de¬ claring that We will hold as ratified and pleasing whatsoever by you shall have been done, regulated, ordained, in the matters aforesaid, and will, with God’s help, cause it to be inviolably observed; any apostolical constitutions and ordinances, and other things whatsoever to the contrary notwithstanding. Where¬ fore, let no one soever infringe this letter of our grant, or with rash daring go eontraiy thereto. But if any one shall presume to attempt this, let him know that he will incur the indignation of Almighty God, and of the blessed Peter and Paul, His apostles.

Given at Rome, at St. Peter’s, in the year of the Lord’s Incarnation mdxlvii, on the eighth of the calends of March, (p) in the eleventh year of our Pontificate.

Fab. Bish. of Spol.

B. Motta.

SESSION VIII

The Translation of the Council to Bologna

Celebrated on the eleventh day of the month of March y in the year mdxlvii.

DECBEE CONCERNING THE TRANSLATION OF THE COUNCIL.

Doth it please you to decree and declare, that, from the fore¬ going statements and other allegations, a disease of the kind stated is so plainly and notoriously certain, that the prelates cannot without danger of their lives remain in this city, and that

(p) February 22nd.

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therefore they cannot and ought not to be detained therein against their wills ? And considering moreover the withdrawal of many prelates since the Session last held, and the protests made in the general congregations by very many other prelates, who wish by all means to depart hence through fear of the said disease, who cannot justly be detained; and by whose departure the Council would either be dissolved, or, from the small num¬ ber of the prelates, its beneficial progress be hindered; and considering also the imminent danger to life, and the other notoriously true and legitimate reasons alleged in the said congregations by certain of the Fathers; doth it please you, in like manner, to decree and declare, that, for the preservation and prosecution of the said Council, and for the safety of the lives of the said prelates, this Council be transferred for a time to the city of Bologna, as being a place better provided, more healthy, and fit, and that the translation have effect from this day forth, and that the Session, already indicted for the twentyfirst of April ought to be celebrated, and be celebrated, there on that appointed day; and that the further matters be proceeded with in order, until it shall seem expedient, to oujr most holy Lord and to the sacred Council, that the said Council may, and ought to, be brought back to this, or to some other place,, taking council also thereupon with the most invincible Emperor, the most Christian king, and with the other Christian kings and princes? They answered: It pleaseth us.

SESSION IX

Prorogation of the Council

Celebrated at Bologna , on the twenty-first day of the month of April, mdxlvii.

DECREE FOR THE PROROGATION OF THE SESSION.

This sacred and holy, oecumenical and general Synod, which lately was assembled in the city of Trent, and is now lawfully assembled in the Holy Ghost at Bologna, the same most reve¬ rend Lords Giammaria del Monte, bishop of Palaestrina, and Marcellus, of the title of the Holy Cross in Jerusalem, priest,

DECREE PROROGUING THE SESSION.

cardinals of the holy Roman Church, and Legates apostolic a latere , presiding therein in the name of our most holy Father in Christ, and Lord, Paul III., by the providence of God, Pope ; considering that, on the eleventh day of the month of March of the present year, in a general and public Session celebrated in the said city of Trent, in the usual place, all the formalities being observed in the usual manner; (die Synod),—for causes then pressing, urgent, and legitimate, and with the interposition also of the authority of the holy Apostolic See, specially also granted to the said most reverend Presidents,—decreed and ordained, that the Council was to be transferred, as it did tranfer it, from that place to this city, and likewise that the Session,—indicted there for this twenty-first day of April, that Canons touching the matters of the Sacraments and of Reformation, whereon It had purposed to treat, might be established and promulgated,— ought to be celebrated in this city of Bologna; and considering that some of the Fathers who have been accustomed to be pre¬ sent at this Council,—being some engaged in their own Churches during these last days of the great week (of Lent), and of the Paschal solemnity, and some also detained by other hindrances, —have not as yet come hither, but who nevertheless, it is to be hoped, will shortly be present; and that, from this cause, it has happened that the said matters of the Sacraments and of Re¬ formation could not be examined and discussed in an assembly of prelates as numerous as the holy Synod desired: wherefore, to the end that all things may be done with mature deliberation, with due dignity and gravity, (the Synod) hath resolved, and doth resolve, that it is good, opportune, and expedient, that the aforenamed Session, which, as has been said, was to have been celebrated on this day, be deferred and prorogued, as it is now deferred and prorogued, to the Thursday within the approach¬ ing octave of Pentecost, for the expediting of the matters aforesaid; which day It has deemed, and deems, to be most opportune for the business to be transacted, and most convenient especially for the Fathers who are absent; adding however, that this holy Synod may and can, even in a private congregation, limit and abridge the said term, at Its will and pleasure, as It shall think expedient for the business of the Council.

SESSION X

Prorogation of the Council

Celebrated at Bologna on the second day of the month of June, mdxlvii.

DECREE FOR THE PROROGATION OF THE SESSION.

Although this sacred and holy, oecumenical and general Synod hath decreed, that the Session which was to have been celebrated, in this illustrious city of Bologna, on the twenty-first day of the month of April last, on the subject of the Sacraments and of Reformation, in accordance with the decree promulgated in public Session in the city of Trent, should be deferred and pro¬ rogued to this present day, for certain reasons, and especially on account of the absence of some of the Fathers, who it was hoped would in a short time be present; wishing, however, even yet to deal kindly with those who have not come, the same sacred and holy Synod, lawfully assembled in the Holy Ghost, the same cardinals of the holy Roman Church, and Legates of the Apostolic See, presiding therein, resolves and decrees, that the said Session, which It had decreed to celebrate on this the second day of the month of June of this present year 1547, be deferred and prorogued, and It doth hereby defer and prorogue it, to the Thursday after the feast of the Nativity of the Blessejl Virgin Mary, which will be the fifteenth of September next; for the expediting of the aforesaid and other matters ; yet so, how¬ ever, that the prosecution of the discussion and examination, as well of those things which relate to dogmas, as of those which regard reformation, shall not meanwhile be suspended; and that the said holy Synod freely may and can, at Its will and pleasure, even in a private congregation, abridge or prorogue the said terra.

On the fourteenth day of September , mdxlvii, in a general Congregation held at Bologna , the Session , which was to have been held on the following day , was prorogued during the good pleasure of the sacred Council .

BULL FOR RESUMING THE COUNCIL.

BrLL FOR THE RESUMPTION OF THE COUNCIL OF TRENT. UNDER THE SOVEREIGN PONTIFF, JULIU8 III.

Julius, bishop, servant of the servants of God, for the future memory hereof.

Whereas, in order to remove the dissensions touching our religion, which for a long time have prevailed in Germany to the disturbance and scandal of the whole Christian world, it seems good, opportune, and expedient,—as also our most dearly beloved son in Christ, Charles the Emperor of the Romans, ever august, has caused to be signified to us by his letters and ambassadors,— to bring back to the city of Trent, the sacred, oecumenical, (and) general Council indicted by our predecessor, Pope Paul III., of happy memory, and begun, regulated, and continued, by Us, who then enjoyed the honour of the Cardinalate, and conjointly with two other Cardinals of the holy Roman Church, presided in the name of our said predecessor, in the said Council, wherein several public and solemn Sessions were held, and several decrees promulgated as well on the subject of faith as of

Reformation, and also many things relating to both subjects examined and discussed ;—We,—unto whom, as Sovereign Pontiff (q) for the time, it appertains to indict and direct general Councils,—that we may, unto the praise and glory of Almighty God, procure the peace of the Church and the increase of the Christian faith and of the orthodox religion, and may, as far as in us lies, consult with fatherly care for the tranquillity of Ger¬ many,—a province indeed which, in times past, was never second to any in Christendom, in cultivating true religion, and the doctrine of the sacred Councils and holy Fathers, and in exhibiting due obedience and reverence to the chief Pontiffs, the vicars on earth of Christ our Redeemer; hoping that, by the grace and bounty of God, all Christian kings and princes will approve of, favour and aid our just and pious wishes herein: We, by the bowels of the mercy of our Lord Jesus Christ, exhort, require, and admonish our venerable brethren the patri-

(q) Ut summos Pontifices. Le Plat reads et summos.

SESSION X. .

afchs, archbishops, bishops, and our beloved sons the abbots, and all and each of the others, who of right, or custom, or pri¬ vilege, ought to be present at General Councils, and whom our said predecessor, in his letters of indiction and any others soever made and published on this subject, willed to be present at the Council, to convene and assemble, where there is no lawful im¬ pediment, in the same city of Trent, and to apply themselves without any delay whatever to the continuation and prosecution of the said Council, on the next ensuing calends of May,(r) which day we appoint, determine on, and assign, after mature deliberation, and of our own certain knowledge, and the pleni¬ tude of apostolic authority, and with the advice and consent of our venerable brethren the Cardinals of the said holy Roman Church, for resuming and prosecuting the said Council in the state wherein it now is. For We shall make it our special care, that, at the same time, in the said city, there be always present our Legates, through whom,—if we shall be unable, on ac¬ count of our age, state of health, and the necessities of the Apostolic See, to be personally present,—we shall, under the guidance of the Holy Ghost, preside over the said Council; any translation and suspension of the said Council, and any other things whatsoever to the contrary notwithstanding, and especially those things which it was the will of our predecessor should not create any obstacle, as expressed .in his letters aforesaid, which, with all and each of the clauses and decrees therein contained, we will and decree to continue in force, and we do, as far as there is need thereof, hereby renew them ; declaring moreover null and void whatsoever may be attempted, wittingly or igno¬ rantly, by whatsoever person, or by whatsoever authority, against these presents. Let no one, therefore, infringe this our letter of exhortation, requisition, monition, statute, declaration, renewal, will, and decree, or with rash daring go contrary thereunto. But if any one shall presume to attempt this, let him know that he will incur the indignation of Almighty God, and of His blessed apostles, Peter and Paul.

(r) May 1.

BULL FOR RESUMING THE COUNCIL.

Given at Rome, at St. Peter’s, in the year mdxlviii of our Lord’s Incarnation, on the eighteenth of the calends of Decem¬ ber,^) in the first year of our Pontificate.

M. Cardinal Crescen.

Rom. AmasjEus.

SESSION XI

The Resumption of the Council under Julius III

Of the sacred and holy , oecumenical and general Council of Trent, celebrated on the calends of May , mdli, being the first held under the Sovereign Pontiff\ Julius III .

DECREE FOR RR8UMING THE COUNCIL.

Doth it please you, unto the praise and glory of the holy and undivided Trinity, Father, and Son, and Holy Ghost, for the increase and exaltation of the Christian faith and religion, that the sacred, oecumenical, and general Council of Trent be, agreeably to the form and tenor of the letters of our most holy lord, resumed, and that further matters be proceeded with ? They answered: It pleaseth us.

IKDICTION OF THE NEXT SESSION.

Doth it please you that the next ensuing Session be held and celebrated on the ensuing calends of September? They answered: It pleaseth us.

SESSION XII

Prorogation of the Council

Being the second under the Sovereign Pontiff\ Julius III., celebrated on the first day of September , mdli.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legate and nuncios of the Apostolic See presiding therein,—having, in

(*) November 14th.

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the Session last held, decreed, that this next Session was to he on this day celebrated, and that further matters were to be pro¬ ceeded with; whereas It has hitherto delayed to proceed, on account of the absence of the illustrious German nation,—whose interests are principally concerned,(')—and on account of the assemblage of the Fathers not being numerous; now rejoicing in the Lord, and giving deserved thanks to that same Almighty God, for the arrival, a little before this day, of our venerable brethren and sons in Christ, the Archbishops of Mayence and Treves,—electoral princes of the holy Roman Empire,—and also of several other bishops of that country and of other pro¬ vinces ; and conceiving a firm hope that very many other pre¬ lates, both of Germany and of other nations, will, impelled by the requirement of their office and by this example, in a few days arrive; (the Synod) indicts the next session for the fortieth day from this present, which will be the eleventh of October next:— and prosecuting the said Council in the state wherein it now is, whereas in the preceding Sessions decrees were passed touching the seven sacraments of the New Law in general, and on bap¬ tism and confirmation in particular, It resolves and decrees, that It will discuss and treat of the sacrament of the most holy Eucharist, and also, as regards Reformation, of the other matters which relate to the more easy and commodious residence of prelates. And It admonishes and exhorts all the Fathers, that, after the example of our Lord Jesus Christ, they meanwhile give themselves to fasting and prayer, so far at least as human weak¬ ness will permit, that so God, who is blessed for evermore, being at length appeased, may vouchsafe to bring back the hearts of men to the acknowledgment of His own true faith, to the unity of holy mother Church, and to the rule of righteous living.

(t) Cujus praecipue causa agitur; for whose sake principally It is held.

ON THE HOLY EUCHARIST.

SESSION XIII

On the Most Holy Sacrament of the Eucharist

Being the third under the Sovereign Pontiff\ Julius Ul. y celebrated on the eleventh day of October , mdli.

DECREE CONCERNING THE MOST HOLY 8ACRAMENT OF THE EUCHAR18T.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legate, and nuncios of the Apostolic See presiding therein,—although the end for which It assembled, not without the special guidance and governance of the Holy Ghost, was, that It might set forth the true and ancient doctrine touching faith and the sacraments, and might apply a remedy to all the heresies, and the other most grievous troubles with which the Church of God is now miserably agitated, and rent into many and various parts; yet, even from the outset, this especially has been the object of Its desires, that It might pluck up by the roots those tares of exe¬ crable errors and schisms, with which the enemy hath, in these our calamitous times, oversown the doctrine of the faith, in the use and worship of the sacred and holy Eucharist, which our Saviour, notwithstanding, left in His Church as a symbol of that unity and charity, with which He would fain have all Christians be mutually joined and united together. Wherefore, this sacred and holy Synod delivering here, on this venerable and divine sacrament of the Eucharist, that sound and genuine doctrine, which the Catholic Church,—instructed by our Lord Jesus Christ Himself, and by His apostles, and taught by the Holy Ghost, who day by day brings to her mind all truth,(r) has always retained, and will preserve even to the end of the world , forbids all the faithful of Christ, to presume to believe, teach, or preach henceforth concerning the holy Eucharist, otherwise than as is explained and defined in this present decree.

(T) St. John xiv. 26; xvi. 13.

CHAPTER I.

On the real presence of our Lord Jesus Christ in the most holy sacrament of the Eucharist .

In the first place, the holy Synod teaches, and openly and simply professes, that, in the august(w) sacrament of the holy Eucharist, after the consecration of the bread and wine^our TiOrd Jesus Christ* true God and man, is truly, really, apd substantially contained under the species of those sensible things. For neither are these things mutually repugnant,—that our Saviour Himself always sitteth at the right hand of the Father in heaven, according to the natural mode of existing, and that, nevertheless, He be, in many other places, sacramentally present to us in his own substance, by a manner of existing, which, though we can scarcely express it in words, yet can we, by the understanding illuminated by faith, conceive, and we ought most firmly to believe, to be possible unto God: for thus all our forefathers, as many as were in the true Church of Christ, who have treated of this most holy Sacrament, have most openly professed, that our Redeemer

instituted this so admirable a sacrament at the last supper, when, after the blessing of the bread and wine, He testified, in express and clear words, that He gave them His own very Body, and His own Blood; words which,—recorded by the holy Evangelists, and afterwards repeated by Saint Paul, whereas they carry with them that proper and most manifest meaning in which they were under¬ stood by the Fathers,—it is indeed a crime the most unworthy that they should be wrested, by certain contentious and wicked men, to fictitious and imaginary tropes, whereby the verity of the flesh and blood of Christ is denied, contrary to the uni¬ versal sense of the Church, which, as the pillar and ground of truth , has detested, as satanical, these inventions devised by impious men; she recognising, with a mind ever grateful and unforgetting, this most excellent benefit of Christ.

(w) Almo.

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ON THE HOLY EUCHARIST.

CHAPTER IT.

Oti the reason of the Institution of this most holy Sacrament .

Wherefore, our Saviour, when about to depart out of this world to the Father, instituted this Sacrament, in which He poured forth as it were the riches of His divine love towards . man, making a remembrance of his wonderful works ;(*) and He commanded us, in the participation thereof, to venerate His memory , and to show forth his death until He come(r) to judge the world. And He would also that this sacrament should be received as the spiritual food of souls, whereby may be fed and strengthened those who live with His life who said, He that , eateth me , the same also shall live by me; (*) and as an antidote, ' whereby we may be freed from daily faults, and be preserved from mortal sins. He would, furthermore, have it be a pledge of our glory to come, and everlasting happiness, and thus be a symbol of that one body whereof He is the head, and to which He would fain have us as members be united by the closest bond of faith, hope, and charity, that we might all speak the same things , and there might be no schisms amongst us. (a)

CHAPTER III.

Chi the excellency of the most holy Eucharist over the rest of the Sacraments.

The most holy Eucharist has indeed this in common with the rest of the sacraments, that it is a symbol of a sacred thing, and is a visible form of an invisible grace ; but there is found in the Eucharist this excellent and peculiar thing, that the other sacra¬ ments have then first the power of sanctifying when one uses them, whereas in the Eucharist, before being used, there is the

(x) Ps* cx. 4.

(y) 1 Cor. xi. 26. (*) John vi. 58.

(*) 1 Cor. i. 10.

Author Himself of sanctity. For the apostles had not as yet received the Eucharist from the hand of the Lord, when never¬ theless Himself affirmed with truth that to be His own body which He presented (to them). And this faith has ever been in the Church of God, that, immediately after the consecration, the veritable Body of our Lord, and His veritable Blood, to¬ gether with His soul and divinity, are under the species of bread and wine; but the Body indeed under the species of bread, and the Blood under the species of wine, by the force of the words; but the body itself under the species of wine, and the blood under the species of bread, and the soul under both,(b) by the force of that natural connexion and concomitancy whereby the parts of Christ our Lord, who hath now risen from the dead , to die no more , (c) are united together; and the divinity, furthermore, on account of the admirable hypostatical union thereof with His body and soul. Wherefore it is most true, that as much is contained under either species as under both; for Christ whole and entire is under the species of bread, and under any part whatsoever of that species; likewise the whole (Christ) is under the species of wine, and under the parts thereof.

CHAPTER IV.

On Transubstantiation.

And because that Christ, our Redeemer, declared that which He offered under the species of bread to be truly His own body, therefore has it ever been a firm belief in the Church of God, and this holy Synod doth now declare it anew, that; by the consecration of the bread and of the wine, a conversion is made(d) of the whole substance of the bread into the substance of the body of Christ our Lord, and of the whole substance of the wine into the substance of His blood; which conversion is, by the holy Catholic Church, suitably and properly called Transubstantiation.

('») Sub utraque, under each. (c) 1 Cor. yi. 9. (d) Conversionem fieri.

ON THE HOLY EUCHARIST.

CHAPTER V.

On the cult and vetieration to be shown to this most holy

Sacran&nt.

Wherefore, there is no room left for doubt, that ell the faithful of Ghrist may,(e) according to the custom ever received in the CfithoRv Church, render in veneration the worship of latria, which is due to the true God, to this, most holy sacrament For not therefore is it the less to be adored on this account, that it was instituted by Christ, the Lord,'in order to be received: for we believe that same God to be present therein, of whom the eternal Father, when introducing him into the world, says; And let all the angels of God adore him; (f) whom the Magi falling down, adored ;(•) who, in fine, as the Scripture testifies, was adored by the apostles in Galilee.

The holy Synod declares, moreover, that very piously and religiously was this custom introduced into the Church, that this sublime and venerable sacrament be, with special veneration and solemnity, celebrated, every year, on a certain day, and that a festival $

and that it be borne reverently and with honour in processions through the streets, and public places. For it is most just that there be certain appointed holy days, whereou all Christians may, with a special and unusual demonstration, testify that their minds are grateful and thankfiil(b) to their common Lord and Redeemer for so ineffable and truly divine a benefit, whereby the victory and triumph of His death are represented. And so indeed did it behove victorious truth to celebrate a triumph over falsehood and heresy, that thus her adversaries, at the sight of so much splendour, and in the midst of so great joy of the universal Church, may either pine away(') weakened and broken; or, touched with shame and confounded, at length repent.

(«) Do exhibit, or render, quin exhibeant. (*) Ps. xcvi. 7.

(O Matt. ii. 11.

(h) Mem ores, unforgetful. (») Ps. cxi. 10.

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CHAPTER VJ.

On reserving the Sacrament of the sobered Euchdrist , and bearing it to the Sick.

The custom of reserving the holy Eucharist in the sacrarium(k) is so ancient, that even the age of the Council of Nicaea(1) re¬ cognised that usage. Moreover, as to carrying the sacred Eucharist itself to the sick, and carefully reserving it for this purpose in churches, besides that it is exceedingly conformable to equity and reason, it is also found enjoined in numerous councils,(m) and is a very ancient observance of the Catholic Church. Wherefore, this holy Synod ordains, that this salutary and necessary custom is to be by all means retained.

CHAPTER VII.

On the preparation to be given that one may worthily receive the sacred Eucharist .

If it is unbeseeming for any one to approach to any of the sacred functions, unless he approach holily; assuredly, die more the holiness and divinity of this heavenly sacrament are under¬ stood by a Christian, the more diligently ought he to give heed that he approach not to receive it but with great reverence and holiness, especially as we read in the Apostle those words full of terror; He that eateth and drinketh unworthily , eateth and drinketh judgment to himself (?) Wherefore, he who would communicate, ought to recal to mind the precept of the Apostle; Let a man prove himself (°) Now ecclesiastical usage declares that necessary proof to be, that no one, conscious to himself

(k) In sacrario, sacred place, or vessel. (1) Nicscn. I. c. 13.

(m) Concil. Rhem. c. 2,10, Labbe T. v. p. 1693; Concil. Later, sub. Innoc. III. c. 26; Concil. Ancyr, c. 6; Concil. Agatbens. c. 15.

(») 1 Cor. xi. 29. (o) v . 28.

ON THE HOLY EUCHARIST.

of mortal sin, how contrite soever he may. seem to himself, ought to approach to the sacred Eucharist without previous sacramen¬ tal confession. This the holy Synod hath decreed is to be inv&nably observed by all Christians, even by those priests on whom it may be incumbent by their office to celebrate, provided the opportunity of a confessor do not fail them; but if, in an urgent necessity, a priest should celebrate without previous confession, let him confess as soon as possible.(p)

CHAPTER VIII.

On the use of this admirable Sacrament .

Now as to the use of this holy sacrament, our Fathers (q) have rightly and wisely distinguished three ways of receiving it. For they have taught that some receive it sacramentally only, to wit sinners: others spiritually only, those to wit who eating in desire that heavenly bread which is set before them, are, by a lively faith which worketh by charity ,(T) made sensible of the fruit and usefulness thereof: whereas the third (class) receive it both sacramentally and spiritually, and these are they who so prove and prepare themselves beforehand, as to approach to this divine table clothed with the wedding garment .(•) Now as to the reception of the sacrament, it was always the custom in the Church of God, that laymen should receive the communion from priests; but that priests when celebrating should commu¬ nicate themselves; which custom, as coming down from an apostolical tradition, ought with justice and reason to be re¬ tained. And finally this holy Synod with true fatherly affection admonishes, exhorts, begs, and beseeches, through the .bowels of the mercy of our God, that all and each of those Who bear the Christian name would now at length agree and be of one mind in this sign of unity, in this bond of charity, in this symbol of concord; and that, mindful of the so great majesty, and the so

(P) Quamprimum. (q) S. August, c. Donat, saepe; S. Prosper in lib. Sentent. (r) Gal. v. 6. («) Matth. xxii. II, 12.

exceeding love of our Lord Jesus Christ, who gave His own be¬ loved soul as the price of our salvation, and gave us His own flesh to eat, they would believe and venerate these sacred mys¬ teries of His body and blood with such constancy and firmness of faith, with such devotion of soul, with such piety and worship, as to be able frequently to receive that supersubstantial bread, and that it may be to*them truly the life of the soul, and the perpetual health of their mind; that being invigorated by the strength thereof, they may, after the journeying of this miserable pilgrimage, be able to arrive at their heavenly country, there to eat, without any veil, that same bread of angels which they now eat under the sacred veils.

But forasmuch as it is not enough to declare the truth, if errors be not laid bare and repudiated, it hath seemed good to the holy Synod to subjoin these canons, that all,—the Catholic doctrine being already recognised,—may now also understand what are the heresies which they ought to guard against and avoid.

ON THE MOST HOLY SACRAMENT OP THE EUCHARIST.

Canon i. —If any one denieth, that, in the sacrament of the most holy Eucharist, are

contained truly, really, and substantially, the body and blood together with the soul and divinity of our Lord Jesus Christ, and consequently the whole Christ; but saith that He is only therein as in a sign, or in figure, or virtue; let him be anathema.

Canon ii. —If any one saith, that, in the sacred and holy sacrament of the Eucharist, the substance of the bread and wine remains conjointly with the body and blood of our Lord Jesus Christ, and denieth that wonderful and singular conversion of the whole substance of the bread into the Body, and of the whole substance of the wine into the Blood—the species only of the bread and wine remaining—which conversion indeed the Catholio Church most aptly calls Transubstantiation; let him be anathema.

Canon hi. —If any one denieth, that, in the venerable sacra¬ ment of the Eucharist, the whole Christ is contained under each

species, and under every part of each species, when sepa¬ rated ;0) let him be anathema.

Canon iv. —If any one saith, that, after the consecration is completed, the body and blood of our Lord Jesus Christ are not in the admirable sacrament of the Eucharist, but (are there) only during the use, whilst it is being taken, and not either be¬ fore or after; and that, in the hosts, or consecrated particles, which are reserved or which remain after communion, the true Body of the Lord remaineth not; let him be anathema.

Canon v.—If any one saith, either that the principal fruit of the most holy Eucharist is the remission of sins, or, that other effects do not result therefrom; let him be anathema.

Canon vi. —If any one saith, that, in the holy sacrament of the Eucharist, Christ, the only-begotten Son of God, is not to be adored with the worship, eten external of latria; and is, con¬ sequently, neither to be venerated with a special festive solem¬ nity, nor to be solemnly borne about in processions, according to the laudable and universal rite and custom of holy church; or, is not to be proposed(T) publicly to the people' to' be adoted, and that the adorers thereof are idolators; let him be anathema.

Canon vii. —If any one saith, that it is not lawful for the sacred Eucharist to be reserved in the sacrarium ,(w) but that, immediately after consecration, it must neoessarily be distri¬ buted amongst those present; or, that it is not lawful that it be carried with honour to the sick; let him be anathema.

Canon viii. —If any one saith, that Christ, given (*) in the Eucharist, is eaten spiritually only, and not also sacramentally and really; let him be anathema.

Canon lx. —If any one denieth, that all and each of Christ's faithful of both sexes are botmd, when they hate attained to years of discretion, to communicate every year, at least at Easter, in accordance with the precept of holy Mother Church; let him be anathema.

0) Separatione facta, when a separation has been made.

(T) Proponendum, set before, exposed.

(w) In sacrario. (*) exhibitum, presented.

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Canon x. —If any one saith, that it is not lawful for the cele¬ brating priest to communicate himself; let him be anathema.

Canon xi. —If any one saith, that faith alone is a sufficient preparation for receiving the sacrament of the most holy Eucha¬ rist; let him be anathema. And for fear lest so great a sacrament may be received unworthily, and so unto death and condemnation, this holy Synod ordains and declares, that sacra¬ mental confession, when a confessor may be had, (y) is of necessity to be made beforehand, by those whose conscience is burthened with mortal sin, how contrite even soever they may think themselves But if any one shall presume to teach, preach, or obstinately to assert, or even in public disputation to defend the contrary, he shall be thereupon (z) excommunicated.

DECREE ON REFORMATION.

CHAPTER I.

Bishops shall apply themselves with prudence to reform the manners of their subjects: from the correction of those bishops there shall be no appeal.

The same sacred and holy Synod,—lawfully assembled in the Holy Ghost, the same legate and nuncios of the Apostolic See presiding therein,—purposing to ordain certain things which relate to the* jurisdiction of bishops, in order that they may, in accordance with the decree of the last Session, so much the more willingly reside in the churches committed to them, by haw much they shall be able, with greater ease and convenience, to rule and to keep in propriety of life and conversation those subject to them, thinks it meet that the bishops be first of all admonished to bear in mind, that they are pastors and not strikers (A), and that they ought so to preside over those subject to them, as not to lord it over them (b), but to love them as sons and brethren; and to strive, by exhortation and admonition,

(7) Habita copia confessoris. (*) Eo ipso, by that very act.

(*) Titus i. 7. (b) Luke xxii. 25.

to deter them from what is unlawful, that they may not be obliged, should they transgress, to coerce them by due punish¬ ments. Towards whom, however,, should they happen to sin in any manner through human frailty, that injunction of the apostle is by bishops to be observed, that they reprove , entreaty rebuke them in all kindness and doctrine ;(c) seeing that bene¬ volence towards those to be corrected often effects more than austerity; exhortation more than menace; charity more than power. But if, on account of the grievousness of the trans¬ gression, there be need of the rod y then is rigour to be tempered with gentleness, judgment with mercy, severity with lenity; that so discipline, so salutary and necessary for the people, may be preserved without harshness; and they who

are chas¬ tened may be amended, or, if they will not repent, that others, by the wholesome example of their punishment, may be deterred from vices; since it is the office of a pastor, at once vigilant and kind, to apply first of all gentle fomentations to the disorders of his sheep, and afterwards to proceed to sharper and more violent remedies, when the grievousness of the distemper may require them; but if not even these are effectual in removing those disorders, then is he to free the other sheep at least from the danger of contagion. Whereas, therefore, those guilty of crimes, ordinarily, in order to avoid punishment, and to evade the judgments of their bishops, affect to have subjects of com¬ plaint and grievances, and, under the subterfuge of an appeal, impede the process of the judge, (this Synod) -in order to prevent a remedy which was instituted for the protection of innocence, from being abused to the defence of wickedness, and that this their craft and tergiversation may be met, hath ordained and decreed that: In causes relative to visitation and correction, or to competency or incompetency, as also in criminal causes, there shall be no appeal, before the definitive sentence, from the bishop or his vicar general in spirituals, against any inter¬ locutory sentence, or other (alleged) grievance, whatsoever; neither shall the bishop, nor his vicar, be bound to defer to any

(c) Tim. iv. 2.

such appeal, as being frivolous; but they may proceed to ulterior measures, that appeal, or any inhibition whatsoever emanating from a judge of appeal, as also eveiy usage and cus¬ tom even immemorial, to the contrary notwithstanding; except it be that the said grievance cannot be repaired by the definitive sentence, or that there is no appeal from the said definitive sentence; in which cases the statutes of the ancient canons shall remain untouched.

CHAPTER II.

An appeal from the bishop in criminal causes , when to be committed to the Metropolitan , or to one of the nearest bishops .

A case of appeal—where there is room for such appeal—from the sentence of the bishop, or that of his vicar general, shall, if it happen to be a case committed by apostolic authority to judges on the spot, be referred to the metropolitan, or even to his vicar general in spirituals; or if that metropolitan be for some cause suspected, or be distant more than two days 9 journey as settled by law, or if it be from him, that the appeal is made, the case shall be committed to one of the nearest bishops, or to the vicars thereof but not to inferior judges.

CHAPTER III.

The acts qf the first instance shall , within thirty days 9 be given gratuitously to the accused appellant*

The accused who is in a criminal, cause an appellant from the bishop, or from his vicar general in spirituals, shall abso¬ lutely produee, before the judge to whom he has appealed, the acts of the first instance; and the judge shall by no means proceed, without having seen them, to the absolution of the aocused. And he, from whom the appeal is

made, shall furnish, on the demand (of the appellant), the said acts gratuitously within thirty days; otherwise the said case of appeal shall be terminated without them, in the way that justice may require.

ON REFORMATION.

CHAPTER IV.

In what manner clerics are y on account of grievous crimes y to be degraded from sacred Orders .

And whereas crimes so grievous are sometimes committed by ecclesiastics, that, on account of the atrocity thereof, they have to be deposed from sacred orders, and delivered over to a secular court; in which case a certain number of bishops is, according to the Canons, required ;(d) and whereas, should there be a difficulty in assembling them all, the due execution of the law would be retarded; whilst, should they on.any occasion be able to be present, their residence would be interrupted; there¬ fore hath the Synod resolved and decreed, that it shall be lawful for a bishop, by himself or by his vicar general in spirituals, without the presence even of other bishops, to proceed against a cleric, even against one who is raised to the sacred order of the priesthood, even to his condemnation, as also to his verbal deposition; and he shall be able by himself to proceed even to actual and solemn degradation from the said ecclesiastical orders and degrees, in the cases wherein the presence of other bishops, in a speoific number, is required by the Canons ; taking, however, to himself, and being assisted therein by, a like num¬ ber of abbots, who have the right of using the mitre and crosier by apostolic privilege, if so be that they can be found in the city, or diocese, and can conveniently be present; or in their default, (being assisted) by (a like number of) other persons * constituted in ecclesiastical dignity, who are of weight by their age and recommended by their knowledge of law.

CHAPTER V.

The bishop shall take summary cognizance of graces whereby a sih y or a punishment^ is remitted.

And because it sometimes happens that, under false pleas, which notwithstanding seem probable enough, certain persons

(d) Concii. Hisp&l. II. c. 6.

fraudulently obtain graces, whereby the punishments inflicted on them by the just severity of their bishops are either wholly remitted, or are mitigated; and whereas it is a thing not to be borne, that a lie, which is so exceedingly displeasing to God, should not only itself go unpunished, but even obtain for him that tells it, the pardon of another crime; the Synod hath for this cause ordained and decreed as follows; That a bishop, resident in his own church, shell of himself as the delegate of the Apostolic See, take cognizance even summarily of the surreption or obreption of any grace, obtained under false pre¬ tences,(e) for the absolution of any public crime or delinquency, into which he himself had instituted an inquiry; or for the remission of a punishment to which he has himself

condemned the criminal; and he shall not admit the said grace, after that it shall have been lawfully ascertained, that it was obtained by the statement of what is false, or by the suppression of the truth. '

CHAPTER VI.

A bishop shall not be personally cited , save in a case involving deposition , or deprivation .

And whereas the subjects of a bishop, even though they have been justly chastened, do often nevertheless bear him a violent hatred, and, as if they had suffered some wrong at his hands, object false accusations against him, in order that they may annoy him by whatsoever means lie in their power,—the fear of which annoyance doth for the most part render the bishop more backward in inquiring into and punishing delinquencies; there¬ fore, that a bishop may not be compelled—both to his own great inconvenience and that of his Church—to abandon the flock entrusted to him, and that he may not be forced—not without the diminution of the episcopal dignity—to wander from place to place, (the Synod) hath thus ordained and decreed: That a

(*) Precibus, prayers.

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bishop, even though he be proceeded against ex officio, or by way of inquiiy, or denunciation, or accusation, or in any other way whatsoever, shall not be cited or warned to appear in per¬ son, except for a cause for which he might have to be deposed from, or deprived ot, his office.

CHAPTER VII.

The qualifications of witnesses against a bishop are described.

In a criminal cause, witnesses shall not be received against a bishop, whether as to the information, or proofs, or other process affecting the principal point of the case, unless their testimony agree, and they be of a good life, in good esteem and reputation; and if they shall have made any deposition through hatred, rashness, or interest, they shall be subjected to grievous punishments.

CHAPTER VIII.

Important episcopal causes shall be taken cognizance of by the Supreme Pontiff.

The causes of bishops, when, on account of the quality of the crime objected, they have to appear (in person), shall be carried before the Sovereign Pontiff, and be by him decided.

DECREE FOB POSTPONING THE DEFINITION OF FOUB ARTICLE8 TOUCHING THE SACRAMENT OF THE EUCHARIST, AND FOR GIVING A SAFJtCONDUCT TO PROTESTANTS.

The same holy Synod,—desiring to pluck out of the field of the Lord all the errors which

like thorns have sprung up again on the subject of this most holy sacrament, and wishing to provide for the salvation of all the faithful, her daily prayers being devoutly offered up to Almighty God for this end,— amongst the other articles, relative to this sacrament, which have been treated of with the most diligent inquiry into Catholic truth; very many and most accurate conferences, according to

the importance of the matters, having been held, and the sen¬ timents also of the most eminent theologians having been ascertained,; has likewise treated of these following: whether it be necessary to salvation, and be prescribed of divine right, that all the faithful of Ghrist receive the said venerable sacra¬ ment under both species. And; whether he who communicates under either species receive less than he who communicates under both. And; whether holy Mother Church hath erred, by communicating, under the species of bread only, the laity, and priests when not celebrating. And; whether little children also are to be communicated. But whereas those, of the most noble province of Germany, who call themselves Protestants, desire to be heard by the holy Synod upon these said articles before they are defined, and for this end have asked for the publio faith(£) from the Synod, that they may be allowed to come hither in safety, dwell in this city, speak freely and set forth their senti¬ ments before the Synod, and afterwards depart when they please; this holy Synod,—although It has looked forward with great earnestness for many months past for their coming, never¬ theless, as an affectionate mother that groaneth and travaileth, most ardently desiring and labouring after this, that, amongst those who bear the Christian name, there may be no schisms, but that, even as all acknowledge the same God and Redeemer, so may all say the same thing , believe the same, think the same,—trusting in the mercy of God, and hoping that the result will be that they may be brought back to, the most holy and salutary concord of one faith, hope, and charity, (and) yielding to them herein, hath, as far as the said Synod is con¬ cerned, given and granted, according to their request, a publio assurance and faith, which they call a safe-conduct, of the tenor which will be set down below; and for their sakes It hath postponed the definition of those articles to the second next Session, which, that they may conveniently be present thereat, It hath indicted for the festival of the conversion of Saint Paul, which will be on the twenty-fifth day of the month of January of the ensuing year. And It furthermore ordains, that the

(0 Fidem, assurance.

SAFE-CONDUCT TO PROTESTANTS. 01

sacrifice of the mass, on account of the close connexion be¬ tween the two subjects, shall be treated of in the same Session; and that meanwhile It will treat of the sacraments of Penance and Extreme Unction in the next Session, which It hath de¬ creed is to be held on the festival of Saint Catharine, virgin and martyr, which will be the twenty-fifth of November; and that at the same time, in both Sessions, the matter of reformation shall be proceeded with.

SAFE-CONDUCT GRANTED TO PROTESTANTS.

The sacred and holy, general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legate and Nuncios of the holy Apostolic See presiding therein,—grants, as far as regards the holy Synod itself, to all and each one throughout the whole of Germany, whether, ecclesiastics or Seculars, of what¬ soever degree, estate, condition, quality they be, who may wish to repair to this oecumenical and general Council, the public faith and full security, which they call a safe-conduct, with all and each of the necessary and suitable clauses and decrees, even though they ought to be expressed specifically and not in general terms, and which it is Its wish shall be considered as expressed, so as that they may and shall have it in their power in all liberty to confer, make proposals, and treat on those things which are to be treated of in the said Synod ; to come freely and safely to the.said oecumenical Council, and there remain and abide, and propose therein, as well in writing as by word of mouth, as many articles as to them shall seem good, and to confer and dispute, without any abuse or contumely, with the Fathers, or with those who may have been selected by the said holy Synod; as also to withdraw whensoever they shall think fit. It hath furthermore seemed good tp the. holy Synod, that if, for their greater liberty and security, they desire that certain judges be deputed on their behalf, in regard of crimes whether committed, or that may be committed, by them, they shall themselves nominate those who are favourable towards them, even though the said crimes should be ever so enormous and should savour of heresy.

On the Sacraments of Penance and Extreme Unction

Being the fourth under the Sovereign PontiffJulius ///., celebrated on the twenty-fifth of November, mdli.

ON THE MOST HOLT SACRAMENTS OF PENANCE AND EXTREME UNCTION.

Doctrine on the Sacrament of Penance.

The sacred and holy, oecumenical and general Synod of Trent, —lawfully assembled in the Holy Ghost, the same Legate and Nuncios of the holy Apostolic See presiding therein,—although, in the decree concerning Justification, there has been, through a certain kind of necessity, on account of the affinity of the subjects, much discourse introduced touching the sacrament of Penance; nevertheless, so great, in these our days, is the multi¬ tude of various errors relative to this sacrament, that it will be of no small public utility to have given thereof a more exact and full definition, wherein, all errors having been, under the protec¬ tion of the Holy Ghost, pointed out and extirpated^ Catholic truth may be made clear and resplendent; which (Catholic truth) this holy Synod now sets before all Christians to be per¬ petually retained.

CHAPTER I.

On the necessity , and on the institution of the Sacrament of

Penance.

If such, in all the regenerate, were their gratitude towards God, as that they constantly preserved the justice received in bap¬ tism by His bounty and grace; there would not have been need for another sacrament, besides that of baptism itself, to be instituted for the remission of sins. But because God, rich in mercy , knows our frame,(*) He hath bestowed a remedy of life even on

(r) Pi. cii. 14.

those who may, after baptism, have delivered themselves up to the servitude of sin and the power of the devil,—the sacrament to wit of Penance, by which the benefit of the death of Christ is applied to those who have fallen after baptism. Penitence was indeed at all times necessary, in order to attain to grace and justice, for all men who had defiled themselves by any mortal sin, even for those who begged to be washed by the sacrament of Baptism; that so, their perverseness renounced and amended, they might, with a hatred of sin and a godly sorrow of mind, detest so great an offence of God. Wherefore the prophet says; Be converted and do penance for all your iniquities , and iniquity shall not be your ruin.(b) The Lord also said; Except you do penance , you shall also likewise perish; (‘) and Peter, the prince of the apostles, recommending penitence to sinners who were about to be initiated by baptism, said; Do penance , and be baptized every one you.(k) Nevertheless, neither before the coming of Christ was penitence a sacrament, nor is it

such, since His coming, to any previously to baptism. But the Lord then principally instituted the sacrament of penance, when, being raised from the dead, He breathed upon His disciples, saying, Receive ye the Holy Ghost , whose sins you shall forgive , they are forgiven them , and whose sins you shall retain , they are retained .(*) By which action so signal, and words so clear, the consent of all the Fathers has ever understood, that the power of forgiving and retaining sins was communicated to the apostles and their lawful successors, for the reconciling of the faithful who have fallen after baptism. And the Catholic Church with great reason repudiated and condemned as here¬ tics, the Novatians, who of old obstinately denied that power of forgiving. Wherefore, this holy Synod, approving of and re¬ ceiving as most true this meaning of those words of pur Lord, condemns the fanciful interpretations of those who, in opposition to the institution of this sacrament, falsely wrest those words to the power of preaching the word of God, and of announcing the Gospel of Christ.

(h) Ezech. xviii. 30. (») Luke xiii. 5. (k) Acte ii. 38. 0) John xx. 23.

CHAPTER II.

On the difference between the Sacrament of Penance and that

of Baptism .

For the rest, this sacrament is clearly seen to be different from baptism in many respects; for besides that it is very widely different indeed in matter and form, which constitute the essence of a sacrament, it is beyond doubt certain that the minister of baptism need not be a judge, seeing that the Church exercises judgment on no one who has not entered thereto through the gate of baptism. For, what have /, saith the apostle, to do to judge them that ' are without ?'(■) It is other¬ wise with those who are of the household of the faith , whom Christ our Lord has once, by the layer of baptism, made the members of His own body; for such, if they should afterwards have defiled themselves by any crime, He would no longer have them cleansed by a repetition of baptism—that being nowise lawful' in thd Catholic Church—but be placed as criminals before this tribunal; that, by the sentence of the priests, they might fee freed, not once, but as often as, being penitent, they should 1 , from their sins committed, flee thereunto. Further¬ more, one is the fruit of baptism, and another that of penance. For, by baptism putting on Christ y (n) we are made therein entirely a new creature, obtaining a full and entire remission of all sins; unto which newness and entireness, However, we are no ways able to arrive by the sacrament of Penance, without many tears and great labours on our parts, the divine justice demanding this; so that penance has justly been called by holy Fathers a laborious kind of baptism. (°) And this sacra¬ ment of Penance is, for those who have fallen after baptism, 1 necessary unto salvation ; as baptism itself is for those who have not as yet been regenerated.

(m) 1 Cor. ▼. 12. (n) Gal. iii. 23.

(o) Gr. Nfcar. or. 39; J. Damasc. L. IV. tie Fide, c. 10.

ON THE SACRAMENT OF PENANCE*

CHAPTER III.

On the parts , and on the fruit of this Sacrament.

The holy synod doth furthermore teach, that the form of the sacrament of penance, wherein its force principally consists, is placed in those words of the minister, I absolve thee , &c; to which words indeed certain prayers are, according to the custom of holy Church, laudably joined, which nevertheless by no means regard the essence of that form, neither are they neces¬ sary for the administration of the sacrament itself. But the acts of the penitent himself^ to wit, contrition, confession and satisfaction, are as it were the matter (?) of this sacrament. Which acts, inasmuch as they are, by God's institution, required in the penitent for the integrity of die sacrament, and for the full and perfect remission of sins, are for this reason called the parts of penance. But the thing signified (*) indeed and the effect of this sacrament, as far as regards its force and efficacy, is reconciliation with God, which sometimes, in persons who are pious and who receive this sacrament with devotion, is wont to be followed by peace and serenity of conscience, with exceed¬ ing consolation of spirit. The holy Synod, whilst delivering these things touching the parts and die effect of this sacrament, condemns at the same time the opinions of those who contend, that, the terrors which agitate the conscience, and faith, are the parts of penance.

CHAPTER IV.

On Contrition. '

Contrition, which holds the first place amongst the aforesaid acts of the penitent, is a sorrow of mind, and a detestation for sin committed, with the purpose of not sinning for the future.(T)

(p) Quasi materia. (q) Res.

(r) Animi dolor, &c detestatio de peccato commisso, cum proposito non peccandi de cstero.

This movement of contrition was at all times necessary for ob¬ taining the pardon of sins; and, in one who has fallen after baptism, it then at length prepares for the remission of sins, when it is united with confidence in the divine mercy, and with the desire of performing the other things which are required for rightly receiving this sacrament. Wherefore the holy Synod declares, that this contrition contains not only a cessation from sin, and the purpose and the beginning of a new life, but also a hatred of the old(‘), agreeably to that saying; Cast away from you all your iniquities , wherein you have transgressed , and make to yourselves a new heart and a new spirit. (*) And as¬ suredly he who has considered those cries of the saints; To thee only have I sinned , and have done evil before thee y (T) I have laboured in my groaning , every night I will wash my bed,(w) I will recount to thee all my years , in the bitterness of my soul 9 (x) and others of this kind, will easily understand that they flowed from a certain vehement hatred of their past life, and from an exceeding detestation of sins.. The Synod teaches moreover, that, although it sometimes happen that this contri¬ tion is perfect through charity, and

reconciles man with God before this sacrament be actually received, the said reconcili¬ ation, nevertheless, is not to be ascribed to that contrition, in¬ dependently of the desire of the sacrament which is included therein. And as to that imperfect contrition, which is called attrition, because that it is commonly conceived either from the consideration of the turpitude of sin, or from the fear of hell and of punishment, It declares that if, with the hope of pardon, it ex¬ clude the wish to sin,(y) it not only does not make a man a hypocrite, and a greater sinner, but that it is even a gift of God, and an impulse of the Holy Ghost,—who does not indeed as yet dwell in the penitent, but only moves him,—whereby the penitent being assisted prepares a way for himself unto justice. And although this (attrition) cannot of itself, without the sacra¬ ment of penance, conduct the sinner to justification, yet does it dispose him to obtain the grace of God in the sacrament of

(•) Veteria, past (t) Ezech. xviii. 31. (▼) Ps. 1. 6.

(w) Pa, vi. 7. (x) Is. xxxviii. 15. (y) Voluntatem peccandi.

Penance. For, smitten profitably with this fear, the Ninivites, at the preaching of Jonas, did fearful penance and obtained mercy from the Lord. Wherefore falsely do some calumniate Catholic writers, as if they had maintained that the sacrament of Penanoe confers grace without any good motion on the part of those who receive it: a thing which the Church of God never taught, or thought: and falsely also do they assert that con¬ trition is extorted and forced, not free and voluntary.

CHAPTER V.

On Confession .

From the institution of the sacrament of Penance as already explained, the universal Church has always understood, that the entire confession of sins was also instituted by the Lord, and is of divine right necessary for all who have fallen after baptism ; because that our Lord Jesus Christ, when about to ascend from earth to heaven, left priests His own vicars, as presidents and judges, unto whom all the mortal crimes, into which the faithful of Christ may have fallen, should be carried, (z) in order that, in accordance with the power of the keys, they may pronounce the sentence of forgiveness or retention of sins.(‘) For it is manifest, that priests could not have exercised this judgment without knowledge of the cause; neither indeed could they have observed equity in enjoining punishments, if the said faithful should have declared their sins in general only, and not rather specifically, and one by one. Whence it is gathered that all the mortal sins, of which, after a diligent examination of themselves, they are conscious, must needs be by penitents enumerated in confession, even though those sins be most

(*) Deferantur, should be accused.

(») This passage may also be rendered: that, in accordance with the power of the keys for the forgiveness or retention of sins, they may pronounce sentence.

hidden, and committed only against the two last precepts of the decalogue,—sins which sometimes wound the soul more grievously, and are more dangerous, than those which are com¬ mitted outwardly. For venial sins, whereby we are not excluded from the grace of God, and into which we fall more frequently, although they be rightly and profitably, and without any pre¬ sumption declared in confession, as the custom of pious persons demonstrates, yet may they be omitted without guilt, and be expiated by many other remedies. But, whereas all mortal sins, even those of thought, render men children of wrath and enemies of God, it is necessary to seek also for the pardon of them all from God, with an open and modest confession. Wherefore, while the faithful of Christ are careful to confess all the sins which occur to their memory, they without doubt lay them all bare before the mercy of God to be pardoned: whereas they who act otherwise, and knowingly keep back certain sins, such set nothing before the divine bounty to be forgiven through the priest: for if the sick be ashamed to show his wound to the physician, his medical art cures not that which it knows not of. We gather furthermore, that those circumstances which change the species of the sin are also to be explained in con¬ fession, because that, without them, the sins themselves are neither entirely set forth by the penitents, nor are they known clearly to the judges; and it cannot be that they can estimate rightly the grievousness of the crimes, and impose on the penitents, the punishment which ought to be inflicted, on account of them> Whence it is unreasonable to teach, that these circumstances have been invented by idle men; or, that one circumstance only is to be confessed, to wit, that one has sinned against a brother. But it is also impious to assert, that confession, enjoined to be made in this manner, is impossible, or to call it a slaughter-house of consciences: for it is certain, that in the Church nothing else is required of penitents, but that, after each has examined himself diligently, and searched all the folds and recesses of his conscience, he confess'those sins by which he shall remember that he has mortally offended

(b) Ephe®. ii. 3.

his Lord and God: whilst the other sins, which do not occur to him after diligent thought, are understood to be included as a whole (e) in that same confession ; for which sins we confidently say with the prophet; From my secret sins cleanse me, O Lord.(A) Now, the very difficulty of a confession like this, and the shame of making known one’s sins, might indeed seem a grievous thing, were it not alleviated by the so many and so great advantages and consolations, which are most assuredly bestowed by absolution upon all who worthily approach to this sacrament. For the rest, as to the manner of confessing secretly to a priest alone, although Christ has not forbidden that a person may,—in punishment of his sins, and for his own hurniliation, as well for an example to others as for the edification of the Church that has been scandalized,—confess his sins publicly, nevertheless this is not commanded by a divine precept; neither would it be very prudent(e) to enjoin by any human law, that sins, especially such as are secret, should be made known by a public confession. Wherefore, whereas the secret sacramental confession,

which was in use from the beginning in holy Church, and is still also in use, has always been commended by the most holy and the most ancient Fathers with a great and unanimous consent, the vain calumny of those is manifestly refuted, who are not ashamed to teach, that confession is alien from the divine command, and is a human invention, and that it took its rise from the Fathers assembled in the Council of Lateran: for the Church did not, through the Council of Lateran, ordain that the faithful of Christ should confess,—a thing which it knew to be necessary, and to be instituted of divine right,—but that the precept of confession should be com¬ plied with, at least once a year, by all and each, when they have attained to years of discretion. Whence, throughout the whole Church, the salutaiy custom is, to the great benefit of the souls of the faithful, now observed, of confessing at that most sacred and most acceptable time of Lent,—a custom which this holy Synod most highly approves of and embraces, as pious and worthy of being retained.

(c) In mfiversum. (<*) Ps. xviii. 13. (e) Satis consults.

7 ii

SESSION XIV,

CHAPTER VI.

On the ministry of this Sacrament , and on Absolution.

But, as regards the minister of this sacrament, the holy Synod declares all these doctrines to be false, and utterly alien from the truth of the Gospel, which perniciously extend the ministry of the keys to any others soever besides bishops and priests ; imagining, contrary to the institution of this sacrament, that those words of our Lord, Whatsoever you shall bind upon earthy shall be bound also in heaven y and whatsoever you shall loose upon earth shall be loosed also in heaven,^) and, Whose sins you shall for givey they are forgiven them, and whose sins you shall retain , they are retained, (g) were in such wise ad¬ dressed to all the faithful of Christ indifferently and indiscrimi¬ nately, as that every one has the power of forgiving sins,— public sins to wit by rebuke, provided he that is rebuked shall acquiesce, and secret sins by a voluntary confession made to any individual whatsoever. It also teaches, that even priests, who are in mortal sin, exercise, through the virtue of the Holy Ghost which was bestowed in ordination, the office of forgiving sins, as the ministers of Christ; and that their sentiment is erroneous who contend that this power exists not in bad priests. But although the absolution of the priest is the dispensation of another’s bounty, yet is it not a bare ministry only, whether of announcing the Gospel, or of declaring that sins are forgiven, but is after the manner of a judicial act, whereby sentence is pronounced by the priest as by a judge: and therefore the penitent ought not so to confide (h) in his own personal faith, as to think thaty—even though there be no contrition on his part, or no intention on the part of the priest of acting seriously and absolving truly,—he is nevertheless truly and in God’s sight absolved, on account of his faith alone. For neither would

(0 Matth. xviii. 18. (g) John xx. 23

(h) Sibi blandiri, flattei himself upon.

faith without penance bestow any remission of sins ; nor would he be otherwise than most careless of his own salvation, who, knowing that a priest but absolved him in jest, should not care¬ fully seek for another who would act in earnest.

CHAPTER VII.

On the Reservation of Cases.

Wherefore, since the nature and order of a judgment require this, that sentence be passed only on those subject (to that judi¬ cature), it has ever been firmly held in the Church of God, and this Synod ratifies it as a thing most true, that the absolution, which a priest pronounces upon one over whom he has not either an ordinary or a deligated jurisdiction, ought to be of no weight whatever. And it hath seemed to our most holy Fathers to be of great importance to the discipline of the Christian people, that certain more atrocious and more heinous crimes should be! absolved, not by all priests, but only by the highest priests: whence the Sovereign Pontiffs, in virtue of the supreme power' delivered to them in the universal Church, were deservedly able j to reserve, for their special judgment, certain more grievous’ cases of crimes. Neither is it to be doubted,;—seeing that all things, that are from God, are well ordered—but that this same may be lawfully done by all bishops, each in his own diocese, unto edification, however, not unto destruction, in virtue of the authority, above (that of) other inferior priests, delivered to them over their subjects, especially as regards those crimes to which the censure of excommunication is annexed. But it is con¬ sonant to the divine authority, that this reservation of cases have effect, not merely in external polity, but also in God's sight. Nevertheless, for fear lest any may perish on this account, it has always been very piously observed in the said Church of God, that there be no reservation at the point of death, and that there¬ fore all priests may absolve all penitents whatsoever from every kind of sins and censures whatever: and as, save at that point

of death, priests have no power in reserved cases, let this alone be their endeavour, to persuade penitents to repair to superior and lawful judges for the benefit of absolution.

CHAPTER VIII.

On the necessity and on the fruit of Satisfaction.

Finally, as regards satisfaction,—which as it is, of all the parts of penance, that which has been at all times recommended to the Christian people by our Fathers, so is it the one especially which in our age is, under the loftiest pretext of piety, impugned by those who have an appearance of godliness, hut have denied the power thereof Q) —the holy Synod declares, that it is wholly false, and alien from the word of God, that the guilt(k) is never forgiven by the Lord, without the whole punishment also being therewith pardoned. For clear and illustrious exam¬ ples are found in the sacred writings, whereby, besides by divine tradition^ this error is refuted in the plainest manner possible. And truly the nature

of divine justice seems to demand, that they, who through ignorance have sinned before baptism, be received into grace in one manner; and in another those who, after having been freed from the servitude of sin and of the devil, and after having received the gift of the Holy Ghost, have not feared, knowingly to violate the temple of God,Q) and to grieve the Holy Spirit.(f) And it beseems the divine clemency, that sins be not in such wise pardoned us without any satisfac¬ tion, as that, taking occasion therefrom, thinking sins less grievous, we, offering as it were an insult and an outrage to the Holy Ghost, (n) should fall into more grievous sins, treasuring tip wrath against the day of wrath.{°) For, doubtless, these satisfactory punishments greatly recall from sin, and check as it were with a bridle, and make penitents more cautious and watchful for the future; they are also remedies for the remains

(0 2 Tim. iii. 5. 00 Culp&m. (1) 1 Cor. iii. 17.

(m) E plies. ir. 30. (n) Hebr. x. 29. (<>) Rom. ii. 4.

of sin, and, by acts of the opposite virtues, they remove the habits acquired by evil living. Neither indeed was there ever in the Church of God any way accounted surer to turn aside the impending chastisement of the Lord, than that men should, with true sorrow of mind, practise these works of penitence. Add to these things, that, whilst we thus, by making satisfaction, suffer for our sins, we are made conformable to Jesus Christ, who satisfied for our sins, from whom all our sufficiency is ;(p) having also thereby a most sure pledge, that if we suffer with him , we shall also be glorified with him (**). But neither is this satis¬ faction, which we discharge for our sins, so our own, as not to be through Jesus Christ. For we who can do nothing of our¬ selves, as of ourselves, can do all things, He co-operating, who strengthens us. Thus, man has not wherein to glory, but all our glorying is in Christ: in whom we live; in whom we merit; in whom we satisfy; bringing forth fruits worthy of penance >(T) which from him have their efficacy ; by him are offered to the Father; and through him aTe accepted by the Father. There¬ fore the priests of the Lord ought, as far as the Spirit and prudence shall suggest, to enjoin salutary and suitable satis¬ factions, according to the quality of the crimes and the ability of the penitent; lest, if haply they Connive at sins, and deal too indulgently with penitents, by enjoining certain very light works for very grievous crimes, they be made partakers of other men’s sins. But let them have in view, that the satisfaction, which they impose, be not only for the preservation of a new life and a medicine of infirmity,(•) but also for the avenging and pun¬ ishing of past sins.. For the ancient Fathers likewise both believe and teach, that the keys of the priests were given, not to loose only, but also to bind. But not therefore did they ima¬ gine that the sacrament of Penance is a tribunal of wrath or of punishments; even as no Catholic ever thought, that, by this kind of satisfactions on our parts, the efficacy of the merit and of the satisfaction of our Lord Jesus Christ is either obscured,

(P) 2 Cor. iii. 5. (<i) Rom. yiii. 17. (r) Matth. iii. IS

(«) Infirmitatis medic&mentum, a remedy against weakness.

or in any way lessened: which when the innovators seek to understand, they in such wise maintain a new life to be the best penahce, as to take away the entire efficacy and use of satis¬ faction.

CHAPTER IX.

On Works of Satisfaction.

The Synod teaches furthermore, that so great is the liberality of the divine munificence, that we are able through Jesus Christ to make satisfaction to God the Father, not only by punish¬ ments voluntarily undertaken of ourselves for the punishment of sin, or by those imposed at the discretion of the priest according to the measure of our delinquency, but also, whieh is a very great proof of love, by the temporal scourges inflicted of God, and borne patiently by us.

ON THE SACRAMENT OF EXTREME UNCTION.

It hath also seemed good to the holy Synod, to subjoin, to the preceding doctrine on penance, the following on the sacrament of Extreme Unction, which by the Fathers was regarded as being the completion, not only of penance, but also of the whole Christian life, which ought to be a perpetual penance. First, therefore, as regards its institution, It declares and teaches, that our most gracious Redeemer,—who would have his servants at all times provided with salutary remedies against all the weapons of all their enemies,—as, in the other sacraments, He prepared the greatest aids, whereby, during life, Christians may preserve themselves whole from every more grievous spiritual evil, so did He guard the close of life, by the sacrament of Extreme Unction, as with a most firm defence. For though our adversary seeks and seizes opportunities, all our life long, to be able in any way to devour our souls; yet is there no time wherein he strains more vehemently all the powers of his craft to ruin us utterly, and, if he can possibly, to make us fall even from trust in the mercy of God, than when he perceives the end of our life to be at hand.

ON EXTREME UNCTION.

CHAPTER I.

On the Institution of the Sacrament of Extreme Unction .

Now, this sacred unction of the sick was instituted by Christ our Lord, as truly and properly a sacrament of the new law, insinuated indeed in Mark, but recommended and promulgated to the faithful by James the Apostle, and brother of the Lord. Is any man , he saith, sick among you ? Let him bring in the priests of the Churchy and let them pray over him y anointing him with oil in the name of the Lord: and the prayer of faith shall save the sick man ; and the Lord shall raise him up; and if he be in sins, they shall be forgiven him.(%) In which words, as the Church has learned from apostolic tradition, received from hand to hand, he teaches the matter, the form, the proper minister, and the effect of this salutary sacrament. For the Church has understood the matter thereof to be oil blessed by a bishop. For the unction very aptly represents the grace of the Holy Ghost, with which the soul of the sick person is invisibly anointed; and furthermore that those words, “By

this unction," &c. are the form.

CHAPTER II.

On the Effect of this Sacrament.

Moreover the thing signified (T) and the effect of this sacra¬ ment are explained in those words ; And the prayer of faith shall save the sick many and the Lord shall raise him up y and if he be in sins they shall be forgiven him . For the thing here signified is the grace of the Holy Ghost; whose anointing cleanses away sins, if there be any still to be expiated, as also the remains of sins; and raises up and strengthens the soul of the sick person, by exciting in him a great confidence in the

(*) James v. 14, 15. (v) Res.

divine mercy; whereby the sick being supported, bears more easily the inconveniences and pains of his sickness; and more readily resists the temptations of the devil who lies in wait for his heel ; (w) and at times obtains bodily health, when expedient for the welfare of the soul.

CHAPTER III.

On the Minister of this Sacrament , and on the time when it ought to he administered .

And now as to prescribing who ought to receive, and who to ad¬ minister this sacrament, this also was not obscurely delivered in thO words above cited. For it is there also shown, that the proper ministers of this sacrament are the Presbyters of the Church; by which Hattie are to be understood, in that place> not the elders by age,, or the foremost in dignity amongst the people, but, either bishops, or priests by bishops rightly ordained by the imposition of the hands of the prie$thood.{ x) It is also declared, that this unction is to be applied to the sick, but to those especially who lie itt such danger as to seem to be about to depart this life: whence also it is called the sacrament of the departing. And if the sick should, after having received this unction, recover, they may again be aided by the succour of this sacrament, when they fall into another like danger of death. Wherefore, they are on tto account to be hearkened to, who, against so manifest and clear a sentence (y) of the apostle James, teach, either that this unction is a human figment or is a rite received from the Fathers, which neither has a command from God, nor a promise of grace : nor those who assert that it has already ceased, as though it were only to be referred to the grace of healing in the primitive church; nor those who say that the rite and usage which the holy Roman Church observes in the administration of this sacrament is repugnant to the sen¬ timent of the apostle James, and that it is therefore to be changed

(w) Gen. iii. 15. f*) 1 Tim. iv. 14. (y) Seutentiam.

into some other: nor finally those who affirm that this Extreme Unction may without Bin be contemned by the faithful: for all these things are most manifestly at variance with the

perspicu¬ ous words of so great an apostle. Neither assuredly does the Roman Church, the mother and mistress of all other churches, observe aught in administering this unction,—as regards those things which constitute the substance of this sacrament,—but what blessed James has prescribed. Nor indeed can there be contempt of so great a sacrament without a heinous 6in, and an injury to the Holy Ghost himself. These are the things which this holy oecumenical Synod professes and teaches and proposes to all the faithful of Christ, to be believed and held, touching the sacraments of Penance and Extreme Unction. And it de¬ livers the following canons to be inviolably preserved; and con¬ demns and anathematizes those who assert what is contrary thereto.

ON THE MOST HOLT SACRAMENT OF PENANCE.

Canon i.—I f any one saith, that in the Catholic Churoh Penance is not truly and properly a sacrament, instituted by Christ our Lord for reconciling the faithful unto God, as often as they fall into sin after baptism ; let him be anathema.

Canon ii. —If any one, confounding the sacraments, saith that baptism is itself the sacrament of Penance, as though these two sacraments were not distinct, and that therefore Penance is not rightly called a second plank after shipwreck; let him be anathema.

Canon hi. —If any one saith, that those words of the Lord the Saviour, Receive ye the Holy Ghost , whose sins you shall forgive , ihfiy are forgiven them , and whose sins you shall retain , they are retained ,(*) are not to be understood of the power of for¬ giving and of retaining sins in the sacrament of penance, as the Catholic Church has always from the beginning understood them; but wrests them, contrary to the institution of this Bacrament, to the power of preaching the gospel; let him be anathema.

(z)-John zx. 22,23.

Canon iv. —If any one denieth, that, for the entire and per¬ fect remission of sins, there are required three acts in the peni¬ tent, which are as it were the matter of the sacrament of Penance, to wit, contrition, confession, and satisfaction, which are called the three parts of penance; or saith that there are two parts only of penance, to wit, the terrors with which the conscience is smitten upon being convinced of sin, and the faith, generated(*) by the gospel, or by the absolution, whereby one believes that his sins are forgiven him through Christ; let him be anathema.

Canon v. —If any one saith, that the contrition which is ac¬ quired by means of the examination, collection, and detestation of sins,—whereby one thinks over his years in the bitterness of his soul y (h) by pondering on the grievousness, the multitude, the filthiness of his sins, the loss of eternal blessedness, and the eternal damnation which he has incurred, having therewith the purpose of a better life,—is not a true and profitable sorrow, does not prepare for grace, but makes a man a hypocrite and a greater sinner; in fine, that this (contrition) is a forced and not free and voluntary sorrow; let him be anathema.

Canon vi. —If any one denieth, either that sacramental con¬ fession was instituted, or is

necessary to salvation, of divine right; or saith, that the manner of confessing secretly to a priest alone, which the Church hath ever observed from the beginning, and doth observe, is alien from the institution and command of Christ, and is a human invention; let him be anathema.

Canon vii. —If any one saith, that, in the sacrament of Penance, it is not necessary, of divine right, for the remission of sins, to confess all and singular the mortal sins which after due and diligent previous meditation are remembered, even those (mortal sins) which are secret, and those which are opposed .to the two last commandments of the Decalogue, as also the cir¬ cumstances which change the species of a sin; but (saith) that such confession is only useful to instruct and console the peni¬ tent, and that it was of old only observed in order to impose a

0) Conceptam, conceived. (b) I*, xxxviii. 15.

canonical satisfaction; or saith that they, who strive to confess all their sins, wish to leave nothing to the divine mercy to par¬ don ; or, finally, that it is not lawful to confess venial sins; let him be anathema.

Canon viii.—I f any one saith, that the confession of all sins, such as it is observed in the Church, is impossible, and is a human tradition to be abolished by the godly; or that all and each of the faithful of Christ, of either sex, are not obliged thereunto once a year, conformably to the constitution of the great Council of Lateran,(c) and that, for this cause, the faithful of Christ are to be persuaded not to confess during Lent; let him be anathema.

Canon ix.—I f any one saith, that the sacramental absolution of the priest is not a judicial act, but a bare ministry of pro¬ nouncing and declaring sins to be forgiven to him who confesses; provided only he believe himself to be absolved, or (even though) the priest absolve not in earnest, but in joke; or saith, that the confession of the penitent is not required, in order that the priest may be able to.absolve him ; let him be anathema.

CanoN x.—I f any one saith, that priests, who are in mortal sin, have not the power of binding and of loosing; or, that not priests alone are the ministers of absolution, but that, to all and each of the faithful of Christ is it said : Whatsoever you shall hind upon earth shall be bound also in heaven; and whatsoever you shall loose upon earthy shall be loosed also in heaven; (d) andy whose sins you shall for givey they are forgiven them; and whose sins you shall retain , they are retained ; (e) by virtue of which words every one is able to absolve from sins, to wit, from public sins by reproof only, provided he who is reproved yield thereto, and from secret sins by a voluntary confession; let him be anathema.

Canon xi.—I f any one saith, that bishops have not the right of reserving cases to themselves, except as regards external polity, and that therefore the reservation of cases hinders not but that a priest may truly absolve from reserved cases ; let him be anathema.

(?) Cap. onmis utriusque.

(d) Matth. xviii. 18. (e) Join; xx. 23.

Canon xii. —If any one saith, that God always remits the whole punishment together with the guilt, and that the satisfac¬ tion of penitents is no other than the faith whereby they appre¬ hend that Christ has satisfied for them; let him be anathema.

Canon xiii. —If any one saith, that satisfaction for sins, as to their temporal punishment, is nowise made to God, through the merits of Jesus Christ, by the punishments inflicted by Him, and patiently borne, or by those enjoined by the priest, nor even by those voluntarily undertaken, as by fastings, prayers, almsdeeds, or by other works also of piety; and that, therefore, the best penance is merely a new life ; let him be anathema.

Canon xiv. —If any one saith, that the satisfactions, by which penitents redeem their sins through Jesus Christ, are not a wor¬ ship of God, but traditions of men, which obscure the doctrine of grace, and the true worship of God, and the benefit itself of the death of Christ; let him be anathema.

Canon xv.— If any one saith, that the keys are given to the Church, only to loose , not also to bind: and that, therefore, priests act contrary to the purpose (*) of the keys, and contrary to the institution of Christ, when they impose punishments on those who confess; and that it is a fiction, that, after the eternal punishment, has, by virtue of the keys, been removed, there re¬ mains for the most part a temporal punishment to be discharged; let him be anathema.

ON THE SACRAMENT OF EXTREME UNCTION.

Canon i. —If any one saith, that Extreme Unction is not truly and properly a sacrament, instituted by Christ our Lord, and pro¬ mulgated by the blessed apostle James; but is only a rite received from the Fathers, or a human figment4 let him be anathema.

Canon ii.—I f any one saith, that the sacred unction of the sick does not confer grace, nor remit sin, nor comfort (h) the sick; but that it has already ceased, as though it were of old only the grace of working cures; let him be anathema.

(f) apprehendunt, account, esteem.

(h) Alleviare, raise up.

(ff) Finem, end.

ON REFORMATION.

Ill

Canon iii. —If any one s&itb, that the rite and usage of Extreme Unction, which the holy Roman Church observes, is repugnant to the sentiment of the blessed apostle James, and that is therefore to be changed, and may, without sin, be con¬ temned by Christians; let him be anathema.

Canon iv. —If any one saith, that the Presbyters of the Churchy whom blessed James

exhorts to be brought to anoint the sick, are not the priests who have been ordained by a bishop, but the elders in each community, and that for this oause a priest alone is not the proper minister of Extreme Unction; let him be anathema.

Decree on Reformation

Proem .

It is the office of bishops to admonish their subjectSy especially those appointed to the cure of soulsy of their duty .

Whereas it is properly the office of bishops to reprove the vices of all who are subject to them, this will have to be princi¬ pally their care,—that clerics, especially those appointed to the cure of souls, be blameless; and that they do not, with their con¬ nivance, lead a disorderly life : for if they suffer them to be of evil and corrupt conversation, how shall they reprove the laity for their vices, when they themselves pan be by one word silenced by them, for that they suffer clerics to be 'worse than they ? And with what freedom shall priests be able to correct laymen, when they have to answer silently to themselves, that they have committed the very things which they reprove? Wherefore, bishops shall charge their clergy, of whatsoever rank they be, that they be a guide to the people of God committed to them, in conduct, conservation, and doctrine; being mindful of that which is written, Be holy for I also am holyQ) And, agreeably to the admonition of the apostle; Let them not give

(*) l Peter i. 16.

offence to any man, that their ministry be not blamed; but in all things let them exhibit themselves as the ministers of God,^) lest that saying of the prophet be fulfilled in them, The priests of God defile the sanctuaries, and despise the law.Q) But, in order that the said bishops may be able to execute this with greater freedom, and may not be hindered therein under any pretext whatever, the same sacred and holy, oecumenical and general Synod of Trent, the same legate and nuncios of the Apostolic See presiding therein, has thought fit that these canons following be established and decreed.

CHAPTER I.

If any, being prohibited, or interdicted, or suspended, advance to orders, they shall be punished.

Whereas it is more beseeming and safe for one that is sub¬ ject, by rendering due obedience to those set over him, to serve in an inferior ministry, than, to the scandal of those set over him, to aspire to the dignity of a more exalted degree; to him, unto whom the ascent to sacred orders shall have been interdicted by his own prelate, from whatsoever cause, be it even on account of some secret crime, or in what manner soever, even extra-judicially; and to him who shall have been suspended from his own orders, or ecclesiastical degrees and dignities; no license, con¬ ceded against the will of that said prelate, for causing himself to be promoted, nor any restoration to former orders, degrees, dignities and honours, shall be of any avail.

CHAPTER II.

If a bishop shall confer any orders whatsoever on one not subject to him, be he even his own domestic, without the express consent of that individuals proper prelate, both shall be sub¬ jected to an appointed punishment .

And forasmuch as certain bishops of ohurches which are in partibus infidelium, (in the districts of unbelievers), having

(fc) 1 Cor. ri. 3, 4. (l) Lzeck. xxii. 26.

neither clergy nor Christian people, and being in a manner wanderers, having no fixed see, and seeking not the things of Christ, but other's sheep without the knowledge of their own pastor, finding themselves prohibited by this holy Synod from exercising episcopal functions in the diocese of another, without the express permission of the ordinary of the place, and then only in regard of those who arc subject to the said ordinary, do, by an evasion and in contempt of the law, of their own rashness choose as it were an episcopal chair (m) in a place which is not of any diocese, and presume to mark with the clerical character, and to promote even to the sacred orders of the priesthood, any that come unto them, even though they have no commendatory letters from their own bishops, or prelates; whence it for the most part comes to pass, that, persons being ordained who are but little fit, and are uninstructed and ignorant, and who have been rejected by their own bishops as inoapable and unworthy, they are neither able rightly to per¬ form the divine offices, nor to administer the sacraments of the Church: none of the bishops, who are called titular, even though they may reside, or tarry in a place within no diocese, even though it be exempted, or in a monastery of whatsoever order, shall, by virtue of any privilege granted diem to promote during a certain time such as come unto them, be able to ordain, or to promote to any sacred or minor orders, or even to the first tonsure, the subject of another bishop, even under the pretext of his being his domestic fed constantly at his own table, without the express consent of, or without letters demissory from that individual's own bishop. The contravener shall be ipso jure suspended during a year from the exercise of pontifical functions; and the person so promoted shall in like manner be suspended from the exercise of the orders so re¬ ceived, for as long as to his own prelate shall seem fit.

(m) Quasi episcopalem cat he dram.... eligunt.

CHAPTER III.

The bishop may suspend his clerics , who have been improperly promoted by another , if he find them incompetent .

The bishop may suspend, for the time that shall seem to him fit, from the exercise of the orders received, and may interdict from ministering at the altar, or from exercising the functions of any order, any of his clerics, especially those who are in sacred orders, who have been, without his previous examina¬ tion and commendatory letters, promoted by any authority whatsoever; even though they shall have been approved of as competent by him who has ordained them, but whom he him¬ self shall find but little fit and able to

celebrate the divine offices, or to administer the sacraments of the Church.

CHAPTER IV.

No cleric shall be exempt from the correction of the bishop , even out of the time of visitation.

All prelates of the churches, who ought diligently to apply themselves to correct the excesses of their subjects,—and from whose jurisdiction, by the statutes of this holy Synod, no cleric is, under the pretext of any privilege soever, considered screened, so as not to be able to be visited, punished and corrected, in accordance with the appointments of the canons,—provided those prelates be resident in their own churches,—shall have power, as delegates for this end of the Apostolic See, to correct and punish, even out of the times of visitation, all Secular clerics, —howsoever exempted, who would otherwise be subject to their jurisdiction,—for their excesses, crimes, and delinquencies, as often as, and whensoever there shall be need; no exemptions, declarations, customs, sentences, oaths, concordates, which only bind the authors thereof, being of any avail to the said clerics,

ON REFORMATION.

or to their relatives, chaplains, domestics, agents,(") or to any others whatsoever, in view and in consideration of the said exempted clerics.

CHAPTER V.

The jurisdiction of Conservators is confined within certain

limits .

Moreover, whereas sundry persons, under the plea that divers wrongs and annoyances are inflicted on them in their goods, possessions, and rights, obtain certain judges to be deputed by means of letters conservatory, to protect and defend them from the said annoyanees and wrongs, and to maintain and keep them in possession, or quasi-possession, of their goods, pro¬ perty, and rights, without suffering them to be molested therein; and whereas they pervert these letters, in many ways, to an evil meaning quite opposed to the intention of the donor;—there¬ fore, these letters conservatory, whatsoever be their clauses or decrees, whatsoever be the judges deputed, or under whatsoever other kind of pretext or colour, these letters may have been granted, shall not avail any, of what dignity and condition soever, even though a Chapter, so as to screen the party from being capable of being, in criminal and mixed causes, accused and summoned, and from being examined and proceeded against before his own bishop, or other ordinary superior; or prevent him from being liable to be freely summoned before the ordinary judge, in the matter of any rights which may be pleaded as his from having been ceded to him. In civil causes also, if he be the plaintiff, it shall nowise be lawful for him to bring up any one for judgment(°) before his own judges conservatory. And if, in those causes wherein he shall be the defendant, it shall happen that the conservator chosen by him shall be declared by die plaintiff to be one suspected by him, or if any

dispute shall have arisen between the judges themselves, the conservator

(n) Procuratoribus, proxies.

(°) Judicium, trial.

8 ii

to wit and the ordinary, concerning competency of jurisdiction, the cause shall not be proceeded with, until by arbitrators, chosen in legal form, a decision shall have been come to relative to the said suspicion, or competency of jurisdiction. Neither shall these letters conservatory be of any avail to the said party's domestics—who are in the habit of screening themselves thereby—save to two only, and this provided they live at his proper cost. Neither shall any one enjoy the benefit of such letters longer than for five years. It shall also not be lawful for conservatory judges to have any fixed tribunal.

As to causes which relate to wages and to destitute persons, the decree of this holy Synod thereupon shall remain in its full force. But general universities, colleges of doctors or scholars, places belonging to Regulars, as also hospitals wherein hospi¬ tality is actually exercised, and persons belonging to the said universities, colleges, places, and hospitals are not to be deemed included in this present canon, but are to be considered, and are, wholly exempted.

CHAPTER VI.

A penalty is decreed against clerics , who , being in sacred Orders , or holding benefices, do not wear a dress beseeming their Order .

And forasmuch as, though the habit does not make the monk, it is nevertheless needful that clerics always wear a dress suit¬ able to their proper order, that by the decency of their outward apparel they may show forth the inward correctness of their morals; but to such a pitch, in these days, have the contempt of religion and the rashness of some grown, as that, making but little account of their ow r n dignity, and of the clerical honour, they even wear in public the dress of laymen—setting their feet in different paths, one of God, the other of the flesh;—for this cause, all ecclesiastical persons, howsoever exempted, who are either in sacred orders or in possession of any manner of dignities, personates, or other offices, or benefices ecclesiastical;

ON REFORMATION.

if, after having been admonished by their own bishop, even by a public edict, (p) they shall not wear a becoming clerical dress, suitable to their order and dignity, and in conformity with the ordinance and mandate of the said bishop, they may, and ought to be, compelled thereunto, by suspension from their orders, office, benefice, and from the fruits, revenues, and proceeds of the said benefices; and also, if, after having been once rebuked, they offend again herein, (they are to be coerced) even by deprivation of the said offices and benefices; pursuant to the constitution of Clement V. published in the Council of Vienne, and beginning Quoniam y which is hereby renewed and en¬ larged.

CHAPTER VII.

Voluntary homicides are never to he ordained : in what manner involuntary ho?nicides are to be ordained .

Whereas too, he who has killed his neighbour on set purpose and by lying in wait for him y is to be taken away from the altar ,(q) because he has voluntarily committed a homicide; even though that crime have neither been proved by ordinary process of law, nor be otherwise public, but is secret, such an one can never be promoted to sacred orders; nor shall it be lawful to confer upon him any ecclesiastical benefices, even though they have no cure of souls; but he shall be for ever excluded from every ecclesiastical order, benefice, and office. But if it be alleged that the homicide was not committed purposely but accidentally, or when repelling force by force that he might defend himself from death, in such wise that, by a kind of right, a dispensation ought to be granted, even for the ministry of sacred orders, and of the altar, and for any kind of benefice whatever and dignity,—the case shall be committed to the Ordinary of the place, or, if there be a cause for it, to the "metropolitan, or to the nearest bishop ; who shall not be able

(p) Edictum.

(q) Exod. xxi. 14.

to dispense, without having taken cognizance of the case, and after the prayers and allegations have been proved, and not otherwise.

CHAPTER VIII.

No one shall, by virtue of any privilege, punish the clerics of

another .

Furthermore, forasmuch as there are sundry persons,—some of whom even are true pastors, and have their own sheep,—who ‘seek also to rule over the sheep of others, and at times give their attention in such wise to the subjects of others, as to neglect the care of their own; no one, even though he be of episcopal dignity, who may have by privilege the power of punishing the subjects of another, shall by any means proceed against clerics not subject to him,—especially against such as are in sacred orders,—be they guilty of crimes ever so atrocious; except with the intervention of the proper bishop of the said clerics, if that bishop be resident in his own church, or of the person that may be deputed by the said bishop: otherwise, the proceedings, and all the consequences thereof, shall be wholly without effect

CHAPTER IX.

The Benefices of one Diocese shall not, under any pretext, be united to the Benefices of another Diocese.

And forasmuch as it is with very good reason that dioceses and parishes have been made distinct, and to each flock their proper pastors have been assigned, and to inferior

churches their rectors, each to take care of his own sheep, that so ecclesiastical order may not be confounded, or one and the same church belong in some sort to two dioceses, not without grievous incon¬ venience to such as are subject thereunto ; the benefices of one diocese, be they even parochial churches, perpetual vicarages, simple benefices, prestimonies, or prestimonial portions, shall

not be united in perpetuity to a benefice, monastery, college, or even to a pious place, of another diocese, not even for the sake of augmenting divine worship, or the number of beneficiaries, or for any other cause whatsoever; thus herein explaining the decree of this holy Synod on the subject of these unions.

• CHAPTER X.

Regular Benefices shall be conferred on Regulars.

Benefices of Regulars that have been accustomed to be granted in title to professed Regulars, when they happen to become vacant by the death of the titulary incumbent, or by his resig¬ nation, or otherwise, shall be conferred on religious of that order only, or on persons who shall be absolutely bound to take the habit, and make that profession, and upon none others, that they may not wear a garment that is woven of woollen and linen together. (r)

CHAPTER XI.

Those transferred to another order shall remain under obe¬ dience in enclosure , and shall be incapable of Secular Benefices.

But forasmuch as Regulars, after being transferred from one order to another, ordinarily obtain permission easily from their superior to remain out of their monastery, whereby occasion is given of their wandering about and apostatizing; no prelate or superior of any order shall be allowed, by virtue of any faculty whatsoever, to admit any individual to the habit and to profes¬ sion, except with the view that he shall remain perpetually in enclosure under obedience to his own superior, in the order itself to which he is transferred ; and one so transferred, even though he be a canon Regular, shall be wholly incapable of Secular Benefices, even of cures.

(r) Deut. xxii. 11.

CHAPTER XII.

No one shall obtain a right of patronage, except by means of a foundation , or an endowment .

No one, moreover, of whatsoever ecclesiastical or Secular dig¬ nity, can, or ought to, obtain, or acquire a right of patronage, for any other reason whatever, but that he has founded, and built anew, a church, benefice, or chapel; or that he has com¬ petently endowed, out of his own proper and patrimonial re¬ sources,^) one already erected, which, however, is without a sufficient endowment. But, in case of such foundation or en¬

dowment, the institution thereof shall be reserved to the bishop, and not to some other inferior person.

CHAPTER XIII.

The Presentation shall be made to the Ordinary; otherwise the Presentation and Institution shall be null .

Furthermore, it shall not be lawful for a patron, under pretext of any privilege whatsoever, to present any one, in any way, to the benefices which are under his right of patronage, except to the ordinary bishop of the place, to whon* the providing for, or the institution to, the said benefice would, that privilege ceasing, of right belong; otherwise the presentation and institution, which may have followed, shall be null, and as such reputed.

CHAPTER XIV.

That the Mass , Order, and Reformation, shall be next treated of

The holy Synod declares, moreover, that, in the next Session, which It has already decreed is to be holden on the twenty-fifth

(8) Bonis, goods.

PROROGATION OF THE SESSION.

day of January, of the ensuing year, mdlii, —It will, together with the sacrifice of the mass, also apply itself to, and treat of the sacrament of order, and that the subject of reformation will be prosecuted,

SESSION XV

Prorogation of the Council

Being the fifth under the Sovereign Pontiff\ Julius III.) cele¬ brated on the twenty-fifth day of January , mdlii.

DECREE FOB PROROGUING TOE 8E8610N.

Whereas, in pursuance of the decrees made in the last Ses¬ sions, this holy and universal Synod has, during these days, most accurately and diligently treated of the things which relate to the most holy sacrifice of the mass, and to the sacrament of order, with the view that, in the Session held,on this day, It might publish, as the Holy Ghost should have suggested, decrees on these subjects, and on the four articles concerning the most holy sacrament of the Eucharist, which had been finally deferred to this Session ; and whereas it was thought that, in the interim, there would have presented themselves at this sacred and holy Council those who call themselves Protestants, for whose sake It had deferred the publication of the said articles, and to whom It had given the public faith, or a safe^conduct, that they might come freely and without any hesitation; nevertheless, seeing that they have not as yet come, and the holy Synod has been petitioned in their name, that the publication which was to have been made on this day, be deferred to the following Session, an assured hope being held out that they will certainly be present long before that Session, upon receiving in the meanwhile a safeconduct in a more ample form :—The same holy Synod, law¬ fully assembled in the Holy Ghost, the same Legate and Nun¬ cios presiding, desiring nothing more ardently than to remove, from amongst the noble nation of Germany, all dissensions and schisms touching religion, and to provide for its tranquillity, peace, and repose; being ready, should they come, both to receive

Digitize! ^.ooQle

them kindly, and to listen to them favourably, and trusting that they will come, not with the design of obstinately opposing the Catholic Faith, but of learning the truth, and that they will at last, as becomes those zealous for evangelical truth, acquiesce in the decrees and discipline of holy Mother Church; (this Sy¬ nod) has deferred the next Session,—therein to publish and promulgate the matters aforesaid,—till the festival of St. Joseph, which will be on the nineteenth day of the month of March; in order that they may have sufficient time and leisure, not only to come-, but also to propose, before that day arrives, whatsoever they may wish. And, that It may take from them all cause for further delay, It freely gives and grants them the public faith, or a safe-conduct, of the tenour and form hereafter set down. But it ordains and decrees, that, in the meantime, It will treat of the sacrament of matrimony, and will give its decisions thereon, in addition to the publication of the above-named de¬ crees, in the same Session, and will prosecute the subject of Reformation.

SAFE-CONDUCT GIVEN TO THE PROTESTANTS.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the

Holy Ghost, the same Legate and Nuncios of the Apostolic See presiding therein,—adhering to the safe-conduct given in the last Session but one, and en¬ larging it in the manner following, certifies to all men, that by the tenour of these presents. It grants and wholly concedes the public faith, and the fullest and most true security, which they entitle a safe-conduct, to all and singular the priests, electors, princes, dukes, marquises, counts, barons, nobles, soldiers, com¬ monalty, and to all other persons whatsoever, of what state, condi¬ tion, or quality soever they may be, of the province and nation of Germany, and to the cities and other places thereof and to all other ecclesiastical and Secular persons, especially those of the Confession of Augsburg, who shall come, or shall be sent with them, to this General Council of Trent, and to those that shall set forth, or have already repaired hither, by whatsoever name they are entitled, or may be designated,—to come freely to this city

of Trent, and there to remain, abide, sojourn, and to propose, speak and treat of, examine and discuss, any matters whatso ever together with the said Synod, and freely to present and set forth all whatsoever they may think fit, and any articles what¬ ever, either in writing, or by word of mouth, and to explain, establish, and prove them by the sacred Scriptures, and by the words, passages, and reasons of the blessed Fathers, and to answer even, if it be needful, to the objections of the General Council; and to dispute, or to confer in charity, without any hindrance, with those who may have been selected by the Coun¬ cil, all opprobrious, railing, and contumelious language being utterly discarded ; and in particular, that the controverted mat¬ ters shall be treated of in the aforesaid Council of Trent, accord¬ ing to sacred Scripture, and the traditions of the apostles, approved Councils, the consent pf the Catholic Church, and the authorities of the holy Fathers; with this further addition, that they shall not be punished under pretence of religion, or of offences already committed, or that may be committed, in regard thereof; as also, that the divine offices shall not, on account of their presence, be in any way interrupted, either upon the road, or in any place during their progress, their stay, or their return, or in the city of Trent itself; and that, upon these matters being concluded, or before they axe concluded, if they, or any of them, shall wish, and whensoever such is their or his pleasure, or the command and leave of their superiors, to return to their own homes, they shall forthwith be able at their good pleasure, to return freely and securely, without any let, obstacle, or delay, without injury done to their property, or to the honour also and persons of their attendants respectively,—notifying, however, this their purpose of withdrawing to those who shall be deputed hereunto by the said Synod, that so, without deceit or fraud, proper measures may be taken for their safety. The holy Synod also wills that all clauses whatsoever, which may be necessary and useful for a full, effectual, and sufficient security in coming, sojourning, and returning, be included and comprised, and be accounted as comprised, in this public faith and safe-conduct. It also expressly declares, with a view to their greater security, and the blessing of peace And reconciliation, that if.

which God forbid, any one, or divers amongst them, should, either on the road when coming to Trent, or whilst sojourning at, or returning from, that same city, perpetrate or commit any heinous act, whereby the benefit of this public faith and assur¬ ance might be annulled and cease, that Itwills and grants, that the persons discovered in any such crime shall be forthwith punished by their own countrymen, and not by others, with a proportionate chastisement and a sufficient reparation, which the Synod on its part may justly approve of and commend—the form, conditions, and terms of the safe-conduct remaining wholly un¬ touched thereby. It also reciprocally wills, that if, which God forbid, any one, or divers, of this Synod, should, either on the road, or whilst sojourning at, or returning therefrom, perpetrate or commit any heinous act, whereby the benefit of this public faith and assurance may be violated, or in any way set aside, the persons discovered in any such crime shall be forthwith punished by the Synod itself, and not by others, with a propor¬ tionate chastisement and a sufficient reparation, which the Ger¬ mans of the Confession of Augsburg, who may be present here at the time, may on their part justly approve of and commend,—the present form, conditions and terms of the safe-conduct remaining wholly untouched thereby. The said Synod also wills, that all and each of the ambassadors shall be allowed to go out of the city of Trent to take the air, as often as it shall be convenient or necessary, and to return thither; as also freely to send or despatch their messenger or messengers to any places what¬ soever, according as their affairs may require, and to receive the said messengers or messenger, despatches or despatch, as often as they shall think fit; so as however one or more be associated therewith by the deputies of the Council, to provide for the safety of the said couriers. And this safe-conduct and security shall stand good and endure, both from and during the time that they shall have been received under the care of the said Synod, and the protection of its agents ; and further, after they have had a sufficient audience, and twenty days having expired after they have themselves asked, or after the Council, upon that audience had, shall have given them notice, to return, It will, all deceit and fraud being entirely excluded, reconduct

them, with God’s help, from Trent to that place of safety which each may select for himself. All which things, It promises and in good faith pledges Itself, shall be inviolably observed towards all and each of the faithful of Christ, towards all ecclesiastical and Secular princes, and towards all ecclesiastical and Secular persons, of whatsoever state and condition they may be, or by whatsoever name designated.

Furthermore, It promises in sincere and good faith, without fraud or deceit, that the said Synod will neither openly nor covertly seek for any opportunity; nor make use of, nor suffer any one else to make use of, any authority, power, right, or statute, privilege of laws or canons, or of any Councils whatso¬ ever, especially those of Constance and Sienna, under what form soever expressed,—to the prejudice in any way of this public faith, and most full security, and of the public and free hearing, by this said Synod .granted to the

above-named;— derogating from the aforesaid in this regard and for this occasion.

And if the holy Synod, or any member thereof, or of their followers, of whatsoever condition, state or pre-eminence, shall violate—which may the Almighty forefend—the form and terms of the security and safe-conduct as above set down, in any point or clause whatever, and a sufficient reparation shall not have forthwith followed, and one that may with reason be approved of and praised by the (interested) parties themselves; they may and shall hold the said Synod to have incurred all those penalties, which, by law human and divine, or by custom, the violators of such safe-conducts can possibly incur;—without there being any excuse or contrary allegation in this regard.

SE8SI0N XVI.

SESSION XVI

Suspension of the Council

Being the sixth, and last under the Sovereign Pontiff\ Julius III., celebrated on the twenty-eighth day of April, mdlii.

DECREE FOR THE SUSPENSION OF THE COUNCIL.

The sacred and holy, oecumenical and general Synod of Trent, lawfully assembled in the Holy Ghost, the most reverend lords, Sebastian, Archbishop of Siponto, and Aloysius, Bishop of Verona, Apostolic Nuncios, presiding therein, as well in their own names as in that of the most reverend and illustrious lord, the Legate Marcellus Crescenzio, Cardinal of the holy Roman Church, of the title of Saint Marcellus, who is absent by reason of a most grievous illness,—doubts not that it is well known to all Christians, that this (ecumenical Council of Trent was first convoked and assembled by Paul, of happy memory, and was afterwards, at the instance of the most august Emperor, Charles V., restored by our most holy lord, Julius III., for this cause especially, that It might bring back to its pristine state, religion which was miserably divided into diverse opinions in many parts of the world, and especially in Germany; and might amend the abuses and the most corrupt manners of Christians; and whereas very many Fathers, without any regard to their personal labours and dangers, had for this end cheerfully assembled together from different countries, and the business was proceeded with earnestly and happily, in the midst of a great concourse of the faithful, and there was no slight hope that those Germans who had excited these novelties would come to the Council, and that so disposed as to acquiesce unanimously in the truthful reasons of the Church; when a kind of light, in fine, seemed to have dawned upon things; and the Christian commonwealth, before so cast-down and afflicted, began to lift up its head; of a sudden such tumults and wars were enkindled

SUSPENSION OF THE COUNCIL.

by the craft of the enemy of mankind, that the Synod was at much inconvenience compelled as it were to pause, and to in¬ terrupt its course, and all hope was taken away of further pro¬ gress at that time; and so far was the holy Synod from remedying the evils and troubles existing amongst Christians, that, contrary to its intention, It irritated rather than calmed the minds of many. Whereas, therefore, the said holy Synod perceived that all places, and especially Germany, were in a flame with arms and discord; that almost all the German bishops, and in particular the Electoral Princes, had withdrawn from the Council, in order to provide for their own churches; It resolved, not to struggle against so pressing a necessity, but to be silent till better times; that so the Fathers, who could not now act, might return to their own churches to take care of their own sheep, and no longer wear away their time in unem¬ ployment, useless in both regards. And accordingly, for that the state of the times has so required, It decrees that the pro¬ gress of this oecumenical Synod of Trent shall be suspended during two years, as It doth suspend it by this present decree ; with this condition however, that if things be settled sooner, and the former

tranquillity restored, which It hopes will happen before long through the blessing of the all good and all power¬ ful God, the progress of the Council shall be considered (as resumed, and) to have its full force, power and authority. But if, which may God forefend, the lawful impediments aforesaid shall not have been removed at the expiration of the two years, the said suspension shall, as soon as those impediments shall have ceased, be thereupon accounted removed, and the Council shall be, and be understood to be, restored to its full force and authority, without another fresh convocation thereof^ the con¬ sent and authority of his Holiness, and of the holy Apostolic See, having been given to this decree.

Meanwhile, however, this holy Synod exhorts all Christian princes, and all prelates, to observe, and respectively to cause to be observed, as far as they are concerned, in their own king¬ doms, dominions, and churches, all and singular the things which have been hitherto ordained and decreed by this sacred oecumenical Council.

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BULL FOR THE CELEBRATION OF

BULL FOB THE CELEBRATION OF THE COUNCIL OF TRENT, UNDER THE SOVEREIGN PONTIFF, PIUS IV.

Paul, Bishop, servant of the servants of God, for the perpetual memory hereof.

Immediately on being called, by the alone mercy of God, to the Government of the Church, though unequal to so great a burthen, casting the eyes of our mind over every part of the Christian commonweal, and beholding, not without great horror, how far and wide the pestilence of heresy and schism had pene¬ trated, and how much the morals of the Christian people stood in need of correction ; we began, as the duty of our office re¬ quired, to apply our care and thoughts to the means of extir¬ pating the said heresies, of doing away with so great and so pernicious a schism, and of amending morals so much corrupted and depraved. And whereas we were sensible that, for the healing of these evils, that remedy was the most suitable which this Holy See had been accustomed to apply, we formed the resolution of convoking, and, with God’s help, of celebrating an oecumenical and general Council. That Council had indeed been already indicted by our predecessors, Paul III., of happy memory, and by Julius, his successor; but, having been often hindered and interrupted from various causes, It could not be brought to a conclusion. For Paul, after having indicted it first for the city of Mantua, then for Vicenza, he, for certain reasons expressed in his letters, first of all suspended, and afterwards transferred It to Trent. Then, after that the time of Its cele¬ bration had been, for certain reasons, then also postponed, at length, the suspension having been removed, It was begun, in the said city of Trent. But, after a few Sessions had been held, and certain decrees made, the said Council afterwards, for cer¬ tain reasons, with the concurrence also of the Apostolic See, transferred Itself to Bologna. But Julius, who succeeded him, recalled it to the same city of Trent, at which time certain other decrees were made. But as fresh tumults were raised in the neighbouring parts of Germany, and a most fierce war

was en¬ kindled in Italy and France, the Council was again suspended

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and postponed; the enemy of mankind, to wit, striving, and throwing difficulties upon difficulties and hindrances in the way, to retard at least as long as possible, though unable entirely to prevent, a thing so advantageous to the Church. But how greatly, meanwhile, the heresies were increased and multiplied, and pro¬ pagated, how widely schism spread, we can neither think of, nor tell without the greatest sorrow of mind. But at length the Lord, good and merciful, who is never so angry as not to re member mercy ,(*) vouchsafed to grant peace and unanimity to Christian kings and princes. Which opportunity being offered us, we have, relying on His mercy, conceived the strongest hope that, by the said means of a Council, an end may be put to these 60 grievous evils of the Church. We, therefore, have judged that the celebration thereof is no longer to be deferred ; to the end that schisms and heresies may be taken away; that morals may be corrected and reformed; that peace may be pre¬ served amongst Christian princes. Wherefore, upon mature deliberation had with our venerable brethren the Cardinals of the holy Roman Church, and having also acquainted with this our purpose our most dearly beloved sons in Christ, Ferdinand, Emperor elect of the Romans, and other kings and prince? whom,—even as we had promised ourselves from their exceed¬ ing piety and wisdom,—we found very ready to aid in the cele¬ bration of the said Council: We,—to the praise, honour, and glory of Almighty God, and for the good of the Universal Church, with the advice and assent of our said venerable brethren, and relying on and supported by the authority of God Himself, and of the Blessed Apostles Peter and Paul, which (authority) we also exercise on earth,—indict a sacred oecume¬ nical and general Council in the city of Trent for the next en¬ suing most sacred day of the Lord’s Resurrection; and We ordain and appoint, "that, all suspension soever removed. It be there celebrated. Wherefore, We do earnestly exhort and ad¬ monish in the Lord, and we do also strictly charge and com¬ mand,—by virtue of holy obedience, and by the obligation of the oath which they have taken, and under the penalties which

(l) H&bac. iii. 2.

they know are appointed by the sacred canons against those who neglect to assemble at general Councils,—our venerable brethren of all nations, patriarchs, archbishops, bishops, and our beloved sons the abbots, and others who, by common law, or by privilege, or ancient custom, are allowed to sit, and give their opinion in a general Council, to meet, by the aforesaid day, there to celebrate a Council; unless they happen to be hindered by a lawful impediment, which impediment neverthe¬ less they shall be bound to prove to the Synod by lawful proc¬ tors. We furthermore admonish all and each, whom it doth and may concern, that they fail not to be present at the Council. And we exhort and beseech our most dearly beloved sons in Christ, the Emperor elect of the Romans, and the other

Chris¬ tian kings and princes,—who it were sincerely to be wished could be present at the Council,—that, should they not be able to be themselves present thereat, they would send at least pru¬ dent, grave, and pious men as their ambassadors, to be present thereat in their name; and that they take diligent care, worthy of their piety, that the prelates of their kingdoms and dominions perform, without denial or delay, their duty to God and the Church at this so urgent a conjuncture: doubting not they will also provide that there be kept a safe and free passage through their kingdoms and dominions for the prelates and their domes tics, attendants, and all others who are proceeding to or return¬ ing from the Council, and that they be treated and received in all places kindly and courteously; as we also will similarly provide as far as we are concerned, who have resolved not to omit anything that can by us, who have been placed in this position, be done towards the completion of so pious and salu¬ tary a work; seeking, as God knows, nothing else, proposing nothing else, in celebrating this Council, but the honour of God, the recovery and the salvation of the sheep that are scattered, and the perpetual tranquillity and repose of the Christian com¬ monweal. And to the end that this letter, and the contents thereof may come to the knowledge of all whom it concerns, and that none may plead as an excuse that he knew not thereof, especially as there may not, perhaps, be free access to all, who ought to be made acquainted with this our letter : We will and

ordain that, in the Vatican Basilica of the prince of the apostles, and in the Lateran Church, at the time when the people is wont to assemble there to be present at the solemnities of the mass, it be publicly read in a loud voice by officers of our court, or by certain public notaries; and that it be, after being read, affixed to the doors of the said churches, also to the gates of the apos¬ tolic Chancery, and to the usual place in the Campo di Fiore, where it shall for some time be left to be read by and made known to all men: and when removed thence, copies thereof shall remain affixed in those same places. For we will that, by being so read, published, and affixed, this letter shall oblige and bind, after an interval of two months from the day of being published and affixed, all and each of those whom it includes, even as if it had been communicated and read to them in person. And we ordain and decree, that, without any doubt, faith be given to copies thereof written, or subscribed, by the hand of a public notary, and guaranteed by the seal of some person con¬ stituted in ecclesiastical dignity. Wherefore, let no one iniringe this our letter of indiction, statute, decree, precept, admonition and exhortation, or with rash daring go contrary thereunto. But if any one shall presume to attempt this, let him know that he will incur the indignation of Almighty God, and of His Blessed Apostles, Peter and Paul. Given at Rome, at Saint Peter’s, in the year mdlx of the Lord’s Incarnation, on the third of the calends of December, (u) in the first year of our Pontificate.

Antonius Floribellus Lavellinus.

Barengus.

(u) November 29.

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SESSION XVII

The Resumption of the Council under Pius IV

Of the Holy , (Ecumenical, and General Council of Trent, the first under the Sovereign Pontiff, Pius IV., celebrated on the eighteenth day of January, mdlxii.

DECREE FOR CELEBRATING THE COUNCIL.

Doth it please you, unto the praise and glory of the Holy and Undivided Trinity, Father, and Son, and Holy Ghost, for the increase and exaltation of the faith, and of the Christian religion, that the sacred, oecumenical, and general Council of Trent, lawfully assembled in the Holy Ghost, be, all manner of suspension removed, celebrated from this day—being the eighteenth of the month of January, in the year mdlxii from our Lord's Nativity, consecrated to the chair of Blessed Peter— according to the form and tenour of the letter of our most holy Lord, the Sovereign Pontiff, Pius IV.; and that, due order being observed, those things be treated of therein, which, the Legates and Presidents proposing, (w) shall to the said holy Synod appear suitable and proper, for assuaging the calamities of these times, appeasing controversies concerning religion, restraining deceitful tongues, correcting the abuses of depraved manners, and for procuring for the Church a true and Christian peace ? They answered: It pleaseth us.

indiction of the next session.

Doth it please you that the next ensuing Session be held and celebrated on the Thursday after the second Sunday of Lent, which will be on the twenty-sixth day of the month of February ? They answeredIt pleaseth us.

(*) Proponentibus legatis ac priesidentibu*.

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ON THE CHOICE OF BOOKS, StC.

SESSION XVIII

On the Choice of Books and the Index

Being the second under the Sovereign Pontiff., Pius IV., cele¬ brated on the twenty-sixth day of February, mdlxii.

DECREE ON THE CHOICE OF BOOKS ; AND FOR INTIT1NG ALL MEN ON THE PUBLIC FAITH TO THE COUNCIL.

The sacred and holy, ceumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—not confiding in human strength, but relying on the succour and assistance of our Lord Jesus Christ, who has promised that he would give to His Church a mouth and wisdom^eJih especially in view to restore at length to its native purity and splendour, the doctrine of the. Catholic faith, which is in many places defiled and obscured by the conflicting opinions of many who differ from each other; to bring back, to a better method of life, manners, which have divaricated from ancient usage; and to turn the heart of the fathers unto the children , and the heart of the children unto the fathers. Whereas, then, first of all, it has noticed that the number of suspected and pernicious books, wherein an impure doctrine is contained, and is disseminated far and wide, has in these days increased beyond measure, which indeed has been the cause that many censures have been, out of a godly zeal, published in divers provinces, and especially in the fair city of Rome,—and yet that no salutary remedy has availed against so great and pernicious a disorder; It hath thought good, that Fathers spe¬ cially chosen for this inquiry, should carefully consider what ought to be done in the matter of censures and of books, and also in due time report thereon to this holy Synod; to the end that It may more easily separate the various and strange doctrines, as cockle from the wheat of Christian truth, and may more conve¬ niently deliberate and determine, in regard thereof, that which shall seem best adapted to remove scruples from the minds of very many, and to do away with various causes of complaint.

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And the Synod wishes all this to come to the knowledge of all persons whatsoever, as by this present decree It doth make them cognizant thereof; in order that if any person may think himself in any way concerned, either in this matter of books and censures, or in the other things which It has declared beforehand are to be treated of in this General Council, he may not doubt but that he will be kindly listened to by the Holy Synod.

And forasmuch as this said holy Synod heartily desires, and earnestly beseeches God for the things that are for the peace of the Church,(*) that we all, acknowledging our common mother on earth, who cannot forget the sons of her womb,(*) with one mouth may glorify God , and the Father of our Lord Jesus Christ ;(x) It invites and exhorts, by the bowels of the mercy of our same God and Lord, all who hold not communion with us, unto concord and reconciliation, and to come unto this holy Synod; to embrace charity , which is the band of perfec¬ tion, and to show forth the peace of Christ rejoicing in their hearts , whereunto they are called , in one body.{*) Wherefore, in hearing this voice , not of man,

but of the Holy Ghost, let them not harden their hearts ,(b) but , walking not after their own sense, (c) nor pleasing themselves, (d) let them be moved and con¬ verted by this so charitable and salutary an admonition of their own mother; for, as the holy Synod invites, so will It embrace them with all proofs of love.

Moreover, this same holy Synod has decreed, that the public faith may be granted in a general congregation, and that It shall have the same force, and shall be of the same authority and weight as if it had been given and decreed in public Session.

INDICTION OF THE NEXT SESSION.

The same sacred and holy Synod of Trent, lawfully assembled in the Holy Ghost, the same Legates of the Apostolio See pre-

(*) Ps. cxxi. 6. (>') Is. xlix. 15. (*) Rom. xv. G.

(») Coloss. iii. 14, 15. (b) Ps. xciv. 8.

(c) Ephes. iv. 17. (d) Rom. xv. 3.

siding therein, resolves and decrees, that the next ensuing Ses¬ sion be held and celebrated on the Thursday after the most sacred festival of the Ascension of our Lord, which will be on the fourteenth day of the month of May.

SAFE-CONDUCT GRANTED TO THE GERMAN NATION,

In a General Congregation, on the fourth day of March , M dlx 11.

The sacred and holy, (Ecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—certifies to all men, that, by the tenour of these presents, It grants and wholly con¬ cedes the public faith, and the fullest and most true security, which they entitle a safe-conduct, to all and singular the priests, electors, princes, dukes, marquisses, counts, barons, nobles, soldiers, commonalty, and to all other persons whatsoever, of what state, condition, or quality soever they may be, of the province and nation of Germany, and to the cities and other places thereof, and to all the ecclesiastical and secular persons, especially those of the Confession of Augsburg, who shall come, or shall be sent with them to this General Council of Trent, and to those that shall set forth, or have already repaired hither, by whatsoever name they are entitled, or may be designated,—to come freely to'this city of Trent, and there to remain, abide, sojourn, and to propose, speak, and treat of, examine and dis¬ cuss any matters whatsoever together with the said Synod, and freely to present and set forth all whatsoever they may think fit, and any articles whatever, either in writing or by word of mouth, and to explain, establish, and prove them by the sacred Scrip¬ tures, and by the words, passages, and reasons of the blessed Fathers, and to answer even, if it be needful, to the objections of the General Council, and to dispute, or to confer in charity, without any hindrance with those who have been selected by the Council, all opprobrious, railing, and contumelious language being utterly discarded ; and, in particular, that the

controverted matters shall be treated of, in the aforesaid Council of Trent, according to sacred Scripture, and the traditions of the apostles,

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approved Councils, the consent of the Catholic Church, and the authorities of the holy Fathers; with this further addition, that they shall not be punished under pretence of religion, or of offences already committed, or that may be committed, in regard thereof; as also, that the divine offices shall not, on account of their presence, be in any way interrupted, either upon the road, or in any place during their progress, their stay, or their return, or in the city of Trent itself; and that, upon these matters being concluded, or before they are concluded, if they, or any of them, shall wish, and whensoever such is their or his pleasure, or the command and leave of their superiors, to return to their own homes, they shall forthwith be able at their good pleasure, to return freely and securely, without any let, obstacle, or delay, without injury done to their property, or to the honour also and persons of their attendants respectively,—notifying, however, this their purpose of withdrawing, to those who shall be deputed hereunto by the said Synod, that so, without deceit or fraud, proper measures may be taken for their safety. The holy Synod also wills that all clauses whatsoever, which may be necessary and useful for a full, effectual, and sufficient security in coming, sojourning, and returning, be included and com¬ prised, and be accounted as comprised, in this public faith and safe-conduct. It also expressly declares, with a view to their greater security, and the blessing of peace and reconciliation, that if, which God forbid, any one, or divers amongst them, should, either on the road when coming to Trent, or whilst sojourning at, or returning from that same city, perpetrate or commit any heinous act, whereby the benefit of this public faith and assurance might be annulled and quashed, that It wills and grants, that the persons discovered in any such crime shall be forthwith punished by their own countrymen, and not by others, with a proportionate chastisement and a sufficient repa¬ ration,' which the Synod on its part may justly approve of and commend,—the form, conditions, and terms of their safe-con¬ duct remaining wholly untouched thereby. It also reciprocally wills, that if, which God forbid, any one, or divers, of this Synod, should, either on the road, or whilst sojourning at, or returning therefrom, perpetrate or commit any heinous act,

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whereby the benefit of this public faith and assurance may be violated, or in any way set aside, the persons discovered in any such crime shall be forthwith punished by the Synod itself, and not by others, with a proportionate chastisement and a sufficient reparation, which the Oermans of the Confession of Augsburg, who may be present here at the time, may on their part justly approve of and commend,—the present form, conditions, and terms of the safe-conduct remaining wholly untouched thereby. The said Synod also wills,

that all and each of the ambassadors shall be allowed to go out of the city of Trent to take the air, as often as it* shall be convenient or necessary, and to return thither; as also freely to send or despatch their messenger or messengers to any places whatsoever, according as their affairs may require, and to receive the said messengers or messenger, despatches or despatch, as often as they shall think fit; so as however one or more be associated therewith by the deputies of the Council, to provide for the safety of the said couriers: and this safe-couduct and these securities shall stand good and endure, both from and during the time that they shall have been received under the care of the said Synod, and the pro¬ tection of its agents ; and further, after they have had a sufficient audience, and twenty days having expired after they have them¬ selves asked, or after the Council, upon that audience had, shall have given them notice, to return, It will, all deceit and fraud being entirely excluded, reconduct them, with God’s help, from Trent to that place of safety which each may select for himself. All which things It promises, and in good faith pledges Itself, shall be inviolably observed towards all and each of the faithful of Christ, towards all ecclesiastical and secular princes, and towards all other ecclesiastical and secular persons, of what¬ soever state and condition they may be, or by whatsoever name designated.

Furthermore, It promises in sincere and good faith, without fraud or deceit, that the said Synod will, neither openly nor covertly, seek for any opportunity, nor make use of, nor suffer any one else to make use of, any authority, power, right, or statute, privilege of laws or canons, or of any Councils whatsoever, especially those of Constance and Sienna, under

what form soever expressed; to the prejudice in any way of this public faith, and most full security, and of the public and free hearing, by this said Synod granted to the above-named;— derogating from the aforesaid in this regard and for this occasion.

And if the holy Synod, or any member thereof, or of their followers, of whatsoever condition, state, or pre-eminence, shall violate—which may the Almighty forefend—the form and terms of the security and safe-conduct as above set down, in any point or clause whatever, and a sufficient reparation shall not have forthwith followed, and one that may with reason be approved of and praised by the (interested) parties themselves; they may and shall hold the said Synod to have incurred all those penalties, which, by law human and divine, or by custom, the violators of such safe-conducts can possibly incur,—without there being any excuse, or contrary allegation in this regard.

EXTENSION THEREOF TO OTHER NATIONS.

The same sacred and holy Synod, lawfully assembled in the Holy Ghost, the same Legates a latere of the Apostolic See pre¬ siding therein, grants the public faith, or a safe-conduct, under the same form, and in the same terms, wherein it is granted to the Ger¬ mans, to all and each of those others, who hold not communion with us in matters of faith, of whatsoever kingdoms, nations, pro¬ vinces, cities, and places they may be, wherein the contrary, to that which the holy Roman Church holds, is publicly and with im¬ punity preached, taught, or believed.

SESSION XIX

Prorogation of the Council

Being the third under the Sovereign Pontiff\ Pius IV., cele¬ brated on the fourteenth day of May, mdlxii.

DECREE FOR THE PROROGATION OF THE SESSION.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates

PROROGATION OF THE SESSION.

of the Apostolic See presiding therein,—has, for certain just and good reasons, thought fit to prorogue, and doth hereby prorogue, to the Thursda}'after the approaching solemnity of Corpus Christi, which will be the day before the nones of June,(e) those decrees which were to have been on this day ordained and sanctioned in the. present Session; and It notifies to all men, that, on the said day, a Session will be held and celebrated. Meanwhile, supplication is to be made to the God and Father of our Lord Jesus Christ, the author of peace, that He would sanctify the hearts of all; that, by His help, the holy Synod may be enabled, both now and ever, to study and to perform those things which shall be unto His praise and glory.

SESSION XX

Prorogation of the Council

Being ilie fourth under the Sovereign Pontiff, Pius 1V ., cele¬ brated on the fourth day of June , mdlxii.

DECREE FOR THE PROROGATION OF THE SESSION.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—by reason of various difficulties arising from divers causes, and also to the end that all things may proceed in a more befitting manner, and with greater deliberation; to wit, that dogmas may be treated of and ratified conjointly with what relates to Reformation; has decreed that whatsoever it shall seem fit to ordain, as well concerning Reformation, as concerning dogmas, shall be defined in the next Session, which It notifies to all men for the sixteenth day of the month of July next; adding, however, that this holy Synod freely may and can, at Its will and pleasure, as it shall judge expedient for the business of the Council, shorten, or lengthen, the said term, even in a general congregation.

(*) 4th of June.

SESSION XXI

On Communion in One Kind, and the Communion of Little Children

Being the fifth under the Sovereign Pontiff\ Pius IV., cele¬ brated on the sixteenth day of July , mdlxii.

The sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—whereas, touching the tremendous and most holy sacrament of the Eucharist, there are in divers places, by the most wicked artifices of the devil, spread abroad certain monstrous errors, by reason of which, in some provinces, many are seen to have departed from the faith and obedience of the Catholic Church, It has thought fit, that what relates to communion under both species, and the com¬ munion of infants, be in this place set forth. Wherefore It forbids all the faithful of Christ to presume henceforth to believe, teach, or preach otherwise on these matters, than is in these decrees explained and defined.

CHAPTER I.

That laymen and clerics , when not sacrifising,are not bound , of divine right , to communion under both species .

Wherefore, this holy Synod,—instructed by the Holy Spirit , who is the spirit of wisdom and of understanding, the spirit of counsel and of godliness,^ and following the> judgment(*) and usage of the Church itself,—declares and teaches, that laymen, and clerics when not consecrating, (h) are not obliged, by any divine precept, to receive the sacrament of the Eucharist under both species ; and that neither can it by any means be doubted, without injury to faith,(*) that communion under either species

(0 Is. xi. 2. (?) Concil. Constantiense. (h) Non conficicntes.

(0 Salva fide.

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is sufficient for them unto salvation. For, although Christ, the Lord, in the last supper, instituted and delivered to the apostles, this venerable sacrament in the species of bread and wine ; not therefore do that institution and delivery tend thereunto, that all the faithful of Church be bound, by the institution (k) of the Lord, to receive both species. But neither is it rightly gathered, from that discourse which is in the sixth of John,—however according to the various interpretations of holy Fathers and Doctors it be understood,—that the communion of both species was enjoined by the Lord: for He who said ; Except you eat the flesh of the Son of man and drink his blood , you shall not have life in you (v. 54), also said; He that eateth this bread shall live for ever (v. 59); and He who said, He that eateth my flesh and drinketh my blood hath everlasting life (v. 55), also said ; The bread that 1 will give is my flesh for the life of the world (v. 52) ; and, in fine,

He who said; He that eateth my flesh and drinketh my bloody abideth in me and I in him ' (v. 57), said, nevertheless ; He that eateth this bread shall live for ever (v. 59).

CHAPTER II.

The power of the Church as regards the dispensation of the Sacrament of the Eucharist.

It furthermore declares, that this power has ev°r been in the Church, that, in the dispensation of the sacraments, their sub¬ stance being untouched,(*) it may ordain, or change, what things soever it may judge most expedient, for the profit of those who receive, or for the veneration of the said sacraments, according to the difference of circumstances, times, and places. And this the Apostle seems not obscurely to have intimated, when he says; Let a man so account of us 9 as of the ministers of Christy and the dispensers of the mysteries of God.{ m) And indeed it

(k) Statuto, appointment. (l) Salva illonim substantia.

(“) 1 Cor. iv. 1.

is sufficiently manifest that he himself exercised this power, as in many other things, so in regard of this very sacrament; when, after having ordained certain things touching. the use thereof* he says; The rest I will set in order when I come. (“) Wherefore, holy Mother Church, knowing this her authority in the administration of the sacraments, although the use of both species has, from the beginning of the Christian religion, not been unfrequent, yet, in progress of time, that custom having been already very widely changed, she, induced by weighty and just reasons, has approved of this custom of communicating under one(°) species, (p) and decreed that it was to be held as a law; which it is not lawful to reprobate, or to change at plea¬ sure, without the authority of the Church itself.

CHAPTER III.

That Christ whole and entire , and a true Sacrament are re¬ ceived under either species.

It moreover declares, that although, as hath been already said, our Redeemer, in that last supper, instituted, and delivered ter the apostles, this sacrament in two species, yet is to be acknowledged, that Christ whole and entire and a true sacra¬ ment are received under either species alone; and that there¬ fore, as regards the fruit thereof, they, who receive one species alone, are not defrauded of any grace necessary to salvation.

CHAPTER IV.

That little Children are not bound to sacramental Communion.

Finally, this same holy Synod teaches, that little children, who have not attained to the use of reason, are not by any necessity obliged to the sacramental communion of the Eucharist:

t n) I xi. 34. (°) Altera. (p) Coneil. Constantiense Sess. 13.

ON THE COMMUNION OF INFANTS.

forasmuch as, having been, regenerated by the laver of baptism, and being incorporated with Christ, they cannot, at that age, lose the grace which they have already acquired of being the sons of God. Not therefore, however, is antiquity to be con¬ demned, if, in some places, it, at one time, observed that custom; for as those most holy Fathers had a probable(q) cause for what they did in respect of their times, so, assuredly, is it to be believed without controversy, that they did this without any necessity thereof unto salvation.(r)

ON COMMUNION UNDER BOTH SPECIES, AND ON THE COMMUNION

OF INFANTS.

Canon i.—I f any one saith, that, by the precept of God, or, by necessity of salvation,(•) all and each of the faithful of Christ ought to receive both species of the most holy sacrament of the Eucharist; let him be anathema.

Canon ii. —If any one saith, that the holy Catholic Church w r as not induced, by just causes and reasons, to communicate, under the species of bread only, laymen, and also clerics when not consecrating; let him be anathema.

Canon iii. —If any one denieth, that Christ whole and entire —the fountain and author of all graces—is received under the one species of bread; because that—as some falsely assert— He is not received, according to the institution of Christ himself, under both species; let him be anathema.

Canon iv. —If any one saith, that the communion of the Eucharist is necessary for little children, before they have arrived at years of discretion ; let him be anathema.

As regards, however, those two articles, proposed on another occasion, but which have not as yet been discussed; to wit, whether the reasons by which the holy Catholic Church was led to communicate, under the one species of bread only, laymen,

(q) Probabilem. (r) Eos nulla salmis necessitate id fecisse.

(*) Necessitate salulis, as necessary for salvation.

and also priests when not celebrating, are in such wise to be adhered to, as that on no account is the use of the chalice to be allowed to any one soever; and, whether, in case that, for reasons beseeming^) and consonant with Christian charity, it appears that the use of the chalice is to be granted to any nation or kingdom, it is to be conceded under certain conditions; and what are those conditions: this same holy Synod reserves the same to another time,—for the earliest opportunity that shall present itself,—to be examined and defined.

DECREE ON REFORMATION.

Pro8m.

The same sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—has thought „ fit that, to the praise of Almighty God, and the adornment of holy Church, the things which

follow be ordained at present, touching the business of Reformation.

CHAPTER I.

Bishops shall both confer orders , and give dimissory letters and testimonials gratis: their servants shall receive nothing therefrom , and notaries that which is fixed in this decree.

Forasmuch as the ecclesiastical order ought to be free from every suspicion of covetousness, neither bishops, nor others, who confer orders, nor their ministers, shall, under any pretext, receive anything for the collation of any manner of orders, not even for the clerical tonsure, nor for letters dimissory, or testi¬ monials, nor for the seal, nor for any other cause whatsoever,

(t) HonestU.

ON REFORMATION.

not even though it should be voluntarily offered. And notaries, —in those places only where the laudable custom of not re¬ ceiving any thing does not prevail,—shall only be able to receive the tenth part of a golden crown (aureus) for each dimissoiy letter, or testimonial; provided still that there be no salary assigned them for the discharge of this office ; and provided that no emolument, out of the payments to the notary, can accrue, either directly or indirectly, to the bishop from the collation of the said orders. For in this case the Synod ordains that they are bound to give their labour altogether gratuitously; utterly quashing and prohibiting all taxes to the contrary, and all statutes, and customs, even though immemorial, of all places whatsoever, which may -rather be called abuses and corruptions tending to simoniacal pravity; and they who shall act otherwise* shall, as well the givers as the receivers, ipso facto y incur, besides the divine punishment, the penalties by law inflicted.

CHAPTER II.

Those who have not wherewith to live , are excluded from sacred

Orders .

Whereas it beseems not those who are enrolled in the divine ministry, to beg, or to exercise any sordid trade, to the disgrace of their order; and whereas it is well known that very many, and that in very many places, are admitted to sacred orders almost without any selection whatever; who, by various artifices and deceits, pretend to have an ecclesiastical benefice, or even means sufficient; the holy Synod ordain^, that henceforth no secular cleric, though otherwise fit as regards morals, knowledge, and age, shall be promoted to sacred orders, unless it be first legitimately certain, that he is in the peaceful possession -of an ecclesiastical benefice sufficient for his honest livelihood : and he shall not be able to resign that benefice, without mentioning that he was promoted under the title thereof; nor shall that resignation be received, unless it be certain that he can live

conveniently from other sources; and any resignation made otherwise shall be null. As to those who have a patrimony, or a pension, they shall not henceforth be ordained, except

such as the bishop shall consider ought to be received, in considera¬ tion of the necessity or the convenience of his churches ; after having also first seen carefully to, this, that they really enjoy that patrimony, or pension, and that they are such as to suffice for their sustenance: And the same may not in any case be alienated, extinguished, or remitted, without the permission of the bishop, until they shall have obtained a sufficient ecclesiastical benefice, or they shall have from some other source wherewith to live : renewing hereupon the penalties of the ancient canons.

CHAPTER III.

A method of increasing the daily distributions is 'prescribed; the persons to whom they shall be due: the contumacy of those who do not serve is punished .

Whereas benefices were established in order to the perform¬ ance of divine worship, and the offices of the Church; to the end that the divine worship may not in any respect be dimi¬ nished, but due attention be paid thereunto in all things; the holy Synod ordains, that in churches, as well cathedral as col¬ legiate, wherein there are no daily distributions, or so slight, that they are probably disregarded, a third part of the fruits and of all proceeds whatever, and revenues, as well of dignities, as of canonries, personates, portions, and offices, shall be set apart and converted to the purpose of daily distributions, to be divided amongst those who possess dignities and the others who are present at the divine service, according to that propor¬ tion which shall be settled by the bishop—even as the delegate of the Apostolic See—at the time of the very first deduction made from the fruits; saving, however, the customs of those churches wherein those who do not reside, or who do not serve, receive nothing, or less than a third: all exemptions, and any

other customs, even though immemorial, and all appeals what¬ soever notwithstanding. And upon the contumacy of those who do not serve increasing, they may be proceeded against accord¬ ing to the provision of the law, and of the sacred canons.

CHAPTER IV.

In what case Coadjutors are to be employed for the cure of souls.—The manner of erecting new parishes is set forth.

In qll parish churches, or those wherein baptism is admi¬ nistered,^) in which (churches) the people is so numerous, that one rector is not enough for the administration of the sacraments of the Church, and for the performance of divine worship, the bishops, even as delegates of the Apostolic See, shall compel the rectors, or others whom it may concern, to associate to themselves for this office, as many priests as shall be sufficient to administer the sacraments, and to celebrate the divine wor¬ ship. As regards those churches, to which, on account of the distance, or the difficulties of the locality, the parishioners can¬ not, without great inconvenience, repair to receive the sacra¬ ments, and to hear the divine offices; the bishops may, even against the will of the rectors, establish new parishes, pursuant to the form of the constitution of Alexander III., which begins, Ad audientiam. And to those priests who shall have to be appointed afresh over

the churches newly erected, a competent portion shall be assigned, according to the bishop's judgment, out of the fruits in any wise belonging to the Mother Church: and, if it be necessary, he may compel the people to contribute what may be sufficient for the sustenance of die said priests; every general or special reservation, or assignment, that may lie upon the said churches, notwithstanding. Neither shall ordi¬ nances and erections of this kind be prevented, or hindered, by means of any provisions, or even by virtue of any resignation, nr by any other derogations, or suspensions whatsoever.

(v) Ecclesiis baptismalibus.

10 ii

CHAPTER V.

Bishops shall be able to form perpetual unions , in the causes by law permitted.

In order, also, that the state of those chinches, wherein the sacred offices are administered unto God, may be maintained according to their dignity, the bishops, even as the delegates of the Apostolic See, may, according to form of law, make unions in perpetuity—without prejudice, however, to the incumbents— of any parochial churches whatsoever, and of those wherein baptism is administered, and of other benefices with or without cure, with (other) cures, on account of the poverty of those churches, and in the other cases by law permitted; even though the said churches, or benefices, be generally or specially reserved, or in what way soever applied : the which unions shall not be capable of being revoked, by virtue of any provision whatever, not even on account of any resignation, or derogation, or sus¬ pension.

CHAPTER VI.

To ignorant Rectors , Vicars shall be, for the time being , de¬ puted with a portion of the fruits; those continuing to give scandal may be deprived of their benefices.

Forasmuch as illiterate and unskilful rectors of parish churches are but little fit for the sacred offices ; and others, by reason of the turpitude of their lives, rather destroy than edify; the bishops, even as the delegates of the Apostolic See, may depute to the said illiterate and unskilful rectors, if they be otherwise of a blameless life, coadjutors, or vicars for the time being, and assign the same a part of the fruits for their sufficient mainten¬ ance, or provide for them in some other manner, setting aside any appeal or exemption whatsoever. But, those who live shamefully and scandalousfy, they shall, after having first admo-

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iiished them, restrain and punish; and, if they shall still con¬ tinue incorrigible in their wickedness, they shall have power to deprive them of their benefices, according to the constitutions of the sacred canons, setting aside every exemption or appeal whatsoever.

CHAPTER VII.

Bishops shall transfer , together with their obligations , churches which cannot be

restored; others they shall cause to be repaired .

Whereas, also, very great care ought to be taken, lest those things which have been dedicated to sacred services, may, through the injuiy of lime, cease to be so employed, and pass from the memoiy of men; the bishops, even as the delegates of the Apostolic See, may transfer simple benefices—even those that are under a right of patronage—from churches which have fallen into ruin by age, or otherwise, and which cannot, by reason of the poverty thereof, be restored,to the Mother Churches, or others of the same or neighbouring places, as they shall judge fit, after having summoned those who are interested therein; and they shall raise, in the said churches, altars, or chapels, under the same invocations; or transfer them, with all their emoluments and with all the obligations that were imposed on the former churches, to altars or chapels already erected. But, as regards parish churches which have thus fallen into decay, they shall, even though they be under a right of patronage, make it their care that they be repaired and restored, out of any fruits and proceeds whatever, in any way belonging tp the said churches; and if those resources should not be sufficient, they Bhall compel, by all suitable means, the patrons and others who receive any fruits derived from those churches, or, in their de¬ fault, the parishioners, to provide for the aforesaid repairs; * setting aside every appeal, exemption, or reservation whatso¬ ever. But if they should be all too poor, those churches shall

be transferred to the Mother Churches, or to the neighbouring churches, with power to convert both the said parish churches and others that are in ruins, to profane, though not to sordid uses; a cross, however, being erected there.

CHAPTER VIII.

Commendatory monasteries, wherein regular observance is not in vigour , and all benefices soever , shall be by bishops annually visited .

It is right that whatsoever things in a diocese regard the worship of God, be diligently cared for by the Ordinary, and, where there is need, be by him set in order. Wherefore, monasteries held in commendam , even abbeys, priories, and those called provostries, wherein regular observance is not in vigour, as also benefices—with, or without the cure of souls, as well Regular as Secular—in whatever way held in commendam , even though exempt, shall be annually visited by the bishop, even as the delegates of the Apostolic See; and the said bishops shall provide, by suitable measures, even by the sequestration of the fruits, that what requires renewing or repairing, be done accordingly; and that the cure of souls, if those places, or those annexed to them, be charged therewith, as also that all other duties required of them, be rightly exercised; notwithstanding any appeals whatsoever, privileges, customs, even with a pre¬ scription from time immemorial, letters conservatory, commis¬ sions of judges, and their inhibitions to the contrary. And, if Regular observance be therein maintained, the bishops shall make it their care, by fatherly admonitions, that the superiors of the said Regulars observe, and cause to be observed, the manner of life required by the institutes of their order, and that they keep, and govern those subject to them, in their duty. And if, after having been admonished, they shall not, within six months, have visited or corrected them, then may the said

bishops, even as delegates of the Apostolic See, visit and correct

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them, in the same way as the superiors themselves might do, in accordance with their institutes; notwithstanding, and com¬ pletely setting aside, all Appeals, privileges, and exemptions whatsoever.

CHAPTER IX.

The name and use of Questors of Alms is abolished.—The Ordinaries shall publish indulgences and spiritual graces.—Two of the Chapters shall , without fee 9 receive the Alms.

Whereas many remedies, heretofore applied by divers coun¬ cils in their day, as well by that of Lateran,(w) and of Lyons, as by that of Vienne, against the wicked abuses of questors of alms, have become in later times useless; yea, rather the de¬ pravity of such is, to the great scandal and complaint of all the faithful, found daily so to increase the more, as that there seems to be no longer any hope left of their amendment; (the Synod) or¬ dains that, in all parts of Christendom soever, their name and use be henceforth utterly abolished; nor shall they be allowed in any wise to exercise any such office; notwithstanding any privileges granted to any churches, monasteries, hospitals, pious places, or to any persons of whatsoever degree, estate, and dignity, or any customs, even though immemorial. As regards the indul¬ gences, or other spiritual graces, of which the faithful of Christ ought not on this account to be deprived, It decrees, that they are henceforth to be published to the people at the due times, by the Ordinaries of the places, aided by two members of the Chapter; to whom also power is given to gather faithfully the alms, and the succours of charity which are offered them, with¬ out their receiving any remuneration whatsoever; that so all men may at length truly understand, that these heavenly trea¬ sures of the Church are administered, not for gain, but for god¬ liness.

(w) Sub. Innoc. III., cap. 62.

INDICTION OF THE NEXT SESSION.

The sacred and holy, oecumenical and general Synod of Trent, lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein, hath ordained and de¬ creed, that the next ensuing Session be held and celebrated on the Thursday after the octave of the feast of the Nativity of the Blessed Virgin Mary, which will be on the seventeenth of the month of September next; with the addition, however, that the said holy Synod freely may and can, according to Its will and pleasure, as It shall judge expedient for the affairs of the Council, limit or extend, even in a general congregation, the said term, as also that which may be assigned hereafter for each Session.

SESSION XXII

On the Sacrifice of the Mass

Being the sixth under the Sovereign Pontiff\ Pius I V. 9 cele¬ brated on the seventeenth day of September , mdlxii.

DOCTRINE ON THE SACRIFICE OF THE MASS.

The sacred and holy, oecumenical and general Synod of Trent—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein—to the end that the ancient, complete, and in every part perfect faith and doctrine touching the great mystery of the Eucharist may be retained in the holy Catholic Church; and may, all errors and heresies being repelled, be preserved in its own purity; (the Synod) instructed by the illumination of the Holy Ghost, teaches, de¬ clares, and decrees what follows, to be preached to the faithful, on the subject of the Eucharist, considered as being a true and singular(*) sacrifice.

(*) Singuldiu.

ON THE SACRIFICE OF THE MASS.

CHAPTER I.

On the institution of the most holy Sacrifice of the Mass.

Forasmuch as, under the former Testament, according to the testimony of the Apostle Paul, there was no perfection, because of the weakness of the Levitical priesthood ;(*) there was need, God, the Father of mercies, so ordaining, that another priest should rise, according to the order of Melchisedech,{*) our Lord Jesus Christ, who might consummate, and lead to what is per¬ fect, as many as were to be sanctified. He, therefore, our God and Lord, though He was about to offer Himself once on the altar of the cross unto God the Father, by means of his death, if) there to operate an eternal redemption ;(b) nevertheless, be¬ cause that His priesthood was not to be extinguished by His death, in the last supper, on the night in which He was betrayed, —that He might leave, to His own beloved Spouse the Church, a visible sacrifice, such as the nature of man requires, whereby that bloody sacrifice, once to be accomplished on the cross, might be represented, and the memory thereof remain even unto the end of the world, and its salutary virtue be applied to the remission of those sins which we daily commit,—declaring Him¬ self constituted a priest for ever, according to the order of Melchisedech,(c) He offered up to God the Father His own body and blood under the species of bread and wine; and, under the symbols of those same things, He delivered (His own body and blood) to be received by His apostles, whom He then consti¬ tuted priests of the New Testament; and by those words, Do this in commemoration of me, (d) He commanded them and their successors in the priesthood, to offer (them) ; even as the Catholic Church has always understood and taught. For, hav¬ ing celebrated the ancient Passover, which the multitude of the children of Israel immoated in memory of their going out of

(y) Hcb. vii. 11, IP. (*) t. 11. (») Heb. ix. 5.

(b) v 12. (c) Ps. cix. 4. (d) Luke xxii. 19.

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Egypt, He instituted the new Passover, (to wit) Himself to be immolated, under visible signs, by the Church through (the ministry of) priests, in memory of His own passage from this world unto the Father, when by the effasion of His own blood He redeemed us, and delivered us from the 'power of darkness , and translated us into his kingdom .(e) And this is indeed that clean oblation, which cannot be defiled by any unworthiness, or malice of those that offer (it); which the Lord foretold by Malachias was to be offered in every place, clean to his name , which was to be great amongst the Gentiles; (*) and which the apostle Paul, writing to the Corinthians, has not obscurely indi¬ cated, when he says, that they who are defiled by the partici¬ pation of the table of devils, cannot be partakers of the table of the Lord; («) by the table , meaning in both places the altar. This, in fine, is that oblation which was prefigured by various types of sacrifices, during the period of nature, and of the law; in as much as it comprises all the good things signified by those sacrifices, as being the consummation and perfection of them all.

CHAPTER II.

That the Sacrifice of the Mass is propitiatory both for the living and the dead .

And forasmuch as, in this divine sacrifice which is celebrated in the mass, that same Christ is contained and immolated in an unbloody manner, who once offered Himself in a bloody man¬ ner on the altar of the cross ; the holy Synod teaches, that this sacrifice is truly propitiatory and that by means thereof this is effected, that we obtain mercy, and find grace in seasonable aid,(h) if we draw nigh unto God, contrite and penitent, with a sincere heart and upright faith, with fear and reverence. For the Lord, appeased by the oblation thereof, and granting the

(*) Coloss. i. 13. (f) Malach. i. 11. (?) I Cor. x. *21. (*») Hcb. iv. 6.

grace and gift of penitence, forgives even heinous crimes and sins. For the victim is one and the same, the 6ame now offer¬ ing by the ministry of priests, who then offered Himself on the cross, the manner alone of offering being different. The fruits indeed of which oblation, of that bloody one to wit, are received most plentifully through this unbloody one; so far is this (latter) from derogating in any way from that (former oblation). Wherefore, not only for the sins, punishments,(*) satisfactions, and other necessities of the faithful who are living, but also for those who are departed in Christ, and who are not as yet fully purified,(k) is it rightly offered, agreeably to a tradition of the apostles.

CHAPTER III.

On Masses in honour of the Saints .

And although the Church has been accustomed at times to celebrate certain masses in honour and memory of the saints ; not therefore, however, doth she teach that sacrifice is offered unto them, hut unto God alone, who crowned them; whence neither is the priest wont to say, “I offer sacrifice to thee, Peter, or Paul;”(*) but, giving thanks to God for their victories, he implores their patronage, that they may vouchsafe to inter¬ cede for us in heaven, whose memory we celebrate upon earth.

CHAPTER IV.

On the Canon of the Mass.

And whereas it beseemeth, that holy things be administered in a holy manner, and of all holy things this sacrifice is the most holy; to the end that it might be worthily and reverently

v (i) Pcenis, pains. (k) Purgatis, purged. 0 S. Angus. De Civ. Dei, L. viii. c.27.

offered and received, the Catholic Church instituted, many years ago, the sacred Canon, so pure from every error, that nothing is contained therein which does not in the highest degree savour of a certain holiness and piety, and raise up unto God the minds of those that offer. For it is composed, out of the very words of the Lord, the traditions of the apostles, and the pious institutions also of holy pontiffs.

CHAPTER V.

On the solemn ceremonies of the Sacrifice of the Mass.

And whereas such is the nature of man, that, without external helps, he cannot easily be raised to the meditation of divine things; therefore has holy Mother Church instituted certain rites, to wit that certain things be pronounced in the mass in a low, and others in a louder, tone. She has likewise employed ceremonies, such as mystic benedictions, lights, incense, vestments, and many other things of this kind, derived from an apostolical discipline and tradition, whereby both the majesty of so great a sacrifice might be recommended, and the minds of the faithful be excited, by those visible signs of religion and piety, to the contemplation of those most sublime things which are hidden in this sacrifice.

CHAPTER VI.

On Mass wherein the priest alone communicates.

The sacred and holy Synod would fain indeed that, at each mass, the faithful who are present should communicate, not only in spiritual desire, but also by the sacramental partici¬ pation of the Eucharist, that thereby a more abundant fruit might be derived to them from this most holy sacrifice: but not therefore, if this be not always done, does It condemn, as private and unlawful, but approves of and therefore commends,

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those masses in which the priest alone communicates sacra¬ mentally ; since those masses also ought to be considered as truly common; partly because the people communicate spiritually thereat; partly also because they are celebrated by a public minister of the Church, not for himself only, but for all the faithful, who belong to the body of Christ.

CHAPTER VII.

On the water that is to be mixed with the wine to be offered in

the chalice .

The holy Synod notices, in the next place, that it has been enjoined by the Church <Jn priests, to mix water with the wine that is to be offered in the chalice; (■) as well because it is believed that Christ the Lord did this, as also because from His side there came out blood and water; (■) the memory of which mystery is renewed by this commixture; and, whereas in the apocalypse of blessed John, the peoples are called waters ,(°) the union of that faithful people with Christ their head is hereby represented.

CHAPTER YIII-

On not celebrating the Mass every where in the vulgar tongue ; the mysteries of the Mass to be explained to the people .

Although the mass contains great instruction for the faithful people, nevertheless, it has not seemed expedient to the Fathers, that it should be every where (p) celebrated in the vulgar tongue. Wherefore, the ancient usage of each church, and the rite approved of by the holy Roman Church, the mother and mistress of all churches, being in each place retained;

(m) Synod. Quini—Sezt. cap. 32; Cone. Carthag. in. c. 24; Concil. Flor.

(n) John xix. 34. (°) Apoc. xvii. 15. (P) Passim, indiscriminately.

and, that the sheep of Christ may not suffer hunger, nor the little ones ask for bread , and there be none to break it unto them^if) the holy Synod charges pastors, and all who have the cure of souls, that they frequently, during the celebration of mass, expound either by themselves, or others, some portion of those things which are read at mass, and that, amongst the rest, they explain some mystery of this most holy sacrifice, espe¬ cially on the Lord’s days and festivals.

CHAPTER IX.

Preliminary Remark on the following Canons .

And because that many errors are at this time disseminated and many things are taught and maintained by divers persons, in opposition to this ancient faith, which is based on the sacred Gospel, the traditions of the Apostles, and the doctrine of the holy Fathers; the sacred and holy Synod, after many and grave deliberations maturely had touching these matters, has resolved, with the unanimous consent of all the Fathers, to condemn, and to eliminate from holy Church, by means of the canons sub¬ joined, whatsoever is opposed

to this most pure faith and sacked doctrine.

ON THE SACRIFICE OF THE MASS.

Canon i. —If any one saith, that in the mass a true and proper sacrifice is not offered to God; or, that to be offered is nothing else but that Christ is given us to eat; let him be anathema.

Canon ii. —If any one saith, that by those words, Do this for the commemoration of yie (Luke xxii. 19), Christ did not insti¬ tute the apostles priests; or, did not ordain that they, and other priests should offer His own body and blood; let him be ana¬ thema.

Canon iii. —If any one saith, that the sacrifice of the mass is only a sacrifice of praise and of thanksgiving; or, that it is a

(<l) Lam. iv. 4.

ON THE SACRIFICE OF THE MASS.

bare commemoration of the sacrifice consummated on the cross, but not a propitiatory sacrifice; or, that it profits him only who receives ; and that it ought not to be offered for the living and the dead for sins, pains, satisfactions, and other necessities; let him be anathema. '

Canon iv. —If any one saith, that, by the sacrifice of the mass, a blasphemy is cast upon the most holy sacrifice of Christ con¬ summated on the cross ; or, that it is thereby derogated from; let him be anathema.

Canon v. —If any one saith, that it is an imposture to cele¬ brate masses in honour of the saints, and for obtaining their intercession with God, as the Church intends; let him be ana¬ thema.

Canon vi. —If any one saith, that the canon of the mass con¬ tains errors, and is therefore to be abrogated; let him be anathema.

Canon vii. —If any one saith, that the ceremonies, vestments, and outward signs, which the Catholic Church makes use of in the celebration of masses, are incentives to impiety, rather than offices of piety; let him be anathema.

Canon viii. —If any one saith, that masses, wherein the priest alone communicates sacramentally, are unlawful, and are, there¬ fore, to be abrogated; let him be anathema.

Canon ix.— If any one saith, that the rite of the Roman Church, according to which a part of the caiion and the words of consecration are pronounced in a low tone, is to be con¬ demned ; or, that the mass ought to be celebrated in the vulgar tongue only; or, that water ought not to be mixed with the wine that is to be offered in the chalice, for that it is contrary to the institution of Christ; let him be anathema.

DECREE CONCERNING THE THINGS TO BE OBSERVED, AND TO BE AVOIDED, IN THE CELEBRATION OF MASS.

What great care is to be taken, that the sacred and holy sacri¬ fice of the mass be

celebrated with all religious service^) and

(r) Religionis cultu.

veneration, each one may easily imagine, who considers, that, in holy writ, he is called accursed , who doth the work of God negligently ;(•) and if we must needs confess, that no other work can be performed by the faithful so holy and divine as this tremendous mystery itself, wherein that life-giving victim, by which we were reconciled to the Father, is daily immolated on the altar by(*) priests, it is also sufficiently clear, that all industry and diligence is to be applied to this end, that it be performed with the greatest possible inward cleanness and purity of heart, and outward show of devotion and piety. Whereas, therefore, either through the wickedness of the times, or through the carelessness and corruption of men, many things seem already to have crept in, which are alien from the dignity of so great a sacrifice ; to the end that the honour and cult due thereunto may, for the glory of God and the edification of the faithful people, be restored; the holy Synod decrees, that the ordinary bishops of places shall take diligent care, and be bound to prohibit and abolish all those things which either covetous¬ ness , which is a serving of idols y (r) or irreverence, which can hardly be separated from impiety; or superstition, which is a false imitation of true piety, may have introduced. And that many things may be comprised in a few words: first, as relates to covetousness:—they shall wholly prohibit all manner of con¬ ditions and bargains for recompenses, and whatsoever is given for the celebration of new masses ;(w) as also those importunate and illiberal demands, rather than requests, for alms, and other things of the like sort, which are but little removed from a simonical taint, or at all events, from filthy lucre .

In the next place, that irreverence may be avoided, each, in his own diocese, shall forbid that any wandering or unknown priest be allowed to celebrate mass. Furthermore, they shall not allow any one who is publicly and notoriously stained with crime, either to minister at the holy altar, or to assist at the sacred services; nor shall they suffer the holy sacrifice to be celebrated, either by any Seculars or Regulars whatsoever, in

(■) Jerem. xWiii. 10. (*) Per. (v) Ephes. i. 5.

(w) Pro missis novis, probably fini masses; or, may be, masses newly appointed.

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private houses ; or, at all, out of the church, and those oratories which are dedicated solely to divine worship, and which are to be designated and visited by the said Ordinaries; and not then, unless those who are present shall have first shown, by their decently composed outward appearance, that they are there not in body only, but also in mind and devout affection of heart. They shall also banish from churches all those kinds of music, in which, whether by the organ, or in the singing, there is mixed up any thing lascivious or impure; as also all secular actions ; vain and therefore profane conversations, all walking about, noise, and clamour, that so the house of God may be seen to be, and may be called, truly a house of prayer .

Lastly, that no room may be left for superstition ; they shall by ordinance, and under given penalties, provide, that priests do not celebrate at other than due hours; nor employ other rites, or other ceremonies and prayers, in the celebration of masses, besides those which have been approved of by the Church, and have been received by a frequent and praiseworthy usage. They shall wholly banish from the Church the ob¬ servance of a fixed number of certain masses (*) and of candles, as being the invention of superstitious worship, rather than of true religion; and they shall instruct the people, what is, and whence especially is derived, the fruit so precious and heavenly of this most holy sacrifice. They shall also admonish their people to repair frequently to their own parish churches, at least on the Lord’s days and the greater festivals. All, therefore, that has been briefly enumerated, is in such wise propounded to all Ordinaries of places, as that, by the power given them by this sacred and holy Synod, and even as delegates of the Apos¬ tolic See, they may prohibit, ordain, reform, and establish, not only the things aforesaid, but also whatsoever else 'shall seem to them to have relation hereunto; and may compel the faith¬ ful people inviolably to observe them, by ecclesiastical censures and other penalties, which at their pleasure they may appoint; any privileges, exemptions, appeals, and customs whatsoever, to the contrary notwithstanding.

(x) Quarumdam missarum.

DECREE ON REFORMATION.

The same sacred and holy, oecumenical and general Synod of Trent,—lawfully assembled in the Holy Ghost, the same Legates of the Apostolic See presiding therein,—to the end that the business of reformation may be proceeded with, has thought good that the following things be ordained in the present Session.

CHAPTER I.

The Canons relative to the life, and propriety of conduct of Clerics are renewed .

There is nothing that continually instructs others unto piety , and die service of God, more than the life and example of those who have dedicated themselves to the divine ministry. For as they are seen to be raised to a higher position, above the things of this world, others fix their eyes upon them as upon a mirror, and derive from them what they are to imitate. Wherefore clerics called to have the Lord for their portion, ought by all means so to regulate their whole life and conversation, as that in their dress, comportment, gait,.discourse, and all things else, nothing appear but what is grave, regulated, and replete with religiousness; avoiding even slight faults, which in them would be most grievous; that so their actions may impress all with veneration. Whereas, therefore, the more useful and decorous these things are for the Church of God, the more carefully also are they to be attended to; the holy Synod ordains, that those things which have been heretofore copiously and wholesomely enacted by sovereign pontiffs and sacred councils,—relative to the life, propriety of conduct, dress, and learning of clerics, and also touching the luxuriousness, feastings, dances, gambling, sports, and all sorts of crime whatever, as also the secular employments, to be by them shunned,—the same shall be

henceforth observed, under the same penalties, or greater, to be imposed at the discretion of the Ordinary; nor shall any appeal

suspend the execution hereof, as relating to the correction of manners. But if anything of the above shall be found to have fallen into desuetude, they shall make it their care that it be brought again into use as soon as possible, and be accurately observed by all; any customs to the contrary notwithstanding; lest they themselves may have, God being the avenger, to pay the penalty deserved by their neglect of the correction of those subject to them.

CHAPTER II.

Who are to be promoted to Cathedral Churches .

Whosoever is, hereafter, to be promoted to a cathedral church shall not only be fully qualified by birth, age, morals, and life, and, in other respects, as required by the sacred canons, but shall also have been previously constituted in sacred Order, for the space of at least six months. And information on these points, if the individual be only recently, or not at all, known at the court (of Rome), shall be derived from the Legates of the Apostolic See, or from the Nuncios of the provinces, or from his Ordinary, and in his default, from the nearest Ordinaries. And, besides the things above-named, he shall possess such learning as to be able to discharge the obligations of the office that is about to be conferred upon him ; and he shall, therefore, have been previously promoted by merit, in some university for studies, to be a master, or doctor, or licentiate, in sacred theo¬ logy, or in canon law; or shall be declared, by the public tes¬ timony of some academy, fit to teach others. And, if he be a Regular, he shall have a similar attestation from the superiors of his own order. And all the above-named persons, from whom the information, or testimony, aforesaid is to be derived, shall be bound to report on these matters faithfully and gra¬ tuitously ; otherwise let them know, that their consciences will be grievously burthened, and that God, and their own superiors, will punish them.

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CHAPTER III.

Daily distributions , out of the third part of all fruits soever , are to be established; on whom the portion of absentees devolves; certain cases excepted .

Bishops, even as the delegates of the Apostolic See, shall have power to divide the third part of any manner of fruits and proceeds of all dignities, personates, and offices existing in cathedral or collegiate churches, into distributions, to be assigned as they shall judge fit; in such wise to wit, that, if those who ought to receive them should fail, on any appointed day, personally to discharge the duty that devolves upon them, according to the form that shall be prescribed by the said bishops, they shall forfeit that day’s distribution, and shall acquire no manner of property therein, but it shall be applied to the fabric of the church, as far as it may need it, or to some other pious place, at the discretion of the

Ordinary. But if their contumacy increase, they shall proceed against them according to the constitutions of the sacred canons. But if any of the aforesaid dignitaries has, neither by right, nor custom, any jurisdiction, administration, or office, devolving upon him in the cathedral or collegiate churches; but, out of the city, in the same diocese, there is a cure of souls to be attended to, which he who holds that dignity is willing to take upon himself; in this case, during the time that he shall reside and minister in the church with that cure, he shall be considered as though he were present and assisted at the divine offices in those cathedral or collegiate churches. These things are to be under-' stood as appointed for those churches only, wherein there is no * custom, or statute, whereby the said dignitaries, who do not serve, lose something, which amounts to the third part of the said fruits and proceeds: any customs, even though immemorial, exemptions, and constitutions, even though confirmed by oath or by any authority whatsoever, to the contrary notwithstanding.

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ON REFORMATION.

CHAPTER IV.

Those not initiated into a sacred Order , shall not have a voice in the chapter of any Cathedral or Collegiate Church. The qualifications and duties of those who hold Benefices therein.

Whosoever being employed in the divine offices in a cathedral, or collegiate, Secular or Regular, church, is not constituted in the order of subdeaconship at least, shall not have a voice in the chapter of those churches, even though this may have been voluntarily conceded to him by the others. As to those who possess, or shall hereafter possess, in the said churches, any dignities, personates, offices, prebends, portions, and any other manner of benefices whatever, to which various obligations are annexed, such as, that some shall say, or sing, mass, others the Gospel, others the Epistle, they shall be bound, all just impedi¬ ment ceasing, to receive the requisite orders within a year, what¬ soever may be their privilege, exemption, prerogative, or nobility of birth; otherwise they shall incur the penalties enacted by the constitution of the Council of Vienne, which begins, Ut ii qui , which by this present decree is renewed : and the bishops shall compel them to exercise in person the aforesaid orders on the appointed days, and to discharge all the other duties required of them in the divine service, under the said penalties, and others even more grievous, which may be imposed at their dis¬ cretion. Nor, for the future, shall any such office be assigned to any but those who shall be well known fully to have already the age and the other qualifications; otherwise such provision shall be null.

CHAPTER V.

Dispensations expedited out of the (Roman) court shall be committed to the Bishop y and be by him examined.

Dispensations, by whatsoever authority they are to be granted, if they are to be consigned out of the Roman court, shall be

consigned to the Ordinaries of those who shall have obtained them. And as to those dispensations which shall be granted as graces, they shall not have effect, until the said Ordinaries, as delegates of the Apostolic See, shall have first ascertained sum¬ marily only and extra-judically, that the terms of the petition do not labour under the vice of surreption or obreption.

CHAPTER VI.

Last intentions to be altered with caution .

In alterations of last wills,—which alterations ought not to be made except for a just and necessary cause,—the bishops, as delegates of the Apostolic See, shall, before the alterations afore¬ said are carried into execution, ascertain, that nothing has been stated in the prayer of the petition, which suppresses what is true, or suggests what is false.

CHAPTER VII.

The chapter “Romana? in the sixth (of the Decretals J 7 is

renewed .

Apostolic legates and nuncios, patriarchs, primates, and metropolitans, in appeals interposed before, them, shall, in all causes whatsoever, as well in admitting the appeals, as in grant¬ ing inhibitions after an appeal, be bound to observe the form and tenour of the sacred constitutions ,and especially of the con¬ stitution of Innocent IV., beginning Romana; any custom, even though immemorial, or usage, or privilege, to the contrary not¬ withstanding; otherwise the inhibitions and proceedings, and all the consequences thereof, shall be ipso jure null.

ON REFORMATION.

CHAPTER VIII.

Bishops shall execute the pious dispositions of all persons; shall visit all manner of pious places , if not under the im¬ mediate protection of Kings .

The bishops, even as the delegates of the Apostolic See, shall, in the cases by law permitted, be the executors of all pious dispositions, whether made by last will, or between the living :(y) they shall have a right to visit all manner of hospitals, colleges, and Confraternities of laymen, even those which are called schools, or which go by any other name ; but not, how¬ ever, those places which are under the immediate protection of kings, except with their permission; also the eleemosynary institutions, called monts-de-ptete, or of charity, and all pious places by whatsoever name designated, even though the afore¬ said institutions be under the oare of laymen, and though the said pious places be protected by a privilege of exemption; and, by virtue of their office, they shall take cognizance of, and see to the performance,—in accordance with the ordinances of the sacred canons,—of all things that have been instituted for God’s worship, for the salvation of souls, or for the support of the poor; any custom, even though immemorial, or privilege, or statute whatsoever, to the contrary, notwithstanding.

CHAPTER IX.

Administrators of any pious places whatsoever shall give in their accounts to the Ordinary , unless it be otherwise provided by the foundation .

The administrators, whether ecclesiastical, or lay, of the fabric of any church whatsoever, even though it be a cathedral, as also of any hospital, confraternity, charitable institution called

(y) Dispositionum, tam in ultima voluntate, quam iuter vivos.

mont-de-pi&U y and of any pious places whatsoever, shall be bound to give in, once a year, an account of their administra¬ tion to the Ordinary: all customs and privileges to the contrary being set aside; unless it should happen that, in the institution and regulations of any church or fabric, it has been otherwise expressly provided. But if from custom, or privilege, or some regulation of the place, their account has to be rendered to others deputed thereunto, in that case the Ordinary shall also be employed jointly with them; and all acquittances given otherwise shall be of no avail to the said administrators.

CHAPTER X.

Notaries shall be subject to the examination and judgment of

the Bishops .

Whereas the unskilfrilness of notaries causes very many injuries, and gives occasion to many lawsuits; the bishop, even as the delegate of the Apostolic See, may, by actual examination, search into the competency of all notaries, even though created by apostolic* imperial, or royal authority; and, if such notaries be found incompetent, or on any occasion guilty of a delinquency in the discharge of their office, he may forbid them, altogether or for a time, to exercise that office, in ecclesiastical and spiri¬ tual affairs, lawsuits, and causes; nor shall any appeal on their parts suspend the prohibition of the Ordinary.

CHAPTER XI.

Usurpers of the property of any Churchy or pious places y are

If any cleric, or layman, by whatsoever dignity pre-eminent, be he even emperor or king, should be so possessed by covet¬ ousness, that root of all evils, as to presume to convert to his own use, aud to usurp,—by himself or by others, by force, or

ON REFORMATION.

fear, or even by means of any supposititious persons,(s) whether lay, or clerical, or by any artifice, or under any colourable pre¬ text whatsoever,—the jurisdictions, property, rents, and rights, even those held in fee t>r under lease, the fruits, emoluments, or any sources of revenue whatsoever, belonging to any church, or to any benefice, whether Secular or Regular, monts-de-ptete, or to any other pious places, which ought to be employed for the necessities of the ministers (thereof), and of the poor; or (shall presume) to hinder them (in any of the ways aforesaid) from being received by those unto whom

they of right belong; he shall lie under an anathema until he shall have wholly restored to the Church, and to the administrator or beneficiary thereof* the jurisdictions, property, effects, rights, fruits, and revenues which he has seized upon, or in whatsoever way they have come to him, even by way of gift from a supposititious person; and until he shall, furthermore, have obtained absolution from the Roman Pontiff. And if he be the patron of the said church, he shall, besides the penalties aforesaid, be thereupon deprived of the right of patronage. And the cleric who shall be the author of, or consenting to, any execrable 'fraud and usurpation of this kind, shall be subjected to the same penalties; as also he shall be deprived of all benefices whatsoever, and be rendered inca¬ pable of any others whatsoever; and ever after entire satisfac¬ tion and absolution, he shall be suspended from the exercise of his orders, at the discretion of his Ordinary.

DECREE TOUCHING THE PETITION FOR THE CONCESSION OF THE CHALICE.

Moreover, whereas the same sacred and holy Synod, in the preceding Session, reserved unto another time, for an oppor¬ tunity that might present itself, two articles to be examined and defined, which (articles) had been proposed on another occa¬ sion, but had not then been as yet discussed, to wit, whether the reasons by which the holy Catholic Church was led to com¬ municate, under the one species of bread, laymen and also priests

(7) Fer supposita personas.

when not celebrating, are in such wise to be adhered to, as that on no account is the use of the chalice to be allowed to any one soever; and, whether, in case that, for reasons beseeming and consonant with Christian charity, it appears that the use of the chalice is to be granted to any nation, or.kingdom, it is to be conceded under certain conditions; and what are those condi¬ tions ; It has now,—in Its desire that the salvation of those, on whose behalf the request is made, may be provided for in the best manner,—decreed, that the whole business be referred to our most holy lord, as by this present decree It doth refer it; who, of his singular prudence, will do that which he shall judge, useful for the Christian commonweal, and salutary for those who ask for the use of the chalice.

INDICTION OF THE NEXT SESSION.

Moreover, this sacred and holy Synod of Trent appoints, for the day of the next Session, the Thursday after the octave of All Saints, which will be the twelfth day of the month of Novem-* ber; and thereon It will decree concerning the sacrament of Order, and the sacrament of Matrimony, &c.

The Session was 'prorogued until the fifteenth day of July,

MDLXIII.

SESSION XXIII

On the Sacrament of Order

Being the seventh under the Sovereign Pontiff, Pius IV., cele¬ brated on the fifteenth day of July, mdlxiii.

THE TRUE AND CATHOLIC DOCTRINE, TOUCHING THE SACRAMENT OF ORDER, DECREED AND PUBLISHED BY THE HOLY SYNOD OF TRENT, IN THE SEVENTH SESSION, IN CONDEMNATION OF THE ERRORS OF OUR TIME.

CHAPTER I.

On the institution of the Priesthood of the New Law .

Sacrifice and priesthood are, by the ordinance of God, in such wise conjoined, as that both have existed in every law.

THE SACRAMENT OF ORDER.

Whereas, therefore, in the New Testament, the Catholic Church has received, from the institution of Christ, the holy visible sacrifice of the Eucharist; it must needs also be confessed, that there is, in that Church, a new, visible, and external priesthood, into which the old has been translated . (•) And the sacred Scrip¬ tures show, and the tradition of the Catholic Church has always taught, that this priesthood-was instituted by the same Lord our Saviour, and that to the apostles, and their successors in the priesthood, was the power delivered of consecrating, offering, and administering His Body and Blood, as also of forgiving and of retaining sins.

CHAPTER II.

On the Seven Orders.

And whereas the ministry of so holy a priesthood is a divine thing; to the end that it might be exercised in a more worthy manner, and with greater veneration, it was suitable that, in the most well-ordered settlement of the church, there should be several and diverse orders of ministers, to minister to the priest¬ hood, by virtue of their office ; orders so distributed as that those already marked with the clerical tonsure should ascend through the lesser to the greater orders. For the sacred Scriptures make open mention not only of priests, but also of deacons; and teach, in words the most weighty, what things are especially to be attended to in the Ordination thereof; and, from the very be¬ ginning of the church, the names of the following orders, and the ministrations proper to each one of them, are known to have been in use ; to wit those of subdeacon, acolyth, exorcist, lec¬ tor, and door-keeper; though these were not of equal rank: for the subdeaconship is classed amongst the greater orders by the Fathers and sacred Councils, wherein also we very often read of the other inferior orders.

(a)

Hebr. vii. 12.

CHAPTER III.

That Order is truly and properly a Sacrament.

Whereas, by the testimony of Scripture, by Apostolic tradi¬ tion, and the unanimous consent of the Fathers, it is clear that grace is conferred by sacred ordination, which is performed (b) by words and outward signs, no one ought to doubt that Order is truly and properly one of the seven sacraments of holy Church. For the apostle says; I admonish thee that thou stir up the grace of God 9 which is in thee by the imposition of my hands. For God has not given us the spirit of fear y but of power and of love and of sobriety. (c)

CHAPTER IY.

On the Ecclesiastical hierarchy , and on Ordination.

But, forasmuch as in the sacrament of Order, as also in Bap¬ tism and Confirmation, a character is imprinted, which can neither be effaced nor taken away; the holy Synod with reason condemns the opinion of those, who assert that the priests of the New Testament have only a temporary power; and that those who have once been rightly ordained, can again become laymen, if they do not exercise the ministry of the word of God. And if any one affirm, that all Christians indiscriminately are priests of the New Testament, or that they are all mutually endowed with an equal spiritual power, he clearly does nothing but confound the ecclesiastical hierarchy, which is as an army set in array; (d) as if, contrary to the doctrine of blessed Paul, all were apostles , all prophets , all evangelists , all pastors , all doc tors. (e) Wherefore, the holy Synod declares that, besides

(b) Pcrficitur. (c) 2 Tim. i. G, 7. (ll) Cant. vi. 3.

(»*) Ephes. vi. 11, 12.

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tlic other ecclesiastical degrees, bishops, who have succeeded to the place of the apostles, principally belong to this hierar chial order; that they arc placed , as the same apostle says, by the Holy Ghost , to rule the Church of God; (f) that they are superior to priests ; administer the sacrament of Confirmation; ordain the ministers of the Church ; and that they can perform very many other things; over which functions others of on in¬ ferior order have no power. Furthermore, the sacred and holy Synod teaches, that, in the ordination of bishops, priests, and of the other orders, neither the consent, nor vocation, nor authority, whether of the people, or of any civil power or magistrate whatsoever, is required in such wise as that, without this, the ordination is invalid: yea rather doth It decree, that all those who, being only called and instituted by the people, or by the civil power and magistrate, ascend to the exercise of these ministrations, and those who of their own rashness assume them to themselves, are not ministers of the church, but are to be looked upon as thieves and robbers , who have not entered by the door,if) These are the things which it hath seemed good to the sacred Synod to teach the faithful of Christ, in general terms, touching the sacrament of Order. But It hath resolved to condemn

whatsoever things are contrary thereunto, in express and specific canons, in the manner following; in order that all men, with the help of Christ, using the rule of faith, may, in the midst of the darkness of so many errors, more easily be able to recognise and to hold Catholic truth.

ON THE SACRAMENT OF ORDER.

Canon i. —If any one saith, that there is not in the New Testament a visible and external priesthood; or that there is not any power of consecrating and offering the true body and blood of the Lord, and of forgiving and retaining sins; but only an office and bare ministry of preaching the, Gospel; or, that those who do not preach are not priests 'at all; let him be anathema.

C f I Acts xx. 28.

{$) John x. 1.

Canon ii.—I f any one saith, that, besides the priesthood, there are not in the Catholic Church other orders, both greater and minor, by which, as by certain steps, advance is made unto the priesthood ;(h) let him be anathema.

Canon iii.—I f any one saith, that order, or sacred ordination, is not truly and properly a sacrament instituted by Christ the Lord ; or, that it is a kind of human figment devised by men unskilled in ecclesiastical matters; or, that it is only a kind of rite for choosing ministers of the word of God and of the sacraments; let him be anathema.

Canon iv.—I f any one saith, that, by sacred ordination, the Holy Ghost is not given; and that vainly therefore do the bishops say, Receive ye the Holy Ghost; or, that a character is not imprinted (*) by that ordination; or, that he who has once been a priest, can again become a layman; let him be anathema.

Canon v. —If any one saith, that the sacred unction which the Church uses in holy ordination, is not only not required, but is to be despised and is pernicious, as likewise are the other ceremonies of Order; let him be anathema.

Canon vi. —If any one saith, that, in the Catholic Chiurch there is not a hierarchy by divine ordination instituted,(k) con¬ sisting of bishops, priests, and ministers; let him be anathema.

Canon vii.—I f any one saith, that bishops are not superior to priests; or, that they have not the power of confirming and ordaining; or, that the power which they possess is common to them and to priests; or, that orders, conferred by them, without the consent, or vocation of the people, or of the secular power, are invalid; or, that those who have neither been rightly (*) ordained, nor sent, by ecclesiastical and canonical power, but come from elsewhere, are lawful ministers of the word and of the sacraments; let him be anathema.

Canon viii.—I f any one saith, that the bishops, who* are assumed by authority of the Roman Pontiff, are not legitimate and true bishops, but are a human figment; let him be

anathema.

(h) Per quoa, velut per gradua quoadam, in sacerdotium tendatur. (*) Imprimi.

(*) Divina ordinatione (ordinance) institutam. Q) Rite.

ON REFORMATION.

DECREE ON REFORMATION.

The same sacred and holy Synod of Trent, prosecuting the matter of reformation, resolves and decrees that the things fol¬ lowing be at present ordained.

CHAPTER I.

The negligence of Pastors of Churches in residing is variously punished: provision is made for the cure of souls .

Whereas it is by divine precept enjoined on all, to whom the cure of souls is committed, to know their own sheep; to offer sacrifice for them; and, by the preaching of the divine word, by the administration of the sacraments, and by the example of

* all good works, to feed them ; to have a fatherly care of the poor and of other distressed persons, and to apply themselves to all other pastoral duties; all which (offices) cannot be rendered and fulfilled by those who neither watch over nor are with(m) their own flock, but abandon it after the manner of hirelings; the sacred and holy Synod admonishes and exhorts such, that, mindful of the divine precepts, and made a pattern of the ftock 9 (n) they feed and rule in judgment and in truth. And for fear lest those things which have been already elsewhere holily

• and usefully ordained, concerning residence, under Paul III., of happy memory, may be wrested to a meaning alien from the mind of the sacred and holy Synod, as if by virtue of that decree it were lawful to be absent during five continuous months; the sacred and holy Synod, adhering to those decrees, declares, that all persons who are—under whatsoever name and title, even though they be cardinals of the holy Roman Church —set over any patriarchal, primatial, metropolitan, and cathe-

(m) Assistant; this word was for a long time opposed by those who denied the residence of bishops to be of divine right. (*») 1 Peter v. 3.

dral churches whatsoever, are obliged to personal residence in their own church, or diocese, where they shall be bound to dis¬ charge the office enjoined them; and may not be absent thence, save for the causes and in the manner subjoined. For whereas Christian charity, urgent necessity, due obedience, and the evident utility of the Church, or of the commonwealth, require and demand that some at times be absent, this same sacred and holy Synod ordains, that these causes of lawful absence are to be approved of in writing by the most blessed Roman Pontiff, or by the metropolitan, or, in his absence, by the oldest resident suffragan bishop, whose duty it shall also be to approve of the absence of the metropolitan ; except when such absence hap¬ pens in consequence of some employment and office in the state attached to the bishoprics ; the causes of which

absence being notorious, and at times sudden, it will not be necessary even to notify them to the metropolitan ; to whom it shall how- % ever belong, conjointly with the provincial Council, to judge of the permissions granted by himself, or by his suffragan, and to see that no one abuse that right, and that transgressors are punished with the penalties adjudged by the canons. Mean¬ while let those about to depart remember to provide in such sqrt for their sheep, as that, as far as possible, they may not suffer any injury through their absence. But, forasmuch as those who are only absent for a short period, are, in the sense of the ancient canons, not supposed to be absent, for that they are about to return immediately; the sacred and holy Synod wills, that that term of absence, whether continuous or inter¬ rupted, ought not by any means to exceed two, or at most three, months; except for the causes above named; and that regard be had that it be done from a just cause, and without any detri¬ ment to the flock: which, whether it be the case, the Synod leaves to tjie conscience of those who withdraw themselves, which It hopes will be religious and timorous; seeing that their hearts are open before God, whose work they are bound, at their peril, not to do deceitfully.(°) In the meantime It

(°) Jer. xlviii. 10.

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admonishes and exhorts them in the Lord, that, unless their epis¬ copal duties call them to some other part of their own diocese, they on no account be absent from their own cathedral church during the period of the Advent of the Lord, and of Lent, on the days of the Nativity, of the Lord’s Resurrection, of Pente¬ cost, and of Corpus Christi, on which days especially the sheep ought to be refreshed, and to rejoice in the Lord at the presence of the Shepherd.

But if any one, which it is hoped will never happen, shall be absent, contrary to the regulation of this decree, the sacred and holy Synod ordains, that, in addition to the other penalties imposed upon and renewed against non-residents, under Paul III., and the guilt of mortal sin which such an one incurs, he acquires no property in any fruits, in proportion to the time of his absence, and that he cannot, even though no other decla¬ ration but this follow, retain them as his with a safe conscience; but is bound, or, in his default, his ecclesiastical superior for him, to apply them to the fabric of the churches, or to the poor of the place; every kind of agreement, or composition as it is called, in regard of ill-gotten fruits, being prohibited, whereby the aforesaid fruits even might be wholly, or in part, restored to him; any privileges whatsoever, granted to any college or fabric, to the contrary notwithstanding.

The same also, both as regards the guilt, the loss of fruits, and the penalties, does the sacred and holy Synod wholly de¬ clare and decree, in regard of inferior pastors, (p) and all others whomsoever who hold any ecclesiastical benefice having cure of souls; in such wise, however, as that, whensoever it shall happen that they are absent, for a cause that has been first made known to, and been approved of by, the bishop, they shall leave, with

a due allowance of stipend, a suitable vicar, to be approved of by the Ordinary. And they shall not obtain permission to be absent,—which is to be granted in writing and gratuitously,— for a larger period than two months, except for some weighty cause; and if, after having been cited, even though not per-

(P) Curatis.

sonally, by an edict, they shall be contumacious, the Synod wills, that it be in the power of the Ordinaries to constrain them by ecclesiastical censures, and by the sequestration and substraction of fruits, and by other legal remedies, even as far as deprivation; and that the execution hereof shall not be able to be suspended by any manner of privilege soever, license, claim as a domestic, exemption,—though even upon the ground of any manner of benefice,—by any compact, or statute,—even though confirmed by oath or by what authority soever,—by any custom, even though immemorial, which herein is to be looked upon rather as a corruption, or by any appeal, or inhibition, even in the Roman Court, or by virtue of the constitution of Eugenius. Finally, the holy Synod commands, that both the decree under Paul IIL, and this present, shall be published in the provincial and episcopal councils; for It desires that things so nearly con¬ cerning the office of pastors, and the salvation of souls, be frequently impressed on the minds and ears of all men, that so, with God’s help, they may never hereafter be abolished through the injury of time, the forgetfulness of men, or by desuetude.

. CHAPTER II.

Those set over Churches shall receive the rite of conse¬ cration within three months; tchere the consecration is to take place .

Those who,—under whatsoever name or title, even though they be cardinals of the holy Roman Church,—have been set over cathedral, or superior, churches, if they shall not, within three months, have received the rite of consecration, shall be bound to restore the fruits which they have received,; if they shall have neglected to do this within three other months after¬ wards, they shall be ipso jure deprived of their churches. And their consecration, if performed out of the. Court of Rome, shall be celebrated in the church to which they have been promoted, or in the province, if it can be conveniently done.

ON REFORMATION.

CHAPTER III.

Bishopsy except in case of illness , shall confer Orders in person.

Bishops shall themselves confer orders; but, should they be prevented by illness, they shall not send their subjects to another bishop for ordination, unless they have been already approved of and examined.

CHAPTER IV.

Who are to be initiated by the first tonsure .

None shall be initiated by the first tonsure, who have not received the.sacrament of

Confirmation; and who have not been taught the rudiments of the faith; and who do not know how to read and write; and in whose regard there is not a probable conjecture, that they have chosen this manner of life, that they may render unto God a faithful service, and not that they may fraudulently withdraw themselves from Secular juris¬ diction.

CHAPTER V.

Wherewith those who are to be ordained are to be furnished.

Those who are to be promoted to minor orders shall have a good testimonial from their parish priest; and from the master of the school in which they are educated. As to those who are to be raised to any one of the greater orders, they shall, a month before ordination, repair to the bishop, who shall commission the parish priest, or such other person as may be deemed more expe¬ dient, to state publicly in the church the names and the desire of those who wish to be promoted; and to diligently inform himself, from persons worthy of credit, of the birth, age, morals, and life

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of those who are to he ordained, and shall transmit to the bishop himself, as soon as possible, letters testimonial, contain¬ ing the actual inquiry that has been made.

CHAPTER VI.

The age of fourteen years is required for an ecclesiastical benefice; who is to enjoy the privilege of the (< ecclesiastical) court .

No one, after being initiated by the first tonsure, or even after being constituted in minor orders, shall be able to hold(q) a benefice before his fourteenth year. Further, he shall not enjoy the privilege of the (ecclesiastical) court, unless he have an ecclesiastical benefice; or, wearing the ecclesiastical dress and tonsure, he serves in some church by the bishop’s order, or lives with the bishop’s permission in an ecclesiastical seminary, or in some school, or university, on the way as it were to receive the greater orders. As regards married clerks, the constitution of Boniface VIII., which begins, clerici qui cum unicis , shall be observed; provided the said clerks, being deputed by the bishop to the service or ministry of some church, serve and minister therein, and wear the clerical dress and tonsure : no privilege, or custom, even immemorial, availing any one herein.

CHAPTER VII.

Those to be ordained are to be examined by persons versed in divine and human laws .

The holy Synod, adhering to the traces of the ancient canons, ordains, that when a bishop has arranged to hold(r) an ordina¬ tion, all who may wish to be received into the sacred ministry shall be summoned to the city, for the Thursday before the said ordination, or for such other day as the* bishop shall think fit.

(q) Obtinere. , (r) Facere.

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And the bishop, calling to his assistance priests and other pru¬ dent persons, well skilled in the divine law, and of experience in the constitutions of the church, shall diligently investigate and examine the parentage, person, age, education, morals, learning, and faith of those who are to be ordained.

CHAPTER VIII.

How 9 and by whom 9 each ought to be ordained.

Ordinations of sacred orders shall be celebrated publicly, at the times appointed by law, and in the cathedral church, in the presence of the canons of that church, who are to be invited for that purpose ; but, if they are celebrated in some other place of the diocese, in the presence of the clergy of the place; the principal (•) church being always, as far as possible, made use of. But each one shall be ordained by his own bishop. And if any one ask to be promoted by another bishop, this shall by no means be allowed him, even under the pretext of any general or special rescript or privilege whatsoever, even at the appointed times; unless his probity and morals be recommended by the # testimony of his own Ordinary; otherwise, he who ordains him shall be suspended from conferring orders during a year, and he who has been ordained shall be suspended from exercising the orders which he has received, for as long a period as shall seem expedient to his own Ordinary.

CHAPTER IX.

' A bishop ordaining one of his own household y shall at once and really confer upon him a benefice.

A bishop may not ordain one of his household, who is not his subject, unless he has lived with him for the space of

(®) Dignior.

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three years; and he shall really, and without fraud of any kind, at once confer on him a benefice ; any custom, even though im¬ memorial, to the contrary notwithstanding.

CHAPTER X.

Prelates inferior to bishops shall not give the tonsure 9 or minor orders , save to Regulars their own subjects ; neither shall they 9 nor any Chapters whatsoever , grant dimissory letters; a more grievous penalty is enacted against those who offend against this decree .

It shall not henceforth be lawful for abbots, or for any other persons whatsoever, howsoever exempted, being within the limits of any diocese, even though they be said to be of no diocese, or to be exempted, to confer the tonsure, or minor orders on any one who is not a Regular subject to them; nor shall the said abbots, and other exempted persons, or any col¬ leges, or Chapters whatsoever, even those of cathedral churches, grant letters dimissory to any Secular clerics to be ordained by others. But the ordination of all these persons shall appertain to the bishops within the limits of whose diocese they

are, all things contained in the decrees of this holy Synod being ob¬ served ; any privilege, prescriptions, or customs, even though immemorial, notwithstanding. And the Synod ordains, that the penalty imposed on those, who, contrary to the decree of this holy Synod under Paul III., obtain, during the vacancy of the episcopal See, letters dimissory from the Chapter, be also extended to those who shall obtain the said letters, not from the Chapter, but from any other persons whatsoever, who, during the vacancy of the See, ucceed to the jurisdiction of the bishop, in lieu of the Chapter. And they who give dimissory letters, contrary to the form of this decree, shall be ipso jure suspended during a year from their office and benefice.

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CHAPTER XI.

The interstices, and certain other regulations , to be observed in receiving minor orders.

The minor orders shall not be given but to such as under¬ stand the Latin language at least, observing the appointed inter¬ stices of time, unless the bishop shall think it more expedient to act otherwise; that so they may be the more accurately taught how great is the obligation of this their state of life; and may exercise themselves in each office, agreeably to the appoint¬ ment of the bishop; and this in the church to which they shall be assigned, unless they happen to be absent on account of their studies; and may thus ascend step by step: that so with their increasing age they may grow in worthiness of life and in learning; of which they will give proof especially by the example of their good conduct, by their assiduous service in^he church, their greater reverence towards priests and the superior orders, and by a more frequent communion than heretofore of the Body of Christ. And whereas from these orders is the en¬ trance unto higher orders and to the most sacred mysteries, no one shall be admitted thereunto,(l) whom the promise of know¬ ledge does not point out as worthy of the greater orders. And such shall not be promoted to sacred orders till a year after the reception of the last degree of minor orders; unless necessity, or the utility of the church, in the bishop’s judgment, shall require otherwise.

CHAPTER XII.

Age required for the major orders; the deserving only to be

admitted .

No one shall for the future be promoted to the order of subdeaconship before the twenty-second year of his age; to that of

(t) Iis initietur, initiated therein.

deaconship before his twenty-third year; to that of priest¬ hood before his twenty-fifth year. Nevertheless, bishops are to know, that not all who have attained to that age must needs be admitted to the aforesaid orders, but those only who are worthy, and whose

commendable life is an old age. Regu¬ lars likewise shall not be ordained under the above age, nor without a diligent examination by the bishop; all privileges whatsoever in this regard being completely set aside.

CHAPTER XIII.

On the conditions required in the Ordination of a Subdeacon and Deacon: on no one shall two sacred Orders be conferred on the same day .

Such as have a good testimonial, and have been already tried(T) in minor orders, and are instructed in letters, and in thdse things which belong to the exercise of their orders, shall be ordained subdeacons and deacons. They shall have a hope, with God’s help, to be able to live continently; they shall serve in the churches to which they may be assigned; and are to know that it is very highly becoming that, after ministering at the altar, they should receive the sacred communion, at least on the Lord’s days and solemnities. Those who have been pro¬ moted to the sacred order of the subdeaconship shall not, until they have remained therein during at least a year, be permitted to ascend to a higher degree, unless the bishop shall judge otherwise. Two sacred orders shall not be conferred on the same day, even upon Regulars; any privileges and indults whatsoever, to whomsoever granted, to the contrary notwithstanding.

CHAPTER XIV.

Who are to be raised to the Priesthood: their office .

Those who have conducted themselves piously and faithfully in their precedent functions, and are promoted to the order of

(v) Jam probati, already approved themselves.

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priesthood, shall have a good testimonial, and be persons who not only have served in their office of deacon during at least an entire year,—unless for the utility and the necessity of the Church, the bishop should judge otherwise,—but who have also been approved to be, by a careful previous examination, capable of teaching the people those things which it is necessary for all to know unto salvation, as also fit to administer the sacraments; and so conspicuous for piety and chasteness 6f morals, as that a shining example of good works and a lesson how to live may be expected from them. The bishop shall take care that they celebrate mass at least on the Lord's Days, and on solemn festivals; but, if they have the cure of souls, so often as to satisfy their obligation. (w) The bishop may, for a lawful cause, grant a dispensation to those who have been promoted per saltum,(x) provided they have not exercised the ministry (of that order).

CHAPTER XV.

No one shall hear confessions , unless he be approved of by the

Ordinary .

Although priests receive in their ordination the power of absolving from sins;

nevertheless, the holy Synod ordains, that no one, even though he be a Regular, is able to hear the con¬ fessions of Seculars, not even of priests, and that he is not to be reputed fit thereunto, unless he either holds a parochial bene¬ fice, or is, by the bishops, after an examination if they shall think it necessary, or in some other manner, judged capable ; and has obtained their approval, which shall be granted gra¬ tuitously ; any privileges, and custom whatsoever, though imme¬ morial, to the contrary notwithstanding. _

(w) Ut suo muneri (their duty) satisfaciant.

(x) Per saltum, omitting, that ia, an inferior order.

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CHAPTER XVI.

Those who are ordained shall be assigned to a 'particular church .

Whereas no one ought to be ordained, who, in the judgment of his own bishop, is not useful or necessary for his churches, the holy Synod, adhering to the traces of the sixth canon of the council of Chalcedon, ordains, that no one shall for the future be ordained without being attached to that church, or pious place, for the need, or utility of which he is promoted; there to discharge his dutiefe, and not wander about without any certain abode. And if he shall quit that place without consulting the bishop, he shall be interdicted from the exercise of his sacred (orders). Furthermore, no cleric, who is a stranger, shall, without letters commendatory from his own Ordinary, be ad¬ mitted by any bishop to celebrate the divine mysteries, (*) and to administer the sacraments.

CHAPTER XVII.

In what manner the exercise of the minor orders is to be

restored.

That the functions of holy orders, from the deacon to the janitor,—which functions have been laudably received in the Church from the times of the apostles, and which have been for some time interrupted in very many places,—may be again brought into use in accordance with the sacred canons; and that they may not be traduced by heretics as useless; the holy Synod, burning with the desire of restoring the pristine usage, ordains that, for the future, such functions shall not be exer¬ cised but by those who are actually in the said orders ; and It exhorts in the Lord all and each of the prelates of the churches, and commands them, that it be their care to restore the said

(y) Divina.

functions, as far as it can be conveniently done, in the cathedral, collegiate, and parochial churches of their dioceses, where the number of the people and the revenues of the church can sup¬ port it; and, to those who exercise those functions, they shall assign

salaries out of some part of the revenues of any simple benefices, or those of the fabric of the church,—if the funds allow of it,—or out of the revenues of both together, of which stipends they may, if negligent, be mulcted in a part, or be wholly deprived thereof, according to the judgment of the Ordi¬ nary. And if there should not be unmarried clerics at hand to exercise the functions of the four minor orders, their place may be supplied by married clerics of approved life; provided they have not been twice married, be competent to discharge the said duties, and wear the tonsure and the clerical dress in church.

CHAPTER XVIII.

Method of establishing Seminaries for Clerics , and of educating the same therein .

Whereas the age of youth, unless it be rightly trained, is prone to follow after the pleasures of the world ; and unless it be formed, from its tender years, unto piety and religion, before habits of vice have taken possession of the whole man, it never will perfectly, and without the greatest, and well-nigh special, help of Almighty God, persevere in ecclesiastical discipline; the holy Synod ordains, that all cathedral, metropolitan, and other churches greater than these, shall be bound, each accord¬ ing to its means and the extent of the diocese, to maintain, (z) to educate religiously, and to train in ecclesiastical discipline, a certain number of youths of their city and diocese, or, if that number cannot be met with there, of that province, in a college to be chosen by the bishop for this purpose near the said churches, or in some other suitable place. Into this college shall be received such as are at least twelve years old, bom in

(*) Alere, to feed.

lawful wedlock, and who know how to read and write compe¬ tently, and whose character and inclination afford a hope that they will always serve in the ecclesiastical ministry. And It wishes that the children of the poor be principally selected; though It does not however exclude those of the more wealthy, provided they be maintained at their own expense, and manifest a desire of serving God and the Church. The bishop, having divided these youths into as many classes as he shall think fit, according to their number, age, and progress in ecclesiastical discipline, shall, when it seems to him expedient, assign some of them to the ministry of the churches, the others he shall keep in the college to be instructed; and shall supply the place of those who have been withdrawn, by others; that so this college may be a perpetual seminary of ministers of God. And that the youths may be the more advantageously trained in the afore¬ said ecclesiastical discipline, they shall always at once wear the tonsure and the clerical dress; they shall learn grammar, sing¬ ing, ecclesiastical computation, and the other liberal arts; they shall be instructed in sacred Scripture; ecclesiastical works; the homilies of the saints; the manner of administering the sacraments, especially those things which shall seem adapted to enable them to hear confessions; and the forms of the rites and ceremonies. The bishop shall take care that they be present every day at the sacrifice of the mass, and that they confess their sins at least once a month; and receive the body of our Lord Jesus Christ as the judgment of their confessor shall direct; and on festivals serve in the cathedral and other churches of the place.

All which, and other things advantageous and needful for this object, all bishops shall ordain—with the advice of two of the senior and most experienced canons chosen by himself—as the Holy Spirit shall suggest; and shall make it their care, by frequent visitations, that the same be always observed. The froward, and incorrigible, and the disseminators of evil morals, they shall punish sharply, even by expulsion if necessary ; and, removing all hindrances, they shall carefully foster whatsoever appears to tend to preserve and advance so pious and holy an institution. And forasmuch as some certain revenues will be

necessary, for raising the building of the college, for paying their salaries to the teachers and servants, for the maintenance of the youths, and for other expenses; besides those funds which are, in some churches and places, set apart for training or maintaining youths, and which arc to be hereby (•) looked upon as applied to this seminary under the said charge of the bishop; the bishops as aforesaid, with the advice of two of the Chapter,—of whom one shall be chosen by the bishop, and the other by the Chapter itself, and also of two of the clergy of the city, the election of one of whom shall in like manner be with the bishop, and of the other with the clergy,—shall take a certain part or portion, out of the entire fruits of the episcopal revenue,(b) and of the chapter, and of all dignities whatsoever, personates, offices, prebends, portions, abbies, and priories, of whatsoever order, even though Regular, or of whatsoever quality,

* or condition they may be, and of hospitals which are conferred under title or administration, pursuant to the constitution of the Council of Vienne, which begins Quia contingit; and of all benefices whatsoever, even those belonging to Regulars, even those which are under any right of patronage, even those that are exempted, that are of no diocese, or are annexed to other churches, monasteries, hospitals, or to any other pious places, even such as are exempted; as also of the revenues devoted to the fabrics of churches, and of other places, and likewise of all other ecclesiastical revenues and proceeds what¬ soever, even those of other colleges;—in which, however, there are not actually seminaries of scholars, or of teachers, for pro¬ moting the common good of the Church; for the Synod wills that those places be exempted, except in regard of such revenues as may remain over and above the suitable support of the said seminaries;—or of bodies, or confraternities, which in some places are called schools, likewise of all monasteries, with the exception of the Mendicants; also of the tithes in any way belonging to laymen, out of which ecclesiastical subsidies are wont to be paid; and those belonging to the soldiers of any

(») Eo ipso.

(b) Mens® episcopalis.

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military body, or order, the brethren of Saint John of Jerusalem alone excepted ; and they

shall apply to, and incorporate with, the said college this portion so deducted, as also a certain number of simple benefices, of whatsoever quality and dignity they may bej or even prestimonies, or prestimonial portions as they are called, even before they fall vacant, without prejudice however to the divine service, or to those who hold them. And this shall have effect, even though the benefices be reserved or appropriated to other uses; nor shall this union and application of the said benefices be suspended, or in any way hindered, by any resignation thereof, but shall still in any case have effect, notwithstanding any way whatever in which they may be vacated, even be it in the Roman court, and notwithstanding any constitution whatsoever to the contrary.

The bishop of the place shall, by ecclesiastical censures, and other legal means, even by calling in for this purpose, if he think fit, the help of the Secular arm, compel the possessors of benefices, dignities, personates, and of all and singular the above-named (revenues), to pay this portion not merely on their own account, but also on account of whatsoever pensions they may happen to have to pay to others, out of the said revenues,—keeping back however a sum equivalent to that which they have to pay on account of those pensions: notwithstanding as regards all and singular the above-mentioned premises, any privileges, exemptions—even such as might require a special derogation—any custom, even immemorial, or any appeal, and allegation, which might hinder the execution hereof. But in case it should happen that, by means of the said unions being carried into effect, or from some other cause, the said seminary should be found to be wholly or in part endowed, then shall the portion, deducted as above from all benefices and incorporated by the bishop, be remitted, either wholly or in part, as the actual cir¬ cumstances shall require. But if the prelates of cathedrals, and of the other greater churches, should be negligent in erecting the said seminary, and in preserving the same, and refuse to pay their share; it will be the duty of the archbishop sharply to re¬ prove the bishop, and to compel him to comply with all the matters aforesaid, and of the provincial Synod to reprove and

to compel in like manner the archbishop, and sedulously to pro¬ vide that this holy and pious work be as soon as possible pro¬ ceeded with, wherever it is possible. The bishop Bhall annually receive the accounts of the revenues of the said seminary, in the presence of two deputies from the Chapter, and of the same number deputed from the clergy of the city.

Furthermore, in order that the teaching in schools of this nature may be provided for at less expense, the holy Synod ordains, that bishops, archbishops, primates, and other Ordi¬ naries of places, shall constrain and compel, even by the substraction of their fruits, those who possess any dignities as professors of theology, (c) and all others to whom is attached the office of lecturing, or of teaching, to teach those who are to be educated in the said schools, personally, if they be com¬ petent, otherwise by competent substitutes to be chosen by themselves, and to be approved of by the Ordinary. And if, in^the judgment of the bishop, those chosen are not fit, they shall nominate another who is fit,

without any appeal being allowed; but should they neglect to do this, the bishop himself shall depute one. * And the aforesaid masters shall teach those things which the bishop shall judge expedient And, hence¬ forth, those offices, or dignities, which are called professorships of theology,(d) shall not be conferred on any but doctors, or masters, or licentiates in divinity, or canon law, or on other competent persons, and such as can personally discharge that office; and any provision made otherwise shall be null and void: all privileges and customs whatsoever, even though im¬ memorial, notwithstanding.

But if the churches in any province labour under so great poverty, as that a college cannot be established in certain (churches) thereof; the provincial Synod, or the metropolitan,^) aided by the two oldest suffragans, (*) shall take care to establish one or more colleges, as shall be judged expedient, in the metro-

(c) Scholesterias. (d) Scholasteria.

(e) Synodus... .metropolitana; other early editions have metropolitan^^ (0 Antiquioribus.

politan, or in some other more convenient church of the pro¬ vince, out of the revenues of two or more churches, in which singly a college cannot conveniently be established, and there shall the youths of those churches be educated.

But in churches which have extensive dioceses, the bishop may have one or more seminaries in the diocese, as to him shall seem expedient; which seminaries shall however be entirely dependent in all things on the one erected and established in the (episcopal) city.

Finally, if, either upon occasion of the said unions, or the taxation, or assignment, and incorporation of the above-named portions, or from some other cause, there should happen to arise any difficulty, by reason of which the institution, or maintenance of the said seminary may be hindered or disturbed, the bishop with the deputies as above, or the provincial Synod according to the custom of the country, shall have power, regard being had to the character of the churches and benefices, to regulate and order all and singular the matters which shall seem necessary and expedient for the happy advancement of the said seminary, even so as to modify or enlarge, if need be, the conteuts hereof.

INDICTION OF THE NEXT SESSION.

Moreover, the same sacred and holy Synod of Trent indicts the next ensuing Session for the sixteenth day of the month of September; in which it will treat of the sacrament of Matrimony, and of such other matters, if there be any, relative to the doc¬ trine of faith as can be expedited, as also on provisions for bishoprics, dignities, and other ecclesiastical benefices, and divers articles of Reformation.

The Session was prorogued to the eleventh day of November ,

MDLXIII.

THE SACRAMENT OF MATRIMONY.

Decree on the Reformation of Marriage

Being the eighth under the Sovereign Pontiff, Pius IV., cele¬ brated on the eleventh day of November, mdlxiii.

The first parent of the human race, under the influence (*) of the divine Spirit, pronounced the bond of matrimony perpe¬ tual and indissoluble, when he said; This now is bone of my bones , and flesh of my flesh. Wherefore a man shall leave father and mother, and shall cleave to his wife , and they shall be two in one flesh.(h) But, that by this bond two only are united and joined together, our Lord taught more plainly, when rehearsing those last words as having been uttered by God, He said, therefore now they are not two, but one flesh ;(*) and straightway confirmed the firmness of that tie, proclaimed so long before by Adam, by these words; What therefore God hath joined together, let no man put asunder.if) But, the grace which might perfect that natural love, and confirm that indisso¬ luble union, and sanctify the married, Christ Himself, the institutor and perfecter of the venerable sacraments, merited for us by His passion; as the Apostle Paul intimates, saying: Husbands love your wives, as Christ also loved the Church, and delivered himself up for it; adding shortly after. This is a great sacra¬ ment, but I speak in Christ and in the Church.Q) Whereas therefore matrimony, in the evangelical law, excels in grace, through Christ, the ancient marriages; with reason have our holy Fathers, the Councils, and the tradition of the universal Church, always taught, that it is to be numbered amongst the sacraments of the new law; against which, impious men of this age raging, have not only had false notions touching this venerable sacrament, but, introducing according to their wont,

(ff) Instinctu, inspiration.

(i) Matth. xix. 6. (k) Ibid.

(h) Gen. ii. 23, 24.

0) Ephes. v. 25, 32.

under the pretext of the Gospel, a carnal liberty, they have by word and writing asserted, not without great injury to the faithful of Christ, many things alien from the sentiment of the Catholic Church* and from the usage approved of since the times of the apostles; the holy and universal Synod wishing to meet the rashness of these men, has thought it proper, lest their pernicious contagion may draw more after it, that the more remarkable heresies and errors of the above-named schismatics be extermi¬ nated, by decreeing against the said heretics and their errors the following anathemas.

ON THE SACRAMENT OF MATRIMONY.

Canon i. —If any one saith, that matrimony is not truly and properly one of the seven sacraments of the evangelic law, (a sacrament) instituted by Christ the Lord; but that it has been invented by men in the Church; and that it does not confer grace; let him be anathema.

Canon ii.—I f any one saith, that it is lawful for Christians to have several wives at the same time, and that this is not pro¬ hibited by any divine law ; let him be anathema.

Canon hi. —If any one saith, that those degrees only of con¬ sanguinity and affinity, which are set down in Leviticus, can hinder matrimony from being contracted, and dissolve it when contracted; and that the Church cannot dispense in some of those degrees, or establish that others may hinder and dissolve it; let him be anathema.

Canon iv. —If any one saith, that the Church could not establish impediments dissolving marriage; or that she has erred in establishing them ; let him be anathema.

Canon v. —If any one saith, that on account of heresy, or irksome cohabitation, or the affected(*) absence of one of the parties, the bond of matrimony may be dissolved; let him be anathema.

(m) Affectatftm, designed, voluntary.

ON THE 8ACRAMENT OF MATRIMONY.

Canon vi.—I f any one saith, that matrimony contracted, but not consummated, is not dissolved by the solemn profession of religion by one of the married parties ; let him be anathema.

Canon vii.—I f any one saith, that the Church has erred, in that she hath taught, and doth teach, in accordance with the evangelical and apostolical doctrine, that the bond of matrimony cannot be dissolved on account of the adultery of one of the married parties ; and that both, or even the innocent one who gave not occasion to the adultery, cannot contract another mar¬ riage, during the life-time of the other; and, that he is guilty of adultery, who, having put away the adulteress, shall take another wife, as also she, who, having put away the adulterer, shall take another husband ; let him be anathema.

Canon viii.—I f any one saith, that the Church errs, in that 6he declares that, for many causes, a separation may take place between husband and wife, in regard of bed, or in regard of cohabitation, for a determinate or for an indeterminate period; let him be anathema.

Canon ix.—I f any one saith, that clerics constituted in sacred orders, or Regulars, who have solemnly professed chastity, are able to contract marriage, and that being contracted it is valid, notwithstanding the ecclesiastical law, or vow; and that the contrary is nothing else than to. condemn marriage; and, that all who do not feel that they have the gift of chastity, even though they have made a vow thereof, may contract marriage; let him be anathema: seeing that God refuses not that gift to those who ask for it rightly, neither does He suffer us to be tempted above that which we are able.(9)

Canon x.—I f any one saith, that the marriage state is to be placed above (°) the state of virginity, or of celibacy*, and that it is not *bettei -andr more^blessed to'remain ih virginity, or in celi¬ bacy, than to bemritecTm matrimony^ let himbe anathema.

Canon xi.—I f any one saith, That t tie prohibition of the solemnization of marriages at

certain times of the year, is a tyr anni cal superstition, derived from the superstition of the

(n) i Cor. x. 13. (°) Anteponendum, preferred before.

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heathen; or, condemn the benedictions and other ceremonies which the Church makes use of therein; let him be anathema.

Canon xit.—If any one saith, that matrimonial causes do not belong to(p) ecclesiastical judges; let him be anathema.

CHAPTER I.

The form prescribed in the Council of Lateran for solemnly contracting marriage is renewed.—Bishops may dispense with the bans .— Whosoever contracts marriage , otherwise than in the presence of the Parish Priest and of two or three witnesses 9 contracts it invalidly.

Although it is not to be doubted, that clandestine marriages, made with the free consent of the contracting parties, are valid(q) and true marriages, so long as the Church has not rendered them invalid; and consequently, that those persons are justly to be condemned, as the holy Synod doth condemn them with anathema, who deny that such marriages are true and valid; as also those who falsely affirm that marriages contracted by the children of a family, (r) without the consent of their parents, ajre invalid, and that parents can make such marriages either valid or invalid; nevertheless, the holy Church of God has, for reasons most just, at all times detested and prohibited such marriages. But whereas the holy Synod perceives that those prohibitions, by reason of man’s disobedience, are no longer of avail; and whereas it takes into account the grievous sins which arise from the said clandestine marriages, and especially the sins of those parties who live on in a state of damnation, when, having left their former wife, with whom they had contracted marriage secretly, they publicly marry another, and with her live in per-

(P) Spectare ad. 00 Rata. (0 A filiis familias.

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petual adultery ; an evil which the Church, which judges not of what is hidden, cannot rectify, unless some more efficacious remedy be applied; wherefore, treading in the steps of the sacred Council of Lateran celebrated under Innocent III., It ordains that, for the future, before a marriage is contracted, the proper parish priest of the contracting parties shall three times an¬ nounce publicly in the Church, during the solemnization of mass, on three continuous festival days, between whom mar¬ riage is to be celebrated; after which publication of banns, (•)

' if there be no lawful impediment opposed, the marriage shall be proceeded with in the face of the church; where the parish priest, after having interrogated the man and the woman, and heard(*) their mutual consent, shall either say, “ I join you together in matrimony, in the name of the Father, and of the Son, and of the Holy Ghostor, he shall

use other words, according to the received rite of each province. But if upon occasion, there should be a probable suspicion that the marriage may be maliciously hindered, if so many publications of banns precede it; in this case either one publication only shall be made; or at least the marriage shall be celebrated in the pre¬ sence of the parish priest, and of two or three witnesses : Then, before the consummation thereof, the banns shall be published in the church ; that so, if there be any secret impediments, they may be the more easily discovered: unless the Ordinary shall himself judge it expedient, that the publications aforesaid be dispensed with, which the holy Synod leaves to his prudence and judgment. Those who shall attempt to contract marriage otherwise than in the presence of the parish priest, or of some other priest by permission of the said parish priest, or of the Ordinary, and in the presence of two or three witnesses; the holy Synod renders such wholly incapable of thus contracting, and declares such contracts invalid and null, as by the present decree It invalidates and annuls them. Moreover It enjoins, that the parish priest, or any other priest, who shall have been

(*) Quit us denuntiationibus factis.

(*) Intellect©, understood, become acquainted with.

present at any such contract with a less number of witnesses (than as aforesaid); as also the witnesses who have been present thereat without the parish priest, or some other priest; and also the contracting parties themselves; shall be severely punished, at the discretion of the Ordinary. Furthermore, the same holy Synod exhorts the bridegroom and bride (T) not to live together in the same house until they have received the sacerdotal benediction, which is to be given in the church; and It ordains that the benediction shall be given by their own parish priest, and that permission to give the aforesaid benedic¬ tion cannot be granted by any other than the parish priest him¬ self, or the Ordinary; any custom, even though immemorial, which ought rather to be called a corruption, or any privilege to the contrary, notwithstanding. And if any parish priest, or any other priest, whether Regular or Secular, shall presume to unite in marriage the betrothed of another parish, or to bless them when married,(w) without the permission of their parish priest, he shall—even though he may plead that he is allowed to do this by a privilege, or an immemorial custom,—remain ipso jure suspended, until absolved by the Ordinary of that parish priest who ought to have been present at the marriage, or from whom the benediction ought to have been received.

The parish priest shall have a book, which he shall keep carefully by him, in which he shall register the names of the persons married, and of the witnesses, and the day on which, and the place where, the marriage was contracted.

Finally, the holy Synod exhorts those who marry, that, before they contract marriage, or, at all events, three days before the consummation thereof, they carefully confess their sins, and approach devoutly to the most holy sacrament of the Eucharist.

If any provinces have herein in use any praise-worthy cus¬ toms and ceremonies, besides the aforesaid, the holy Synod earnestly desires that they be by all means retained.

And that these so wholesome injunctions may not be unknown

(v) Conjiiges, the married couple.

Alterius parochitt sponsor.... matrioionio conjuiigcre, aut benedicere.

to any, It enjoins on all Ordinaries, that they, as soon as possible, make it their care that this decree be published and explained to the people in eveiy parish church of their re¬ spective dioceses; and that this be done as often as may be during the first year; and afterwards as often as they shall judge it expedient. It ordains, moreover, that this decree shall begin to be in force in each parish, at the expiration of thirty days, to be counted from the day of its first publication made in the said parish.

CHAPTER II.

Between whom Spiritual Relationship is contracted .

Experience teaches, that, by reason of the multitude of pro¬ hibitions, marriages are ofttimes unwittingly contracted in pro¬ hibited cases, in which marriages either the parties continue to live on, not without great sin, or they are dissolved, not without great scandal. Wherefore, the holy Synod, wishing to provide against this inconvenience, and beginning with the impediment arising from spiritual relationship, ordains, that, in accordance with the appointments of the sacred canons, one person only, whether male or female, or at most one male and one female, shall receive in baptism(*) the individual baptized; between whom and the baptized, and the father and mother thereof; as also between the person baptizing and the baptized, and the father and mother of the baptized; and these only; shall spiritual relationship be contracted.

The parish priest, before he proceeds (y) to confer baptism, shall carefully inquire of those whom it may concern, what person or persons they have chosen to receive from the sacred font the individual baptized, and he shall allow him or them only to receive the baptized; shall register their names in the book, and teach them what relationship they have contracted, that they may not have any excuse on the score of ignorance.

(*) De baptisino, from baptism.

(y) Aceedat.

And if any others, besides those designated, should touch the baptized, they shall not in any way contract a spiritual relation¬ ship ; any constitutions that tend to the contrary notwithstanding. If through the fault or negligence of the parish priest any thing be done contrary hereto, he shall be punished, at the discretion of the Ordinary. That relationship, in like manner, which is contracted by confirmation shall not pass beyond him who confirms the person confirmed, his father and mother, and him who places his hand on him ;(z) all impediments arising from this kind of spiritual relationship between other persons being utterly set aside.

CHAPTER III.

The impediment of public honesty is confined icithin certain

limits.

Tfie holy Synod entirely removes the impediment of justice arising from publio honesty,(a) whensoever espousals shall be, for whatsoever cause, not valid; but, when they are valid, the impediment shall not extend beyond the first degree; forasmuch as any such prohibition can no longer be observed, without injury, in more remote degrees.

CHAPTER IV.

Affinity arising from fornication is confined to the second

degree.

Moreover, the holy Synod, moved by the same and other most weighty reasons, limits, to those only who are connected in the first and second degree, the impediment contracted by affinity arising from fornication, and which dissolves the mar¬ riage that may have been afterwards contracted. It ordains

(x) Tenentem, who holds him.

(*) JustitiaB public® houestatis impedimentum.

that, as regards degrees more remote, this kind of affinity does not dissolve the marriage that may have been afterwards con¬ tracted.

CHAPTER V.

No one is to marry within the prohibited degreesin what manner dispensation is to be granted therein .

If any one shall presume knowingly to contract marriage within the prohibited degrees, he shall be separated, and be without hope of obtaining a dispensation; and this shall much the rather have effect in regard of him who shall have dared not only to contract such a marriage, but also to consummate it. But if he have done this in ignorance, but yet has neglected the solemnities required in contracting matrimony, he shall be sub¬ jected to the same penalties. For he who has rashly despised the wholesome precepts of the Church, is not worthy to experi-' ence without difficulty her bounty. But if, having observed those solemnities, some secret impediment be afterwards dis¬ covered, of which it was not unlikely that he should be ignorant, he may in this case more easily obtain a dispensation, and that gratuitously. As regards marriages to be contracted, either no dispensation at all shall be granted, or rarely, and then for a cause, and gratuitously. A dispensation shall never be granted in the second degree, except between great princes, and for a public cause.

CHAPTER VI.

Punishments inflicted on Abductors.

The holy Synod ordains, that no marriage can subsist between the abducer and her who is abducted,(b) so long as she shall remain in the power of the abducer. But if she that has been

(b) Inter raptorem et raptam, between the ravisher, and her who is ravished.

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abducted, being separated from the abducer, and being in a safe and free place, shall consent to have him for her husband, the abducer may have(c) her for his wife; but nevertheless the ab¬ ducer himself and all who lent him advice, aid, and countenance, shall be ipso jure excommunicated, for ever infamous, and in¬ capable of all dignities; and if they be clerics they shall forfeit their rank. The abducer shall furthermore be bound, whether he many the person abducted, or marry her not, to settle on her a handsome(d) dowry at the discretion of the judge.

CHAPTER VII.

Vagrants are to be married with caution .

There are many persons who are vagrants, having no settled homes; and, being of a profligate character, they, after abandon¬ ing their first wife, marry another, and very often several in dif¬ ferent places, during the life-time of the first The holy Synod, being desirous to obviate this disorder, gives this fatherly ad¬ monition to all whom it may conoera, not easily to admit this class of vagrants to marriage; and It also exhorts the civil magistrates to punish such persons severely. But It commands parish priests not to be present at the marriages of such persons, unless they have first made a careful inquiry, and, having re¬ ported the circumstance to the Ordinary, they shall have ob¬ tained permission from him for so doing.

CHAPTER VIII.

Concubinage is severely punished .

It is a grievous sin for unmarried men 'to have concubines; but it is a most grievous sin, and one committed in special con¬ tempt of this great sacrament, for married men also to live in this state of damnation, and to have the audacity at times to

(c) Habeat. (d) Decenter.

maintain and keep them at their own homes even with their own wives. Wherefore, the holy Bynod, that it may by suitable remedies provide against this exoeeding evil, ordains that these eoncubinaries, whether unmarried or married, of whatsoever state, dignity, and condition they may be, if, after having been three times admonished on this subject by the Ordinary, even ex officio, they shall not have put away their concubines, and have separated themselves from all connexion with them, they shall be smitten with excommunication; from which they shall not be absolved until they have really obeyed the admonition given them. But if, regardless of this censure, they shall con¬ tinue in

concubinage during a year, they shall be proceeded against with severity by the Ordinary, according to the character of the crime. Women, whether married or single, who publicly live with adulterers or with eoncubinaries, if, after having been three times admonished, they shall not obey, shall be rigorously punished, according to the measure of their guilt, by the Ordi¬ naries of the places, ex officio , even though not called upon to do so by any one; and they shall be cast forth from the city or diocese, if the Ordinaries shall think fit, balling in the aid of the Secular arm, if need be; the other penalties inflicted on adulterers and cofacubinaries remaining in their full force.

CHAPTER IX.

Temporal lords , or magistrates, shall not attempt anything contrary to the liberty of marriage.

Earthly affections and desires do for the most part so blind the eyes of the understanding of temporal lords and magistrates, as that, by threats and ill-usage, they compel both men and women, who live under their jurisdiction,—especially such as are rich, or who have expectations of a great inheritance,—to contract marriage against their inclination with those whom the said lords or magistrates may prescribe unto them. Wherefore, seeing that k is a thing especially execrable to violate the liberty of matrimony, and that wrong comes from those from whom right is looked for, the holy Synod enjoins on all, of

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whatsoever' grade, dignity, and condition they may be, under pain of anathema to be ipso facto incurred, that they put no constraint,(e) in any way whatever, either directly or indirectly, on those subject to them, or any others whomsoever, so as to hinder them from freely contracting marriage.

CHAPTER X.

The solemnities of marriage are prohibited at certain times .

The holy Synod enjoins, that the ancient prohibitions of solemn nuptials be carefully observed by all, from the Advent of our Lord Jesus Christ until the day of the Epiphany, and from Ash-Wednesday until the octave of Easter inclusively; but at other times It allows marriages to be solemnly celebrated; and the bishops shall take care that they be conducted with becoming modesty and propriety: for marriage is a holy thing, and is to be treated in a holy manner.

Decree on Reformation

The same sacred and holy Synod, prosecuting the subject of Reformation, ordains that the things following be established in the present Session.

CHAPTER I.

The manner of proceeding to the creation of Bishops and

Cardinals .

If, as regards all manner of degrees in the Church, a provident and enlightened care is to be taken, that in the house of the Lord there be nothing disorderly, nothing unseemly; much more ought we to strive that no error be committed in the election of him who is constituted above all those degrees.

(*) No cogant.

ON REFORMATION.

For the state and order of the whole household of the Lord will totter, if what is required in the body be not found in the head. For which cause, although the holy Synod has else¬ where usefully ordained certain things touching those who are to be promoted to cathedral and superior churches, yet doth* it account this office to be of such a nature, as that were it to be pondered upon in proportion to its greatness, there would never seem to have been caution enough taken. Wherefore It ordains, that, as soon as a church shall become vacant, processions, and prayers shall be made in public and private ; and such shall be enjoined, by the Chapter, throughout the city and diocese; that thereby both clergy and people may be enabled to obtain from God a good pastor. 1

And as regards all and each of those who have, in any way, any right from the Apostolic See, or who otherwise have a part, in the promotion of those to be set over the churches; the holy Synod,—without ‘making any change herein, from a consideration of the circumstances of the present time,—ex¬ horts and admonishes them, that they above all things bear in mind that they cannot do anything more conducive to the glory of God, and the salvation of the people, than to study to promote good pastors, and such as are capable of governing a church; and that they sin mortally, becoming partakers in others’ sins, unless they carefully endeavour that those be pro¬ moted whom they themselves judge the most worthy 0 of, and useful to, the church, not guided by entreaties, or human affection, or the solicitations of pretenders,(*) but by what the merits of the individuals require at their hands; and seeing that they be persons whom they know to have been bom in lawful wedlock, and who, by their life, learning, and in all other qualifications, are such as are required by the sacred canons, and by the decrees of this Synod of Trent.

And forasmuch as, by reason of the diversity of nations, peoples, and customs, a uniform system cannot be followed everywhere, in receiving the grave and competent testimony of

0 Digniores.

(?) Ambientium, canvassers.

good and learned men on the subject of the aforesaid qualifica¬ tions, the holy Synod ordains, that, in a provincial Synod, to be held by the metropolitan, there shall be prescribed for each place and province a proper(h) form of examination, scrutiny, or information, such as shall seem to be most useful and suitable for the said places, which form is to be submitted to the approval of the most holy Roman Pontiff; yet so, however, that, after that this examination, or scrutiny, as regards the person to be pro¬ moted, shall have been completed, it shall, after being reduced into the form of a public document, be necessarily transmitted, as soon as possible, with all the attestations and with the profession of faith made by the individual to be promoted, to the most holy Roman Pontiff, in order that the said Sovereign Pontiff, having a full knowledge of the whole matter and of the persons, may, for the advantage of the Lord’s flock, in a most useful manner provide those churches therewith, if they shall have been found,, by the examination or scrutiny, suitable persons.^) And all the scrutinies, informations, attestations, and proofs of whatso¬ ever kind, and by whomsoever made, even though in the Roman court, touching the qualifications of the person to be promoted, shall be carefully examined by a cardinal—who shall report thereon to the consistory—aided therein by three other car¬ dinals ; and the said report shall be authenticated by the signa¬ ture of the cardinal who drew up the report, and of the three other cardinals; and therein each of the four cardinals shall make affirmation that, after giving, exact attention thereto, he has found the persons to be promoted, endowed with the quali¬ fications required by law, and by this holy Synod, and that, at the peril of his eternal salvation, he doth certainly think them fit to be placed over the churches: in such wise that, after the report has been made in one consistory, the sentence shall be deferred until another consistory, in order that the said inquiry may be more maturely looked into in the mean time,—unless the most blessed Pontiff shall judge it expedient to act otherwise.

(h) Propria.

(i) The passage may also be translated; 11 may, in a more useful manner, pro¬ vide for those churches, for the advantage of the Lord's flock," &c.

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And the Synod ordains, that all and singular the particulars which have been elsewhere ordained, in the same Synod, touch¬ ing the life, age, learning, and the other qualifications of those who &re to be appointed bishops, the Bame are also to be re¬ quired in the creation of cardinals—even though they be deacons —of the holy Roman Church; whom the most holy Roman Pontiff shall, as far as it can be conveniently done, select out of all the nations of Christendom, as he shall find persons suitable.

Finally, the same holy Synod, moved by the so many most grievous afflictions of the Church, cannot avoid recording, that nothing is more necessary for the Church of God than that the most blessed Roman Pontiff apply especially here that solici¬ tude, which, by the duty of his office, he owes to the Universal Church,—that he take unto himself, to

wit as cardinals, persons the most select only, and that he appoint over each church, above all things, good and fit pastors; and this the more, for that our Lord Jesus Christ will require at his hands the blood (k) of those sheep of Christ which shall perish through the evil government of pastors who are negligent, and forgetful of their office.

CHAPTER II.

A Provincial Synod to be celebrated every third year , a Dio¬ cesan Synod eve / ry year: who are to convoke , and who to be present thereat .

Provincial councils, wheresoever they have been omitted, shall be renewed, for the regulating of morals, the correcting of excesses, the composing of controversies, and for the other purposes allowed of by the sacred canons. Therefore, the metropolitans in person, or if they be lawfully hindered, the oldest suffragan bishop shall not fail to assemble a Synod, each in his own province, within a year at latest from the termination of the present council, and afterwards, at least every third year,

(k) Ezecli. iii. 18.

either after the octave of the Resurrection of our Lord Jesus Christ, or at some other more convenient time, according to the custom of the province; at which council all the bishops and others, who, by right or custom, ought to be present thereat, shall be absolutely bound to'assemble, those excepted who would have to cross the sea at their imminent peril. The bishops of the province shall not, for the future, be compelled, under the pretext of any custom whatsoever, to repair against their will to the metropolitan church. Those bishops likewise wha are not subject to any archbishop, shall once for all make choice of some neighbouring metropolitan, at whose provincial Synod they shall be bound(!) to be present with the other bishops, and shall observe, and cause to be observed, whatso¬ ever shall be therein ordained. In all other respects, their exemption and privileges shall remain whole and entire.

Diocesan Synods also shall be celebrated every year; to which all those even who are exempted, but who would other¬ wise, that exemption ceasing, have to attend, and who are not subject to general Chapters, shall be bound to come; under¬ standing however that, on account of parochial, or other Secular churches, even though annexed, those who have charge thereof must needs,(“) whosoever they may be, be present at the said Synod. But if any, whether metropolitans, or bishops, or the others above-named, shall be negligent in these matters, they shall incur the penalties enacted by the sacred canons.

CHAPTER III.

In what manner Prelates are to make their visitation .

Patriarchs, primates, metropolitans, and bishops shall not fail to visit their respective dioceses, either personally, or, if they be lawfully hindered, by their Vicar-general, or visitor; if they shall not be able on account of its extent, to make the visitation of the whole annually, they shall visit at least the greater part thereof, so that the whole shall be completed in two years.

(1) Debeant.

(m) Debeant.

either by themselves, or by their visitors. Metropolitans, how¬ ever, even after having made a complete visitation of their own proper diocese, shall not visit the cathedral churches, or the dioceses of the bishops of their province, except for a cause taken cognizance and approved of in the provincial Council.

But archdeacons, deans, and other inferiors, who have been hitherto accustomed lawfully to exercise (the power of) visita¬ tion in certain churches, shall henceforth visit those same places, but by themselves only, with the consent of the bishop, and as¬ sisted by a notary. The visitors also who may be deputed by a Chapter, where the Chapter has the right of visitation, shall be first approved of by the bishop ; but the bishop, or, if he be hindered, his visitor, shall not thereby be prevented from visit¬ ing those same churches apart from those deputies; and the said archdeacons, and other inferiors, shall be bound to give the bishop an account, within a month, of the visitation that has been made, and to show him the depositions of witnesses, and the proceedings in their entire form ; any custom, even though immemorial, and any exemptions and privileges whatsoever notwithstanding.

But the principle object of all these visitations shall be to lead to sound and orthodox doctrine, by banishing heresies; to maintain good morals, and to correct such as are evil; to animate the people, by exhortations and admonitions, to religion, peacefulness, and innocence ; and to establish such other things as to the prudence of the visitors shall seem for the profit of the faithful, according as time, place and opportunity shall allow. And to the end that all this may have a more easy and prosper¬ ous issue, all and each of the aforesaid, to whom the right of visitation belongs, are admonished to treat all persons with fatherly love and Christian zeal; and with this view being con¬ tent with a modest train of servants and horses, they shall endeavour to complete the said visitation as speedily as possible, though with due carefulness. And during it they shall be care¬ ful not to be troublesome or burthensome to any one by any useless expenses; and neither they, nor any of theirs, shall, by way of agency fee for the visitation, or, on account of wills made for pious uses—except that which is of right due to them out of i 14

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pious bequests—or under any other name whatsoever, receive anything, be it money, or present, of whatsoever kind, or in whatsoever way offered; any custom, even though immemorial, to the contrary notwithstanding; with the exception, however, of food,(n) which shall be furnished frugally and in moderation to them and theirs, only during the time necessary for the visita¬ tion, and no longer. It shall, however, be at the option of those who are visited, to pay, if they prefer it, in money, according to a fixed assessment, what they have been accustomed heretofore to disburse, or to furnish the food(°) as aforesaid ; saving also the right of ancient conventions entered into with monasteries, or

other pious places, or churches not parochial, which right shall remain inviolate. But, in those places or provinces, where it is the custom that neither food, money, nor anything else be received by the visitors, but that all be done gratuitously, the same shall be retained there.

But if any one, which God forbid, shall presume to receive ' anything more than is prescribed in any of the cases abovenamed ; besides the restitution of double the amount which is to be made within a month, he shall also be subjected, without any hope of pardon, to the other penalties contained in the con¬ stitution of the general Council of Lyons, which begins, Exigit; as also to the other penalties (which shall be enacted) in the provincial Synod, at the discretion of that Synod.

As regards patrons, they shall not presume in any way to interfere in those things which regard the administration of the sacraments; neither shall they meddle with the visitation of the ornaments of the church, or its revenues arising from landed property,(p) or from buildings, excepting so far as they are com¬ petent to do this by the institution, or foundation; but the bishops themselves shall attend to these things, and shall take care that the revenues of those buildings be expended upon purposes necessary and useful for the church, as to them shall seem most expedient.

(«) Victualibus.

(P) Bona stabilia.

(°) Viotualia.

ON REFORMATION.

CHAPTER IV.

By whom, and when , the office of preaching is to be dis¬ charged : the Parish Church to be frequented in order to hear the word of God . No one shall preach in opposition to the will of the Bishop .

The Jioly Synod, desirous that the office of preaching, which peculiarly belongs to bishops,^) may be exercised as frequently as possible, for the welfare of the faithful, and accommodating more aptly to the use of the present times, the canons elsewhere set forth on this subject, under Paul III., of happy memory, ordains, that the bishops shall themselves in person, each in his own church, announce the sacred Scriptures and the divine law, or, if lawfully hindered, it shall be done by those whom they shall appoint to the office of preaching; and in the other churches by the parish priests, or, if they be hindered, by others to be deputed by the bishop, whether it be in the city, or in any other part whatsoever of the diocese wherein they shall judge . such preaching expedient, at the charge of those who are bound, or who are accustomed, to defray it, and this at least on all Lord’s Days and solemn festivals; but, during the season of the fasts, of LeQt and of the Advent of the Lord, daily, or at least on three days in the week, if the said bishop shall deem it needful; and, at other times, as often as they shall judge that it can be opportunely done. And the bishop shall diligently admonish the people, that each one is bound to be

present at his own parish church, where it can be conveniently done, to hear the word of God. But no one, whether Secular or Regu¬ lar, shall presume to preach, even in churches of his own order, in opposition to the will of the bishop.

The said bishops shall also take care, that, at least on the Lord’s Days and other festivals, the children in every parish be carefully taught the rudiments of the faith, and obedience towards

(q) Praedicationis munus, quod episcoporum prsecipuum est.

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God and their parents, by those whose duty it is, and who shall be constrained thereunto by their bishops, if need be, even by ecclesiastical censures; any privileges and customs notwith¬ standing. In other respects, those things decreed, under the said Paul III., concerning the office of preaching, shall have their full force.

CHAPTER V.

In criminal causes against Bishops , the greater causes shall be taken cognizance of by the Sovereign Pontiff only , the less by the Provincial Council .

The more grave criminal causes against bishops, even of heresy—which may God forefend—which merit deposition or deprivation, shall be taken cognizance of and decided by the Sovereign Roman Pontiff himself only. But if the cause shall be of such a nature that it must necessarily be committed out of the Roman Court, it shall not be committed to any others soever, but metropolitans, or bishops, to be chosen by the most blessed Pope. And this commission shall both be special, and shall be signed by the most holy Pontiff’s own hand; nor shall he ever grant more to those commissioners than this,—that they take information only of the fact, and draw up the process, which they shall immediately transmit to the Roman Pontiff; the definitive sentence being reserved to the said most holy Pontiff. ^

The other things hereupon elsewhere decreed, under Julius III., of happy memory, as also the constitution published in a general Council under Innocent III., which begins, Qualiter et quando , which constitution the holy Synod renews in this present decree, shall be observed by all.

But the less criminal causes of bishops shall be taken cog¬ nizance of and decided in the provincial Council only, or by persons deputed thereunto by the provincial Council.

ON REFORMATION,

CHAPTER VI.

When and how the Bishop may absolve from crime , and dispense in cases of irregularity and suspension.

It shall be lawful for the bishop to dispense in all manner of irregularities and suspensions, arising from a crime that is secret,—except that proceeding from wilful homicide, and those crimes which have been already carried before a legal tribunal; —and

(it shall be lawful for them), in their own diocese, either by themselves, or by a vicar to be deputed especially for that purpose, to absolve gratuitously, as far as the tribunal of the conscience is concerned, (r) after imposing a salutary penance, all delinquents whatsoever their subjects, in all cases whatso¬ ever that are secret, even though reserved to the Apostolic See. The same also, as regards the crime of heresy, shall be per¬ mitted them in the said court of conscience, but to them only, and not to their vicars.

CHAPTER VII.

The virtue of the Sacraments shall, before being administered to the people , be explained by Bishops and Parish Priests; during the solemnization of mass , the sacred oracles shall be explained.

In order that the faithful people" may approach to the recep¬ tion of the sacraments with greater reverence and devotion of mind, the holy Synod enjoins on all bishops, that, not only when they are themselves about to administer them to the people, they shall first explain, in a manner suited to the capacity of those who receive them, the efficacy and use of those sacraments, but shall endeavour that the same be done piously and prudently

(r) In foro conscienti®.

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by every parish priest; and this even in the vernacular tongue, if need be, and it can be conveniently done; and in accordance with the form which will be prescribed for each of the sacra¬ ments, by the holy Synod, in a catechism which the bishops shall take care to have faithfully translated into the vulgar tongue, and to have expounded to s the people by all parish priests; as also that, during the solemnization of mass,(*) or the celebration of the divine offices, they explain, in the said vul¬ gar tongue, on all festivals, or solemnities, the sacred oracles, and the maxims of salvation; and that, setting aside all unpro¬ fitable questions, they endeavour to impress them on the hearts of all, and to instruct them in the law of the Lord.

CHAPTER VIII.

On public sinners , a public penance shall be imposed , unless the Bishop shall determine otherwise : a Penitentiary to be instituted in Cathedral Churches.

The apostle admonishes that those who sin publicly are to be reproved openly. (*) When, therefore, any one has, publicly and in the sight of many, committed a crime, whereby there is no doubt that others have been offended and scandalized; there must needs be publicly imposed upon him a penance suitable to the measure of his guilt; that so those whom he has allured to evil manners by his example, he may bring back to an upright life by the testimony of his amendment. The bishop, however, may, when he judges it more expedient, commute this kind of public penance into one that is secret. Likewise, in all cathe¬ dral churches, where it can be conveniently done, the bishop shall appoint a penitentiary, annexing thereto the prebend that shall next become vacant, which penitentiary shall be a master, or doctor, or licentiate in theology, or in canon law, and

forty years of age, or otherwise one who shall be found more suitable

(•) Inter miss&rum soiemnia.

(9 1 Tim. v. 20.

considering the character of the place; and, whilst hearing confessions in the church, he shall be meanwhile reputed as present in choir.

CHAPTER IX.

By whom Secular Churches , not of any diocese , are to he visited .

Those things which have elsewhere been established by this same Council, under Paul III., of happy memory, and lately under our most blessed lord Pius IV., touching the diligence to be used by the Ordinaries in visiting benefices, even though ex¬ empted, the same shall also be observed in regard of those Secu¬ lar churches which are said to be in no one's diocese; to wit they shall be visited by the bishop—as the delegate of the Apostolic See—whose cathedral church is the nearest, if he be able to do so; otherwise, by him whom the prelate of the said place has once for all selected in the provincial Council;—any privileges and customs whatsoever, even though immemorial, to the con¬ trary notwithstanding.

CHAPTER X.

Where visitation and correction of morals are concerned , no suspension of decrees is allowed .

Bishops, that they may be the better able to keep the people whom they rule in duty and obedience, shall, in all those things which regard visitation and correction of manners, have the right and power, even as delegates of the Apostolic See, of or¬ daining, regulating, correcting, and executing, in accordance with the enactments of the. canons, those things which, in their prudence, shall seem to them necessary for the amendment of their subjects, and for the good of their respective dioceses. Nor herein, when visitation and correction of manners are con¬ cerned, shall any exemption, or any inhibition, or appeal, or complaint, even though interposed to the Apostolic See, in any way hinder, or suspend the execution of those things which shall have been by them enjoined, decreed, or adjudged.

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CHAPTER XI.

Honorary titles , or particular privileges , shall not derogate in any way from the right of bishops.

Forasmuch as the privileges and exemptions which, under various titles, are granted to very many persons, are clearly seen to raise, in these days, confusion in the jurisdiction of bishops, and to give occasion to those exempted to lead a more relaxed life; the holy

Synod ordains, that if at any time it be thought proper, for just, weighty, and well nigh compulsory causes, that certain persons be distinguished by the honorary titles of Protonotary, Acolyte, Count Palatine, Royal Chaplain, or other such titles of distinction, whether in the Roman court or elsewhere; as also that others be admitted into monasteries as Oblates, or as attached thereunto in some other way, or under the name of servants to military orders, monasteries, hos¬ pitals, colleges, or under any other title whatsoever ; nothing is to be understood as being, ly these privileges, taken away from the Ordinaries, so as to prevent those persons, imto whom those privileges have already been granted, or to whom they may be hereafter conceded, from being fully subject in all things to the said Ordinaries, as delegates of the Apostolic See, and this as regards Royal Chaplains, in accordance with the constitution of Innocent III., which begins Cum capella: those persons, how¬ ever, being excepted, who are engaged in actual service in the aforesaid places, or in military orders, and who reside within their enclosures and houses, and live under obedience to them; as also those who have made their profession lawfully and ac¬ cording to the rules of the said military orders, whereof the Ordinary must be certified: notwithstanding any privileges what¬ soever, even those of the order of Saint John of Jerusalem, and of other military orders. But, as regards those privileges which by virtue of the constitution of Eugenius, those are accustomed to enjoy who reside in the Roman Court, or who are in the household of cardinals, such privileges shall in no wise be under¬ stood to apply to those who hold ecclesiastical benefices, in so

far as those benefices are concerned; but such shall con subject to the jurisdiction of the Ordinary ; any inhibition the contrary notwithstanding. ^

CHAPTER XII.

What manner of persons those ought to be who are to be promoted to the dignities and canonries of Cathedral Churches: and what those so promoted are bound to perform.

Whereas dignities, especially in cathedral churches, were established to preserve and increase ecclesiastical discipline, with the view that those who should obtain them, might be pre-eminent in piety, be an example to others, and aid the bishop by their exertions and services; it is but right, that those who are called unto those dignities, should be such as to be able to answer the purposes of their office. Wherefore, no one shall henceforth be promoted to any dignities whatsoever, to which the cure of souls is attached, who has not attained at least to the twenty-fifth year of his age, and, having been ex¬ ercised (*) for some time in the clerical order, is recommended by the learning necessary for the discharge of his office, and by integrity of morals, conformably to the constitution of Alexander III., promulgated in the Council of Lateran, which begins, Cum in cunctis.

In like manner archdeacons, who are called the eyes of the bishop, shall, in all churches, where it is possible, be masters in theology, or doctors or licentiates in canon law. But, to the other dignities or personates, to which no cure of souls is at¬ tached, clerics shall be promoted, who are in other respects qualified, and who are not less than twenty-two years

of age. Those also who are promoted to any benefices whatsoever hav¬ ing cure of souls, shall, within two months at the latest from the day of obtaining possession, be bound to make a public profes¬ sion of their orthodox faith in the presence(w) of the bishop

(T) Versatus.

(w) In manibus, lit., in the hands.

himself, or, if he be hindered, before his Vicar-general, of offi¬ cial ; and shall promise and swear, that they will continue in obedience to the Roman Church. But those who are promoted to canonries and dignities in cathedral churches, shall be bound to do this not only before the bishop, or his official, but also in the Chapter; otherwise all those promoted as aforesaid shall not render the fruits theirs; nor shall possession avail them anything. No one shall henceforth be received to a dignity, canonry, or portion, but one who has either already been admitted to that sacred order which that dignity, prebend, or portion requires, or is of such an age as to be capable of being admitted to that order, within the time prescribed by law and by this holy Synod. As regards all cathedral churches, all # canonries and portions shall be attached to the order of the priesthood, deaconship, or subdeaconship; and the bishop, with the advice of the Chapter, shall designate and apportion, as he shall judge expedient, to which thereof each of those respective sacred orders is for the future to be annexed; in such wise, however, that one half at least shall be priests, and the rest deacons, or subdeacons: but where the more praiseworthy custom requires, that the greater part, or that all be priests, it shall be by all means retained. Moreover, the holy Synod ex¬ horts that, in provinces where it can conveniently be done, all the dignities, and one half at least of the canonries, in cathedral and eminent collegiate churches, be conferred only on masters, or doctors, or even on licentiates in theology, or canon law. Furthermore, it shall not be lawful, by virtue of any manner of statute or custom whatsoever, for those who possess, in the said cathedral or collegiate churches, any dignities, canonries, pre¬ bends, or portions, to be absent from those churches, above three months in each year—saving, however, the constitutions of those churches which require a longer term of service—otherwise every offender shall, for the first year, be deprived of one half of the fruits which he has made his own by reason even of his prebend and residence. But, if he be again guilty of the same negligence, he shall be deprived of all the fruits which he may have acquired during that same year: and, the contumacy in¬ creasing, they shall be proceeded against according to the con-

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Btitutions of the sacred canons. Ab regards the distributions; those who have been present at the stated hours shall receive them; all others shall, all collusion and remission set aside, forfeit them, pursuant to the decree of Boniface VIII., which begins, Consuetudinem , which the holy Synod brings again into use; any statutes, or customs, whatsoever, to the contrary not¬ withstanding. And all shall be obliged to perform the divine offices in person, and not by substitutes; as also to attend on and serve the bishop when celebrating (mass), or performing any other pontifical functions; and reverently, distinctly, and devoutly to praise the name of God, in hymns and canticles, in the choir appointed for

psalmody.

They shall, moreover, at all times wear a becoming dress, both in and out of church ; shall abstain from unlawful hunting, hawking, dancing, taverns, and games; and be distinguished for such integrity 7 of manners, as that they may with justice be called the senate of the Church. As to other matters, regarding the suitable manner of conducting the divine offices, the proper way of singing or chanting therein, the specific regulations for assembling in choir and for remaining there, as also such things as may be necessary in regard of all those who minister in the church, and any other things of the like kind; the provin¬ cial Synod shall prescribe a fixed form on each Head, having regard to the utility and habits of each province. But, in the mean time, the bishop, assisted by not less than two canons, one of whom shall be chosen by the bishop, and the other by the Chapter, shall have power to provide herein as may be judged expedient.

CHAPTER XIII.

In what manner provision is to be made for the more slightly endowed Cathedral and Parish Churches: Parishes are to be distinguished by certain boundaries .

Forasmuch as very many cathedral churches have so slight a revenue, and are so small, that they by no means correspond with the episcopal dignity, nor suffice for the necessities of the churches; the provincial Council, having summoned those whose

interests are concerned, shall examine and weigh with care, what churches it may be expedient, on account of their small extent, and their poverty, to unite to others in the neighbour¬ hood, or to augment with fresh revenues; and shall send the documents prepared in regard thereof to the Sovereign Roman Pontiff; who, being thereby made acquainted with the matter, shall, of his own prudence, as he may judge expedient, either unite together the slightly provided churches, or improve them by some augmentation derived from the fruits. But in the mean¬ time, until the things aforesaid are carried into effect, the Sove¬ reign Pontiff may provide, out of certain benefices, for those bishops who, on account of the poverty of their dioceses, stand in need of being aided by certain fruits; provided however those benefices be not cures, nor dignities, canonries, prebends, nor monasteries wherein regular observance is in force, or which are subject to general Chapters, or to certain visitors.

In parish churches also, the fruits of which are in like man¬ ner so slight that they are not sufficient to meet the necessary charges, the bishop,—if unable to provide for the exigency by a union of benefices, not however those belonging to Regulars,— shall make it his care, that, by the assignment of first fruits, or tithes, or by the contributions and collections of the parishioners, or in some other way that shall seem to him more suitable, as much be amassed as may decently suffice for the necessities of the rector and of the parish.

But in whatsoever unions may have to be made, whether for the causes aforesaid, or for others, parish churches shall not be united to any monasteries whatever, or abbeys, or dignities, or prebends of a cathedral or collegiate church, or to any other simple benefices, hospitals, or military orders; and those so united shall be again taken

cognizance of by the Ordinaries, pursuant to the decree already made in this same Synod, under Paul III., of happy memory, which shall also be equally ob¬ served in regard of those unions that have been made from that time forth to the present; notwithstanding whatsoever form of words may have been used therein, which shall be accounted as being sufficiently expressed here.

Furthermore, all those cathedral churches,the revenue of which,

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in real annual value, does not exceed the sum of one thousand ducats, and those parish churches where it does not exceed the sum of one hundred ducats, shall not for the future be burthened with any manner of pensions, or reservations of fruits. Also, in those cities and places where the parish churches have not any certain boundaries, neither have the rectors thereof their own pro¬ per people to govern, but administer the sacraments to all indis¬ criminately who desire them, the holy Synod enjoins on bishops, that for the greater security of the salvation of the souls com¬ mitted to their charge, having divided the people into fixed and proper parishes, they shall assign to each parish its own per¬ petual and peculiar parish priest who may know his own parish¬ ioners, and from whom alone they may licitly receive the sacraments; or the bishops shall make such other provision as may be more beneficial, according as the character of the place may require. They shall also take care, that the same be done, as soon as possible, in those cities and places where there are no parish churches: any privileges and customs, even though immemorial, to the contrary notwithstanding.

CHAPTER XIV.

In promotions to benefices , or in admissions into possession of the same , any deductions from the fruits , not applied to pious uses , are prohibited .

In many churches, as well cathedral as collegiate and paro¬ chial, it is understood to be the practice, derived either from the constitutions thereof, or from an evil custom, that upon any election, presentation, institution, confirmation, collation, or other provision, or upon admission to the possession of any cathedral church, benefice, canonries, or prebends, or to a par¬ ticipation in the revenues, or the daily distributions, there are introduced certain conditions, or deductions from the fruits, certain payments, promises, unlawful compensations, as also the profits which are in some churches called Tumorum lucra ;(*) and

(x) Perquisites arising from presentations attached to the “Tumiis,” or office of Hebdomad&rius (Turnarms).

whereas the holy Synod detests these practices, It enjoins on bishops, that they suffer not anything of the kind to be done, unless the proceeds be converted to pious uses, nor permit any of those modes of entering (on benefices) which carry with them a suspicion of a simoniacal taint, or of sordid avarice; and they shall themselves carefully take cognizance of their constitutions, or customs in the above regards; and, those only being retained which they shall approve of as laudable, the rest they shall reject and abolish as

corrupt and scandalous. And It decrees that those, who act in any way contrary to the things comprised in this present decree, incur the penalties set forth against simoniacs by the sacred canons, and divers con¬ stitutions of the Sovereign Pontiffs, all of which this Synod renews; any statutes, constitutions, customs, even though im¬ memorial, even though confirmed by apostolic authority, to the contrary notwithstanding; the bishop, as the delegate of the Apostolic See, having power to take cognizance of any surreption, obreption, or defect of intention, in regard thereof.

CHAPTER XV.

Method of increasing the slight prebends of Cathedral, and of eminent Collegiate Churches.

In cathedral, and eminent collegiate, churches, * where the prebends are numerous, and so small, that, even with the daily distributions, they are not sufficient for the decent maintenance of the rank of the canons, according to the character of the place, and of the persons, it shall be lawful for the bishop, with the consent of the Chapter, either to unite thereunto certain simple benefices, not however such as belong to Regulars, or, if a provision cannot be made in this way, they may reduce those prebends to a less number, by suppressing some of them, —with the consent of the patron, if the right of patronage belong to laymen,—the fruits and proceeds of which shall be applied towards the daily distributions of the remaining pre¬ bends ; yet so, however, that such a number shall be left as may conveniently serve for the celebration of divine worship.

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and be suitable to the dignity of the church; any constitutions and privileges whatsoever, or any reservation whether general or special, or any application whatever, to the contrary not¬ withstanding: nor shall the aforesaid unions or suppressions be set aside or hindered by any manner of provision whatsoever, not even by virtue of any resignation, or by any other deroga¬ tions, or suspensions whatever.

CHAPTER XVI.

What duty devolves on the Chapter during the vacancy of a See .

When a See is vacant, the Chapter, in those places where the duty of receiving the fruits devolves upon it, shall appoint one or more faithful and diligent stewards to take care of the pro¬ perty and revenues of the church, of which they shall afterwards give an account to him whom it may regard. It shall also be absolutely bound, within eight days after the decease of the bishop, to appoint an official,(y) or vicar, or to confirm the one who fills that office; who shall at least be a doctor, or a licen¬ tiate, of canon law, or otherwise as competent a person as can be procured: if anything be done contrary hereto, the appoint¬ ment aforesaid shall devolve on the metropolitan. And if the church be itself the metropolitan, or exempted, and the Chapter shall be, as has been said above, negligent, then shall the oldest of the suffragan bishops in that metropolitan church, and the nearest bishop in regard of that church that is exempted, have power to appoint a competent steward and vicar. And the bishop, who is promoted to the said vacant church, shall de¬

mand, from the said steward, vicar, and all other officers and ad¬ ministrators, who, during the vacancy of the See, were, by the Chapter, or others, appointed in his room,—even though they should belong to the Chapter itself,—an account of those things which concern him, of their functions, jurisdiction, administra¬ tion, or of any other their charge whatsoever; and shall have

(y) Officialem.

power to punish those who have been guilty of any delinquency in their office or administration, even though the officers afore¬ said, having given in their accounts, may have obtained a quit¬ tance or discharge from the Chapter, or those deputed thereby. The Chapter shall also be bound to render an account to the said bishop of any papers belonging to the church, if any such have come into the possession thereof.

CHAPTER XVII.

In what case it is lawful to confer more than one benefice upon one individual; and for him to retain the same .

Whereas ecclesiastical order is perverted when one cleric fills the offices of several, the sacred canons have holily provided that no one ought to be enrolled in two churches. But, seeing that many, through the passion of ungodly covetousness deceiv¬ ing themselves, not God, are not ashamed to elude, by various artifices, what has been so excellently ordained, and to hold several benefices at the same time; the holy Synod, desiring to restore the discipline required for the government of the church, doth by this present decree,—which It orders to be observed in regard of all persons whatsoever, by whatsoever title distin¬ guished, even though it be by the dignity of the Cardinalate,—ordain, that, for the future, one ecclesiastical benefice only shall be conferred on one and the same person. If indeed that bene¬ fice be not sufficient to afford a decent livelihood to the person on whom it is conferred, it shall then be lawful to bestow on him some other simple benefice that may be sufficient; provided that both do not require personal residence. And the above shall apply not only to cathedral churches, but also to all other benefices whatsoever, whether Secular or Regular, even to those held in commendam y of whatsoever tide and quality they may be. But they who at present hold several parochial churches, or one cathedral and one parochial church, shall be absolutely obliged,—all dispensations and unions for life whatsoever to the contrary notwithstanding,—retaining one parochial church only, or the cathedral church alone, to resign the other parochial

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churches within the space of six months; otherwise as well the parish churches, as also all the benefices which they hold, shall be accounted ipso jure void, and as void shall be freely con¬ ferred on other competent persons; nor shall they who previ¬ ously held them be able to retain the fruits thereof, with a safe conscience, after the said time. But the holy Synod desires that a provision be made in some suitable manner, as may seehi fit to the Sovereign Pontiff, for the necessities of those who resign.

CHAPTER XVIII.

Upon a Parish Church becoming vacant , a Vicar is to be deputed thereunto by the Bishop , until it be provided with a Parish Priest: in what manner and by whom those nomi¬ nated to Parochial Churches ought to be examined.

It is most highly expedient for the salvation of souls, that they be governed by worthy and competent parish priests. To the end that this may with greater care and effect be accom¬ plished, the holy Synod ordains, that when a vacancy occurs in a parish church, whether by death, or by resignation, even in the Roman Court, or in any other manner whatsoever, though it may be alleged that the charge thereof devolves on the church (itself), or on the bishop, and though it may be served by one or more priests,—and this not excepting even those churches called patrimonial, or receptive/*) wherein the bishop has been accustomed to assign the cure of souls to one or more (priests), all of whom, as this Synod ordains, must be subjected to the ex¬ amination herein prescribed later,—even though, moreover, the said parish church may be reserved, or appropriated, whether generally or specially, by virtue even of an indult, or privilege granted in favour of cardinals of the holy Roman Church, or of certain abbots, or chapters ; it shall be the duty of the bishop, at once, upon obtaining information of the vacancy of the church,

(*) Receptivis.

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to appoint, if need be, a competent vicar to the same—with a suitable assignment, at his own discretion, of a portion of the fruits thereof—to support the duties of the said church, until it shall be provided with a rector. Moreover, the bishop, and he who has the right of patronage, shall, within ten days, or such o^her term as the bishop shall prescribe, nominate, in the presence of those who shall be deputed as examiners, certain clerics as capable of governing the said church. It shall never¬ theless be free for others also, who may know any that are fit for the office, to give in their names, that a diligent scrutiny may be afterwards made as to the age, morals, and sufficiency of each. And even,—if the bishop, or the provincial Synod shall, con¬ sidering the custom of the country, judge this more expedient,— those who may wish to be examined may be summoned by a public notice. When the time appointed has transpired, all those whose names have been entered shall be examined by the bishop, or, if he be hindered, by his Vicar-general, and by the other examiners, who shall not be fewer than three; to whose votes, if they should be equal, or given to distinct individuals, the bishop, or his vicar, may add theirs, in favour of whomsoever they shall think most fit.

And as regards the examiners, six at least shall be annually proposed by the bishop, or by his vicar, in the diocesan Synod; who shall be such as shall satisfy, and shall be approved of by, the said Synod. And upon any vacancy occurring in any church, the bishop shall select three out of that number to make the ex¬ amination with him; and afterwards, upon another vacancy fol¬ lowing, he shall select, out of the six aforesaid, the same, or three others, whom he may prefer. But the said examiners shall be masters, or doctors, or licentiates in theology, or in canon law, or such other clerics, whether Regulars,—even of the order of mendicants,—or Seculars, as shall seem best adapted thereunto ; and they

shall all swear on the holy Gospels of God, that they will, setting aside every human affection, faithfully perform their duty. And they shall beware of receiving any¬ thing whatever, either before or after, on account of this exami¬ nation ; otherwise, both the receivers and the givers will incur the guilt of simony, from which they shall not be capable of

being absolved, until after tliey have resigned the benefices which they were possessed of in any manner whatsoever, even before this act; and they shall be rendered incapable of any others for the time to comd. And in regard of all these matters, they shall be bound to render an account, not only to God, but also, if need be, to the provincial Synod, which shall have power to punish them severely, at Its discretion, if it be ascertained that they have done anything contrary to their duty.

Then, after the examination is completed, a report shall be made of all those who shall have been judged, by the said ex¬ aminers, fit by age, morals, learning, prudence, and other suitable qualifications, to govern the vacant church; and out of these the bishop shall select him whom he shall judge the most fit of all; and to him, and to none other, shall the church be collated by him unto whom it belongs to collate thereunto. But, if the church be under ecclesiastical patronage, and the institution thereunto belongs to the bishop, and to none else, whomsoever the patron shall judge the most worthy from amongst those who have been approved of by the examiners, him he shall be bound to present to the bishop, that he may receive institution from him: but when the institution is to proceed from any other than the bishop, then the bishop alone shall select the worthiest from amongst the worthy, and him the patron shall present to him unto whom the institution belongs.

But if it be under lay patronage, the individual who shall be presented by the patron, must be examined, as above, by those deputed thereunto, and not be admitted, unless he tye found fit. And, in all the above-mentioned cases, to none other but to one of those who have been examined as aforesaid, and have been approved of by the examiners, according to the rule prescribed above, shall the church be committed, nor shall any devolution, or appeal, interposed even before the Apostolic See, or the legates, vice-legates, or nuncios of that see, or before any bishops, or metropolitans, primates, or patriarchs, hinder or sus¬ pend the report of the aforesaid examiners from being carried into execution: for the rest, the vicar whom the bishop has, at his own discretion, already deputed for the time being to the vacant church, or whom he may afterwards happen to depute

thereunto, shall not be removed from the charge and adminis¬ tration of the said church, until it be provided for, either by the appointment of the vicar himself, or of some other person, who has been approved of and elected as above: and all provisions and institutions made otherwise than according to the abovenamed form, shall be accounted surreptitious: any exemptions, indults, privileges, preventions, appropriations, new provisions, indults

granted to any university whatsoever, even for a certain sum, and any other impediments whatsoever, in opposition to this decree, notwithstanding.

If, however, the said parish churches should possess so slight a revenue, as not to allow of the trouble of all this examination; or should no one seek to undergo this examination; or if, by reason of the open factions, or dissensions, which are met with in some places, more grievous quarrels and tumults may easily be excited thereby ; the Ordinary may, omitting this formality, * have recourse to a private examination, if, in his conscience, with the advice of the (examiners) deputed, he shall judge this expedient; observing however the other things as prescribed above. It shall also be lawful for the provincial Synod, if It shall judge that there are any particulars which ought to be added to, or retrenched from, the above regulations concerning the form of examination, to provide accordingly.

CHAPTER XIX.

Mandates c de providendoExpectatives , and other things of the like kind are abrogated.

The holy Synod ordains, that mandates for contingent pro¬ motions,^) and those graces which are called expectant,(b) shall not any more be granted to any one, not even to colleges, universities; senates, or to any individuals whatsoever, even

(a) Maxidata de providendo: papal mandates to bishops, enjoining them to pro¬ mote a given individual to a certain vacant benefice.

(b) Expcctativ®: directions to promote a given individual to the first vacant benefice.

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though under the name of an indult, or up to a certain sum, or under any other colourable tide; nor shall it be lawful for any one to make use of such as have been heretofore granted. So, neither shall any mental reservations,(c) nor any other graces whatsoever in regard of future vacancies in benefices, nor indults which apply to churches belonging to others, or to monasteries, be granted to any, not even cardinals of the holy Roman Church; and those hitherto granted shall be looked upon as abrogated.

CHAPTER XX.

The manner of conducting causes , appertaining to the Ecclesi¬ astical court , is prescribed .

All causes belonging in any way whatever to the ecclesiastical court, even though they may relate to benefices, shall be taken cognizance of, in the first instance, before the Ordinaries of the places only; and shall be completely terminated widiin two years at the latest from the time that the suit was instituted: otherwise, at the expiration of that period, it shall be free for the parties, or for either of them, to have recourse to superior, but otherwise competent, judges, who shall take up the cause as it shall then stand, and shall take care that it be terminated with all possible despatch; nor, before that period, shall the causes be committed to any others (than the Ordinaries), nor be trans¬ ferred therefrom; nor shall any appeals interposed by those parties be received by any superior

judges whatsoever; nor shall any commission, or inhibition be issued by them, except upon a definitive sentence, or one that has the force thereof, and the grievance arising from which cannot be redressed by an appeal from that definitive sentence. From the above are to be excepted those causes, which, pursuant to the appointments of the canons, are to be tried before the Apostolic See, or those which the Sovereign Roman Pontiff shall, for an urgent and

(c) Reservationes mentales : when no individual was named in the order for pro¬ motion to the first vacant benefice, the commissions were called mental reservations.

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reasonable cause, judge fit to appoint, or to avocate, for his own hearing, by a special rescript under the signature of his Holi¬ ness signed with his own hand.

, Furthermore, matrimonial and criminal causes shall not be left to the judgment of deans, archdeacons, and other inferiors, even when on their course of visitation, but shall be reserved for the examination and jurisdiction of the bishop only; even though there should be, at this present moment, a suit pending, in whatsoever stage of the proceedings it may be, between any bishop, and the dean, or archdeacon, touching the cognizance of this class of causes: and if, in any said matrimonial cause, one of the parties shall truly prove his poverty in the presence of the bishop, he shall not be compelled to plead out of the province, either in the second or third stage of the suit,(d) unless the other party will provide for his maintenance, and also bear the expenses of the suit.

Legates also, even though de latere , nuncios, ecclesiastical governors, or others, shall not only not presume, by virtue of any powers whatsoever, to impede bishops in the causes afore¬ said, or in any wise to take from them,(e) or to disturb their jurisdiction, but they shall not even proceed against clerics, or other ecclesiastical persons, until die bishop has been first applied to, and has shown himself negligent; otherwise their proceedings and ordinances shall be of no force, and they shall be bound to make satisfaction to the parties for the damages which they may have sustained.

Furthermore, should any individual appeal in those cases allowed of by law, or lodge a complaint touching any grievance, or have recourse, as aforesaid, to a judge, on account of two years having elapsed, he shall be bound to transfer, at his own expense, to the judge of appeal, all the acts of the proceedings that have taken place before the bishop, having given, however, notice thereof previously to the said bishop; that so, if it seem fit to him to communicate any information on the suit, he may acquaint the judge of appeal therewith. But if the appellee

(d) Nec in sccunda, nec in teitia instantia. (e) Pncripere, to forestall.

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shall appear, then shall he also be bound to bear his proportion of the costs of transferring those acts, provided that he wishes to make use thereof; unless it be the custom of the

place to act otherwise, to wit, that the entire costs have to be borne by the appellant.

Moreover, the notary shall be bound to furnish the appellant, upon payment of the suitable fee, with a copy of the proceed¬ ings as soon as may be, and within a month at the furthest. And should that notary be guilty of any fraud in delaying the giving such copy, he shall be suspended from the exercise of his office, at the discretion of the Ordinary, and be condemned to pay double the costs of the suit, which shall be divided be¬ tween the appellant and the poor of the place. But if the judge also should himself be cognizant of, and an accomplice in, this delay, or if he shall in any other way raise obstacles against the entire proceedings being delivered over to the appellant within the term aforesaid, he shall be subjected to the same penalty of paying double the costs, as above ; notwithstanding, as regards all the aforesaid matters, any privileges, indults, covenants, which only bind the authors thereof, and any other customs whatsoever to the contrary.

CHAPTER XXI.

It is declared , that y by certain words used 'previously , the usual manner of treating business in General Councils is not changed.

The holy Synod,—being desirous that no occasion of doubt¬ ing may, at any future period, arise out of the decrees which It has published,—in explanation of the words' contained in a de¬ cree published in the first Session under our most blessed lord, Pius IV., to wit, “ which, the legates and presidents proposing, shall to the said holy Synod appear suitable and proper for assuaging the calamities of these times, terminating the contro¬ versies concerning religion, restraining deceitful tongues, correct¬ ing the abuses of depraved manners, and procuring for the church a true and Christian peace,” declares that it was not Its

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intention, that, by the foregoing words, the usual manner of treating matters in general Councils should be in any respect changed; or that anything new, besides that which has been heretofore established by the sacred canons, or by the form of general Councils, should be added to, or taken from, any one.

INDICTION OP THE NEXT 8ESSI0N.

Moreover, the same sacred and holy Synod ordains and de¬ crees, that the next ensuing Session be held on the Thursday after the Conception of the Blessed Virgin Mary, which will be the ninth day of December next, with the power also of abridg¬ ing that term. In which Session there will be treated of the the sixth chapter(') which is now deferred till then, and the re¬ maining chapters on Reformation which have been already set forth, and other matters which relate thereunto. And if it shall seem advisable, and the time will allow thereof, certain dogmas may also be treated of, as in their proper season they shall be proposed in the congregations.

The term fixed for the Session was abridged .

Decree Concerning Purgatory

Begun on the third , and terminated on the fourth , day oj December , mdlxiii., being the ninth and last under the Sove¬ reign Pontiff y Pius IV.

Whereas the Catholic Church, instructed by the Holy Ghost, has, from the sacred writings and the ancient tradition of the Fathers, taught, in sacred councils, and very recently (g) in this oecumenical Synod, that there is a Purgatory, and that the souls there detained are helped (h) by the suffrages of the faithful.

(f) On Exemptions of Chapters.

(ff) See Sess. VI., can. 30; Scss. XXII. cap. 2, 3. (h) Juv&ri, relieved.

ON THE INVOCATION OF SAINTS, &C. 233

but principally by the acceptable sacrifice of the altar; the holy Synod enjoins on bishops that they diligently endeavour that the sound doctrine concerning Purgatory, transmitted by the holy Fathers and sacred councils, be believed, maintained, taught, and every where proclaimed by the faithful of Christ. But let the more difficult and subtle questions, and which tend not to edification, and from which for the most part there is no increase of piety, be excluded from popular discourses before the uneducated (‘) multitude. In like manner, such things as are uncertain, or which labour under an appearance of error,(k) let them not allow to be made public and treated of. »While those things which tend to a certain kind of curiosity or super¬ stition, or which savour of filthy lucre, let them prohibit as scandals and stumbling-blocks of the faithful. But let the bishops take care, that the suffrages of the faithful who are living, to wit the sacrifices of masses, prayers, alms, and other works of piety, which have been wont to be performed by the faithful for the other faithful departed, be piously and devoutly performed, in accordance with the institutes of the church; and that whatsoever is due on their behalf, from the endowments of testators, or in other way, be discharged, not in a perfunctory manner, but diligently and accurately, by the priests and ministers of the church, and others who are bound to render this (service).

ON THE INVOCATION, VENERATION, AND RELICS, OF SAINTS, AND ON SACRED IMAGES.

The holy Synod enjoins on all bishops, and others who sus¬ tain the office and charge of teaching, that, agreeably to the usage of the Catholic and Apostolic Church, received from the primitive times of the Christian religion, and agreeably to the consent of the holy Fathers, and to the decrees of sacred Coun¬ cils, they especially instruct the faithful diligently concerning the intercession and invocation of saints; the honour (p r aid) to

(*) Rudem. (k) Specie falsi laborant.

relics; and the legitimate use of images: teaching them, that the saints, who reign together with Christ, offer up their own prayers to God for men; that it is good and useful

suppliantly 1 to invoke them, and to have recourse to their prayers, aid, (and) help (*) for obtaining benefits from God, through His Son, Jesus Christ our Lord, who is our alone Redeemer and Saviour; but that they think impiously, who deny that the saints, who enjoy eternal happiness in heaven, are to be invocated; or who assert either that they do not pray for men; or, that the invocation of them to pray for each of us even in particular, is idolatry; or, that it is repugnant to the word of God; and is opposed to the honour of the one mediator of God.and men 9 Christ Jesus; (m) or, that it is foolish to supplicate, vocally, or mentally,(n) those who reign in heaven. Also, that the holy bodies of holy martyrs, and of others now living with Christ,—which bodies were the living members of Christ, and the temple of the Holy Ghostyif) and which are by Him to be raised unto eternal life, and to be glorified,—are to be venerated by the faithful; through which (bodies) many benefits are bestowed by God on men; so that they who affirm that veneration and honour are not due to the relics of saints; or, that these, and other sacred monuments, are uselessly honoured by the faithful; and that the places dedicated to the memories of the saints are in vain visited with the view of obtaining their aid; are wholly to be condemned, as the Church has already long since condemned, and now also condemns them. .

Moreover, that the images of Christ, of the Virgin Mother of God, and of the other saints, are to be had(p) and retained par¬ ticularly in temples, and that due honour and veneration are to be given them; not that any divinity, or virtue, is believed to be in them, on account of which they are to be worshipped ;(*) or that anything is to be asked of them; or, that trust is to be re¬ posed in images, as was of old done by the Gentiles who placed

(1) Ad eorum orationes, opem, auxilium confugere.

(») 1 Tim. ii. 5. (n) Voce, vd mente. (°) 1 Cor iii. 6.

(p) Habendas. (q) Colendtc.

ON THE INVOCATION OF SAINTS, &C.

their hope in idols; but because the honour which is shown them is referred to the prototypes which those images repre¬ sent; in such wise that by (r) the images which we kiss, and before which we uncover the head, and prostrate ourselves, we adore Christ; and we venerate the saints, whose similitude they bear: as, by the decrees of Councils, and especially of the second Synod of Nicsea, has been defined against the opponents t)f images.

And the bishops shall carefully teach this,—that, by means of the histories of the mysteries of our Redemption, portrayed by paintings or other representations, the people is instructed, and confirmed in (the habit of) remembering, and continually revolving in mind the articles of faith ; as also that great profit is derived from all sacred images, not only because the people are thereby admonished of the benefits and gifts bestowed upon them by Christ, but also because the miracles which God has performed by means of the saints, and their salutary examples, are set before the eyes of the faithful; that so they may give God thanks for those things; may order their own lives and manners in imitation of the

saints; and may be excited to adore and love God, and to cultivate piety. But if any one shall teach, or entertain sentiments, contrary to these decrees; let him be anathema.

And if any abuses have crept in amongst these holy and salu¬ tary observances, the holy Synod ardently desires that they be utterly abolished; in such wise that no images, (suggestive) of false doctrine, and furnishing occasion of dangerous error to the uneducated, be set up. And if at times, when expedient for the unlettered people ;(•) it happen that the facts and narra¬ tives of sacred Scripture are portrayed and represented; the people shall be taught, that not thereby is the Divinity repre¬ sented, as though it could be seen by the eyes of the body, or be portrayed by colours or figures.

Moreover, in the invocation of saints, the veneration of relics, and the sacred use of images, every superstition shall be re¬ moved, all filthy lucre be abolished ; finally, all lasciviousness be

(r) Per. (s) Indoita? plebi, an uulearned multitude.

avoided; in such wise that figures shall not be painted or adorned with a beauty exciting to lust; nor the celebration of the saints, and the visitation of relics be by any perverted into revellings and drunkenness; as if festivals afe celebrated to the honour of the saints by luxury and wantonness.

In fine, let so great care and diligence be used herein by bishops, as that there be nothing seen that is disorderly, or that is unbecomingly or confusedly arranged, nothing that is pro¬ fane, nothing indecorous, seeing that holiness becometh the house of God .(*)

And that these things may be the more faithfully observed, the holy Synod ordains, that no one be allowed to place, or cause to be placed, any unusual image, in any place, or church, howsoever exempted, except that image have been approved of by the bishop: also, that no new miracles are to be acknow¬ ledged, or new relics recognised, unless the said bishop has taken cognizance and approved thereof; who, as soon as he has obtained some certain information in regard of these matters, shall, after having taken the advice of theologians, and of other pious men, act therein as he shall judge to be consonant with truth and piety. But if any doubtful, or difficult abuse has to be extirpated; or, in fine, if any more grave question shall arise touching these matters, the bishop, before deciding the contro¬ versy, shall await the sentence of the metropolitan and of the bishops of the province, in a provincial Council; yet so, that nothing new, or that previously has not been usual in the Church, shall be resolved on, without having first consulted the most holy Roman Pontiff.

ON REGULARS AND NUNS.

The same sacred and holy Synod, prosecuting the subject of reformation, has thought fit that the things following be ordained.

(t) Ps. xcii. 5.

ON REFORMATION.

CHAPTER I.

All Regulars shall order their lives in accordance with what is prescribed by the rule which they hate professed; Superiors shall sedulously provide that this be done .

Forasmuch as the holy Synod is not ignorant how much splendour and utility accrue to the Church of God, from monas¬ teries piously instituted and rightly administered; It has,—to the end that the ancient and regular discipline may be the more easily and promptly restored, where it has fallen away, and may be the more firmly maintained, where it has been preserved,— thought it necessary to enjoin, as by this decree It doth injoin, that all Regulars, as well men, as women, shall order and regu¬ late their lives in accordance with the requirements of the rule which they have professed ; and above all that they shall faith¬ fully observe whatsoever belongs to the perfection of their pro¬ fession, such as the vows of obedience, poverty, and chastity, as also all other vows and precepts that may be peculiar to any rule or order, respectively appertaining to the essential charac¬ ter of each, and which regard the observance of a common (T) mode of living, food, and dress. And all care and diligence shall be used by the Superiors, both in the general and in the provincial Chapters, and in their visitations, which they shall notomit to make in their proper seasons, that these things be not departed from; it being certain, that those things which belong to the substance of a regular life cannot be by them re¬ laxed. For if those things which are the basis and the founda- 'tion of all regular discipline be not strictly preserved, the whole edifice must needs fall.

CHAPTER II.

Property is wholly prohibited to Regulars.

For no Regular, therefore, whether man, or woman, shall it be lawful to possess, or hold as his own, or even in the name of

(v) Communem vitam, living in common.

the convent, any property moveable or immoveable, cf what nature soever it may be, or in what way soever acquired; but the same shall be immediately delivered up to the Superior, and be incorporated with the convent. Nor shall it henceforth be lawful for Superiors to allow any real property (w) to any Regular, not even by way of having the interest,^) or the use, the ad¬ ministration thereof, or in commendam. But the administration of the property of monasteries, or of convents, shall belong to the officers thereof only, removable at the will of their Superiors.

The Superiors shall allow the use of moveables, in such manner as that the furniture of their body shall be suitable to the state of poverty which they have professed; and there shall be nothing therein superfluous, but at the same time nothing shall be refused which is necessary for them. But should any one be discovered, or be proved, to possess anything in any other manner, he shall be deprived during two years of his active and passive voice, and also be punished in accordance with the constitutions of his own rule and order.

CHAPTER III.

All Monasteries save those herein excepted , shall be able to possess real property: the number of persons therein to be de¬ termined by the amount of Income, or of Alms. No Monasteries , to be erected without the Bishop y s leave.

The holy Synod permits that henceforth real property(^) may be possessed by all monasteries and houses, both of men and women, and of mendicants, even by those who were forbidden by their constitutions to possess it, or who had not received per¬ mission to that effect by apostolic privilege,—with the exception, however, of the houses of the brethren of St Francis (called) Capuchins, and those called Minor Observants: and if any of the aforesaid places, to which it has been granted by apostolio

(w) Bona stabilia. (*) Usumfrnctum. (y) Bona immobilia.

authority to possess such property, have been stripped thereof, It ordains that the same shall be wholly restored unto them. But, in the aforesaid monasteries and houses, as well of men as of women, whether they possess, or do not possess, real pro¬ perty, such a number of inmates only shall be fixed upon and be for the future retained, as can be conveniently supported, either out of the proper revenues of those monasteries, or out of the customary alms; nor shall any such places be henceforth erected, without the permission of the bishop, in whose diocese they are to be erected, being first obtained.

CHAPTER IV.

A Regular shall not , without the permission of his Superior , either place himself at the Service of another , or retire from his Monastery: when sent to a University for study he shall reside in a Monastery .

The holy Synod forbids, that any Regular, under the pretext of preaching, or lecturing, or of any other pious work, place himself at the service of any prelate, prince, university, commu¬ nity, or of any other person, or place, whatsoever, without per¬ mission from his own Superior; nor shall any privilege or faculty, obtained from others in regard hereof avail him any¬ thing. But should any one act contrary hereto, he shall be punished as disobedient, at the discretion of his Superior. Nor shall it be lawful for Regulars to withdraw from their own con- Tents, even under the pretext of repairing to their own Superiors; unless they have been sent, or summoned, by them. And who¬ ever shall be found to be without the order aforesaid in writing, shall be punished as a deserter from his Institute by the Ordi¬ naries of the places. As to those who are sent to the universi¬ ties for the sake of their studies, they shall dwell in convents only; otherwise they shall be proceeded against by the Ordi¬ naries.

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CHAPTER V.

Provision is made for the enclosure and safety of Nuns.

The holy Synod, renewing the constitution of Boniface VIII., which begins Periculoso , enjoins on all bishops, by the judgment of God to which It appeals, and under pain of eternal maledic¬ tion, that, by their ordinary authority, in all monasteries subject to them, and in others, by the authority of the Apostolic See, they make it their especial care, that the enclosure of nuns be carefully restored, wheresoever it has been violated, and that it be preserved, wheresoever it has not been violated ; repressing, by ecclesiastical censures and other penalties, without re¬ garding any appeal whatsoever, the disobedient and gainsayers, and calling in for this end, if need be, the aid of the Secular arm. The holy Synod exhorts Christian princes to furnish this aid, and enjoins, under pain of excommunication, to be ipso facto incurred, that it be rendered by all civil magistrates. But for no nun, after her profession, shall it be lawful to go out of her convent, even fora brief period, under any pretext whatever, except for some lawful cause, which is to be approved of by the bishop; any indults and privileges whatsoever notwithstanding.

And it shall not be lawful for any one, of whatsoever birth, or condition, sex, or age, to enter within the enclosure of a nun¬ nery, without the permission of the bishop, or of the Superior, obtained in writing, under the pain of excommunication to be ipso facto incurred. But the bishop, or the Superior ought to grant this permission in necessary cases only; nor shall any other person be able by any means to grant it, even by virtue of any faculty, or indult, already granted, or that may hereafter be granted. And forasmuch as those convents of nuns which are established outside the walls of a city or town, are exposed, often without any protection, to the robberies and other crimes of wicked men, the bishops and other Superiors shall, if they think it expedient, make it their care that the nuns be removed from those places to new or old convents within cities or popu-

lous towns, calling in even, if need be, the aid of the Secular arm. As to those who hinder them or disobey, they shall by ecclesiastical censures compel them to submit.

CHAPTER VI.

Manner of choosing Regular Superiors .

In order that everything may be conducted uprightly and without fraud, in the election of all manner of superiors, tem¬ porary abbots, and other officers, and generals, and abbesses, and other superioresses, the holy Synod above all things strictly enjoins, that all the aforesaid ought to(z) be chosen by secret voting, in such wise as that the names of the respective voters shall never be made known. Neither shall it, for the future, be lawful to appoint provincials, abbots, priors, or any other titu¬ laries whatsoever, for the purposes of an election that is to take place; nor to supply the place of the voices and suffrages of those who are absent. But should any one be elected contrary to the appointment of this decree, such election shall be invalid and he who shall have allowed himself, for this object, to be created provincial, abbot, or prior, shall be from that time forth incapable of holding any offices whatsoever in that order; and any faculties that have been granted in this matter shall be looked upon as hereby abrogated; and should any

others be granted for the time to come, they shall be regarded as surrep¬ titious.

CHAPTER VII.

In what way , and what manner of persons are to be chosen as Abbesses, or Superioresses by whatsoever other name ; no one shall be appointed over two Nunneries .

No one shall be elected as abbess, or prioress,—or by what¬ soever other name she who is appointed and placed over the

(*) Debere, must needs be.

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rest, may be called,—who is less than forty years of age, and who has not passed eight of those years in a praiseworthy manner, after having made her profession. But should no one be found in the same convent with these qualifications, one may be elected out of another convent of the same order. But if the superior who presides over the election shall deem even this an inconvenience; with the consent of the bishop, or other superior, there may be one chosen from amongst those, in the same convent, who are beyond their thirtieth year, and who have, since their profession, passed at least five of those years in an upright manner. But no individual shall be set over two convents; and if any one is, in any way, in possession of two or more, she shall, retaining one, be compelled to* resign the rest, within six months: but after that period, if she have not resigned^ they shall be all ipso jure vacant. And he who ,presides at the election, whether it be the bishop, or other superior, shall not enter the enclosure of the monastery, but shall listen to, or receive the votes of each,, at the little window in the gates.(*) In other particulars, the constitution of each order, or convent* shall be observed.

CHAPTER VIII.

In what manner the regulation of Monasteries * which have not ordinary Regular visitors , is to ho proceeded with .

AH monasteries which are not subject to general Chapters, or to bishops, and which have not their own ordinary Regular visitors, but have been accustomed to be governed under the immediate protection and direction of the Apostolic See, shall be bound, within a. year from the end of the present Council, and thenceforth every third year, to form themselves into con¬ gregations, according to the form of the constitution of Innocent III., beginning In singulis , published in a general Council;

(a) Ante cancellorum fenestellam.

ON REFORMATION.

and shall there depute certain Regulars to deliberate and ordain as to the mode and order of establishing the congregations aforesaid, and touching the statutes to be therein observed. But should they be negligent in these matters, it shall be lawful for the metropolitan, in whose province the aforesaid monasteries are situated, to convoke them for the above named purposes, as the delegate of the Apostolic See. But if there be not a

suffi¬ cient number of monasteries, within the limits of one province, for the establishing of such congregation, the monasteries of two or three provinces may form one congregation. And when the said congregations have been established, the general Chapters thereof, and the presidents and visitors elected thereby, shall have the same authority over the monasteries of their own congregation, and over the Regular? dwelling therein, as other presidents and visitors have in other orders; and they shall be bound to visit frequently the monasteries of their own congregation, and to apply themselves to the reformation thereof; and to observe whatsoever things have been decreed in the sacred canons, and in this sacred Council. Also, if, at the instance of the metropolitan, they shall not take measures to execute the above, they % shall be subjected to the bishops, in whose dioceses the places aforesaid are situated, as the delegates of the Apostolic See.

CHAPTER IX.

Con vents of Nuns immediately subject to the Apostolic See shall be governed by the Bishops ; but others , by those deputed in the General Chapters , or by other Regulars.

Those convents of nuns which are immediately subject to the Apostolic See, even those which are called by the name of Chapters of St. Peter, or of St. John, or by whatsoever other name they may be designated, shall be governed by the bishops, as the delegates of the Apostolic See; anything to the contrary notwithstanding. But those which are governed, by persons deputed in general Chapters, or by other Regulars, shall be left under their care and conduct.

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SESSION XXV,

CHAPTER X.

Nuns shall confess and communicate once a month: an ex¬ traordinary Confessor shall be assigned them by the Bishop . The Eucharist shall not be reserved within the enclosure of the Convent .

Bishops and other Superiors of convents of nuns, shall take particular care that the nuns be admonished, in their constitu¬ tions, to confess their sins, and to receive the most holy Eucharist, at least once a month, that so they may fortify themselves, by that salutary safeguard, resolutely to overcome all the assaults of the devil. But besides the ordinary confessor, the bishop and other superiors shall, twice or thrice a year, offer them an ex¬ traordinary one, whose duty it shall be(b) to hear the confes¬ sions of all the nuns. But that the most holy body of Christ be kept within the choir, or the enclosure of the convent, and not in the public church, the holy Synod forbids it; any privi¬ lege or indult whatsoever notwithstanding.

CHAPTER XI.

In Monasteries, which are charged with the cure of the souls of laymen, they who exercise

that cure shall be subject to the Bishop , and be by him previously examined, with certain ex¬ ceptions .

In monasteries, or houses whether of men, or of women, whi'eh are charged with the cure of souls of other Secular per¬ sons besides those who belong to the household of those monas¬ teries, or places; the individuals, whether Regulars or Seculars, who exercise that cure, shall be immediately subject, in what-

soever pertains to the said cure and the administration of the sacraments, to the jurisdiction, visitation, and correction of the bishop in whose diocese those places are situated; nor shall any, not even such as are removable at pleasure, be deputed thereunto, save with the consent of the said bishop, and after having been previously examined by him, or by his vicar; the monastery of Cluny with its limits being excepted; and except¬ ing also monasteries, or places, in which abbots, generals, or the heads of orders, have their usual principal residence; as also the other monasteries, or houses^ in which the abbots, or other Superiors of Regulars, exercise episcopal and temporary juris¬ diction over the parish priests and their parishioners; saving, however, the right of those bishops who exercise a greater jurisdiction over the places, or persons above-named.

CHAPTER XII.

Episcopal censures , and festivals appointed in the diocese , shall be observed even by Regulars.

Censures and interdicts,—not only those emanating from the Apostolic See, but also those promulgated by the Ordinaries,— shall, upon the bishop’s mandate, be published and observed by Regulars in their churches. The festival days also which the said bishop shall order to be observed in his own diocese, shall be kept by all exempted persons, even though Regulars.

CHAPTER XIII.

The Bishop shall settle disputes about precedency . Ex¬ empted persons , not living in the more strict enclosures , are obliged to attend at public Processions .

All disputes about precedence, which very often, with very great scandal, arise between ecclesiastics, both Secular and Regular, as well at public processions, as at those which take

place in burying the dead, or carrying the canopy, and on other such occasions, the bishop shall settle, without regarding any appeal; anything to the contrary notwithstanding. And all ex¬ empted persons whatsoever, as well Secular as Regular clerics, and even monks, on being summoned to public processions, shall be obliged to attend; those only being excepted who always live in more strict enclosure.

CHAPTER XIV.

By whom 'punishment is to he inflicted on a Regular who sins

publicly.

A Regular who, not being subject to the bishop, and residing within the enclosure of a monastery, has out of that enclosure, transgressed so notoriously as to be a scandal to the people, shall, at the instance of the bishop, be severely punished by his own Superior, within such time as the bishop shall appoint; and the Superior shall certify to the bishop that the punishment has been inflicted: otherwise he shall be himself deprived of his office by his own Superior, and the delinquent may be punished by the bishop.

CHAPTER XV.

Profession shall not he made except after a year's probation , and at the age of sixteen years completed.

In no religious order whatever, shall the profession, whether of men or women, be made before the age of sixteen years is completed; nor shall any one be admitted to profession, who has been less than a year under probation from the time of taking the habit. And any profession made sooner than this shall be null; and shall not superinduce any obligation to the observance of any rule, or of any religious body, or order; or entail any other effects whatsoever.

ON REFORMATION.

CHAPTER XVI.

Any renunciations made , or obligation entered into 9 previous to the two months' nearest Profession , shall be null . The pro¬ bation ended 9 the Novices shall either beprofessed , or dismissed . In the Religious Order of Clerks of the Society of Jesus nothing is innovated . No part of the property of a Novice shall be given to a Monastery before Profession .

Further, no renunciation made, or obligation entered into, sooner than this, even though upon oath, or in favour of any pious object whatsoever, shfidl be valid, unless it be made with permission of the bishop, or of his vicar, within the two months immediately preceding profession; and it shall not otherwise be understood as obtaining effect, unless the profession have followed thereupon : but if made in any other manner, even though with the express renunciation, even upon oath, of this privilege, it shall be invalid and of no effect. When the period of the noviciate is ended, the Superiors shall admit those novices, whom they have found qualified, to profession ; or they shall dismiss them from the monastery.

By these things, however, the Synod does not intend to make any innovation, or prohibition,^) so as to hinder the Religious Order of Cletks of the Society of Jesus from being able to* serve God and His church, in accordance with their pious institute, approved of by the holy Apostolic See.

Also, before the profession of a novice, whether male, or female, nothing shall be given to the monastery out of the property of the same, either by parents, Relatives, or guardians,

under any pretext whatever, except for food ; and clothing, for

fO As these words are variously punctuated, I will give the passage as trans¬ lated by Pallavicini: “ Per queste cose tuttavia il concilio non intends d’innovare d di pioibire niente onde la Religione de’Cherici della Compagnia di Giesft non possa vivere e servire alia chiesa secondo il pio suo Istituto approval© dalla sede Apostolica.—Vol. ii. p. 1011.

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the time that they are under probation; lest the said novice may be unable to leave on this account,—that the monastery is in possession of the whole, or of the greater part of his sub¬ stance ; and he may not easily be able to recover it, if he should leave. Yea rather the holy Synod enjoins, under the pain of anathema on the givers and receivers, that this be nowise done; and that, to those who leave before their profession, every thing that was theirs be restored to them. And the bishop shall, if need be, enforce by ecclesiastical censures that this be per¬ formed in a proper manner,

CHAPTER XVII.

If a girl , who is more than twelve years of age , wish to take the Regular Habit y she shall be questioned by the Ordinary , and again before Profession .

The holy Synod, having in view the freedom of the profession on the part of virgins who are to be dedicated to God, ordains and decrees, that if a girl, being more than twelve years of age, desire to take the religious habit, she shall not take that habit, neither shall she, nor any other, at a later period, make her pro¬ fession, until the bishop,—or, if he be absent, or hindered, his vicar, or some one deputed thereunto by them, and at their ex¬ pense,—has carefully examined into the inclination of the virgin, whether she has been compelled or enticed thereunto, or knows what she is doing; and if her will be found to be pious and free, and she have the qualifications required by the rule of that convent and order; and if also the convent be a suitable one ; it shall be free for her to make her profession. And that the bishop may not be in ignorance as to the time of profession, the Superioress of the convent shall be bound to give him notice thereof a month beforehand; but if she do not acquaint him therewith, she shall be suspended from her office, for as long a period as the bishop shall think fit.

ON REFORMATION.

CHAPTER XVIII.

No one shall , except in the cases by law expressed , compel a woman to enter a Monastery ; or preven t her , if she desire to enter. The constitutions of the Penitents , or Convertites , shall be preserved.

The holy Synod places under anathema all and singular those persons, of what quality or condition 6oever they may be, whether clerics or laymen, Seculars or Regulars, or with whatsoever dignity invested, who shall, in any way whatever, force any virgin, or widow, or any other woman whatsoever, —except in the cases provided for by law,—to enter a con¬ vent against her will, or to take the habit of any religious order, or to make her

profession; as also all those who lend their counsel, aid, or countenance thereunto; and those also who, knowing that she does not enter into the convent volun¬ tarily, or voluntarily take the habit, or make her profession, shall, in any way, interfere in that act, by their presence, or consent, or authority.

It also subjects to a like anathema those who shall, in any way, without a just cause, hinder the holy wish of virgins, or other women, to take the veil, or make their vows. And all and singular those things which ought to be done before profession, or at the profession itself, shall be observed not only in convents subject to the bishop, but also in all others whatsoever. From the above, how r ever, are excepted those women who are called penitents, or convertites ;(d) in whose regard their constitutions shall be observed. ^

CHAPTER XIX.

How to proceed in cases of pretended invalidity of profession.

No Regular soever, who shall pretend that he entered into a religious order through compulsion and fear; or shall even allege

(d) Convertit*.

that he made his profession before the proper age; or the like ; and would fain lay aside his habit, be the cause what it may; or would even withdraw with his habit without the permission of his superior; shall be listened to, unless it be within five years only from the day of hi3 profession, and not then either, unless he has produced before his own superior, and- the Ordinary, the reasons which he alleges. But if, before doing this, he has of his own accord laid aside his habit; he shall in no wise be admitted to allege any cause whatever; but shall be compelled to return to his monastery, and be punished as an apostate; and meanwhile he shall not have the benefit of any privilege of his order.

Also, no Regular shall, by virtue of any manner of faculty, be transferred to an order less rigid; nor shall permission be granted to any Regular to wear in secret the habit of his order.

„ CHAPTER XX.

Superiors of orders not subject to bishops shall visit and cor rect inferior Monasteries , even though held in commendam .

Abbots, who are heads of orders, , and the other Superiors of the aforesaid orders, who are not subject to bishops, but have a lawful jurisdiction over other inferior monasteries, or priories, shall, each in his own place and order, visit officially the said monasteries and priories that are subject to them, even though held in commendam: which, for as much as they are subject to the heads of their own orders, the holy Synod declares that they are not to be included in what has been elsewhere decreed relative to the visitation of monasteries held in commendam; and those who preside over monasteries of the orders aforesaid shall be bound to receive the above-named visitors, and to execute their orders.

Also, those monasteries themselves which are the heads of orders, shall be visited conformably to the constitutions of the holy Apostolic See, and of each several order. And so long as the said commendatary monasteries shall continue, there shall be appointed, by the general Chapters, or by the visitors of the

said orders, priors claustral, or sub-priors in those priories that are conventual, who shall exercise spiritual authority, and cor¬ rection. In all other things the privileges and faculties of the above-named orders, as regards the persons, places, and rights thereof, shall remain firm and inviolate.

CHAPTER XXI.

Over Monasteries, Religious of that same order shall he appointed .

Whereas very many monasteries, even abbeys, priories, and provostries, have suffered no slight injury, both in spirituals and temporals, through the mal-administration of those to whom they have been entrusted, the holy Synod would fain by every means restore them to a discipline suitable to a monastic life. But the present state of the times is so fraught with hindrances and difficulties that a remedy can neither be applied at once to all, nor common to all places, as It could desire; neverthe¬ less, that It may not omit anything which may in time be used in wholesomely providing against the evils aforesaid, It trusts in the first place, that the most holy Roman Pontiff will, of his piety and prudence, make it his care,—as far as he sees that the times will permit,—that over those monasteries which are at present held in commendam, and which are conventual, there be appointed Regulars, expressly professed of the same order, and capable of guiding and of governing the flock. And as to such as shall become vacant hereafter, they shall be conferred solely on Regulars of distinguished virtue and holiness. But as regards those monasteries which are the heads and chiefs(e) of orders, be the filiations thereof called abbeys or priories, (f) those who hold them at present in commendam shall be bound,— unless provision be made for a Regular successor thereunto,—

(*) Primates.

(e) Pallav. translates somewhat differently; 6 le Badie e i Priorati che si chiamano figliuoli di tali capi.

either to make, within six months, a solemn profession of the religious life which is peculiar to the said orders, or to resign ; otherwise the places aforesaid held in copimendam shall be accounted ipso jure vacant. But, lest any fraud may be used as regards all and singular the aforesaid matters, the holy Synod ordains, that in the appointments to the said monas¬ teries, the quality of each individual be specifically expressed; and any appointment made otherwise shall be accounted sur¬ reptitious, and shall not be rendered valid by any subsequent possession, even though extending over three years.

CHAPTER XXII.

The Decrees touching the Reformation of Regulars shall be carried into execution at once by all .

The holy Synod enjoins, that all and singular the matters contained in the foregoing decrees be observed in all convents and monasteries, colleges, and houses of all monks and reli¬ gious whatsoever, as also of all religious virgins and widows soever, even though living under the conduct of the military orders, of the order even (of St. John) of Jerusalem, and by what name soever they may be designated, under whatsoever rule or constitutions they may be, or under the care or government of, or in subjection to, union with, or dependence on, any order whatsoever, whether of mendicants, or not mendicants, or of other Regular monks, or canons of whatsoever kind: any privi¬ leges whatsoever of all and each of the above-named, under whatsoever form of words expressed, even those called mare magnum 9 even those obtained at their foundation, as also any con¬ stitutions and rules whatsoever, even though sworn to, and any customs, or prescriptions whatsoever, even though immemorial, to the contrary notwithstanding. But, if there be any Regulars, whether men or women, who are living under stricter rule or statutes, the holy Synod does not intend to withdraw them from their institute and observance, except as to the power of pos¬ sessing real property in common. And forasmuch as the holy

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Synod desires that al) and singular the things aforesaid be put in execution as soon as possible, It enjoins on all bishops that, in die monasteries which are subject to them, as also in all the rest specially committed to them in the preceding de¬ crees ; and on all abbots, and generals, and other Superiors of the above-named orders; that they forthwith put in execution the matters aforesaid, and if there bo anything which is not carried into execution, the provincial Councils shall remedy, and punish the negligence of the bishops ; and that of Regulars, their provincial and general Chapters; and, in default of general Chapters, the provincial Councils shall, by deputing certain persons belonging to the same order, provide herein.

The holy Synod also exhorts all kings, princes, republics, and magistrates, and by virtue of holy obedience commands diem, to vouchsafe to interpose, as often as requested, their help and authority in support of the aforesaid bishops, abbots, generals, and other superiors in the execution of the things comprised above, that so they may, without any hindrance, rightly execute the preceding matters to the praise of Almighty God.

Decree on Reformation

CHAPTER I.

Cardinals and all Prelates of the churches shall be content with modest furniture and a frugal table : they shall not enrich their relatives or domestics out of the property of the Church.

It is to be wished, that those who undertake the office of a bishop should understand what their portion is; and compre¬ hend that they are called, not to their own convenience,^) not to riches or luxury, but to labours and cares for the glory of God. For it is not to be doubted, that the rest of the faithful

(?) Commoda, advantage, or interests.

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also will be more easily excited to religion and innocence, if they shall see those who are set over .them, not fixing their thoughts on the things of this world, but on the salvation of souls, and on their heavenly country. Wherefore the holy Synod, being minded that these things are of the greatest im¬ portance towards restoring ecclesiastical discipline, admonishes all bishops, that, often meditating thereon, they show themselves conformable to their office, by their actual deeds, and the actions of their lives; which is a kind of perpetual sermon; but above all that they so order their whole conversation, as that others may thence be able to derive examples of frugality, modesty, continency, and of that holy humility which so much recom¬ mends us to God.

Wherefore, after the example of our fathers in the Council of Carthage, It not only orders that bishops be content with modest furniture, and a frugal table and diet, but that they also give heed that in the rest of their manner of living, and in their whole house, there be nothing seen that is alien from this holy institu¬ tion, and which does not manifest simplicity, zeal towards God, and a contempt of vanities. Also, It wholly forbids them to strive to enrich their own kindred or domestics out of the reve¬ nues of the church: seeing that even the canons of the Apostles forbid them to give to their kindred the property of the church, which belongs to God; but if their kindred be poor, let them distribute to them thereof as poor, but not misapply, or waste, it for their sakes: yea, the holy S^nod, with the utmost earnest¬ ness, admonishes them completely to lay aside all this human and carnal affection towards brothers, nephews and kindred, which is the seed-plot of many evils in the church. And what has been said of bishops, the same is not only to be observed by all who hold ecclesiastical benefices, whether Secular or Regular, each according to the nature of his rank, but the Synod decrees that it also regards the cardinals of the holy Roman Church; for whereas, upon their advice to the most holy Roman Pontiff, (he administration of the universal Church depends, it would seem to be a shame, if they did not at the same time shine so pre-eminent in virtue and in the discipline of their lives, as deservedly to draw upon themselves the eyes of all men.

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CHAPTER II.

By whom individually the Decrees of the Council are to be solemnly received; and by whom a profession of faith is to be made .

The calamitousneBs of the times, and the malignity of the increasing heresies demand, that nothing be left undone which may seem in any wise capable of tending to the edification of the people, and to the defence of the Catholic faith. Wherefore the holy Synod enjoins on patriarchs, primates, archbishops, bishops, and all others, who, of right or custom, ought to be present at the provincial Council, that, in the very first provin¬ cial Synod that shall be held after the close of this Council, they publicly receive all and singular the things that have been defined and ordained by this holy Synod;' as also that they promise and profess true obedience to the Sovereign Roman Pontiff; and at the same time publicly express their detestation of and anathematize all the heresies that have been condemned by the sacred canons and general councils, and especially by this same Synod. And henceforth, all those who shall be pro¬ moted to be patriarchs, primates, archbishops, and bishops, shall strictly observe the same in the first provincial Synod at which they shall be present. And should any one of all the aforesaid refuse, which God forbid, the bishops of the same province shall be bound, under pain of the divine indignation, at once to give notice thereof to the Sovereign Roman Pontiff, and shall meanwhile abstain from communion with that person. And all others, who now hold, or shall hereafter hold, ecclesi¬ astical benefices, and whose duty it is to be present at the diocesan Synod, shall do and observe the same, as above set down, on the veiy first occasion that the synod shall be held, otherwise they shall be punished according to the form of the sacred canons. Moreover, all those to whom belong the charge, visitation, and reformation of universities and of (places of) general studies, shall diligently take care that the canons and decrees of this holy Synod be, by the said universities, wholly

received; and that the masters, doctors, and others, in the said universities, interpret and teach those things which are of Catholic faith, in conformity therewith; and that at the be¬ ginning of each year they bind themselves by solemn oath to this procedure. And also if there be any other things that need correction and reformation in the universities aforesaid, they shall be reformed and regulated by those whom it regards, for the advancement of religion and of ecclesiastical discipline. But as regards those universities which are immediately under the protection of the Sovereign Pontiff, and are subject to his visitation, his Blessedness will take care that they be, by his delegates, wholesomely visited and reformed in the manner aforesaid, and as shall seem to him most advantageous.

CHAPTER III.

The sword of excommunication is not to be rashly used: when an execution can be made on property or person , cen¬ sures are to be abstained from: the civil magistrates shall not interfere herein .

Although the sword of excommunication is the very sinews of ecclesiastical discipline, and very salutary for keeping the people in their duty, yet is it to be used with sobriety and great circumspection; seeing that experience teaches, that if it be rashly or for slight causes wielded, it is more despised than feared, and produces ruin rather than safety. Wherefore, those excommunications, which, after certain admonitions, are wont to be issued with the view as it is termed, of causing a revela¬ tion, or on account of things that have been lost or stolen, shall be issued by no one whomsoever, but the bishop; and not then, otherwise than on account of some circumstance of no common kind which moves the mind of the bishop thereunto, after the * cause has been by him diligently and very maturely weighed; nor shall he be induced to grant the said excommunications by the authority of any Secular person whatever, even though a magistrate; but the whole shall be left to his own judgment and

conscience, when, considering the circumstances, the place, the person, or the time, he shall himself judge that such are to be resolved on.

As regards judicial causes, it is enjoined on all ecclesiastical judges, of whatsoever dignity they may be, that, both during the proceedings, and in giving judgment, they abstain from eccle¬ siastical censures, or interdict, as often as an execution on the person or property can, in each stage of the process, be effected by them of their own proper authority ; but in civil causes, which in any way belong to the ecclesiastical court, it shall be lawful for them, if they judge it expedient, to proceed against all per¬ sons whatsoever, even laymen, and to terminate suits, by means of pecuniary fines, which, by the very fact of being levied, shall be assigned to the pious places there existing ; or by distress upon the goods, or arrest of the person, to be made either by their own, or other officers; or even by deprivation of benefices, and other remedies at law. But if the execution cannot be made in this way, either upon the person, or goods, of the guilty, and there be contumacy towards the judge, he may then, in addition to the other penalties, smite* them also with the sword of ana¬ thema, if he think fit.

In like manner in criminal causes, wherein an execution can as above be effected upon the person or goods, the judge shall abstain from censures; but, if that execution cannot easily be made, it shall be lawful for the judge to employ the said spiri¬ tual sword against delinquents; provided however the character of the offence so require, and after two monitions at least, and this by public notice. (h) And it shall not be lawful for any civil magistrate, to prohibit an ecclesiastical judge from excom¬ municating any individual; or to command that he revoke an excommunication that has been issued; under pretext that the things contained in the present decree have not been observed; whereas the cognizance hereof does not appertain to Seculars, but to ecclesiastics. And every excommunicated per¬ son, who, after the lawful monitions, does not repent, shall not only not be received to the sacraments, and to communion, and

(h) Eti&m per edictum, also, or, even by an edict. (*) Nefas

intercourse(k) with the faithful, but if, being bound with cen¬ sures, he shall, with obdurate heart, remain for a year in the defilement thereof, he may even be proceeded against as sus¬ pected of heresy.

CHAPTER IV.

Where the number of Masses to be celebrated is excessive , Bishops , Abbots , and Generals , shall make such regulation as shall seem to them expedient .

It frequently happens, in divers churches, either that so great a number of masses is required to be celebrated on account of various legacies from persons deceased, that it is not possible to comply therewith on the particular days prescribed by the testators; or, that the alms left for the celebration thereof is so slight that it is not easy to find any one willing to undertake the duty; whereby the pious intentions of the testators are frus¬ trated, and occasion is given for burthening the consciences of those who are concerned in the aforesaid obligations. The holy Synod, being desirous that these legacies for pious uses be satisfied in the most complete and useful manner possible, empowers bishops in diocesan Synod, and likewise abbots and generals of orders in their general Chapters, to ordain, in re¬ gard hereof, whatsoever in their consciences they shall, upon a diligent examination of the circumstances, judge to be most ex¬ pedient for God’s honour and worship, and the good of the churches, in those churches aforesaid which they shall find stand in need of some regulation in this matter, in such wise however that a commemoration be always made of the departed who, for the welfare of their souls, have left the said legacies for pious uses.

(k) Familiuritatem, familiarity.

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CHAPTER V.

The conditions and obligations imposed on Benefices shall be observed .

Reason requires, that, in regulations which have been well established, no alteration be made by any ordinances to the con¬ trary. Whenever, therefore, by virtue of the erection or foundation of any benefices, or in consequence of other regulations, certain qualifications are required, or certain obligations are attached thereunto, they shall not be derogated from in the collation, or in any other arrangement whatsoever in regard of the said benefices. The same also shall be observed as to prebends assigned to teachers of theology, masters, doctors, Q) priests, deacons, or subdeacons, whenever such prebends have been established in this manner, in such sort that, in no provision whatever shall anything be altered in regard of the said qualifi¬ cations and orders; and any provision made otherwise shall be accounted surreptitious.

CHAPTER VI.

In what manner the Bishop ought to act in regard of the visi¬ tation of exempted Chapters.

The holy Synod ordains that the decree, made under Paul III., of happy memory, beginning Capitula Calhedralium, shall be observed in all cathedral and collegiate churches, hot only when the bishop makes his visitation, but also as often as he proceeds ex officio , or at the petition of another, against any one of those who are comprised in the said decree ; yet so, however, that whenever he institutes proceedings out of visitation, all the particulars subjoined shall have place : to wit, that the Chapter shall, at the beginning of each year, select two individuals belbng-

(1) Praebendis theologalibus, magistralibus, doetoralifeus.

mg to the Chapter, with whose counsel and consent the bishop, or his vicar, shall be bound to proceed, both in instituting the pro¬ cess, and in all the other acts thereof until the end of the cause inclusively,—in the presence, nevertheless, of the notary of the said bishop, and in the bishop’s house, or his ordinary court of justice. The two deputies shall, however, have but one vote; but either of them may give his vote in unison with that of the bishop. But if, as regards any proceeding, or as regards any interlocutory or definitive sentence, they shall both differ from the bishop, they shall in this case choose, in conjunction with the bishop, a third person, within the term of six days: and should they also not agree in the election of that third person, the choice shall devolve on the nearest bishop; and the point whereon they differed shall be decided, in accordance with the opinion which that third person sides with; otherwise, the pro¬ ceedings, and what follows thereupon, shall be null, and of no effect in law. Nevertheless, in crimes arising from incontinency, whereof mention has been made in the decree concerning concubinaries, as also in the more heinous crimes which require deposition or degradation; where flight is apprehended, and where, that judgment may not be eluded, it is necessary to secure the person, the bishop may at first proceed singly to a summary information, and to the necessary detention of the person ; observing, however, in the rest of the proceedings, the order named above. But in all cases regard is to be paid to this, that the delinquents be kept in custody in a suitable place, according to the quality of the crime and of the persons. More¬ over, there shall everywhere be rendered to bishops that honour which comports with their dignity; and in choir, in the chapter, in processions, and other public functions, (m) they shall have the first seat, and the place which they shall themselves make choice of, and theirs shall be the chief authority in everything that is to be done.

If the bishops shall propose anything to the canons to be deliberated on, and the matter treated of be not one which

(««) Aetibus publicis, public actions or proceedings. Pallav. funzioni.

regards an}' benefit to them or theirs, they shall themselves convoke the Chapter, take the votes, (®) and decide according to them. But, in the absence of the bishop, this shall be wholly done by those of the Chapter, to whom of right or custom it appertains, nor shall

the bishop’s vicar be allowed to do it But in all other things, the jurisdiction and power of the Chapter, if any there be belonging thereunto, as also the administration of their property, shall be left wholly unimpaired and untouched. As regards those who do not possess any dignities, and are not of the Chapter, they shall all be subject to the bishop in causes ecclesiastical; notwithstanding, as regards the things aforesaid, any privileges accruing even from any foundation; as also any customs, even though immemorial; any sentences, oaths, concordates, which bind the authors thereof only ; saving, however, in all things those privileges which have been granted to uni¬ versities for general studies, or to the persons who belong there¬ unto. But all and singular these things shall not have effect in those churches wherein the bishops, or their vicars, by virtue of constitutions, privileges, customs, concordates, or by any other right whatsoever, have a power, authority, and jurisdiction greater than that which is included in the present decree; from which (powers) the holy Synod does not intend to derogate.

CHAPTER VII.

The Access and Regress in regard of Benefices are done away with; in what manner , to whom , and for what cause 9 a Coad¬ jutor is to he granted .

Whereas, as regards ecclesiastical benefices, whatsoever carries with it the appearance of hereditary succession is a thing odious to the sacred constitutions, and contrary to the decrees of the Fathers; no Access or Regress 9 (°) in regard of any ecclesias¬ tical benefice of whatsoever quality, shall, even though by con-

(n) Vota exquirat, demand their opinions or votes.

(o) Access , right of accession to a benefice, at some future period; regress , right vf returning to a benefice vacated, in case of the death, &c., of the actual incumbent.

sent, be henceforth granted to any individual; nor shall those already granted be suspended, extended, or transferred. And this decree shall have effect in regard of all ecclesiastical bene¬ fices whatsoever, and even in cathedral churches, and as regards all manner of persons soever, even though distinguished with the honour of the cardinalate.

In like manner, as regards coadjutorships with future succes¬ sion, the same shall henceforth be observed; (to wit) that they shall not be permitted to any one in regard of any ecclesiastical benefices whatsoever. But if at any time the urgent necessity, or the evident advantage of a cathedral church, or of a monas¬ tery, demands that a coadjutor be granted to a prelate, such coadjutor with (the right of) future succession shall not other¬ wise be granted but after the said cause has been first diligently taken cognizance of by the most holy Roman Pontiff; and it is certain, that all those qualifications which, by law, and by the decrees of this hply Synod, are required in bishops and prelates, are reunited in his person; otherwise, the concessions made herein, shall be accounted surreptitious.

CHAPTER VIII.

What is to be observed in regard of Hospitals . By whom , and in what manner , the

negligence of administrators is to be punished .

The holy Synod admonishes all who hold any ecclesiastical benefices, whether Secular or Regular, to accustom themselves, as far as their revenues will allow, to exercise with alacrity and kindliness the office of hospitality, so frequently commended by the holy Fathers; being mindful that those who cherish hospi¬ tality receive Christ in (the person of) their guests. But as regards those who hold in commendam , or by way of adminis¬ tration, or under any other title whatsoever, or have even united to their own churches, the places commonly called hospitals, or other pious places instituted especially for the use of pilgrims, of the infirm, the aged, or the poor; or, if the parish churches should happen to be united to hospitals, or have been tinned

into hospitals, and have been granted to the patrons thereof to be by them administered, the Synod strictly commands, that they execute the charge and duty imposed upon them, and that they actually exercise that hospitality, which is due at their hands, out of the fruits devoted to that purpose, pursuant to the constitution of the Council of Vienne, renewed elsewhere by this same holy Synod under Paul 111., of happy memory, and which begins, Quia con tin git. But if these hospitals were in¬ stituted to receive a certain class of pilgrims ,or of infirm per¬ sons, or of others; and in the place where the said hospitals are situated, there are no such persons, or very few, to be found, It doth further command, that the fruits thereof be converted to some other pious use, the nearest that may be to their original desti¬ nation, and the most useful for that time and place, as shall seem to be the most expedient to the Ordinary, aided by two of the Chapter, experienced in matters of business, to be chosen by him ; unless it be that the contrary happen to be expressed, to meet even this case, in the foundation, or institution thereof; in which event, the bishop shall take care that what is ordained be observed, or, if that be not possible, he shall, as above, regu¬ late the matter in a useful manner.

Wherefore, if all and singular the persons aforesaid, of what¬ soever order, and religious body, and dignity they may be, be they even laymen, who have the administration of hospitals,— provided, however, they be not subject to Regulars where regu¬ lar observance is in force,—shall, after having been admonished by the Ordinary, have ceased really to discharge the duty of hospitality, complying with all the necessary conditions to which they are bound, they may be compelled thereunto not only by ecclesiastical censures, and other remedies at law, but may also even be deprived for ever of the administration and care of the hospital itself; and others shall be substituted in their place, by those to whom this may belong. And the persons aforesaid shall, this notwithstanding, be bound in conscience to make restitution of the fruits which they have received contrary to the institution of the said hospitals; which restitution shall not be pardoned them by any remission or composition: nor shall the administration or government of such places be henceforth en-

trusted to one and the same person longer than for three years, unless it be otherwise provided in the foundation thereof; not¬ withstanding, as regards all the above-named

particulars, any union, exemption, and custom, even from time immemorial, to the contrary, or any privileges, or indults of whatever kind.

CHAPTER IX.

In what manner a right of patronage is to be proved , and to whom granted: what is not lawful for patrons . Unions of free benefices , to churches under right of patronage , prohibited. Rights of patronage , not legitimately obtained ,, are to be re voked.

Even as it is not just to take away the legitimate rights of patronage, and to violate the pious intentions of the faithful in the institution thereof, so also neither is it to be suffered, that, under this pretext, ecclesiastical benefices be reduced to a state of servitude, as by many is impudently done. In order, there¬ fore, that what reason requires may be observed in all things, the holy Synod ordains, that the title to the right of patronage shall be (derived) from a foundation, or an endowment; which (title) shall be shown from an authentic document, and the other (proofs) required by law; or, also, by repeated presenta¬ tions during a period of time so remote that it exceeds the memory of man; or, otherwise, according as the law directs. But as regards those persons, or communities, or universities, by which that right is for the most part presumed to have been obtained by usurpation rather than otherwise, a more full and exact proof shall be required to establish a true title; nor shall the proof derived from time immemorial be otherwise of avail in their regard, unless—besides other things necessary for that proof—presentations, even continuous, during the space of not less than fifty years, at the least, all of which presentations have been carried into effect, shall be proved from authentic writings. All other rights of patronage, in regard of benefices, as well Secular as Regular, or parochial, or in regard of digni¬ ties, or any other benefices whatsoever, in a cathedral or col-

legiate church; as also all faculties and privileges, whether granted so as to have the force of patronage, or, by virtue of any other right whatsoever, to nominate, elect, present to the said benefices when they become vacant, excepting the rights of patronage belong to cathedral churches, and excepting such other (rights of patronage) as belong to the emperor, to kings, or to those who possess kingdoms, and to other high and supreme princes who have the rights of sovereignty within their own dominions, as also those (rights of patronage) which have been bestowed in favour of (places of) general studies, shall be understood to be wholly abrogated and made void, together with the quasi-possession which has followed thereupon. And bene¬ fices of this kind shall be conferred, as being free, by those who collate thereunto ; and such appointment shall have full effect.

Furthermore, it shall be lawful for the bishop to reject the persons whom the patrons have presented, if they be not fit. But if the institution belongs to inferior (ecclesiastics), they (the presentees) shall nevertheless be examined by the bishop, pur¬ suant to what has been elsewhere ordained by this holy Synod; otherwise the institution made by those inferiors shall be null and void.

But the patrons of benefices, of whatsoever order and dignity they may be, be they (the patrons) even communities, universi¬ ties, or any colleges whatsoever whether of clerics or laymen, shall not in any way, nor for any manner of cause or occasion, meddle with the receiving of the fruits, rents, or revenues of any benefices whatsoever, even though those benefices be truly, by foundation or endowment, under their right of patronage; but shall leave them to the free disposal of the rector, or of the beneficiary, any custom whatever to the contrary notwith¬ standing. Nor shall they presume to transfer to others, contrary to the decrees of the canons, the said right of patronage, by sale, or under any other title whatsoever: if they act otherwise, they shall be subjected to the penalties of excommunication and interdict, and shall be ipso jure deprived of the aforesaid right itself of patronage. Moreover, those accessions (p) made

(P) Accessiones, augmentations, amalgamations.

by way of union of free benefices with churches that are subject to the right of patronage, even of laymen, whether those churches be parochial, or benefices of any other kind whatso¬ ever, even such as are simple, or are dignities, or hospitals, in such wise that the free benefices aforesaid are made to be of the same nature as those unto which they are united, and are placed under the (same) right of patronage; such (accessions), if they have not as yet been carried into full effect, as also such as shall henceforth be made, at the instance of any person whatsoever, by whatsoever authority, be it even apostolic, shall, together with the said unions themselves, be regarded as having been obtained surreptitiously; notwithstanding any form of words therein employed, or any derogation which may be held as equivalent to being expressed; nor shall such unions be any more carried into execution, but the benefices themselves so united shall, when vacant, be freely conferred as previously.

As regards those augmentations, which, having been made within the last forty years, have obtained their effect and a complete incorporation; such shall nevertheless be reviewed and examined by the Ordinaries, as the delegates of the Apos¬ tolic See; and those which shall be found to have been obtained by surreption, or obreption, shall, together with the unions, be declared invalid, and the benefices themselves shall be sepa¬ rated, and be conferred upon other persons.

In like manner also whatsoever rights of patronage,—over churches, and any other benefices of whatsoever kind, even dig¬ nities which were previously free,—which have been acquired within the last forty years, or that may henceforth be acquired, whether through an increase of the endowment, or in conse¬ quence of erecting the building afresh,(•*) or from some other like cause, even though with the authority of the Apostolic See, shall be carefully taken cognizance of by the said Ordinaries, as delegates as aforesaid; and they shall not be hindered by the faculties, or privileges of any individual in regard thereof; but they shall wholly revoke such rights of patronage as they

(a) Ex no?a constructione.

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shall find not to have been legitimately established on account of some most evident necessity of the church, or benefice, or dignity; and they shall restore benefices of this kind to their former state of liberty; without injury however to the incum¬ bents thereof, and after having restored to the patrons what¬ soever they may have given on this score; any privileges, constitutions, and customs, even though immemorial, notwith¬ standing.

CHAPTER X.

Judges , unto whom causes may be committed by the Apostolic See , are to be nominated by the Synod: all judges shall termi¬ nate causes speedily .

Forasmuch as on account of the malicious suggestions of suitors, and at times also by reason of the distance of places, a knowledge of the persons to whom causes are committed cannot be perfectly obtained; and hence causes are sometimes referred to judges on the spot who are not altogether fit; the holy Synod ordains, that, in each provincial, or diocesan, Synod, there shall be designated certain persons who have the qualifi¬ cations required by the constitution of Boniface VIII., which begins, Statutum , and who are otherwise suited thereunto ; that, to them also, besides the Ordinaries of the places, may henceforth be committed those ecclesiastical and spiritual causes, belonging to the ecclesiastical court, which may have to be delegated to their districts. And if one of these so desig¬ nated shall happen to die in the interim, the Ordinary of the place, with the advice of the Chapter, shall substitute another in his stead, until the next provincial or diocesan Synod; in such sort that each diocese shall have at least four, or even more, persons approved of and qualified as above, to whom causes of this nature may be committed by any legate, or nuncio, and even by the Apostolic See : otherwise, after the said designation has been made, which .the bishops shall forthwith transmit to the Sovereign Roman Pontiff, any delegations whatsoever of other

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judges, made to any others but the above, shall be regarded as surreptitious.

The holy Synod furthermore admonishes both the Ordinaries and all other judges whatsoever to endeavour to terminate causes in,as brief a period as possible ; and to meet in every way, either by prescribing a given term, or by some other available method, the artifices of lawyers, whether in delaying the trial of the suit, or any other part of the judicial process.

CHAPTER XI.

Certain leases of Ecclesiastical Property or rights are prohi¬ bited; certain other such leases are annulled.

It ordinarily brings great ruin upon churches, when the pro¬ perty thereof is, to the prejudice of those who succeed, leased out to others upon the present payment of a sum of money. Wherefore, all leases, of this kind, if made for payments in advance, shall be in no wise considered valid to die prejudice of those who succeed; any indult or privilege whatsoever not¬ withstanding ; nor shall such leases be confirmed in the Roman court, or

elsewhere.

Neither shall it be lawful, to farm out ecclesiastical jurisdic¬ tions, or the faculties of nominating, or of deputing vicars in spirituals; nor for the lessees to exercise the above in person or by others; and any grants to the contrary, even though made by the Apostolic See, shall be esteemed surreptitious. As to leases of ecclesiastical things, even though confirmed by apos¬ tolical authority, the holy Synod declares those to be invalid, which, having been made within the last thirty years, for a long term, or as they are designated in some districts, for twentynine, or for twice twenty-nine years, shall be judged by the provincial Synod, or by the deputies thereof, to have been contracted to the injury of the church, and contrary to the ordinances of the canons.

ON REFORMATION.

CHAPTER XII.

Tithes to be paid in full: those withholding , or hindering , the payment thereof are to be excommunicated: the Rectors of Poor Churches arc to be piously relieved.

Those are not to be borne who, by various artifices, endea¬ vour to withhold the tithes accruing to the churches; nor those who rashly take possession of, and apply to their own use, the tithes which have to be paid by others; whereas the payment of tithes is due to God ; and they who refuse to pay them, or hinder those who give them, usurp (r) the property of another. Wherefore, the holy Synod enjoins on all, of whatsoever rank and condition they be, to whom it belongs to pay tithes, that they henceforth pay in full the tithes, to which they are bound in law, to the cathedral church, or to whatsoever other churches, or persons, they are lawfully due. And they who either with¬ hold them, or hinder them (from being paid), shall be ex¬ communicated ; nor be absolved from this crime, until after full restitution has been made. It further exhorts all and each, that, of their Christian charity, and the duty which they owe to their own pastors, they grudge not, out of the good things that are given them by God, to assist bountifully those bishops and parish priests who preside over the poorer churches; to the praise of God, and to maintain the dignity of their own pastors who watch for them.

CHAPTER XIII.

The fourth of Funeral {dues) shall be paid to the Cathedral or Parish Churches.

The holy Synod ordains, that in whatsoever places, forty years ago, a fourth, as it is called, of funerals, was accustomed

(r) Invadunt.

to be paid to the cathedral, or parish, church, but has subse¬ quently, by virtue of whatsoever privilege, been granted to other monasteries, hospitals, or to any other kind of pious places; the same shall henceforth, with all its rights, (•) and in the same proportion as was formerly usual, be paid to the cathedral or parish church; all grants, graces, privileges, even those called mare magnum , s or any others whatsoever, to the contrary not¬ withstanding.

CHAPTER XIV.

The manner of proceeding against Clerics who keep concubines

is prescribed.

How shameful a thing, and how unworthy it is of the name of clerics who have devoted themselves to the service of God, to live in the filth of impurity, and unclean bondage, the thing itself doth testify, in the common scandal of all the faithful, and the extreme disgrace entailed on the . clerical order. To the end, therefore, that the ministers of the Church may be recalled to that continency and integrity of life which becomes them; and that the people may hence learn to reverence them the more, that they know them to be more pure of life: the holy Synod forbids all clerics whatsoever to dare to keep concubines, or any other woman of whom any suspicion can exist, either in their own houses, or elsewhere, or to presume to have any in¬ tercourse with them: otherwise they shall be punished with the penalties imposed by the sacred canons, or by the statutes of the (several) churches. But if, after being admonished by their superiors, they shall not abstain from these women, they shall be ipso facto deprived of the third part of the fruits, rents, and proceeds of all their benefices whatsoever, and pensions; which third part shall be applied to the fabric of the church, or to some other pious place, at the discretion of the bishop. If, however, persisting in the same crime, with the same or some

(*) Integro jure, in its entire right, fully.

other woman, they shall not even yet have obeyed upon a second admonition, not only shall they thereupon forfeit all the fruits and proceeds of their benefices and pensions, which shall be applied to the places aforesaid, but they shall also be suspended from the administration of the benefices themselves, for as long a period as shall seem fit to the Ordinary, even as the delegate of the Apostolic See. And if, having been thus suspended, they nevertheless shall not put away those women, or, even if they shall have intercourse with them, then shall they be for ever deprived of their ecclesiastical benefices, portions, offices, and pensions of whatsoever kind, and be rendered thenceforth in¬ capable and unworthy of any manner of honours, dignities, bene¬ fices and offices, until, after a manifest amendment of life, it shall seem good to their superiors, for a cause, to grant them a dispensation. But if, after having once put them away, they shall have dared to renew the interrupted connexion, or to take to themselves other scandalous women of this sort, they shall, in addition to the penalties aforesaid, be smitten with the sword of excommunication. Nor shall any appeal, or exemption, hin¬ der or suspend the execution of the aforesaid; and the cog¬ nizance of all the matters above-named shall not belong to archdeacons, or deans, or other inferiors, but to the bishops themselves, who may proceed without the noise and the forma¬ lities of justice, and by the sole investigation of the truth of the fact.

As regards clerics who have not ecclesiastical benefices or pensions, they shall, according to the quality of their crime and contumacy, and their persistance therein, be punished, by

the bishop himself, with imprisonment, suspension from their order, inability to obtain benefices, or in other ways, conformably with the sacred canons.

Bishops also, if, which God forbid, they abstain not from 1 crime of this nature, and, upon being admonished by the pro¬ vincial Synod, they do not amend, shall be ipso facto suspended; and, if they persist therein, they shall be reported by the said Synod to the most holy Roman Pontiff, who shall punish them according to the nature of their guilt, even with deprivation, if peed be.

CHAPTER XV.

The illegitimate Sons of Clerics are excluded from certain Benefices and Pensions .

That the memory of paternal incontinency may be banished as far as possible from places consecrated to God, where purity and holiness are most especially beseeming; it shall not be law¬ ful for the sons of clerics, not born in lawful wedlock, to hold, in those churches wherein their fathers have, or had, an eccle¬ siastical benefice, any benefice whatsoever, even though a dif¬ ferent one; nor to minister in any way in the said churches ; nor to have pensions out of the revenues of benefices which their fathers hold, or have aforetime held. And if a father and son shall be found, at this present time, to hold benefices in the same church; the son shall be compelled to resign his benefice, or to exchange it for another out of that church, within the space of three months, otherwise he shall be ipso jure deprived thereof; and any dispensation in regard of the aforesaid shall be accounted surreptitious. Moreover, any reciprocal resigna¬ tions which shall from this time forth be made by fathers who are clerics in favour of their sons, that one may obtain the bene¬ fice of the other, shall be wholly regarded as made in fraudulent evasion of this decree, and of the ordinances, of the canons; nor shall the collations that may have followed, by virtue of resignations of this kind, or of any others whatsoever made fraudulently, be of avail to the said sons of clerics.

CHAPTER XVI.

Benefices with cure shall not be converted into simple Benefices: a suitable portion of the fruits shall be assigned to the Vicar who exercises the cure of souls .

The holy Synod ordains, that those Secular ecclesiastical benefices, by whatsoever name they may be called, which, by

their original institution, or in any other way whatever, have the cure of souls, shall not henceforth be converted into a simple benefice, even though a suitable portion be assigned to a per¬ petual vicar; notwithstanding any graces whatsoever which have not obtained their full effect. But, as regards those benefices wherein, contrary to the institution or foundation thereof, the cure of souls has been transferred to a perpetual vicar, even though they be found to have been in this state from time im¬ memorial, if a suitable portion of the fruits have not been assigned to the vicar of the church, by what name soever he may be designated, the same shall be assigned as soon as pos¬ sible, and

within a year at the furthest from the end of the present Council, at the discretion of the Ordinary’; pursuant to •the form of the decree made under Paul III., of happy memory. But if this cannot conveniently be done, or if it be not done, within the said term, as soon as the benefice shall be vacant, either by the resignation or death of the vicar, or rector, or in whatsoever way either of the above shall vacate it, it shall receive again the cure of souls; the name of vicarage cease; and it shall be restored to its ancient state. '

CHAPTER XVII.

Bishops shall maintain their dignity; .nor conduct them selves with unworthy servility towards the Ministers of Kings , towards Lords , or Barons .

The holy Synod cannot but sorely grieve at hearing that certain bishops, forgetful of their own estate, do in no slight manner disgrace the pontifical dignity ; comporting themselves with an unseemly kiud of servility, both in church and out of it, before the ministers of kings, nobles,(*) and barons; and, as if they were inferior ministers of the altar, not only most unwor¬ thily give them place; but even serve them in person. Where¬ fore, the holy Synod, detesting this and the like behaviour, doth, by renewing all the sacred canons, the General Councils, and

(t) Regulis.

other apostolical ordinances, which relate to the decorum and authority^) of the episcopal dignity, enjoin, that henceforth bishops abstain from the like; charging them that, both in church and out of it, having before their eyes their own rank and order, they every where bear in mind that they are fathers and pastors; charging also others, as well princes, as all per¬ sons whatsoever, to pay them paternal honour and due reverence.

CHAPTER XVIII.

The Canons shall be exactly observed: if at any time , a dis¬ pensation is to be granted in regard thereof it shall be done with the most mature deliberation.

As it is expedient for the public good, to relax at times the restraint of the law, thereby more completely to meet, for the common advantage, the cases and necessities which arise; even so, to dispense too often with the law, and to yield to petitioners on account of precedent, rather than upon any certain discrimi¬ nation in regard of persons and. circumstances, is nothing else but to open a way for each one to transgress the laws. Where¬ fore, be it known to all men, that the most sacred canons are to be exactly observed by all, and, as far as this is possible, without distinction. But if any urgent and just reason, and at times a greater good, shall require that some be dispensed with; this shall be granted, after the cause has been taken cognizance of, and after the most mature deliberation, and gratuitously, by all those soever to whom that dispensation appertains; and any dispensation granted otherwise shall be esteemed surreptitious.

CHAPTER XIX.

Duelling is prohibited under the most severe penalties .

The detestable custom of duelling, introduced by the con¬ trivance of the devil, that by the bloody death of the body, he

(v) Dccorem et gravitatem.

may accomplish the ruin of the soul, shall be utterly exter¬ minated from \hc Christian world. Any emperor, kings, dukes, princes, marquises, counts, and temporal lords by whatsoever other name entitled, who shall grant a place within their territories for single combat between Christians, shall be there¬ upon (w) excommunicated, and shall be understood to be de¬ prived of jurisdiction and dominion over any city, castle, or place, in or at which they have permitted the duel to take place, which they hold of the church ; and if those places be held as a fief they shall forthwith escheat to their direct lords.

As to the persons who have fought, and those who are called their seconds (sponsors), they shall incur the penalty of excom¬ munication, and the confiscation (z) of all their property, and of perpetual infamy, and are to be punished as homicides, according to the sacred canons; and if they have perished in the conflict itself, they shall be for ever deprived of ecclesiastical sepulture. Those also who have given counsel in the case of a duel, whether for the question of right, or fact, or have in any other way whatever persuaded any one thereunto, as also the specta¬ tors thereof, shall be subjected to the bond of excommunication, and of a perpetual malediction; any privilege soever, or evil custom, though immemorial, notwithstanding.

CHAPTER XX.

The Immunities , Liberty , and other Righ ts of the Church are recommended to Secular Princes .

The holy Synod being desirous that ecclesiastical discipline may not only be restored amongst the Christian people, but that it also may be for ever preserved sound and safe from all manner of adverse attempts; besides those things which It has ordained touching ecclesiastical persons, has thought fit, that Secular princes also be admonished of their duty ; trusting that they,—as Catholics, whom God hath willed to be the protectors

(w) Eo ipso, by the act itself.

(x) Pioscriptionis, foifeiture.

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of holy faith and church,—will not only grant that to the church her own right be restored, but will also recall all their own subjects to due reverence towards the clergy, parish priests, and the superior orders; nor permit that their officers, or inferior magistrates, through any spirit of covetousness, or any heedlessness, violate that immunity of the church and of eccle¬ siastical persons, which, by the ordinance of God, and by the appointments of the canons has been established; but (see) that they render, conjointly

with the princes themselves, due observance to the sacred constitutions of Sovereign Pontiffs and of Councils.

It ordains, therefore, and enjoins, that the sacred canons, and all the General Councils, as also all other apostolic ordinances, published in favour of ecclesiastical persons, of the liberty of the Church, and against the violators thereof,—all which It also renews by this present decree,—be exactly observed by all men- And for this cause It admonishes the emperor, kings, republics, princes, and all and each of whatsoever state and dignity they be, that, the more bountifully they are adorned with temporal goods, and with power over others, the more religiously should they respect whatsoever is of ecclesiastical right, as belonging especially to God, and as being under the cover of His pro¬ tection ; and that they suffer not such to be injured by any barons, nobles,(y) governors, or other temporal lords, and above all by their own immediate officers; but punish those severely, who obstruct her liberty, immunity, and jurisdiction; being themselves an example to them in regard of piety, religion, and the protection of the churches, in imitation of those most ex¬ cellent and religious princes their predecessors, who not only defended from all injury from others, but, by their authority and munificence, in a special manner advanced the interests of their own church. Wherefore let each one herein discharge his duty carefully; that so the divine worship may be devoutly celebrated, and prelates and other clerics remain, quietly and without hindrances, in their own residences and in the discharge of their duties, to the profit and edification of the people.

(y) DomicelUs.

ON REFORMATION.

CHAPTER XXI.

In all things the authority of the Apostolic See shall remain

untouched .

Lastly, the holy Synod declares, that all and singular the things which, under whatsoever clauses and words, have been ordained in this sacred Council, in the matter of reformation of morals, and ecclesiastical discipline, as well under the Sovereign Pontiffs, Paul III., and Julius III., of happy memory, as under the most blessed Pius IV., have been so decreed, as that the authority of the Apostolic See both is, and is understood to be, untouched thereby.

Whereas all those things which had to be treated of in the present Session cannot, because of the lateness of the hour, be conveniently despatched; therefore, according as was resolved on by the Fathers in general congregation, the things which remain are deferred till to-morrow, in continuation of this same Session.

CONTINUATION OF THE SESSION,

On the fourth day of December .

Decree Concerning Indulgences

Whereas the power of conferring Indulgences was granted by Christ to the Church; and she has, even in the most ancient times, used the said power, (*) delivered unto her of God; the sacred holy Sjoiod teaches, and enjoins, that the use of Indul¬ gences, for the Christian people most salutary, and approved of

(*) Hujusmodi potestate, this kind of power.

by the authority of sacred Councils, is to be retained in the Church; and It condemns with anathema those who either assert, that they are useless; or who deny that there is in the Church the power of granting them. In granting them, how¬ ever, It desires that, in accordance with the ancient and approved custom in the Church, moderation be observed; lest, by excessive facility, ecclesiastical discipline be enervated. And being desirous that the abuses which have crept therein, and by occasion of which this honourable(a) name of Indulgences is blasphemed by heretics, be amended and corrected. It ordains generally by this decree, that all evil gains for the obtaining thereof,—whence a most prolific cause of abuses amongst the Christian people has been derived,—be wholly abolished. But as regards the other abuses which have pro¬ ceeded from superstition, ignorance, irreverence, or from what¬ soever other source, since, by reason of the manifold corruptions in the places and provinces where the said abuses are com¬ mitted, they cannot conveniently be specially prohibited; It commands all bishops, diligently to collect, each in his own church, all abuses of this nature, and to report them in the first provincial Synod; that, after having been reviewed by the opinions of the other bishops also, they may forthwith be referred to the Sovereign Roman Pontiff, by whose authority and prudence that which may be expedient for the universal Church will be ordained; that thus the gift of holy Indulgences may be dispensed to all the faithful, piously, holily, and incorruptly.

on choice of meats; on fasts, and festival days.

The holy Synod furthermore exhorts, and, by the* most holy advent of our Lord and Saviour, conjures all pastors, that, like good soldiers, they sedulously recommend to all the faithful all those things which the holy Roman Church, the mother and

(a) Insigne, excellent.

ON THE INDEX OF BOOKS, &C.

mistress of all churches, has ordained, as also those things which, as well in this Council, as in the other oecumenical Coun¬ cils, have been ordained, and to use all diligence that they be observant of all thereof, and especially of those which tend to mortify the flesh, such as the choice of meats, and fasts; as also those which serve to promote piety, such as the devout and religious celebration of festival days; often admonishing the people to obey those set over them (Heb. xiii. 17), whom they who hear, shall hear God as a rewarder, whereas they who contemn them, shall feel God himself as an avenger.

ON THE INDEX OF BOOKS ; ON THE CATECHISM, BREVIARY, AND MISSAL.

The sacred and holy Synod, in the second Session celebrated under our most holy lord, Pius IV., commissioned certain chosen Fathers to consider what ought to be done touching various censures, and books either suspected or pernicious, and to re¬ port thereon to the said holy Synod; hearing now that the finishing hand has been put to that labour by those Fathers ; which, however, by reason of the variety and multitude of books cannot be distinctly and conveniently judged of by the holy Synod; It enjoins that whatsoever has been by them done shall be laid before the most holy Roman Pontiff, that it may be by his judgment and authority terminated and made public. And it commands that the same be done in regard of the Catechism, by the Fathers to whom that work was consigned, and as regards the missal and breviary.

ON THE PLACE OF AMBASSADORS.

The holy Synod declares, that, by the place assigned to am¬ bassadors, as well Ecclesiastics as Seculars, whether in Session, procession, or in any other acts whatsoever, no prejudice has been created in regard of any amongst them; but that all their

own rights and prerogatives, and those of their own emperor, kings, republics, and princes are uninjured and untouched, and continue in the same state as they were before the present Council.

ON RECEIVING AND OBSERVING THE DECREES OF THE COUNCIL.

So great has been the calamitousness of these times, and such the inveterate malice of the heretics, that there has been nothing ever so clear in our statement of faith, nothing so surely settled, which they, at the instigation of the enemy of the human race, have not defiled by some sort of error. For which cause the holy Synod hath made it Its especial care to condemn and ana¬ thematize the principal errors of the heretics of our time, and to deliver and teach the true and Catholic doctrine; even as It has condemned, and anathematized, and decreed.

And whereas so many bishops, summoned from the various provinces of the Christian world, cannot be absent for so long a time without great loss to the flock entrusted to them, and with¬ out universal danger; and whereas no hope remains that the heretics, after being so often invited, even with the public faith which they desired, and after being so long expected, will come hither later; and it is therefore necessaiy to put an end at length to the sacred Council: it now remains for It to admonish in the Lord all princes, as It hereby does, so to afford their assistance as not to permit the things which It has decreed to be corrupted or violated by heretics; but that they be by them and all others devoutly received, and faithfully observed. And should any difficulty arise in regard of receiving those decrees, or should anything be met with, which it does not believe, requiring expla¬ nation or definition, the holy Synod trusts that, besides the other remedies appointed in this Council, the most blessed Roman Pontiff will make it his care that, for the glory of God and the tranquillity of the Church, the necessities of the pro¬ vinces be provided for, either by summoning, particularly out of the provinces where the

difficulties shall have arisen, those

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persons whom he shall deem it expedient (to employ) in treat¬ ing of the said matters; or even by the celebration of a general Council, if he judge it necessary; or in such other way as shall seem to him most suitable.

ON RECITING, IN SESSION, THE DECREES OF THE COUNCIL UNDER PAUL III. AND JULIUS III.

Forasmuch as, at divers times, as well under Paul III., as under Julius III., of happy memory, many things have, in this sacred Council, been ordained and defined touching dogmas and reformation of manners; the holy Synod wills that they be now recited and read.

They were recited .

ON THE CLOSE OF THE COUNCIL, AND ON SUING FOR CONFIR¬ MATION FROM OUR MOST HOLY LORD.

Most illustrious lords and most reverend Fathers, doth it please you, that, to the praise of Almighty God, an end be put to this sacred oecumenical Synod ? and that the confirmation of all and singular the things which have therein been decreed and defined, as well under the Roman Pontiffs, Paul III., and Julius III., of happy memory, as under our most holy lord Pius IV., be requested, in the name of this holy Synod, by the presidents, and the Legates of the Apostolic See, from the most blessed Roman Pontiff ?

They answered : It pleaseth us.

Afterwards , the most illustrious and most reverend Cardinal Morone i the first Legate and President , blessing the holy Synod said : After having given thanks to God, most reverend Fathers, go in peace.

They answered: Amen.

ACCLAMATIONS OF THE FATHERS.

ACCLAMATIONS OF THE FATHERS AT THE CLOSE OF THE COUNCIL.

The Cardinal of Lorraine. To the most blessed Pius, Pope, and our lord, pontiff of the holy and universal Church, many years and eternal memory.

Answer of the Fathers. O Lord God, do Thou very long preserve the most holy Father to thy church: for many years.

The Cardinal. To the souls of the most blessed Sovereign Pontiffs, Paul III., and Julius III., by whose authority this sacred general Council was begun, peace from the Lord, and eternal glory, and happiness in the light of the saints.

Answer. Be their memory in benediction.

The Cardinal. Of the Emperor Charles the Fifth, and of the most serene kings, who have promoted and protected this universal Council, be the memory in benediction.

Answer. Amen, Amen.

The Cardinal. To the most serene Emperor Ferdinand, ever august, orthodox, and pacific, and to all our kings, republics, and princes, many years.

Answer. Preserve, O Lord, the pious and Christian emperor : Oh, Heavenly Emperor, protect earthly kings, the preservers of the right faith.

The Cardinal. To the Legates of the Apostolic Roman See, and presidents in this Synod, many thanks and many years.

Answer. Many thanks: the Lord reward them.

The Cardinal . To the most reverend cardinals, and most illustrious ambassadors.

Answer. Many thanks; many years.

The Cardinal . To the most holy bishops, life, and a happy return to their own churches.

Answer. To the heralds of truth perpetual memory ; to the orthodox senate many years.

The Cardinal The sacred and holy oecumenical Synod of Trent: let us confess the faith thereof; let us ever keep the decrees thereof.

Answer . Ever let us confess, ever keep.

CONFIRMATION OF THE COUNCIL.

The Cardinal. We all thus believe ; we all think the very same; we all, consenting and embracing (them), subscribe. This is the faith of blessed Peter, and of the apostles : this is the faith of the Fathers: This is the faith of the Orthodox.

Answer. Thus we believe; thus we think; thus we sub¬ scribe.

The Cardinal. To these decrees adhering may we be made worthy of the mercies and grace of the first and great supreme priest, Jesus Christ God; our inviolate Lady, the holy mother of God, also interceding, and all the saints.

Answer. So be it: so be it. Amen, Amen.

Cardinal. Anathema to all heretics.

Answer. Anathema, anathema.

After this, it was enjoined on all the Fathers, by the Legates and presidents, under pain of excommunication, that, before departing from the city of Trent, they should subscribe with their own hand the decrees of the Council, or approve thereof by some public instrument; all of whom subsequently sub¬ scribed, and they were in number cclv ; to wit, four legates, two cardinals, three patriarchs* twenty-five archbishops, one hundred and sixty-eight bishops, seven abbots, thirty-nine proctors of absent (prelates) with lawful commission, seven generals.

Praise he to God.

It agrees with the original: in faith whereof we have sub¬ scribed :

I, Angelus Massarelli, bishop of Telesia, secretary of the sacred Council of Trent.

I, Marcus Antonius Peregrinus, of Como, notary of the said Council.

I, Cynthius Pamphilus, clerk of the diocese of Camerino, notary of the said Council.

CONFIRMATION OF THE COUNCIL.

' We, Alexander di Farnese, cardinal-deacon of Saint Law¬ rence in Damaso, vice-chancellor ,of the holy Soman Church,

CONFIRMATION OF

do certify and attest, that, on this day, being Wednesday, the twenty-sixth of January, mdlxiv, in the fifth year of the pon¬ tificate of our most holy lord Pius TV., by the providence of God, Pope, the most reverend my lords, the cardinals Morone and Simonetta, lately returned from the sacred Council of Trent, whereat they had presided as Legates of the Apostolic See, did, in a secret consistory, held at St Peter’s, petition our said most holy lord as follows:

Most blessed Father; in a decree, concerning the closing of the oecumenical Council of Trent, published the day before the nones of December last,(b) it was ordained, that, through the presidents and Legates of your Holiness, and of the holy Apostolic See, confirmation should be requested from your Holiness, in the name of the said Council, of all and singular the things which were therein decreed and defined, as well under Paul III., and Julius III., of happy memory, as under your Holiness. Wherefore, we, John, Cardinal Morone, and Louis, Cardinal Simonetta, who were then Legates and presi¬ dents, wishing to execute what was appointed in that decree, do humbly petition in the name of the said oecumenical Council of Trent, that your Holiness would vouchsafe to confirm all and singular the things which have therein been decreed and defined, as well under Paul III., and Julius III., of happy memory, as under your Holiness.

Upon hearing which, his Holiness, having looked at and read the tenour of the said decree, and having taken the advice of the most reverend lords, the cardinals, replied in these words: Acceding to the petition made to us, by the Legates aforesaid, in the name of die oecumenical Council of Trent, touching the confirmation thereof, We, with apostolic authority, and with the advice and assent of our venerable brethren the cardinals, having previously had a mature deliberation with them, do confirm all and singular the things which have been decreed and defined in the said Council, as well under Paul III., and Julius III., of happy memory, as during the time of our pontificate; and we

(b) December 4th.

THE COUNCIL.

command that the same be received and inviolably observed by all the faithful of Christ; In the name of the Father, and of the Son, and of the Holy Ghost. Amen.

So it is.

A. Cardinal Farnese,

Vice - Chancellor .

Bull of Our Most Holy Lord Pius Iv., by the Providence of God,

POPE, TOUCHING THE CONFIRMATION OF THE (ECUMENICAL (AND) GENE.

RAL COUNCIL OF TRENT.

Pius, bishop, servant of the servants of God, for the perpetual memory hereof.

Blessed be the God , and Father of our Lord Jesus Christ , the Father of mercies , and the God of all comfort , (c) who hath vouchsafed to look down upon His holy Church, agitated and tossed by so many storms and tempests, and, whilst it was day by day more sorely distressed, hath at length brought relief thereunto by a suitable aud wished-for remedy. To extirpate very many and most pernicious heresies, to correct maimers, and to restore ecclesiastical discipline, to procure the peace and concord of the Christian people, an (Ecumenical and general Council had been, a long time previously, indicted by our pre¬ decessor, Paul III., of pious memory, and had been begun by bolding several Sessions. Having been, by his successor, re¬ called to the same city, the Council, after several Sessions had been celebrated, could not, on account of various impediments and difficulties which supervened, be even then brought to a conclusion: it was, therefore, for a long time interrupted, not without the greatest grief on the part of all persons of piety, whilst the Church daily more and more implored that remedy. But we, upon having entered upon the government of the Apostolic See, undertook to accomplish so necessary and salu¬ tary a work, even as our pastoral solicitude admonished us;

(c) 2 Cor. i 3.

CONFIRMATION OF

trusting in the Divine Mercy, and aided by the pious zeal of our most beloved son in Christ, Ferdinand, Emperor elect of the Romans, and by that of other Christian kings, republics, and princes, we have at length attained to that which we have not ceased to labour after by daily and nightly watchfulness, and which we have assiduously besought of the Father of lights. (d) For whereas a most numerous assembly of bishops and of other distinguished prelates, and one worthy of an oecumenical Coun¬ cil, had, upon being convoked by our letters, and impelled also by their own piety, been gathered together from all sides out of the nations of Christendom, at the said city; together with whom were very many other persons of piety, pre-eminent for skill in sacred letters, and knowledge of divine and human law; the Legates of the Apostolic See presiding in the said Synod; ourselves so favourable to the liberty of the Council, as even to have, by letters written to our Legates, voluntarily left the said Council free to determine concerning matters properly reserved to the Apostolic See; such things as remained to be treated of, defined, and ordained, touching the sacraments and other mat¬ ters, which seemed to be necessary for confuting heresies, removing abuses, and amending morals, were by the sacred and holy Synod, with the most perfect liberty and diligence, treated of, and

accurately and most deliberately defined, explained, and ordained, which being completed, the Council was brought to a close with so great unanimity on the part of all who assisted thereat, that it was plain that such agreement was the Lord's doing , and it teas very wonderful in our eyes, and those of all.(e) For which so singular a bounty, We at once appointed solemn processions in this good city, which were assisted at with great piety by the clergy and people ; and We made it our care that the thanksgivings so justly due should be paid to the divine majesty; forasmuch as the issue of that Council has brought with it a great and well nigh assured hope that greater fruits will day by day be derived unto the Church from die de¬ crees and constitutions thereof.

(<i) James i. 17.

(«) Pa. cxvii. 3.

THE COUNCIL.

And whereas the said holy Synod, in its reverence towards the Apostolic See, and following also in the traces of the ancient Councils, has, in a decree made thereon in public Session, re¬ quested of us the confirmation of all Its decrees, passed in our time and that of our predecessors; We, being made acquainted with the request of the said Synod, first by the letters of our Legates, then, upon their return, by what they diligently reported in the name of the Synod ; after mature deliberation had thereon with our venerable brethren the cardinals of the holy Roman Church, and, above all, having invoked the assistance of the Holy Spirit; after that we had ascertained that all those decrees were Catholic, and useful and salutary to the Christian people, We, to the praise of Almighty God, with the advice and assent of our brethren aforesaid, have this day, in our secret consistory, confirmed by Apostolic authority all and singular those decrees, and have ordained that the same be received and observed by all the faithful of Christ; as also, for the clearer information of all men, We do, by the tenour of this letter, confirm them, and ordain that they be received and observed.

And, in virtue of holy obedience, and under the penalties by the sacred canons appointed, and others more grievous, even those of deprivation, to be inflicted at our discretion, We do also command all and each of our venerable brethren, the patriarchs, archbishops, bishops, and all other prelates whatsoever of the churches, of what estate, grade, order and dignity soever, they may be, even though distinguished with the honour of the cardinalate, diligently to observe the said decrees and statutes in their own churches, cities, and dioceses, both in their courts of justice and elsewhere, and to cause the same to be inviolably observed, each by his own subjects, in so far as they are in any way concerned therein; silencing gainsayers, and the refractory, by means of judicial sentences, and by the censures also and ecclesiastical penalties contained in the said decrees; calling in also, if need be, the help of the secular arm. And, by the bowels of the mercy of our Lord Jesus Christ, We admonish and conjure our said most beloved son the emperor elect, and the Christian kings, republics, and princes, with that piety with which they assisted, by their ambassadors, at the Council, with

the same piety and equal zeal, for the sake of God’s honour, and the salvation of their people, in reverence also towards the Apostolic See, and the sacred Synod, to support, when needful, with their assistance and countenance, the prelates in executing and observing the decrees of the said Council; and not to per¬ mit opinions adverse to the sound and salutary doctrine of the Council to be received by the people who are under their sway, but utterly to interdict such.

Furthermore, in order to avoid the perversion and confusion which might arise, if each one were allowed, as he might think fit, to publish his own commentaries and interpretations on the decrees of the Council ; We, by apostolic authority, forbid all men, as well ecclesiastics, of whatsoever order, condition, and rank they may be, as also laymen, with whatsoever honour and power invested; prelates, to wit, under pain of being interdicted from entering the church, and all others whomsoever they be, under pain of excommunication incurred by the fact, to pre¬ sume, without our authority, to publish, in any form, any commentaries, glosses, annotations, scholia, or any kind of in¬ terpretation whatsoever of the decrees of the said Council; or to settle anything in regard thereof, under any plea whatsoever, even under pretext of greater corroboration of the decrees, or the more perfect execution thereof, or under any other colour whatsoever. But if anything therein shall seem to any one to have been expressed and ordained in an obscure manner, and it shall appear to stand in need on that account of an interpre¬ tation or decision, let him Go up to the place which the Lord hath chosen ;(*) to wit, to the Apostolic See, the mistress of all the faithful, whose authority the holy Synod also has so rever¬ ently acknowledged. For, if any difficulties and controversies shall arise in regard of the said decrees, We reserve them to be by Us cleared up and decided, even as the holy Synod has Itself in like manner decreed; being prepared, as that Synod has justly expressed Its confidence in regard of Us, to provide for die necessities of all the provinces, in such manner as shall

(f) Deut xvii. 8.

seem to Us most suitable ; declaring that whatsoever may be attempted to the contrary in this matter, whether wittingly or unwittingly, by any one, by what authority soever, is, notwith¬ standing, null and void. And that these things may come to the knowledge of all men, and that no one may use the excuse of ignorance; We will and ordain, that, in the Vatican Basilica of the prince of the apostles, and in the Lateran church, at the time when the people is wont to assemble there to be present at the solemnization of masses, this letter be publicly read in a loud voice by certain officers of our court; and that, after hav¬ ing been read, it be affixed to the doors of those churches, and also to the. gates of the Apostolic Chancery, and to the usual place in the Campo di Fiore; and be there left for some time, to he read by and to come to the knowledge of all men. And when removed thence, copies being, according to custom, left in those same places, it shall be committed to the press in our good city, that so it may be more conveniently made known through¬

out the provinces and kingdoms of the Christian name. And we ordain and decree, that, without any doubt, faith be given to copies thereof written or subscribed by the hand of a public notary, and guaranteed by the seal and signature of some per¬ son constituted in ecclesiastical dignity. Let no one, therefore, infringe this our letter of confirmation, monition, inhibition, reservation, will, mandate, and decree, or with rash daring go contrary thereunto. But if any one shall presume to attempt this, let him know that he will incur the indignation of Almighty God, and of His blessed Apostles, Peter and Paul. Given at Rome, at Saint Peter's, in the year of the Lord's Incarnation One thousand five hundred and sixty-four, on the seventh of the calends of February,(g) in the fifth year of our pontificate.

(?) January 26th.

THE NAMES,

SURNAMES, COUNTRY, AND DIGNITY,'

Of the Legates, and other Fathers, as also of the Ambassadors and Theologians, who were present, at all, or any of, the first ten Sessions, held under Paul Ill., from the 13th of December, 1545, to the 2nd of June, 1547.

(From Le Plat's edition of the Council of Trent, p. 89—102. Antwer. 1779.)

Sacri concilii preesidentes S. M. E cardinales et apostolici de latere legati.

Rmus. et Hl mn s. D. Joannes Maria, tiff. 9 Aprilis, 1555. Sub Marcelli II. episcopus Praenestinus de monte Areti- nomine. Obiit Romas, 30 Aprilis, 1555; nus. Prius archiep. Sipontinuset guber- sepult. est apud S. Petrum. nator urbis. Interf. con. Lateran. Sub Rmua. et Ill mus » D. Beginaldus Polus, Leone X. Summus Pontifex sub Juliilll. Anglus, tituli S. Mariae in Cosmedin dianomine 8 Feb. 1550. Obiit Romae, 23 conus. Dein tit. S. Priscae presb. card., Martii, 1555; sepult. est in Vatic. legatus apost. Angliae, archiep. Cantuar.

Rums, et lllmus. D. Marcellas, tituli S. Recessit ante quintam sess. Obiit 15 Crucis in Jerusalem presbyter, Cervinus: Decemb. 1558, post 16 horas ab obitu Politianus. Ep. Eugubiensis, elect. Pon- * Mariae reginae, ejus affinis.

Cardinales non legati

Rmus. et Illmus. D. Christophorus Ma- Rmus. e t nimus. D. Petrus Pacecus, drucius, Tridentinus, tit. S, Caesarei in Hispanus, sanctae Romanae ecclcsiae prespalatio presbyter cardinalis, et episcopus byter cardinalis, et episcopus Giennensis. Tridentinus et administrator Brixiensis. Card, creatus ante 2 sess., 16 Decemb. Cardin, creatus 31 Maii, 1542, proclama- 1545. Tridenti semper praesens. Fuit tus 19 Decemb. 1544, Dein episc. Albanus,' episcopus Seguntinus, Mindoniensis, Sabinensis, Praenestinus ac Portuensis. Civitatensis, Pampeloniensis. Tandem Post quintam session, non comparuit in prorex Neapolitans pro Carolo V. Imconciho. Dein Tiburt. episc. Obiit perat. et Pliillipo II. ejus filio, 1554. 5 Julii, 1578; sepult. est Romae in sa- Obiit Romae, 4 Mart. 1560. cello gentilitio S. Onuphrii. Fuerat pro Carolo V. Imperat vicar, gen. ducatus Mediolanensis.

Oratqres Caroli V. Casaris, Htspaniarum regis t tfc.

Illust. D. Didacus Hurtadus de Men- Illust. D. Franciscus Alvarez de Toledo,

doza, Hispanus. Fuit In quarta sess. tan- Hispanus. Fuit in tertia et quarta sess. turn. Obiit 1575.

Oratores regis Christianissimi.

Ill. D. Claudius Durfd, Gall us, Foren- D. Petms Danes, Parisiensis. Suzensium pnefectus. naruin praepositus: principis Delphini

D. Jacobus deLigneris,Gallus. TertiiB Francisci II. posiea praeceptor ac episc. inquisitoriArum sen at. Paris, classium Vaureusis. praeses, postea iufiilatus presses ibid.

Obiit Paris, 1 Aug. 1556.

NAMES OF PRELATES, ETC., PRESENT AT THE COUNCIL. 201

Oratoret Ferdinand !, Rom . Bohemia et Hung aria regi «,

HI. D. FranciBus a Castelalto, Germanus.

Magnificus D. Antonins Queta, J.V.D., Tridentinus. Hi fuerunt presentee us¬

que ad tertiam orationem inclusive.

111. D. Wolfgangus comes de 8aliu, Germ anus, episcopus Passavieusis. A Spondano notatus.

Archicpiscopi.

R. D. Andreas Cornelius, Venetus, archiepiscopus 8palatreusi8. Fuit Andr. arch. 8palatrensis nepos: 23 ann. natus Brixie administer 3 Maii, 1632. Obiit Romas, 1661, cardin. tit. 8. Theodori.

R. D. Antonius Sitboli de Genaco, G alius, archiepiscopus Aquensis. Fuerat coadjutor Petri patrui 1632.. Acta concilii collegit usque ad obituro Pauli 111. Electus 1641. Obiit 2 Decemb. 1660.

R. D. Salvator Alexius Sassarus, Hispan us, archiepiscopus Turritanus.

R. D. Ludovicus Cbieregatus, Vicentinus, archiepiscopus Antibarensis.

R. D. Jacobus Cauchus, Venetus, archiepiscopus Corcyrensis. Elect. 7 April. 1629. Obiit 1560.

R. D. Joannes Michael Sarracenus, Neapolitanus, archiepiscopus Materanus

et Acheruntinus. Elect. 3 Jul. 1531. Obiit card, episc. Sabineusis 27 Apr. 1663.

R. D. Franciscus Bandinus, Senensis, archiepiscopus 8enensis. Elect. 7 April. 1529. Obiit 1558.

R. D. Sebastianus Lecavela, Greens, archiep. Naxiensis et Pariensis. Elect. 1540. Obiit 15 Novemb. 1566 ; setet. 66.

R. D. Olaus Magnus, Gothus, archi¬ episcopus Upsalensis.

R. D. Petrus Tagliavia, Siculus, archi¬ episcopus Panormitanus. Obiit Panormi, 5 August. 1558.

R. D. Robertas Vaucop, Scotas, archi¬ episcopus Armachanus. Elect. 1641. Obiit 1551.

R. D. Julius Contarenus, archiepisco¬ pus 8. Severini. /

Episcopi.

R. D. Marcus Vigerius, Savonensis, episcopus Senogalliensis. Electus 1513. Obiit 1555. Interf. cone. Lateran. sub Leone X. Fuer. gub. Piceni, Bonon.r Anconens., Parrn., Placent. nunt. apost. ad reg. Portug.

R. D. Philes Roverella, Ferrariensis, episcopus Asculanus. Elect. 3 Sept. 1518. Obiit Romae 1550. Nunt. apost. ad plerosq. principes.

R. D. Philibertas Ferrerius, Hipporegiensis, episcopus Hipporegiensis.

R. D. Thomas de S. Felicio, Neapoli¬ tanus, episcopus Cavensis. Electus 14 Mart. 1520. Obiit episcop. Nemausinus 6 Martii, 1585; ©tat. 96. Fuerat orator patris ad summ. pnntif.

R. D. Christophorus de Spiritibus, Viterbiensis, episcopus Casenatensis.

R. D. Jacobus Ponzetus, Neapolitanus, episcopus Malfactensis. 28 Maii, coadjutor-episc. 1528. Ecclesise thesauro in redimendis captivis usus est 1533; Epis¬ copal. abdicavit 1553.

R. D. Campegius, Bononiensis, epis¬ copus Feltrensis. Elect. 27 Maii, 1520. Obiit Romse 2 Januar. 1564; ©tat. 72.

R. D. Benedictus de Nobilibus,Lucen-

sis, episcopus Acciensis. Ord. Predicat. S. Theol. profess. 16 Octob. 1521, gub. Fani 1522. Asculi 1536: suffrag. card. Campeg. Bonon. 1530. Suae ecclesise cessit 26 Aug. 1545. Vicar, gener. Brixiens. 1552.

R. D. Quintas de Rusticis, Romanus, episcopus Miletensis. Elect. 17 Jul. 1523. Cessit 1511, dein regressus obiit 1562.

R. D. Ferdinandus Pandolphinus, Florentine, episcopus Trojanus.

R. D. Alexander Campegius, Bononi¬ ensis, episcopus Bononiensis. Elect. 31 Jul. 1541. Obiit 20 Sept. 1554; ©tat. 48. Card. 1551.

R. D. "Cathalanus Trivultius, Mediolanensis, episcopus .Placentinus. Elect. 3 Maii, 1525. Obiit 1559.

R. D. Robertus de Croy, Belga, epis¬ copus Cameracensis. Elect. 1519. Obiit 31 Aug. 1556; sepult. ante altar. B. Mari©. Erat frater Guil. de Croy cardin. Tolet. et Caroli Tomac. episc. Interfuit con ventui pro pace Carolum V. infer et Franciscum I. Edidit const, synodales 1550.

R. D. Antonius de Numai, Forolivieusis, episcopus iEsemicnsis. Elect. ‘24 Decemb. 1524. Obiit 1568.

R. D. Leo Ursmas, Romanus, epis¬ copus Forliviensis. Elect. 1539. Obiit 2 Maii, 1564.

R. D. Hieronymus Fuscherus, Venetus, episcoptis Torcellanus. Elect. 16 Maii, 1528. Obiit 2 Jun. 1563; aetat. 57.

R. D. Marcus Antoni us Crucius, Tiburtinus, episcopus Tiburtinus. Elect. 17 Januar. 1528. Obiit 1561.

R. D. Lucius Staphyleus, Ulyricus, episcopus Sibinicensis. Elect. 1528. Romae avunculo monumentum erexit in eccles. S.Trinitatis. Ex ejus stirpe extat Jo. Staphylaeus, unicus historicusDalmatiae et Croatiae.

R. D. Alexander Piccolomineus, Senensis, episcopus Pientinus. Electus 29 NoV. 1528. Obiit 1563.

R. D. Claudius Dodeus, Gallus, episcopns Rhedonensis.

R. D. Gulielmns a Prato, Gallus, epis¬ copus Claromontanus. Elect. 16 Febr.

1528. Obiit 1561. Filius Antonii Can¬ cell. Galliae, ubi Jesuitis a se introduces varia collegia extruxit, statute Synodalia publicavit Sepult in coenobio Minim orum de Beaucereg&rd, a se fundato.

R. D. Aloysius Pisanus, Venetus, episcopus Patavinus. Elect. 1528. Obiit 31 Maii, 1570. S. R. E. cardin. creatus a Pio IV. Nepos card. Pisani (Francisci) fundavit monast. virginum S. Marci.

R. D. Mtfrcus Antonias Campegius, Bononiensis, episcopus, Grossetanus. Elect. 1527. Obiit 6 Maii, 1553.

R. D. Dionysius Zannetinus, Graecus, episcopus Chironensis et Melipotamenus. Ordin. Minor, de observ. Elect. 27 Aug.

it. D. Marcus Aligerius de Columna, Ueatinensis, episcopus Reatinensis. Elect 27 Aug. 1529. Obiit 6 Octob. 1555; aetat. 63. Fuit gub. Ancon., Picen., Bouon., Placent., Perusiaeque.

R. D. Braccius Martellus, Florentinus, episcopus Fesularum. Elect 20 Jun.

1530. Obiit episc. Lycieusis, 1564; aetat. 98. Ejus dure senteutiae, de Praedic. regula uou babenda sine licentia episcop., et de episcoporum residentia.

R. D. Coriolanus Martyranus, Neapo¬ litans, episcopus S. Marci. Elect. 3 Jun. 1530. Obiit 1557. Nonnullas ediderat tragiedias: habuit orat. in concilio de eorruptis moribus et offensa relig.

R. D. Henricus Soffredus, Neapolitami3, episcopus Caputaquensis. Electus 18 Decemb. 1531. Obiit Trid. in con¬ cilio, 1547.

R. D. Hieronymus Vida, Cremonensis, episcopus Albensis. Elect. 6 Febr. 1532. Obiit 27 Sept. 1566.

R. D. Lelius Baruffus de Piis, Britoriensis, episcopus Sarsinatensis. Elect. 9 Decemb. 1530.

R. D. Joannes Baptista Campegius, Bononiensis, episcopus Majoricensis. Elect. 6 Febr. 1532. Obiit 7 Apr. 1583; aetat. 76-

R. D. Thaddeus de Pepulis, Bononi¬ ensis, episcopus Carinensis.

R. D. Petrus Vorstius, Belga, episco¬ pus Aquensis. Elect. 12 Mart. 1534. Obiit 6 Febr. 1549.

R. D. Eliseus Theodinus, Arpinas, episcopus Soranus. Elect. 24 Apr. 1534. Obiit post 1561.

R. D. Jacobus Cortesius a Prato, Ro¬ manus, episcopus Vasionensis. Elect. 1535. Obiit patriarchs Alexandr. post ann. 1570.

R. D. Hieronymus de Theodolis, Foroliviensis, episcopus Gaditanus. Elect. 1527. Floret ejus familia, tit. marchionatus S. Viti exornata.

R. D. Petrus Franciscus Ferrerius, Hipporegiensis, episcopus Vercellensis. Electus 20 Decemb. 1536. Obiit S. R. E. card. 12 Nov. 1566; aetat. 54.

R. D. Georgius Cornelius, Venetus, episcopus Tarvisinus.

R. D. Baltassar Limpus, Portugalliensis, episcopus Portuensis. Ordinis Carmelit. Obiit archiep. Braccarensis 1558.

R. D. Balthasar de Haeredia, Sardus, episcopus Bosanensis. Ordinis Praedic. Elect. 1536. Dein 1550. Archiep. Calarit. Obiit 1560.

R. D. Alexander de Ursis, Venetus, episcopus ASmoniensis.. Elect 1532. Obiit Romae 21 Julii, 1561. episc. Justinopol.

R. D. Bernardus Bonjoannes, Roma¬ nus, episcopus Camerinensis. Elect. 5 Mart. 1537. Obiit 12 Sept. 1574.

R. D. Angelas Paschalis, Dalmata, episcopus Motulanus. Ordin. Praedic. Elect. 5 Mart. 1557. Obiit. Neapofi, sepult. in ecelesia S. Cathar. de Formello.

R. D. Joannes Fonseca, Hispanus, episcopus Castellamaris. Elect. 14 Mar.

PRESENT AT THE COUNCIL.

1537. Obiit 1562. Xenodochiam incur&bilium Keapoli instituit h®redem.

R. D. Petrus Bertonus, Mutinensis, episcopus Fanensis, Ord. Pradic. Elect. 28 Nov. 1537. Obiit Roma; 8 Mart. 1558; ®tat. 57. Ann. 155£. S. R. E. card, instante Carolo V., ad qucm Nunt. Apost. Sepultus est in eccles. S. Sabina;.

R. D. Joannes Campcgius, Bononiensis. episcopus Parentinus. Electus 18 Maii, 1537. Dein 1553 episc. Bonon. Obiit 7 Sept. 1563. Fuit prolegatus et gub. Picen. 1560.

R. D. Ludovicus Simonetla, Mediolanensis, episcopus Pisauriensis. Elect. 1536. Dein episc.

Laudensis et card, creatus 1560.

R. D. Augustinus Steneus, Eugubinus, episcopus Chissamensis. S. R. E. biblioth. 1538. can. reg. S. Salvat. Obiit Eugubii in eccles. S. Ambrosii.

R. D. Tiberius de Mutis, Romanus, episcopus Hieraciansis. Eleot. 20 Febr. 1530. Olim canon, basil. S. Petri, dein assistens 9 Mart. 1552. Obiit 1562.

R. D. Georgius Andreaccius, Man tuanus, episcopus Rhegiensis. Elect. 7 April. 1544. Olim Clusin. 1538. Legat. Carol. V. ad Clement VII. Obiit Man¬ tua 1549.

R. D. Lipomanus, Venetus, episco¬ pus Methonensis, coadjutor Veronensis. Elect. 28 Sept. 1538. Dein episc. Ve¬ ronensis.

R. D. Philippus Arcbintus, Mediolanensis, episcopus Salutiarum. Electus 24 Mart. 1539. Obiit archiep. Mediolan. Bergami 18 Jun. 1558; ®tat. 62. Sepult. est Mediolani in Metropolis Fuerat vicar. S. D. Njn urbe.

R. D. Vincentius de Durantibus, Briziensis, episcopus, Thermularum. Elect. 4 Jul. 1539. Obiit Brixis 1570; ®tat. 61. Olim datarius.

R. D. Andreas Senttanus, Venetus, episcopus Nemosiensis.

R. D. Joannes Petrus Ferretus, Ravennatensis, episcopus Miletensis. Elect. 4 Febr. 1541 : dein 1549, episc. Lavellensis. Obiit Ravenna 7 Maii, 1557.

R. D. Claudius de la Guiscbe, Gallus, episcopus Agathensis. Electus 1540. Dein 7 Aug. 1547, episc. Mirapincensis. Obiit Roma regis Christian, orator 1556. Erat filius Petri Tornini de la Guische et de Chaumont, reg. Cambellani, pronepos Georg, card, de Ambasia,

orator regis ad regem Lusitania et ad summ. pontificem.

R. D. Fabius Mignancllus, Senensis, episcopus Lucerinus. Elect. 15 Nov. 1540: dcin 1553, episc. Grossetanus. S. R. E. card. 20 Decemb. 1551. Obiit Roma 10 Aug. 1557 ; atat. 67.

R. D. Joannes de Salazar de Burgo, Hispanus, episcopus Laneianensis. Elect. 30 Apr. 1540. Obiit in Hispan. 12 Sept. 1555.

R. D. Hieronymus de Bononia, Sicu¬ lus, episcopus Syracusanus. Obiit in patria 16 Julii, 1560.

R. D. JEgidius Falsetta, Cingulanus, episcopus Caprulanus. Elect. 11 MaTt. 1541 : dein 1563, episc. Bretinoriensis. Fuit gub. Genu®. Obiit 1 Julii, 1565.

R. D. Richardus Patus, Anglus, episcopus Vigorniensis. Elect. 1534. Obiit 1559.

R. D. Petrus Ghinutius, Senensis, episcopus Cavellicensis. Electus 20 Jul.

1541. Frater German, card. S. de¬ mentis, rector ecclesi® S. Mari® de Montemauro, dicecesis S. Papuli.

R. D. CorneliusMussus,Placentinus, episcopus Bituntinus. Ordin. minor, convent. Elect. 1541. Obiit Rom® 9 Jan. 1574; stat. 63.

R. D. Marcus Malipciius, Venetus, episcopus Corsulanus. Elect. 1540.

R. D. Jacobus Jacobellus, Romanus, episcopus Bellicastrensis. Elect. 5 Maii,

1542. Obiit post 1252.

R. D. Franciscus de Navarra, His¬ panus, episcopus Pacensis. Elect. 1541. Obiit archiep. Valentinus 16 April. 1563. Fuit Pampilon. inquisitor, Caroli V. consiliarius.

R. D. Didacus de Alava, Hispanus, episcopus Asturicensis. Dein Abulensis ac Cordubensis episc. Obiit Cordub® 17 Mart. 1562.

R. D. Alvarus della Quadra, Rossanensis. episcopus Venusinus. Ordin. Pr®dic. Elect. 11 Decemb. 1542, episc. S. Leonis. Obiit episc. Cavensis Rom® 9 Mart. 1571; ®tat. 70. Sepult. ad S. Mariam supra Minervam.

R. D. Julius Cont&renus, Venetus, episcopus Bellunensis. Elect. 11 Sept. 1542. Obiit 1575.

R. D. Galeatius Florimontius, Suessanus, episcopus Aquinatensis. Elect. 27 Apr. 1543. Dein 22 Octob. 1551, episc. Snessanus. Obiit 1597; atat. 89. R. D. Petrus de Augustinis His-

panus, epiacopus Oscensis. Elect. 16 R. D. Camillas Peruscus, Romanus, Aug. 15 43. episcopus Alatrinus 22 Apr. 1547, cleric.

R. O. Philippas Bonus, Venetus, miles S. Petri. Obiit 1573. Scripsit de episcopus Famaugustensis. Elect. 29 divitiis et paupertate librum Roms? Octob. 1543. Papas notarius et fami- editum 1556.

liaris. R. D. Antonios de Cruce, Hispanus,

R. D. Joannes Baptista Cicada, Ja- episcopus Canaiiensis. nuensis, episcopus Albiganensis. Elect. R. O. Camillus Mentuatus, Placen- 1538. Obiit Rom® cardin. S. Sabinas 8 tinus, episcopus Satrianensis. Elect. 14

April. 1570. . Nov. 1544. Olim guber. Fani 154-,

R. D. Thomas Stella, Venetus, epis- Bon. 1547, proleg. Macer. 1554, gub.

copus Salpensis. Ordin. Pradid. Elect Piceni 1556. Obiit 1560.

9 Mart. 1544. E^ein 1547, episc. Laval- R. D. Sebastianus Pighinus, Rhegilensis, et 1549, Justinopolit Obiit 1566. ensis, episcopus Alliphanus. Elect. 22 R. D. Joannes Bemardus Diaz, His- Aug. 1546. panus, episcopus Calaguritanus. Elect. R. D. AmbrosiuSCatharinus Politus,

1544. Obiit 1556. Senensis episcopus Minoricensis. Ordin.

R. D. Jacobus Nadantes, Florenti- Prasdicat. Elect. 27 Aug. 1546 Obiit

nus, episcopus Clodiensis. Obiit Clodii archiep. Comps. NeopoU 8 Nov. 1553; 24 April. 1569. aetat. 70.

R. D. Victor Superantius, Venetus, R. D. Pompejus de Zambeccaris, episcopus Bergomensis. Cubicul. seer. Boniensis, episcopus Sulmonensis. Elect.

Clementis VII. 8'Julii, 1544. Dein 9 1546. Obiit 8 Aug. 1571. Fuit pronot.

Aug. 1547, coadjut. card. Bembi. In- apost. commendas hospital. S. Spiri-

teriit in patria 26 Decemb. 1572. tus, nunt. apost. ad regem Portugalli©

_R. D. Berengarius Gombau, His- 1560.

panus, episcopus Calvensis. Elect. 27 R. D. Peregrinus Fabius, Bononien- Octob. 1544, Cant Valent Obiit 1551. sis, episcopus Viestensis.

R. D. Franciscus Galeanus, Floren- R. D. Antonins de Camera, episcotinus, episcopus Pistoriensis. pus Belliciensis. Elect. 20 Nov. 1538.

R. D. Gregorius Castagnola, Grtecus, Obiit 1576. episcopus Miletensis. Elect 6 Nov. R. D. Georgius Cosella, Graecus, epis-

1545. Ord. Praedic. S. T. professor. copus Miletensis. Ord. Praedic. Elect.

Recessit ex Bonon. iturus Romam 10 6 Nov. 1545.

Maii, 1549. R. D. Jacobus Spiphame, Gallus,

R. D. Petrus Donatus Csesius, De episcopus Nivemensis. Elect. 5 Maii.

Caesis, episcopus Namiensis. Elect 21 1546. Hie ann. 1559, ducta concubina

Jun. 1546. Obiit Romae 28 Sept 1586; ad haereticosGenevensestrausfugit,ibiq.

aetat 65. S. R. E. cardin. tanquam explorator capite truncatus est

R. D. Philippus Roccabella, Recana- 25 Mart. 1565. tensis. episcopus Mauratensis. Elect 27 ’ ,

Jan. 1546. Obiit 1565.

Procurators Absentium Episcoporum.

R. D. Michael Aldinus, Germanus, Trevirensis, S. R. J. olectoris. Obiit episcopus Sidoniensis. Suffragan et Treviris, 1557. procur. Illust D; Roberti, tit. S. Petri R. P. Jayus, Sabaudus.' Soc. Jes. ad vincula presb. S. R. E. cardin. procurat. reverendiss. et illust. D. Otto-

archicp. Moguntini, S. R. J. electoris. nis Truchses, S. R. J cardin. et episc.

R. P. Ambrosius Pelargus, Germa- Augustensis. Obiit Viennae Austria)

nus. Ordin. Preedic. procurat revereu- 6 Aug. 1552. diss. D. Joann, ab. Isemberg, archiep.

Abbates .

R. D. lsidorus Claras, Brixiensis, abbas Pontid® Bergomensis. Obiit Fulgini® 18 Mart. 1555, sepult. ibid, in cathedrali.

R. D. Chrysostomus Gimiliaucnsis,

Calaber, abbas S. Trinit. de Cajeta. Obiit 21 Octob. 1575.

R. D. Lucianus de Othouibits, Mautminus, abbas Poniposi® Ferrariensis.

PRESENT AT THE COUNCIL,

Generates Ordinum.

R. P. Franciscus Romeus, Arctinus, generalis ordinis Pradicatorum. Generalis 45, elect. Rom© 1546. Obiit, ibidem *20 Julii, 1552, ©tat. 61.

R. P. Joannes Calrus, Coreus, generalis ord. Minorum de obscry. Elect. 1541. Obiit Trid. 2 Jan. 1517, Sepult. in eccles. S. Beinardini.

R. P. Bonaventura Pins, Costacciarius, gencralis ord. Minorum Conventualium. Elect. 1543. Ancon© obiit epi8c. Aquensis 1558.

R. P. Hieronymus Seripandus, Nea¬ politans, generalis ord. Eremit&rum

S. Augustini. Elect. Neapoli 24 Maii, 1539. Dein 1554 arckiep. Salernitanus, et 26 Feb. 1561 8. R. E. cardin. presb. Cone. Trid. sub Pio IV. prases, legatus a latere. Obiit Trid. 17 Mart. 1563, et ibi sepult. in eccles. S. Marci, ordin. F. F. E remit S. Augustini.

R. P. Nicolaus Audetus, Cyprius, general la ord. Carmelitarum. Rezit ann. 38- Obiit Florentie 7 Decemb. 1562.

R. P. Augustinus Bonucius, Aretinus, generally ord. S. Mari© Servorum.

Theologi et Juris Doctores a Paulo III missi.

D. Sebastianus Pighinus, Rhegiensis, auditor rot©. Post, episc. Alyphan. et archiep. Sipontinus, ann. 1551, prases Cone. Trid., S. R. E. cardin. 30 Maii, 1552. Obiit 1 Decemb. 1553; ©tat. 53.

D. Hugo Boncompagnus, Bononiensis, abbreviator. Post, S. R. E. cardin. et pont. max.sub. Gregorii XIH.nomine. Obiit 10 Apr. 1585.

D. Achilles de Grassis, Bononiensis,

auditor rot©. Post, 21 Aug. 1551 episc. Montis-Phisconensis. Obiit Rom© 8 Aug. 1558, sepult. ad S. Mariam trans Tyberim.

Alphonsus Salmeron, Hispanus, pres¬ byter Soc. Jesu. Obiit Neapoli 15 Febr. 1585; ©tat. 69.

Jacobus Laynez, Hispanus, Soc. Jesu. Post, praposit. gener. Societ. Obiit Rom© 19 Jan. 1565.

Theologi a Ceesare missi .

Dominions Soto, Hispanus, ord. Pradic. Carolo V. a confessionibus.

F.Bartholom©us Carranza, Hispanus, ordinis Pradicatorum. Post, % 1557, archiep. Toletanus. # Obiit Rom© 2 Maii, 1576; ©tat. 73. Habuit concion.

ad PP. Trident Dom. 1. quadrag. 1546.

F. Alphonsus a Castro, ordinis Mino¬ rum de Observantia. Fuit lector Salamantinus. ObiitBruxellis 3 Febr. 1558; ©tat. 63.

Theologi missi a Rege Hispanic ?.

D. Martinus Perez de Ayala, His¬ panus. Ann. 1548, episc. Goadinensis : ann. 1560, episc. Segobiensis. Obiit archiep. Valentinus, 5 Aug. 1566. Anno 1546, interfuit concilio ut doctor: anno 1562, sedit. ut episc. Segobiensis int. PP. Trident.

D. Hieronymus de Velasco, Hispa¬ nus/ Doct Theol. Complutensis, regie cancell. Vallisolet. auditor. Ann. 1565, episc. Oyetensis. Obiit 1566.

D. Franciscus Horrera, Hispanus.

Theologi missi a Rege Portug allies ,.

F. Hieronymus ab Oleastro, Lusitanus, ordin. Pradicut. S. Theol. Doctor. Recessit e Bononia, 1549. Obiit 1563.

F. Georgius a S. Jacobo, Lusitanus, ordinis Pradicatorum. Recessit e Bo¬ nonia, 12 Sept 1549. Habuit orat.

Tridentini Dom. 1 Quadr. 1547. Fuit postea inquisitor Ulisipponnesis..

F. Gaspar de 'Regibus, Lusitanus, ordin. Pradic. S. Theologi© Doctor. Postea episc. titular Tripolitanus et suffraganeus cardin. archiep. Ebrocensis.

2D(i

NAMES OF PRELATES, ETC.,

TAeologus missus ab Ottone Truchses , Principe et Episcopo Augustensi.

Petrus Canisius, Belga, presbyter, Ejus opera enumerat Philipp. Alle-

Societ. Jesu. Fuit primus e Germanis gambe. Obiit Friburgi Helvetiorum

in Soc. Jesu adscriptus: in Germania 21 Decemb. 1597; aetat. 77. jjrovincialis praepositusa. S. Ignatio.

Theologi Seculares , vel Juris Canonici Doctores.

D. Franciscus Vargas, Hispanus. D. Joannes Morelli, Hispanus.

Mexiffi audit, fiscusCastellae, dein orator D. Gentius Hervetus, Gallus. S.

Carol! V. imperat ad Venetos, et Phi- Theol. Doctor, dein Canonicus Remenlippi II. ad Pium. IV. Scripsit de sis. ObiirRemis 12 Sept. 1595. jurisdict. episcop. et pontif. auctorit. D. Petrus Sarra, Hispanus.

D. Alphonsns Zorilia, Hispanus. D. Antonius Felicius, Hispanus.

Secret Didaci de Hurtado de Men- D. Joannes"Sarravia, Hispanus.

doza: dein ordin. S. Augustini frsfter. D. Melchior de Bosmediano, Hispa- Obiit 1580. nus.

D. Petrus Naja, Hispanus. D. Franciscus Sonnius, Brabantus,

D. Joannes Quintana, Hispanus. S. T. D.

D. Joannes Velascus, Hispanus.

Theologi Regulares Ordinis S. Dominicu

Bartholomaeus Miranda, Hispanus. F. Hieronymus, Genuensis.

F. Marcus Laureus, Trophaeensis. F. Vincentius, Leonius.

Dein ann. 1560, episc. Campaniensis. F. Dominicus de S. Cruce, Hispanus.

Obiit 1571. F. Hieronymus Muzzerellis, Genu- t

F. Joannes de Utino, Italus, prior ensis. Ann. 1550, prior et inquisit.' Tridentinus. . Bonon. S. palat. Apost. magister, ac

F. Georgius de Senis, Sen ensis, Pri- ann. 1553, archiep. Compsensis, et ad marius Franc. Bandini archiep. Senensis Carolum V. legates Julii III. Obiit Uieologus. Postea orator patriae ad Salemi 1561.

Julium III. Obiit in patriae 1578; F. Ludovicus de Catania, Siculus, aetat 88. cum R. D. Panormitano. Obiit episc.

F. Petrus de Alvarado, Hispanus. Agrigentinus 29 Sept 1569; aetat. 84.

Theologi Ordinis Minorum , de Observantia .

F. Vincentius Lunellus, Hispanus. F. Thomas Hasaert, Flander.

F. Andreas de Vega, Hispanus, sacrae F. Ludovicus Carvajalus, Hispanus, theol. doctor. Fuit lector Salmaticen- philos. ac theol. -doctor Paris. Habuit sis, laudatus a miiltis, non a Bellarmino, orationem ad PP. Dorn. III. quadrag. cui Waddingus respondet 1547.

F. HieronymusJLombardellus, Brix- F. Ludovicus Vitrarius, Veronensis. iensis, custos provinciae Brixiensis. F. Franciscus Salazar, Hispanus.

F. Clemens, Januensis. F. Clemens de Monilia, Genuensis,

F. Joannes Consilius, Gallus, sacrae custos provinciae Bononiensis. theol. doctor. F. Silvester de Cremona, Cremo-

F. Richard :s Cenomannus, Caruo- nensis.

tensis, sacrae theol. doctor Paris. Scrip- F. Antonius Duglioa, Hispanus. serat nonnulla opera, relata a Gonzaga. F. Joannes Baptists Castilio, Medio- F. Joannes Malieti, Flander. lanensis.

Theologi Ordinis Minorum Conventualium .

F. Franciscus de Pattis, Panormi- F. Joannes Jacobus de Monte Falcotanus. nis, minister Romandiolae.

F. Sigismundus de Ruta (alit. Di- F. Franciscus Vicedominus, Ferraruta). riensis. Obiit

Bonon. 29 Octob. ;

PRESENT AT THE COUNCIL.

srt&L 59, sc pul t. ibid, apud suos. Habait orationcm Neapoli in funere Maria; Repose Angli®, 1559: item ad synod. Trident. Dom. XXV. post pentec., 22 Nov. 1562, de duplici mysterio, abominationis uno, desofationis altero.

F. Joannes de Corrigia, Italus. Patruus Card. Hieronymi Bemerii.

F. Laurentius Fulgineus de Rovigo, provinc. provinc® S. Antonii de Padua.

F. Aloysios Pignismus de Columnia.

F. Petrus Paulus Cuporella de Potentia. Dein 26 Sept. 1552, episc. Cotronensis. Obiit 1556.

F. Sebastian us de Castello, Castellanus.

F. Joannes Baptists Monclavo.

F. Antonius Firsius, de Ponarolo, regens Perusii.

F. Joannes Bemerius, ds Corrigio, regens Bononiensis.

F. Angelus Vigerius, de Adrio, regens Neapoli.

F. Hieronymus Girellus, Brixiensis. Obiit in patna 1573; see tat. 63.

F. Bernardinus de Costacciario, Costacciarius.

F. Philippus Brachus, Faventinus, lector PataYinus.

F. Dominicus de Cruce.

F. BonaYentura de Castro- Franco.

F. Valerius de Vicentia.

F. Ludovicus Athesinus.

F. Julius de Placentia.

F. Petrus Paulus Picentinus.

F. Franciscus Vita, Pactensis Siculus, theologus archiep. Panormitani.

F. Jacobus de Randazo, Siculus. Obiit Paduae 1548.

Theologi Ordinis Bremitarum S. Avgustini.

F. Gregorius Perfectus, PataYinus, sacne theol. doct. Socius Seripandi, tunc generalis ordin. sui. 'Obiit Rome 27 Aug. 1555.

F. Andreas PataYinus, provincialis in Tarviso.

F. SilYester Vicentius.

F. Dionysius Sigillensis, regens Paduae.

F. Caspar Venturius, Siculus.

F. Aurelius Patavinus, De Roca-Contrata, S. theol. doct prior proYinc. terrse S.

F. Paulus Senensis, sacne theol. doctor Postea provinc. Senensis et

S. script, profess. Piombinensis. Obiit postann. 1561.

F. Constantins do Monte.

F. Joannes Lochel, Gallus.

F. Adrianus Messus, Rotomagensis. F. Stephanus de Sestino.

F. Stephanus Consettes.

F. Joannes Franciscus, Brixiensis.

F. Aurelius de Contrata, Tervisinus. F. Marianus Rocha, Feltrensis.

F. Ambrosius de Verona.

F. Omnibonus, Veronensis.

F. Gaspar, Syracusanus, sacrae theol. doctor, cum episcopo Syracusano.

Theologi Ordinis Carmelitarum .

F. Antonius Marinarius, Apulus, S. T. D. et provincialis Apulise.

F. Joannes Stephanus Facmus, Cremonensis.

F # . Martinus Vastalla, Parmensis, provincialis Romandiolae.

F. Vicentius de Leoniis, Siculus, vicarius Panormitanus.

F. Bartholomews de Rovereto.

F. Pontius Politus, Cremonensis, re¬ gens Paduae, sacrae theol. doctor.- Obiit inpatrial Apr. 1571. Fuit Lombardiae praesul 25 ann.

F. Albertus Vicentinus, regens Venetiaram.

F. Angelus Ambrosianus, Vicentinus.

F. Franciscus Vita, Senensis.

F. Nicolaus Trecensis, Apulus.

F. Cornelius de Sanizar, Gallus.

F. Gulielmus Prot. Gallus.

F. Joannes Maria, Tridentinus.

F Antonius de Rovereto.

. F. Martinus de Costello, Romandiolns, sacrae theol. doctor.

F. ASgiditts Chard, Belga Gandensis, sacrae theol. doctor. In Sap. Rom. xnuseo public, profess. Prior gener. 1532, confirmatus 1539. Habnit orationem coram Paulo III. f

F. Amtonius Riccius a Novcelaria. Ter vicar, gener. congreg. Mantuae, nempe 1537, 1543, 1549.

F. Stephanus, panormitanus.

Google

298 NAMES OF PRELATES, ETC.,

Theologi Ordinis Servorum B. Maria .

F. Lucas, Faventinus.

F. Julius, Ferrariensis.

F. Thaddeus, Florsntinus.

F. Rodulfus, Florentinus,

F. Laurcntius Maschochius.

F. Ambrosius de Platina.

F. Marianus de Verona.

F. Stephanus de Aretio.

F. Joannes Antonius, Faventinus.

F. Athanasius de Pursibus % Foroliviensis.

F. Joannes Baptista de Urbe Veteri.

Officiates S. Concilii.—Commissarii Apostolici.

R. D. Thomas Campegius, Bononien- Nov. 1560. Illustri stemmate est a consis, episcopus Feltrensis. cilio nobilitatus, flamma egrediente ex

N R. D. Philibertus Ferrerius, Pede- duabus manibus complexis, cum inscripmontanus, episcopus Hipporegiensis. tione : Fides, quae per caritatem opera- R. D. Thomas de S. Felicio, Neapo- tur. litanus, episcopus Cavensis. F, Franciscus Forerius, Lusitanus,

F. Dominions Soto, Segobiensis, ord. ordinis Praedicatorum.

Praedic. vicar, gener. locum tenens, Antonius Bergomas. ordin. Caroli V. a confess. Obiit 15

Secretarius 8 . Concilii.

R. D. Angelus Massarellus, Sanse- creat. episc. Thelesinus. verinus. Postea, 15 Decemb. 1557.

Promotor S. Concilii.

D. Hercules Severolus, Faventinus.

Mayistri Caremoniarum.

D. Pompeius de Spiritibus, Spole- D. Ludovicus Bondonus de Firmanis, tinus.

Maceratensis.

Notarii.

D. Claudius de la Case, Lotharingus. D. Nicolaus Driel, Germanus.

Cursores .

Joannes Roliard, Lotharingus. Mathurin. Menard, Gallus.

Cantores.

Ivo Baril, Gallus. Petrus Ordonnes, Hispanus.

Joannes le Comte, Belga. Joannes de Monte, Germanus.

Antonius Rojal, Gallus. Bartoline, &c.

Capitaneus ad Custodiam S. Concilii.

Ill. D. Nicolaus Madrutius, Germa- longitudinis Cannes unius, et post eum nus, baro liber Tridentinus. Cum copia hastarii multi, nobilium deferentium faculum rubeum

Locum tenens .

Ill. D. Sigismundus, comes arcis.

F. Laurentius, De Castro Franco, sacree theol. doctor, cum suo generali. Fuit doctor Paris, poenitent. apost. per Galliam. Obiit in patria S Sept. 1560; aetat. 70.

/ F. Zacharias de Florentia.

F. Franciscus, Senensis.

F. Hieronymus de sumjna Ripa.

F. Joannes Paulus, Mediolanensis. F. Hieronymus, Bononiensis.

F. Lanfranchinus, Mediolanensis.

F. Deodatus, Mediolanensis.

PRESENT AT THU COUNCIL.

THE NAMES,

SURNAMES, COUNTRY, AND DIGNITY,

Of the Legates, and other Fathers, as also of the Ambassadors and Theolo¬ gians, 'who were present at all, or any of, the nine Sessions of the Council of Trent, held under Pius IV., from the 18th of January, 1562, to the 3rd and 4th of December, 1563.

The Presidents of the Sacred Council , Cardinals of the holy Homan Church, and Apostolic Legates a latere .

Hercules Gonzaga, 8. It. E. presbyt. card, tituli Sanct© Mari© Nov©, Mantuanus. Obiit Tridenti, die secunda Martii, 1563, et sepultus est Man turn.

Hieronymus Seripandus, S. R. E. presb. card, tituli Sanct© Susannas, Neapolitans,

archiepiscopus Salemitanus. Obiit Tridenti, die 17 Martii, 1563, et ibi sepultus in ecclesia S. Marci, ordinis fratrum Eremitarum S. Augustini, cujus olim fuerat generalis.

Joannes Moronus, 6. K. E. card, episcopus Pr©nestinus, postea Ostieusis, et sacri Collegii decanus, Mediolancnsis, in demortui card, de Mantua locum suffectus. Obiit 15S0, 1 Decembris; sepultus in ©de Sanct© Mari© super Minervam.

Stanislaus Hosius, S. R. E. presb. card. tit. S. Laurentii in pane et perna, civis et episcopus Warmiensis, postea

oenitentiarius major. Obiit Capranic©, 579, 5 Augusti; sepultus Rom© in ©de Sanct© Mari© trans Tibcrim.

Ludovicus Simonetta S. R. E. presb. card. tit. S. Syriaci in Thermis, Mediolanens, episcopus Pisaurensis. Obiit Rom©, 1563, 30 Apr.; sepultus in ©de Sanct© Mari© Angelonim.

Marcus Siticus de Altaeinps, S. R. E. diaconus cardinal, basilic© SS. duodecim Apostolorum, Germanus, episcopus, Constantiensis. Obiit Rom©, 1595, 15 Febr.; sepultus in ©de Sanct© Mari© trans Tiberim.

Bernardus Navagerius, S.R. E. presb card. tit. S. Nicolai inter Imagines, episc. Veronens. Venetus, in demortui cardinalis Seripandi locum missus. Obiit Veron©, 1565, 27 Maii; sepultus in ecclesia cathedrali.

Cardinales non Legati.

Carolus a Lotharingia, S. R. E. presb. card. tit. S. Apollinaris, princeps et archiepiscopus Rhemensis, abbas Cluniaci, Gallus. Obiit Avenione, 1574, 26 Decern.; sepultus Rhemis in Ecclesia metropolitana.

Ludovicus Madrutius, S. R. E. dia¬ conus card. tit. S. Onuphrii, civis et electus episcopus Tridentinus, postea episcopus Tusculanus. Obiit Rom© 1600 2 Aprilis; sepultus in sacello familiar! S. Onuphrii.

Oratores ecclesiastici sedebant a manu dextra Legatorum , videlicet;

Antonius de Muglitio, Moravus, ar- .chiepiscopusPragensis, orator C©sareus.

Georgius Drascovitius, Croatus, epis¬ copus. Quinque Ecclesiensis, orator C©sareus pro regno Hungaii©, postea archiep. Colossensis, et cardinalis. Obiit 1587; sepultus in cathedrali Javarini ecclesia.

Valentinus Herbotus, Polonus, epis¬ copus Premisliensis, orator serenissimi regis Poloni©.

Marcus Antonius Bobba, Casalensis, episcopus Augustens. in Pedemontio, excellentissimi duels Sabaudi© orator, postea cardinalis. Obiit 1575; sepultus Rom© in templo 8. Mari© Angelorum.

NAMES OF PRELATES, ETC.,

Hieronymus de Gaddis, Floientinus, Frater M&rtinus Rojas Portarabio,

episcopus Cortonensis, orator excellent Hispanus, orator Religionis Hierosolytissimi duci8 Florentiae, missus in locum mitanae.

Joannis Strozzii. __

Oratores seeculares sedebant a manu sinistra Legatorum.

Sigismundus a Tuun, Tridentinus, Melchior Lussi, eques auratus, orator orator Caesareus. septem Cantonum Helvetiorum.

Ludovicus de Sancto Gelasio, domi- Augustinus Baumgartner, I. V. D. nus de Lansac. Monacensis, orator excellentissimi Al-

Amaldus du Ferrier, praesidens in berti ducis Bavariae. parlamento Parisiensi, et Claudius Fernandez Vegil de Qui-

Guido du Faur, dominus de Pibrac. nones, comes Lunae, oratore regia

judex major Tolosae, postea advocatus Catholici in locum illustrissimi Ferdi-

regius, demum praeses in suprema curia nandi d*Avalos marchionis Pescariae

Parisiensi, Obiit Parisiis 1584; ora- missus. Obiit Tridentini die 18 Decem-

tores Christianissimi Gallianim regis. bris, 1563, post finem Concilii, ibique

Ferdinandus Martineus Mazcarenius, sepultus est. Hie separatim ab aliis

orator serenissimi regis Portugalliae. oratoribus sedebat apud reverendissi-

Nicolaus de Ponte, doctor, et eques, mum Thelesinum, secretarium sauctae

et Synodi, ob contentionem super praece-

Matthaeus Dandulus, eques: oratores dentia ortam inter ipsum et ’ oratores

sereniss. dominii Venetorum. regis Christianissimi. /

Patriarchte.

Antonius Helius, Justinopolitanus, patriarc. Aquilejensis. patriarcha Hierosolymitanus. Joannes Hieronymus Trivisanus,

Daniel Barbaras, Venetus, electus Yenetus, patriarcha Yenetiarum.

Archiepiscopi Pauli III.

Ferdinandus Annius, Neapolitanus, archiepiscopus Amalphitan, postea epis¬ copus Boyinensis.

Petrus Landus, Yenetus, archiepisc.

Cretensis.

Petrus Antonius de Capua, Neapolitanus, archiepisc. Hydruntinus.

Marcus Cornelius, Yenetus, electus archiepiscopus Spalatrensis.

Sebastianus Leccavella, Graecus, ord.

Archiepiscopi JulH III

Paulus ASmilius Verallus, Romanus, nus,-archiepiscopus Rossanens. postea archiepiscopus Rossanens. postea epis- S. R. E. presb. cardinalis, tit. Sancti copus Caputaquens. Marcelli, Bononiae legatus, ac tandem

Joannes Brunus deOlchinio, Macedo, pontif. max. dictus Urbanus VII. Vixit regni Service primas, archiepiscopus in pontif. dies xix.

Antibarens. Joannes Baptista Ursinus, Romanus,

Joannes Baptista Castaneus, Roma- archiepiscopus Sanctae Severinae.

Archiepiscopi Pauli IV,

Ludovicus Beccatcllus, Bononiensis, Mutius Calinius, Briiiensis, archinrchiepisc. Ragusinus. episcopus Jadrensis.

Freed, archiepiscopus Naxiensis, postea episcopus Litteranensis.

Petrus Guerrero, Hispanus, archi¬ episcopus Granatensis.

Antonius Altovilia, Florentinus, archi¬ episc. Florentine. Obiit 1589.

Caesar Cibo, Genuensis, archiepisco¬ pus Taurinensis. Obiit Tridenti, die 26 Decembris 1562.

PRESENT AT THE COUNCIL.

Sigismunds S&racemis, Neapolita¬ ns, archiepisc. Matheranus.

Antonius Parragues de Castillegio, •Hispans, archiepisc. Calantanns.

Julis Pavesis, Brixiensis, ord. Prsed. archiepisc. Surrentinus.

Bartholomteus de Martyribs, Lusitanu8,ord. Prsed. archiepiscopus Bracarensis.

Augustinus Salvago, Genuensis, ord. Prsed. archiepiscopus Genuensis.

Archiepiscopi Pii IF.

Philippus Mocenicus, Venetus, regni Cypri primas, et legatus nats, archi¬ episc. Nicosiens.

Gulielmus dAvason, Gallus, archi¬ episc. Ebrodunens. et abbas Montis Majoris prope Arelatem.

Antonius Caucus, Venetus, archi¬ episcopus Corcyrensis.

Germanics Bandinus, Senensis, elec- . ts archiepisc. Senarum.

Marcus Antonius Columna, Romans, archiepisc. Tarentinus, postea cardinalis et arcniepiscopus Salemitanus. Obiit Zagorolee 1597; sepultus ibidem in monasterio 8. Maria ordinis S. Francisci.

Gaspar de Fosso, Consentins, Cala¬ ber, ord. Sancti Francisci de Paula, archiepisc. Rhegins.

Antonis de Muglitio, Moravus, orator Csesares, archiepiscops Pragensis.

Maxims dc Maximis, Romans, archiepiscopus Amalphitanus.

Gaspar Cervantes de Gaeta, Hispa¬ nus, archiepiscopus Messanensis, postea Salernitanus, et cardinalis.

Leonards Marinus, Genuensis, ord. Prsed. archiepisc. Lancianens.

Octavians Pneconius, Siculus Mes¬ sanensis, ord. Min. convent. S. Fran¬ cisci, archiepisc. Panormitan. Obiit Panormi 1568,18 Julii; sepults in sede Major!,

Nicolaus de Pelleve, Gallus, archi¬ episc. Senonensis, postea cardinalis et archiepiscops Rheraensis. Obiit Parisiis 1594.

Antonius Justinians, Graecus, Chiensis, ord. Prsed. archiepiscopus Naxien8.

Antonius Putes, Nicicns. archiepis¬ copus Barensis.

Episcopi Leonti X.

Vincentius Nicosantius de Fano, Joannes Thomas de Sancto Felicio, episcops Arbesis. Neapolitan, episcopus Caves is se-

Joannes Francises de Flisco, Genu- nior. esis, episcops Andriensis.

Episcopus Adriani FI.

Quintis de Rusticis, Romans, episcopus Miletens.

Episcopi Clementis FII.

Lucs Bisantis de Catharo, episco- * ps Catharens.

Aloysis Pisanus, Venetus, episcopus Patavins, postea cardinalis. Obiit 1570, ult. Maii.

Alexander Piccolomines, Senens. episcops Pientin.

Episcopi

Antonis de Camera, Sabauds, epis¬ copus Bellices.

' Nicolas Maria Caracciols, Neapo¬ litans, episcops Cataniesis.

Bernards Bonjoannes, Romans, episcops Camerinensis.

Dionysius Zannetinus, Grsecus, ord. Min. Sancti Francisci de Observant, episc. Melopotamens. senior.

Gabriel le Veneur, Gallug, episcops Ebroicensis.

Guillelms Barton de Montbas, Gal¬ ls, episcopus Lectorens.

Pauli III .

Fabius Miits, Neapolitans, ep. Cajacensis.

Scipio Bongalls, Romans, episco¬ ps civitatis Castellans?.

Georgis Cornelias, Venets, episco¬ pus Tarvisinus.

names of prelates, etc.,

Vincentius de Durabus, Brixiensis, episcopus Thermnlarum.

Mauritius de Petra, Papiens. episco¬ pus Viglovanens.

Martius de Martiis de Medicis, Florentinus, episcopus Marsicens.

Joannes Vincentius Michaelius, Barolitanus, episc. Minerbinens.

Gabriel de Bouveri, Gallus, episcopus Andegayens.

Leonardus Haller, Germanus, epis¬ copus Philadelphien.

Ludoyicus VanninusdeTheodolis,Foroliyiens. episcopusBritonoriensis. Obiit Tridenti, die 11 mens is Januarii, 1563.

^Egidius Falcetta Cingulanus, episc. Caprulanus, postea Britonoriensis.

Julius Contarenus, Venetus, episcopus*ci?itatis Bellunens.

Thomas Casellus, Rossanens. ord. Praedict. episcopus Caven. junior.

Hippolytus Arivabenus, Mantuanus, episcopus Hierapetrens.

Hieronymus Machabaeus, Romanus, episc'opus Castrensis.

Petrus Augustinus, Hispanus, episc. Oscen. et Iacensis.

Jacobus Naclantus, Florentines, ord. Praed. episcopus Clodiens.

Bartholomaeus Sirgo, Cretens. Grae-

cus, episcopus Castellanetens.

Thomas Stella, Venetus, ord. Praed. episcopus Justinopolitan.

Petrus de Val, Gallus, Parisinus, episcopus Sagiensis. Obiit Vicennis 1564.

Joannes Antonius Pantusa, Consentinus, episcopus Literensis. Obiit Tri¬ denti, die 26 Octob. 1562.

Joannes Baptists de Grossis. Mautuanus, episcopus Regiensis.

Joaunes Soarez, Lusitanus* ord. Sancti Augustini, episcopus Conim* bricens.

Philippus Riccabella, Recanaten. episcopus Recanaten.

Jo. Jacobus Barba, Neapolitan, ord.

S. Augustini, episcopus Interamnens.

Michael a Turre, Utinens. episc. Cenetens. postea presbyter cardinalis.

Obiit 1586; sepultus in ecclesia Cenetensi.

Pompejus Zambeccarius, Bononien. episc. Sulmonens.

Joannes Beroaldus, Panormitanus, episcopus Sanctae Agathae.

Antonius Scarampus, Aquensis, epis¬ copus Nolanus.

Antonius ex comitibus a Cutumo, Genuens. ord. Praedic. episc. Brugnatens.

Caesar Foggia, Rossanens. episc. Umbriaticens.

Caesar comes de Gambara, Brixiens. episcopus Tortonensis.

Jo. Baptista de Bemardis, Lucens. episcopus Adjacens.

Martinus Perezius de Ayala, Hispanus, episc. Segobiensis.

Nicolaus Psalmeus, Gallus, episc. Verdunens.

Alphonsus Rosettus, Ferrarien. episc. Comacluens. postea Ferrariens.

Julius Parisianus, ^eTolentino, episc. Ariminens.

Bartholomaeus Sebastianus, Hispanus, episc. Pacten.

Franciscus Lambertus, Sabaudus, episc. Niciens.

Maximilianus Doha, Genuens* episc.

Naulens.

Eustachius du Bellay, Gallus, episc. Parisiens.

Bartholomaeus de Capranica, Roma¬ nus, episc. Carinensis.

Ennius Massarius de Narnia, episco¬ pus Feretranus.

Achilles Brancia, Neapol. episc. Bovens.

Jo. Franciscus Verdura, Messanens. episcopus Chironens.

Albertus Duimius de Gliricis, Catharensis, ord. Praedic. episcopus Vegliensis.

Joannes Antolinez de Bricianos de la Ribera, Hispanus, episcopus Juvenacens.

Tristanus de Bizet, ord. Cisterciensis, Gallus, episc. Xantonens. et abbas Sancti Nicolai, in Bosco.

Epiacopi Julii III.

Ascanius Gherardinus de Amelia, episcopus Catacen.

Marcus Gonzaga, Mantuanus, episc. Auxerens.

Balduinus de Baldoyinis, Pisanus, episc. Ayersancns.

Petrus Franciscus Pallayicinus, Ge¬ nuens. episcopus Aleriens.

ASgidius Fuscherarius, Bononien. ordinis Predicat. episcop. Mutineus.

Timothcus Justinianus deChio, Grecus, ord, Pred. episc. Calamonensis.

PRESENT AT THE COUNCIL.

Didacusde Almansa, Hispanus, episc. Cauriens.

Lactantius Roverella, Ferraricns. episc. Asculanus.

Ambrosius Monticula, Lunensis, Sarxanensis, episc. Signinus.

Scbastianus Gualterius, Urbevetanus, episcopus Viterbicns.

Honoratus Faacius Tello, monachus Casinensis, ord. S. Bcnedicti, Neapoli¬ tans, episcopus Insulanus. Obiit Romm mense Marti > 1564,

Petrus Camajanus, Aretinus, ep. Fesularum.

Horatius, Graecus, de Troja, Apulus, episcopus Lesinens.

FabiusCuppalata, Placentiuus, episc. Laquedoniensis.

Gaspar de Casal, Lusitanus, ord. S. Augustini, episc. Lcirien. postea Conimbricensis.

Bernardinus de Cuppis, Romanus, episc. Auximanus.

Joannes de Morvilliers, Glesensis, Gallus, episc. Aurelian.

Julius Gentilis, Tortonen. episcopus Vulturariens.

A dr i anus Fusconius, Romanus, epis¬ copus Aquinat.

Antonius a S. Michaele, Hispanus, ordin. S. Francisci de Observantia, episc. Montis Marani.

Hieronymus Melchiorius, Recanatens. episc. Maceratens.

Petrus de Petris de Monte, Aretinus, episc. Lucerinus.

Caesar Jacomellus, Romanus, episc. Bellicastrens.

Petrus Grittus, Venetus, episc. Parentinus.

Episcopi

Jacobus Silvestrius Piccolomineus de Caelano, episc. Aprutinus.

Ludovicus de Brez6, Gallus, episc. Meldcns.

Jacobus Mignanellus, Senens. episc. Grossctan.

Jo. Andreas Crucius Tiburtinus, ep. Tiburtinus.

Franciscus Richardotus, Burgundus, ordinis Eremitarum S. Augustini, .epis¬ copus Atrebatens. Obiit 1574, 26 Julii.

Carolus Cicada, Genuens. episcopus Albinganncus.

Franciscus Maria Piccolomineus, Senens. episcopus llcinens.

Arisclus Moya de Contreras, Hispa¬ nus, episc. Vicen.

Galeatius Roscius de Interamna, episcopus Assisiensis. Obiit Tridenti 16 Octobris, 1563

Jacobus Maria Sala, Bononieq. episc. Vivariens.

Gabriel de Monte S. Sabini, ep. ASsinus.

Marianus Sabellus, Romanus, episc. Eugubinus.

Agapitus Belhomo, Romanus, episc. Casertanus.

Julius Cananus, Ferrariens. ep. Hadriensis, postea presb. cardinalis tit. Sancti Eusebii, et episcopus Mutinensis. Obiit Ferrariae 1592; sepultus in ecclesia S. Dominici.*

Julius Gallettus, Pisanus, episc. Alessanens.

Hieronymus Dubourg, Gallus, episc. Catalaunen. et abbas S. Petri de Monte. Obiit 1573.

Pauli IV.

Scipio Estensis, Ferrarien. episc. Casalens.

Didacus Sarmiento de Sotomayor, Hispanus, episc. Asturicens.

Thomas Goduelus, Anglus, episc. Asaphens.

Faustus Caffarellus, Romanus, episc. Fundanus.

Belisarius Balduinus, Neapolitanus, episc. Larinens.

Urbanus Vigerius de Ruvere, Ge¬ nuens. episc. Senogalliens.

Jacobus Suretus, Grsecus, episc. Mi* lopotamens, junior.

Jo. Baptists Osius, Romanus episc. Reatinus. Obiit 12 Novembris, 1562.

Marcus Laurens, Tropiensis, ordin. Prsedic. episcopus Campaniens.

Franciscus de Beaucaire, Peguillon, dominus de la Creste et Chommieres, baro Sancti Desiderati, Gallus, episc. Metensis, postea abbas S. Germani Antissiodorensis, Regniaci, et S. Sygirani. Obiit 1591, 14 Febr.

Jo. Franciscus Commendonus, Venetus, episcopus Zacynthen. postea cardi¬ nalis. '

Carolus de Grassis, Bononien. ep. Montis Falisci, postea cardinalis.

Arias Gallego, Hispanus, episc. Genmdens.

NAMES OF THE PRELATES, ETC.

Hieronymus Gallego, Hispanus, episc. Ovetens.

Hercules Rettinger, Germ anus, episc. - Laventinus.

Julius de Rubeis, Pollan, episc. S. Leonis. Obiit Romse menae Martio, 1564.

Joannes de Munatones, Hispanus, ordinis S. Augustini, episc. Segobricens.

Franciscus Blanco, Hispanus, episcopus Auriensis. .

Vincentius de Luchis. Bononiens. episc. Anconitanus.

Pompejus Piccolomineus de Aragonia, episc. Tropien.

Petrus Barbaricus, Venetus, ep. Cursolen. *

Franciscus Bacbodius, subaudien. episc. Gebennen.

Carolus d’Angennes a Rambouillet, Gallus, episcopus Cenomanens. postea cardinalis. Obiit Cometi in Etruria 1587, 23 Martii.

Hieronymus de Nichisola, Veronens. ordin. Praed.jepisc. Theanen.

Marcus Antonis Bobba, Cassalens. episc. Augustens. postea cardinalis. Yide supra inter oratores ecclesiasticos.

Jacobus Lomellins. Messanens. episc. Mazariens.

Donatus de Laurentiis, de Asculo, A pul us, episc. Arianens.

Petrus Contarenus, Venetu9, ep. Paphens. '«

Petrus Danes, Gallus, episc. Vauren. Obiit 1577.

Hieronymus Savorgnans, Forojulien. episcopus Sibiniceu.

Philippus du Bee. Gallus, episc. Venetens. postea Nannetens. deinde archiepisc. Rhemensis. Obiit 1605.

Carolus de Roussy, Gallus, episc. Suession.

Georgius Drasconicius, Croatus, epis¬ copus Quinque Ecclesiens. postea car¬

dinalis. Vide supra inter oratores ec¬ clesiasticos.

Franciscus de Aguirre, Hispanus, episcopus Crotonens.

Andreas de Cuesta, Hispanus, epis¬ copus Legionens.

Antoniua Corrionero, Hispanus, episc. Almeriens.

Antonius Augustinus, Hispanus, episc. llerdens. postea archiep. Tarracon.

Angelos Masserellus, Sansaverins, episc. Thelesinus.

Antonius Ciurelia, Barensis, ep. Buduensis.

Dominies Casablanca Messanens. ord. Prsed. episc. Vicensis.

Petrus Faunus Costacciarus, ep. Aquens.

Jo. Carolus Bovius, Bononiens. episc. Astuneens. postea archiepisc. Brundusinus.

Hugo Boncompagnus, Bononiens. episc. Vestanus, postea card. tit. S. Sixti, et Pont. max. dictus Gregorius XIII.

Salyator Pacinos de Colie, episc*. Clusinus.

Lupus Martinez, Hispanus, episc. Elnens.

Carolus d’Espinay, Gallus, electus episc. Dolens. Obiit 1591.

ASgidis Spifame, Gallus, episc. Nivern. et abbas S. Pauli Senon. Obiit Luteti® 1578.

Antonius Sebastianus Mintumus, de Traject. episc. Uxentin.

Bemardus del Bene, Florentinus, episc. Nemausen.

Dominicus Bollanus, Venetus, episc. Brixiens.

Jo. Antonius Vulpius, Comens, episc. Comens.

Philippus Maria Campegius, Bono¬ niens. episcopus Feltrens.

Joannes de Quinones, Hispanus, episcopus Calaguritan.

Episcopi Pii IV.

Didacus Covarruvias de Leyva, His¬ panus, Toletans, episc. civitatis Rode¬ rick postea Segoviensis; demum Con¬ chas designates. Obiit Madrid 1577, 27 Septem.; sepultus Segovi®.

Ludovicos de Genoillac, Gallus, episcopus Tutelensis, et abbas S. Ro¬ mani de Blavia. Obiit Burdigalae, 1583.

Philippus Gorius, Pistoriens. ep. Isclanens. postea Assisiens.

Jo. Antonius Fachiuettus de Nuce,

Bononiens. episc. Neocastren. postea patriarcha Hierosolymitan. k S. R. E. presb. card. tit. SS. Quatuor Coronatorum, ac tandem pontiff, max. dictus Innocentius IX. Vixit in pontif. menses duos.

Hippolytus Capilupus, Mantuan us, episc. Fanensis.

Joannes Fabricius Severinus, Neapo¬ litans, episc. Acerrens.

Martins Balduini Rithovius, Bra.

PRESENT AT THE COUNCIL. .

bantus, primus episc. Iprens. Obiil Audomari, 1583.

Antonius Have tins, F lander, ord. Pra>d. primus episcopus Namurccns. Obiit 15787

Constanlinius Boncllus, Ferctran. episc. civitatis Castelli.

Julius Supercliius, Mantuanus, ord. Carmelitarum, cpisc. Acciens. postea Caprulan.

Matthacus dc Concinis, Florcntinus, episc. Cortonens.

Nicolaus Sfrondatus, Mediolancns. episcopus Cremonens. postea presb. card. tit. S. Ca'cilia? demum pont. max. dictus Gregorius XIV. Yixit in pontificatu menses 10, dies 10.

Ventura Bufalinus, Tiphernas, episc. Massancns.

Ludovicus de Bucil, Gallus, ep. Venciens.

Hieronymus Galleratus, Mediolanens. episc. Sutrinus.

Jo. Petrus Delpliinus, Venctus, ord. Canonicorum regularium, ep. Zacynthi, et Cephalonia? secundus.

Jo. Andreas Bellonius, Mcssanens. episc. Massalubren.

Georgius Zifchouid, Hungarus, ordin. Min. S. Francisci de Observ. episc. Signien.

Fridericus Cornelius, Venetus, ordin. S. Joannis Hierosolymitani, episc. Bergomens. postea Patavinus, et S. R. E. presbyt. cardinalis tit. S. Stephani. Obiit Roma* 1590; sepultus Patavii in eccles. cathedrali.

Stephanus Buudier, Gallus, cp. Co-, risopiten.

Jo. Paulus Amanius, Cremen. episc. Anglonen.

Alexander Sfortia, ex comitibus S. Flora, episc. Parmens. postea card. tit. S. Marias in Via. Obiit Maceratae 1581; sepultus Roma in ecclesia Sancta Maria Majoris.

Antonius le drier, Gallus, ep. Abrincens.

Andreas Mocenicus, Venetus, episc. Nimosiens.

Benedictus Salinus, Firm anus, episc. Verulanus.

Guillelmus Cassador, Hispanus, episc. Barcinonen.

Petrus Gonzalez de Mendoza, His¬ panus, episcopus Salamanticen.

Martiuus de Corduba de Mendoza, Hispanus, ord. Prad. episc. Dertusen.

Julius Magnanus, Placcntinus, ordin. Min. convent. S. Francisci, episcop. Calven.

Valentinus Hcrbotus, Polonus, episc. Premislien. orator regis Polonia.

Simon Alcotus, Forojuliens. Obiit Tridenti 20 Augusti, 1562.

Petrus de Xaquc, Hispanus, ord. Pradic. episc. Niochcns.

Prosper Rebiba, Messancn. episc. Trojanus, postea patriarcha Constantinopolit.

Melchior dc Vosmediano, Hispanus, episcopus Guadixen.

Hippolytus de Rubcis. Parmcnsis, episcopus Papiensis, postea S. R. E. resb. cardinalis tit. S. Maria in Portic. einde S. Blasii de Annulo. Obiit Roma 1591, 28 April; sepultus in Sancti Blasii.

Didacus de Leon, Hispanus, ord. Carmelitarum, episc. Columbrien.

Annibal Saracenus, Neapolit. episc. Licien.

Paulus Jovius, Comcnsis electus episcopus Nucerien.

Hieronymus Trivisanus, Venetus, ord. Prad. episc. Veronen. Obiit Tridenti die 9 Septembris, 1562.

Hieronymus Ragazzonus, Venetus, episc. Nazianzenus, et coadjutor Famaugustan. postea episc. Bergomensis.

Romulus de Valentibus, de Trebia, -episc. Conversan.

Lucius Maranta, Venusinus, episc. Lavcllensis.

Simon de Nigris, Genuens. episc. Sarzanen.

Theophilus Galluppus. Tropiem episc. Oppiden.

Julius Simonetta, Mediolanen. epis¬ copus Pisauren.

Petrus d’Albret, Navarrus, episc. Convenarum.

Jacobus Guidius, Volaterranus, episc. Pennen. et Adriens.

Didacus Ramirez, Hisp. episcopus Pamphilonens.

Franeiscus Delgado, Hispanus, episc. Lucensis.

Joannes Clausse, Gallus, episc. Saniciensis.

Jacobus Gilbertus de Nogueras, His¬ panus, episc. Aliphan.

Joannes Annius, Neapolitanus, episc. Hipponen. et coadjutor Bovinus.

Antonius Maria Salviati, Romanus, episcopus S. Pauli, postea S. R. E.

NAMES OF PRELATES, ETC.,

presb. cardin&lis tit. S. Marise in Aquiro, et Bononi® legates. Obiit Rom® 1602, 26th Aprilis; sepultus ante surnmam aram in S. Jacobi.

Matthaeus Priulins, Venetus, episc. jEmonien. postea Vicentinns.

Thomas Lilius, Bononien. episcopns Soranus.

Franciscus Guarinns, Feretranus, episcopns Imolen.

Thomas OhierUanthe, Hibemus, epis¬ copns Rossen.

Franciscus de la Valette, Gallos, episcop. Vabren.

Fabius Pignatellus, Neapolitans, episcopns Monopolitan.

Carolus Visconti Mediolanen. episcopus Vintimilien. postea cardin. tit. SS. Martyrum Viti et Modesti in Marcello. Obiit Romae 1565, 13 Novembris; se¬ pal tus in ecclesia sui tituli.

Joannes Coloswarinus, Hun gams, ord. Praed. episcopus Canadiensis. Obiit Tridenti 14 Novembris, 1562.

Andreas Duditius Sbardellatus, Hungarus, episc. Thinien. postea Quinque Ecclesien.

Spinellus Bencius, Politianus, epis¬ copus Montispolitiani.

Franciscus Abondius, Castilioneus, Mediolanensis, episc. Bobien. postea S. R. E. presbyt. cardinal is tit. S. Nicolai inter Imagines. Obiit 1568, 24Novembris; sepultus Romae in eccle¬ sia Sanctae Maris de Populo.

Stanislaus Faleschi, Polonus, episc. Theodosien.

Eugenios Oharet, Hibemus, ord. Prsedic. episcopus JSgaden.

Donaldus Magongail, Hibemus, episc. Rapoten.

Guido Ferrerius, Pedemontanus, civis et episc. Vercellen. postea S. R. E. presb. cardinalis tit. Sanctae Euphemise, deinde SS. Viti et Modesti martyrum in Marcello, et marchio

Romagnani. Obiit 1585,26 Maii; sepultus in Sanctae Mariae Majoris.

Jo. Baptists Sighicellius, Bononien. episc. Faventinus.

Sebastianus Vantius, de Arimino, episcopus Urbevetanus.

Jo. Baptists Lomellinus, Messanen. episc. Gardien.

Jo. Baptists Milanesius, Florentinus, episc. Marsican.

Augustinus Mollignanus, Vercellensis, episc. Trivicanen.

Carolus Grimaldus, Genuen. episc. Sagonen.

Fabricius Landrianus, Mediolanen. episc. S. March

Bartholomsus Farratinus, civis et episcopus Amerinus.

Petrus Fragus, Hispanus, episcopus Usellen. postea Algarensis.

Hieronymus Gaddus, Florentinus, episc. Cortonen.

Franciscus Contarenus, Venetus, episcopus Paphens.

Joannes Delphinus, Venetus, episc. Torcellanus.

Alexander Molus, Comen. episcopus Minoren.

Hieronymus Vielmius, Venetus, ord. Prsed. episc. Argolicen.

Franciscus Raguseus, ordin. S. Francisci de Observautia, episc. Marcanens.

Abbates .

Ludovicos de Bessay, abbas generalis Cistercii.

Hieronymus de la Souchidre, Gallus, Campanus, monachus ordinis Cisterciensis, abbas Clara Vallis, postea abbas generalis Cistercii, demum S. R. E. presbyt cardinalis tit. S. Matthaei in Merulana. Obiit Romm 1571, 9 Nov.; sepultus in ecclesia S. C rue is in Jeru¬ salem.

Simplicianus, abb. 9. Salvatoris Papi®, de Vultulino, congregation is Cassinen.

Stephanus Catanius, Novarien. abb.

S. Mari® Gratiarum, Placentin. dime, congreg&tionis Cassinen.

Augustinus Loscus, Hispanus, abbas Sancti Benedicti de Ferraria, congregationis Cassinen.

Eutychius de Cordes, Antwerpiens. abb. Sancti Fortunati de Bassano, con¬ gregation. Cassinen. Obiit 15S2,mense Sept.; sepultus in monasterio S. Justin® de Padua.

Claudius Sainctes, Gallus, abbas Lunevillan.

Cosmas Damianus, Ilortulan. Hisp. abbas Vilkebeitrandi.

PRESENT AT THE COUNCIL.

Generates.

Vicentius Justinianus, Genuen. generalis ord. Predicatorum, post eft cardi- Dalis tit. S. Nicolai inter Imagines, deinde S. Sabina?. Obiit Rom® 1582, 28 Octobr.; sepultus in ecclesia Sanct® Marin? super Mincrvam.

Franciscus a Zamora, Hispanus, Conchensis, generalis ordinis Minorum de Observantia. Obiit 1571.

Antonius de Sapientibus, Augustanus, generalis ordin. Min. Conventualium.

Christophorus Patavin. prior gene¬

ralis ord. Eremitarum S. Augustin!. Obiit 1569.

Joannes Baptists, Migliavacca,Asten. generalis ord. Sancta; Marie Servorum.

Stephanus Fazinus, Cremonen. pro- ▼incialis Lombardia;, pro generali Carmelitaram.

Jacobus Lainez, Hispanus, ezoppido Castells Almazan, prepositus generalis societatis Jesu. Obiit Home 1565, 19 Januarii.

Thomas Tifemas, civitatis de Castello in Umbria, generalis Capucinorum.

Doctores legum pro sacro Concilia.

Gabriel Paleotta, Bononien, auditor Rote, postea S. R. E. diaconus cardinalis tit SS. Nerei et Achillei, mox SS. Joannis et Pauli, et episcopus Bononien, deinde tit, S. Martini in Montibus, et primus Bononie archiepiscopus, demum tit S. Laurentii in Lucina, ac episc. Albanus; postremo episc. cardinalis Sabinus. Obiit Rome 1597, 22 Julii, sepultus Bononie in ecclesia metropoli¬ tan.

Scipio Lancellottus, Romanus, advocatus consistorialiB, postea auditor Rote, et S. R. E. presbyt. cardinalis tit. S. Simeonis. Obiit Rome 1598, 2 Junii; -sepultus in S. Joannes Lateranensis.

Jo. Baptists Castellius, Bononien. promotor, postea episcopus Ariminens.

Michael Thonjasius, Majoricen. doc¬ tor decretorum, postea episcopus llerdensis.

Theologi a summo Pontijice mini.

Frater Petrus de Soto, Hispanus, or¬ dinis Praedicatorum. Obiit Tridenti, mense Aprilis, 1563.

Alphonsus Salmeron, Hispanus, Toletanus. Societ. Jesu. Obiit Neapoli, 15 Febr. 1585.

Franciscus Turrianus, Legionensis, Hispanus, doctor theologus, postea So¬ ciet Jesu. Obiit Home, 1584, ipso die festo Presentation is B. Virginia, quern ex breviario expunctum Ecclesie Catho¬ lic® restituti procuraverat.

Antonius Solisius, Hispanus, doctor theol.

Frater Camillus Campegius, Papiens. inquis. Ferrari®, ordinis Pred.

Frater Hieronymus Bravo, Hispanus, ordin. Pr®d.

Frater Adrianus Valentinus, Venetus, ord. Pr®d. in demortui F. Petri de Soto locum missus ; postea dominii Veneti inquisit. gener.

Doctores theologi facultatis Parisiensis missi a Carolo Nona, GaUiarum rege

Christianise .

Nicolaus Maillard, decanus facultatis Parisiensis.

Joannes Pelletier, prefect, collegio Navarr®.

Antonius Democharès, Ressoneus.

Nicolaus de Bris. -

F. Jacobus Hugonis. Franciscanus, idem etiam procurator reverendiss. Jo¬ annis Ursini, episc. Trecorensis.

Simon Vigor, Norm annus, canonicus

Parisiensis, postea archiep. Narbonensis. Richardus du Pre.

Natalis Paillet. Obiit Tridenti, 25 Novembris, 1562.

Robertus Fournier.

Antonius Coquier.

Lazarus Broychot.

Claudius de Saintes, canonicus regularis Sancti Augustini, postea episc. Ebroicensis. Obiit an. 1590.

NAMES OF PRELATES, ETC.,

Theologi missi a Philippo Secundo , rege Catholico. (a)

Cosmaa Damianus, Hortolan, electus abb. Villaebertrandi.

Ferdinandus Tritius, doctor theolo¬ gus, canonic. Caurien.

Ferdinan. Vellosillus, doctor theolo¬ gus, canonicus Seguntinus, postea episcopua Lucent.

Thomas Dassio. I. V. D. canonicus Valentinus.

Licentiat. Antonius Covarruvias, Didaci frater, auditor Granaten.

Ferdinandus Minchaca, decretor. doctor.

Frater Joannes Ramirez, Hispanus, minister proyincialis S. Jacobi.

Frater Alphonsus Contreras, commissarius ord, Minorum in curia regis. Hisp.

Frater Michael de Medina, Hispanus, ord inis Minor, sacrae theologiae doctor. Obiit Toleti.

Frater J oannes Lobera, H ispan. sac rag theologi® lector Salmanticae, socius ministri proyincialis S. Jacobi.

Cosmus Palma Fonteyus, sacrae theo¬ logi® doctor, Hispanus, socius Hortulani abbatis.

Frater Joannes Gallo, Hispanus, ord. Praed.

Frater Petrus Fernandez, Hispanus, ordin. Praed. socius Joannis Gallo.

Frater Desiderius de S. Martino, Panorm. ord. Carmelitani.

Michael Baius Hanno, Athensis, sacrae theologi® doctor, postea decanus ecclesiae collegiatae S. Petii Lovanii, Acatlemi® cancellarius, et ejusdem consery. Obiit Lovanii 1589, 16 Sept, ibique sepultus in sacello collegii pontificii.

Joannes Hessels, Brabantus, Lovaniensis, sacrae theologiae doctor. Obiit Lovanii 1576, 7 Novembris.

Cornelius Jansenius, Flander, Hulstensis, sacrae theologiae doctor, postea primus* episcopus Gandensis. Obiit Gand. 1576, 11 Aprilis.

Theologi missi a Rege Portugal ice.

Frater Franciscus Forerius, Lusita- Melchior Cornelius, decretorum docuus, ord. Praed. tor, senator regis Portugaliae.

Didacus Payvad’Andrada Lusitanus, doctor, theol.

Ab excellentissimo duce Bavaria .

Joannes Covillonius, Flander, Insu- lensis, ex soc. Jesu. Obiit Romae 1581. Procuratores Episcoporum Absentium.

Marchantus, doctor theologus, pro illustriss. cardinale de Mendoza, episcopo Burgens.

Jo. Gothardius, cleric, saecul. Germanus, pro cpiscopo Ratisbonen.

Georgius Hochenuarter, cleric, saecul. doctor theologus, sutTraganeus, pro episcopo Basiliensi.

Frater Feiicianus Ninguarda a Morbinio, ord. Praed. pro illustrissimo domino Salisburgen. orator.

Petrus Cumelius, doctor tlieologus,

canonicus Malacitanus, pro reverendissimo Malacitano.

Joannes Delgadus, doctor theologus, canonicus Tudensis, pro D. Joanne de S. JEmiliano episc. Iudensi.

Gaspar Cardillus, Villalpandeus, Segob. doctor tlieologus, pro cpisc. Abulensi.

Frater Joannes de Ludena, doctor theologus, ordin. Praed. pro episcopo Seguntiuo.

(a) Observa hunc thoolugorum oitUnera a libmriis iiuluctum, hio non inimntari, salvo tainen rtrrreto super liao r« s;mcito in fine sossiotiis sccnudiu, ct dec re to de loco oratortun sub tinein scssionia vigcsimto quintte. Quin et divcrsum piano ordinrm nonnulli servavere: inter quo* Gontimtus Hcrvotus, Aurcliauensis, vir olorissimus, qui ot ipse Concilio inter thcologos iuterfuit.

PRESENT AT THE COUNCIL.

SOU

Prater Franciscus Orantes, lector C»sar Ferrantius, Suessamis, doctor V allisoletti, ordin. Minorum pro epis- theologus, pro episc. Suessano apud copo Palentino. reverendissimum Ilerdensem.

Procurators ordinum.

Joannes Cotignon, doct. Gallus, pro¬ curator ord. Cluniaccnsis, postea prior major. Obiit 1572,21 Aprilis; eepultus Martini Aci.

Nicolaus B ocher at, Gallus, prior

monastcrii dc Recluso, procurator gene¬ ral. ordinis CistercieQ. postea ejusdem ordinis abbas generalis. Obiit 158G, 12 Martii.

Theologi sceculares et doctor es juris canonici.

Georgius Girard, Gallus, doctor theologus, cum reverendiss. Audegavensi.

Geutianus Hervctus, Gallus, Aurclianensis, cum illustriss. reverendiss. cardinale a Lotharingia. Fuit postea canonicus Rhemcnsis. Obiit Rhemis 1584, 12 Septembri8 v

Franciscus Sancius, decanusfacultatis theologian, et canonicus Salmanticen. cum reverend. Salmanticensi.

Matthaus Guerra, Consentinus, Cala¬ ber, pransb. s®cularis,cum epis.S. Marci.

Fredericus Pendasius, cum illustriss. card, de Mantua, legato sacri Concilii.

Joan. Franciscus Lombardus, cum illustris. card. Seripando, legato sacri Concilii.

Petrus Mercaddo, theologus, cum reverendiss. episc. Vicensi.

Franciscus de Truxillo, doctor theol. canonicus Legionen, cum reverend. Legionensi.

Sob annus, doctor theologus, cum reverend Legionensi.

Antoiiius Bitonius, doctor theol. cum reverend. Conimbricensi.

Petrus Fontidonius, Segoviensis, ca¬ nonicus Salmantinu8, doctor theolog. cum reverend. Salmautino.

Joannes Villeta, doctor theologus, cum reverend. Barcinonensi.

Joannes Fonseca, doctor theologus, cum reverend archiepisc. Granaten.

Michael Oroncuspe, doct. theol. cum reverend episc. Pampilonen.

Alphonsus Fernandez de la Guerra, Hispanus, doctor theologus, cum reve¬ rend. Guadixiensi.

Michael Ytero D. V. 1. cum episc. Pampilonensi.

Josephus Puebla, doctor theolog. cum episcopo Civitatensi.

Joannes Chacon, doctor juris canonici, cum episc. Almeriensi.

Antonins Garsias, doctor theolog. Cum episcopo Oveten.

Bencdictus Arias Montanus, ord. S. Jacobi, doctor theologus, cum reverend. Segobiensi.

Joannes Barcellona, theologus, cum episc. Uscellensi.

Doctores Galli ordinis S. Bcnedicii .

Joaunes de Chartougne, doctor theo- Joannes de Verdun, doctor theologus. logus.

Theologi ordinis Fratrum Preedicalorum .

Angelus Ciosius, Flurentinus, cum illustriss. card. Mantuano, legato sacri Concilii.

Seraphinus de Caballis, Brixiensis, provincialis Terr® Sanct® cum suo generali, postea ord. generalis. Obiit Hispali 1578, 21 Novemb.

Heliseus Capys, Venetus, theologus, cum archiepisc. Pragensi.

Petrus Aridiensis, Gallus, cum reve¬ rend. Cenomanensi.

Bernardus Berardi, Gallus, inquisitor Avenion. vicarius cong. Franci®, ciun reverend. NeraausenBi.

Joannes Mattlicus Valdina, cum reve¬ rend. Tarentino.

Petrus Martyr Coma, Hisp. cum reve¬ rendiss. Geruudensi.

Petrus Zatores, Hisp. cum rever. Der tusensi.

Antonins de Grosupto, cum reverendiss. Viglevanensi.

NAMES OF PRELATES, ETC.,

Aurelias de Ohio, cum reverend. Spalatrensi.

Adrianas Valenticus, Venetus, cum reverend. Nicosiensi.

Marcus Medices, Veronens. cum reve¬ rend. Cenetensi.

Benedictus Herbs, Mantuanus, cum reverend. Brixiensi.

Michael de Ast, Genuensis, prior S. Lauren tii.

Constantinus Coccianus Isorella, cum reverend. Montispolitiani.

Henricus de S. Hieronymo, cum reve¬ rend. Braccarensi.

Ludovicus de Sotomayor, Lusitanus, cum rever. Georgio Tudensi.

Baptiste de Lugo, cum reverend. Veronensi.

Hieronymus Barolus, Papien.

Theologi or din. Minorum de Observantia.

Aloysios de Burgo Novo, Italus, sacras theologian lector Bononiae, commissarius generalis, postea ordin. generalis.

Thomas de Sogliano, Italus, prov. Bononiae minister.

Antonins de Padua, Lusitanus, ordin. secretarius.

Bonifacius de Ragusio, apostolic, praedicator, Terrae S. gubernator, postea episcopus de Stagno in Dalmatia.

Angelas de Petriolo, Italus, lector sacrae theologiae Perusise.

Angelus Justinianus, Italus, lector sacras theologiae Genuae.

Vincentius de Messina, Italus, sacras theologies lector Neapoli.

Julius Passiranus, Orseanus, Italus, sacrae theologiae lector Bergomi.

Jacobus Alani, Gallus, theologus, cum episc. Venetensi.

Theologi ordinis Frat rum Minorum conventualium.

Marcus Antonins Gambaronus a Lugo, socius religionis.

Bartholomaeus Golphus de Pergola.

Joannes Tertius, Bergomens. lector theologiae publicus in gymnasio Papiensi.

Clemens Thomasinus de Florentia, regens in conventu S. Crucis de Florentia.

Augustinus Balbus a Lugo

Joannes Baptists Ghisulphus, ordinis scriba.

Antonius de Guignano, regens S. An* tonii de Patavio.

Lucius Augusiola, Placentinus, regens S. Francisci Bononias.

Maximilianus, Benjaminus, Cremens,

orator pro religione, et inquisitor Padtue, postea episcopus Clodiensis.

Octavianus Chains, de Neapoli, regens S. Lauren tii de Neapoli.

Antonius Posius de Monte Ilcino, regens in conventu duodecim Apostolorum Bom®. Obiit Monteilcini 1380.

Bonaventura Meldulen. regens in con¬ ventu Parmse.

Martialis Peregrinus, Calaber, regens in conventu Ferrari se.

Antonius a Cubalo, Feltrens.

Andreas Schynopius de Amandula, cum reverendissimo Catacensi.

Balthassar Gryspus, Neapolitanus, cum reverendissimo Tropien.

Theologi ordinis Fratrum Eremitarum Suncti Augustini .

Thadseus Perusinus, cum reverend. Salviato, postea praepos. gener.

Joannes Paulus Recanatensis, cum reverendissimo Quinque Ecclesiens. oratore pro regno Hungari©.

Simon Florentinus, cum illustriss. card. Seripando legato.

Cherubinus Lavosius de Cassia, cum reverend. Vercellens.

Gabriel Verratellus, Anconitanus. Ambrosias Veronensis, prior conventus 8. Marci in urbe Tridentiua.

Joannes Baptists Burgos, Hispanus, Valentinus.

Antonius Mondulphensis, cum reve¬ rend. Pragens. oratore.

JSgidius Volaterranus, cum episcopo Thiniens.

Eugenius Pisaurensis, Concilii pr©dicator, postea episcopus Smyrnensis, et Velitemonim proprsesul, apud quos obiit 1580,21 Jnn.

Adamus Florentinus, cum illustriss. cardin. Madrutio, orationem habuit no-

mine oratoris VII pngorum Helveiicorum Catholicorum. Obiit Roma? 1581, 17 Janaarii.

Aurelius Coronal tensis, cum oratore Helvetiorum.

Balthazar Messanus, cum episcopo Catanien.

• Bebastionus Fanensis, ordinis scriba.

Cbristopliorus de Sanctons, Hisp. Burgensis.

Simon de Brazzolatis, Patavjnus.

Angelus Fcrus, Venetus, cum revereudiss. de Osma. Obiit Barii in Apulia prscfectus provincial is.

Petrus Lusitanus, cum reverendiss. Leiriensi.

Theologi ordinis Fratrum Carmclitan.

Jo. Jacobus Cheregatus, Vinceutinus, provincialis Venetiarum, postea proc. gener. ord.

Tbeodorus Masius, Mantuan, cum reverendiss. Cremouensi.

Silvester, confessarius illustriss. card. Mantuani.

Lucretius Asolauns, cum reverend, p&triarcha Venetiar.

Nicolaus Callus, cum R. patre generali. Eraldus Galius, cum R. patre generali. Laurentius Lauretus, Venetus, cum R. patre generali.

Angelus Ambrosianus, Venetus.

Theologi ordinis Fratrum Servorum B. Maria,

Steplianus Bonucius, Tuscus, Aretinus, postea episcopus Alatrinus, deinde Areti¬ nus, et S. R. E. presb. eardinalis tit. SS. Petri et Marcellini. Obiit Romae 1589,

2 Januarii, in collegio sui ordin. ibique sepultus.

Amans, pro congregatione Servorum, cum reverendiss. Sibinicens.

Officiates sacri Concilii Tridentini.

Episcopus Cavensis, commissarius Ludovicus Bondonius, magist. csere-

Episcopus Thelesinus, secretarius. moniarum.

Antonius Manellus, depositarius.

Cantores Sacri Concilii,

Simon Bartholinus, Peru si mis Joannes Aloysius de Episcopis, Neapolit.

Bartbolomaeus le Comte, Gallus. Matthias Albo, de Fulgineo.

Franciscus Bustamente, Hispan. Joannes Antonius Latinus, Beneventan. Franciscus Druda, Galliensis.

Lucas Longinquus, Gisonensis.

Petrus Scorteccius, Aretinus.

Nolarii.

Mar. Ant. Peregrinus, et Cynthius Hieronymus Gambarus, Brixiensis Fo* Pamphilus, de Sancto Severino. rensis.

Cur sores sanctiss, D. N, et sacri Concilii,

Nicolaus de Matthaus, et Jacobus Carra, Allobroges.

Numeras Pralatorum cujuscumque nationis qui ad cecumenicam Tridentinam Synodum convenere.

Prselati Jtali,

187. per procuratores,

Praelati Galli,

26. per procuratorem,

Prselati Germani,

2. per procuratores,

Prselati Hispani,

81. per procuratores,

Praelati Lusitanj,

Prselati Grseci,

Prselati Poloni,

Prselati Hungari,

Praelati Angli,

Praelati Hiberni,

Praelati Flandri,

Prselati Croati,

Prselati Moravi,

Praelati Illyrici,